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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. NEWHOUSE).

DESIGNATION OF THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
March 3, 2015.

I hereby appoint the Honorable DAN NEWHOUSE to act as Speaker pro tempore on this day.

JOHN A. BOEHNER,
Speaker of the House of Representatives.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Loving God, You are compassionate and merciful. We give You thanks for giving us another day.

This morning, the House welcomes the Prime Minister of Israel. May he find a welcome here, and may the partnership of our two countries continue into a future of mutual respect and security among the community of nations.

There are many issues which press upon our Nation now, and more lie upon the legislative horizon. Pour forth an abundance of wisdom, knowledge, and understanding upon the Members of Congress and upon Your people so that, together, solutions for the betterment of our Nation might be forged.

Bless us this day and every day. May all that is done be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER pro tempore. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

Ms. ROS-LEHTINEN. Mr. Speaker, pursuant to clause 1, rule I, I demand a vote on agreeing to the Speaker's approval of the Journal.

The SPEAKER pro tempore. The question is on the Speaker's approval of the Journal.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. ROS-LEHTINEN. Mr. Speaker, I object to the vote on the ground that a quorum is not present and make the point of order that a quorum is not present.

The SPEAKER pro tempore. Pursuant to clause 8, rule XX, further proceedings on this question will be postponed.

The point of no quorum is considered withdrawn.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentlewoman from Arizona (Ms. MCSALLY) come forward and lead the House in the Pledge of Allegiance.

Ms. MCSALLY led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, March 3, 2015.

Hon. JOHN A. BOEHNER,
The Speaker, House of Representatives, Washington, DC.

DEAR MR. SPEAKER: Pursuant to the permission granted in Clause 2(h) of Rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on March 3, 2015 at 9:32 a.m.:

That the Senate passed without amendment H.R. 431.

Appointments:

Election Assistance Board of Advisors.

With best wishes, I am

Sincerely,

KAREN L. HAAS.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair announces that when the two Houses meet in joint meeting to hear an address by His Excellency Binyamin Netanyahu, Prime Minister of Israel, only the doors immediately opposite the Speaker and those immediately to his left and right will be open.

No one will be allowed on the floor of the House who does not have the privilege of the floor of the House. Due to the large attendance that is anticipated, the rule regarding the privilege of the floor must be strictly enforced. Children of Members will not be permitted on the floor. The cooperation of all Members is requested.

The practice of reserving seats prior to the joint meeting by placard will not be allowed. Members may reserve their seats by physical presence only following the security sweep of the Chamber.

RECESS

The SPEAKER pro tempore. Pursuant to the order of the House of Thursday, February 26, 2015, the House stands in recess subject to the call of the Chair.

Accordingly, (at 10 o'clock and 5 minutes a.m.), the House stood in recess.

Printed on recycled paper.

JOINT MEETING TO HEAR AN ADDRESS BY HIS EXCELLENCY BINYAMIN NETANYAHU, PRIME MINISTER OF ISRAEL

During the recess, the House was called to order by the Speaker at 10 o'clock and 48 minutes a.m.

The Assistant to the Sergeant at Arms, Ms. Kathleen Joyce, announced the President pro tempore and Members of the U.S. Senate, who entered the Hall of the House of Representatives, the President pro tempore taking the chair at the left of the Speaker, and the Members of the Senate the seats reserved for them.

The SPEAKER. The joint meeting will come to order.

The Chair appoints as members of the committee on the part of the House to escort His Excellency Binyamin Netanyahu, Prime Minister of Israel, into the Chamber:

The gentleman from California (Mr. MCCARTHY);

The gentleman from Louisiana (Mr. SCALISE);

The gentlewoman from Washington (Mrs. MCMORRIS RODGERS);

The gentleman from Oregon (Mr. WALDEN);

The gentleman from Indiana (Mr. MESSER);

The gentlewoman from Kansas (Ms. JENKINS);

The gentlewoman from North Carolina (Ms. FOXX);

The gentleman from California (Mr. ROYCE);

The gentlewoman from Florida (Ms. ROS-LEHTINEN);

The gentlewoman from Texas (Ms. GRANGER);

The gentleman from New York (Mr. ZELDIN);

The gentleman from Illinois (Mr. DOLD);

The gentleman from Maryland (Mr. HOYER);

The gentleman from New York (Mr. CROWLEY);

The gentleman from New York (Mr. ISRAEL);

The gentleman from New York (Mr. ENGEL);

The gentlewoman from New York (Mrs. LOWEY);

The gentleman from New York (Mr. NADLER);

The gentleman from Florida (Mr. HASTINGS);

The gentleman from Florida (Mr. DEUTCH);

The gentleman from California (Mr. SHERMAN);

The gentlewoman from California (Ms. HAHN); and

The gentleman from Colorado (Mr. POLIS).

The PRESIDENT pro tempore. The President of the Senate, at the direction of that body, appoints the following Senators as members of the committee on the part of the Senate to escort His Excellency Binyamin Netanyahu, Prime Minister of Israel, into the House Chamber:

The Senator from Kentucky (Mr. MCCONNELL);

The Senator from Texas (Mr. CORNYN);

The Senator from South Dakota (Mr. THUNE);

The Senator from Wyoming (Mr. BARRASSO);

The Senator from Mississippi (Mr. WICKER);

The Senator from Tennessee (Mr. CORKER);

The Senator from Illinois (Mr. DURBIN);

The Senator from New York (Mr. SCHUMER);

The Senator from New Jersey (Mr. MENENDEZ); and

The Senator from Maryland (Mr. CARDIN.)

The Assistant to the Sergeant at Arms announced the Acting Dean of the Diplomatic Corps, His Excellency Hersey Kyota, the Ambassador of the Republic of Palau.

The Acting Dean of the Diplomatic Corps entered the Hall of the House of Representatives and took the seat reserved for him.

At 11 o'clock and 6 minutes a.m., the Sergeant at Arms, Paul D. Irving, announced His Excellency Binyamin Netanyahu, Prime Minister of Israel.

The Prime Minister of Israel, escorted by the committee of Senators and Representatives, entered the Hall of the House of Representatives and stood at the Clerk's desk.

(Applause, the Members rising.)

The SPEAKER. Members of Congress, I have the high privilege and the distinct honor of presenting to you His Excellency Binyamin Netanyahu, Prime Minister of Israel.

(Applause, the Members rising.)

Prime Minister NETANYAHU. Thank you, Speaker of the House JOHN BOEHNER, President Pro Tem Senator ORRIN HATCH, Senate Majority Leader MITCH MCCONNELL, House Minority Leader NANCY PELOSI, and House Majority Leader KEVIN MCCARTHY.

I also want to acknowledge Senator and Democratic Leader, HARRY REID. HARRY, it is good to see you back on your feet. I guess it is true what they say, you can't keep a good man down.

My friends, I am deeply humbled by the opportunity to speak for a third time before the most important legislative body in the world, the U.S. Congress. I want to thank you all for being here today.

I know that my speech has been the subject of much controversy. I deeply regret that some perceive my being here as political. That was never my intention.

I want to thank you, Democrats and Republicans, for your common support for Israel year after year, decade after decade. I know that no matter on which side of the aisle you sit, you stand with Israel.

The remarkable alliance between Israel and the United States has always been above politics. It must always remain above politics because America and Israel, we share a common destiny, the destiny of promised lands that cherish freedom and offer hope.

Israel is grateful for the support of America's people and of America's Presidents, from Harry Truman to Barack Obama.

We appreciate all that President Obama has done for Israel. Now, some of that is widely known, like strengthening security cooperation and intelligence sharing, opposing anti-Israel resolutions at the U.N.

Some of what the President has done for Israel is less well known. I called him in 2010 when we had the Carmel forest fire, and he immediately agreed to respond to my request for urgent aid.

In 2011, we had our Embassy in Cairo under siege, and again, he provided vital assistance at the crucial moment. Or his support for more missile interceptors during our operation last summer when we took on Hamas terrorists. In each of those moments, I called the President and he was there.

Some of what the President has done for Israel might never be known because it touches on some of the most sensitive and strategic issues that arise between an American President and an Israeli Prime Minister. But I know it, and I will always be grateful to President Obama for that support.

And Israel is grateful to you, the American Congress, for your support, for supporting us in so many ways, especially in generous military assistance and missile defense, including Iron Dome.

Last summer, millions of Israelis were protected from thousands of Hamas rockets because this Capitol Dome helped build our Iron Dome. Thank you, America. Thank you for everything you have done for Israel.

My friends, I have come here today because, as Prime Minister of Israel, I feel a profound obligation to speak to you about an issue that could well threaten the survival of my country and the future of my people, Iran's quest for nuclear weapons.

We are an ancient people. In our nearly 4,000 years of history, many have tried repeatedly to destroy the Jewish people.

Tomorrow night, on the Jewish holiday of Purim, we will read the book of Esther. We will read of a powerful Persian viceroy named Haman, who plotted to destroy the Jewish people some 2,500 years ago.

But a courageous Jewish woman, Queen Esther, exposed the plot and gained for the Jewish people the right to defend themselves against their enemies. The plot was foiled. Our people were saved.

Today, the Jewish people face another attempt by yet another Persian potentate to destroy us. Iran's Supreme Leader, Ayatollah Khamenei, spews the oldest hatred, the oldest hatred of anti-Semitism with the newest technology.

He tweets that Israel must be annihilated. He tweets. In Iran there isn't exactly free Internet, but he tweets in English that Israel must be destroyed.

For those who believe that Iran threatens the Jewish state but not the Jewish people, listen to Hassan Nasrallah, the leader of Hezbollah,

Iran's chief terrorist proxy. He said: If all the Jews gather in Israel, it will save us the trouble of chasing them down around the world.

But Iran's regime is not merely a Jewish problem, any more than the Nazi regime was merely a Jewish problem.

The 6 million Jews murdered by the Nazis were but a fraction of the 60 million people killed in World War II. So, too, Iran's regime poses a grave threat, not only to Israel, but also to the peace of the entire world.

To understand just how dangerous Iran would be with nuclear weapons, we must fully understand the nature of the regime.

The people of Iran are very talented people. They are heirs to one of the world's great civilizations. But in 1979, they were hijacked by religious zealots, religious zealots who imposed on them immediately a dark and brutal dictatorship. That year, the zealots drafted a constitution, a new one for Iran. It directed the Revolutionary Guards not only to protect Iran's borders but also to fulfill the ideological mission of jihad. The regime's founder, Ayatollah Khomeini, exhorted his followers to export the revolution throughout the world.

I am standing here in Washington, D.C., and the difference is so stark. America's founding document promises ''life, liberty, and the pursuit of happiness.'' Iran's founding document pledges death, tyranny, and the pursuit of jihad. And as states are collapsing across the Middle East, Iran is charging into the void to do just that. Iran's goons in Gaza, its lackeys in Lebanon, its Revolutionary Guards on the Golan Heights are clutching Israel with three tentacles of terror. Backed by Iran, Assad is slaughtering Syrians. Backed by Iran, Shiite militias are rampaging through Iraq. Backed by Iran, Houthi are seizing control of Yemen, threatening the strategic straits at the mouth of the Red Sea. Along with the Strait of Hormuz, that would give Iran a second choke point on the world's oil supply.

Just last week, near Hormuz, Iran carried out a military exercise, blowing up a mock U.S. aircraft carrier—that is just last week—while they are having nuclear talks with the United States. But unfortunately, for the last 36 years, Iran's attacks against the United States have been anything but mock, and the targets have been all too real.

Iran took dozens of Americans hostage in Tehran; murdered hundreds of American soldiers, marines in Beirut, and was responsible for killing and maiming thousands of American servicemen and -women in Iraq and Afghanistan.

Beyond the Middle East, Iran attacks America and its allies through its global terror network. It blew up the Jewish community center and the Israeli Embassy in Buenos Aires; it helped al Qaeda bomb U.S. Embassies in Africa; it even attempted to assassinate the Saudi Ambassador right here in Washington, D.C.

In the Middle East, Iran now dominates four Arab capitals—Baghdad, Damascus, Beirut, and Sana'a. And if Iran's aggression is left unchecked, more will surely follow.

So at a time when many hope that Iran will join the community of nations, Iran is busy gobbling up the nations.

We must all stand together to stop Iran's march of conquest, subjugation, and terror.

Now, 2 years ago, we were told to give President Rouhani and Foreign Minister Zarif a chance to bring change and moderation to Iran—some change, some moderation. Rouhani's government hangs gays, persecutes Christians, jails journalists, and executes even more prisoners than before.

Last year, the same Zarif who charms Western diplomats laid a wreath at the grave of Imad Mughniyah. Imad Mughniyah is the terrorist mastermind who spilled more American blood than any other terrorist besides Osama bin Laden. I would like to see someone ask him a question about that.

Iran's regime is as radical as ever, its cries of ''Death to America,'' that same America that it calls the great Satan, as loud as ever. Now this shouldn't be surprising because the ideology of Iran's revolutionary regime is deeply rooted in militant Islam, and that is why this regime will always be an enemy of America.

And don't be fooled. The battle between Iran and ISIS doesn't turn Iran into a friend of America. Iran and ISIS are competing for the crown of militant Islam. One calls itself the Islamic Republic; the other calls itself the Islamic State. Both want to impose a militant Islamic empire, first on the region, and then on the entire world. They just disagree among themselves who will be the ruler of that empire.

In this deadly game of thrones, there is no place for America or for Israel; no peace for Christians, Jews, or Muslims who don't share the Islamist medieval creed; no rights for women; no freedom for anyone.

So when it comes to Iran and ISIS, the enemy of your enemy is your enemy. The difference is that ISIS is armed with butcher knives, captured weapons, and YouTube; whereas, Iran could soon be armed with intercontinental ballistic missiles and nuclear bombs.

We must always remember—I will say it one more time—the greatest danger facing our world is the marriage of militant Islam with nuclear weapons. To defeat ISIS and let Iran get nuclear weapons would be to win the battle but lose the war. We can't let that happen. But that, my friends, is exactly what could happen if the deal now being negotiated is accepted by Iran. That deal will not prevent Iran from developing nuclear weapons. It would all but guarantee that Iran gets those weapons, lots of them.

Let me explain why.

While the final deal has not yet been signed, certain elements of any potential deal are now a matter of public record. You don't need intelligence agencies and secret information to know this. You can Google it.

Absent a dramatic change, we know for sure that any deal with Iran will include two major concessions to Iran. The first major concession would leave Iran with a vast nuclear infrastructure, providing it with a short breakout time to the bomb. ''Breakout time'' is the time it takes to amass enough weapons-grade uranium or plutonium for a nuclear bomb.

According to the deal, not a single nuclear facility would be demolished. Thousands of centrifuges used to enrich uranium would be left spinning. Thousands more would be temporarily disconnected but not destroyed. Because Iran's nuclear program would be left largely in tact, Iran's breakout time would be very short—about a year by U.S. assessment, even shorter by Israel's. And if Iran's work on advanced centrifuges—faster and faster centrifuges—is not stopped, that breakout time could still be shorter—a lot shorter.

True, certain restrictions would be imposed on Iran's nuclear program, and Iran's adherence to those restrictions would be supervised by international inspectors. But here is the problem, you see: inspectors document violations; they don't stop them.

Inspectors knew when North Korea broke to the bomb, but that didn't stop anything. North Korea turned off the cameras, kicked out the inspectors; and, within a few years, it got the bomb.

Now, we are warned that within 5 years, North Korea could have an arsenal of 100 nuclear bombs. Like North Korea, Iran, too, has defied international inspectors. It has done that on at least three separate occasions, 2005, 2006, and 2010.

Like North Korea, Iran broke the locks and shut off the cameras. Now, I know this is not going to come as a shock to any of you, but Iran not only defies inspectors, it also plays a pretty good game of hide-and-cheat with them.

The U.N.'s nuclear watchdog agency, the IAEA, said again yesterday that Iran still refuses to come clean about its military nuclear program. Iran was also caught—caught twice, not once—twice operating secret nuclear facilities in Natanz and Qom, facilities that inspectors didn't even know existed. Right now, Iran could be hiding nuclear facilities that we—the U.S. and Israel—don't know about.

As the former head of inspections for the IAEA said in 2013: ''If there is no undeclared installation today in Iran, it will be the first time in 20 years that it doesn't have one.'' Iran has proven

time and again that it cannot be trusted, and that is why the first major concession is a source of grave concern.

It leaves Iran with a vast nuclear infrastructure and relies on inspectors to prevent a breakout. That concession creates a real danger that Iran could get to the bomb by violating the deal.

But the second major concession creates an even greater danger that Iran could get to the bomb by keeping the deal because virtually all the restrictions on Iran's nuclear program will automatically expire in about a decade.

Now, a decade may seem like a long time in political life, but it is the blink of an eye in the life of a nation. It is the blink of an eye in the life of our children. We all have a responsibility to consider what will happen when Iran's nuclear capabilities are virtually unrestricted and all the sanctions will have been lifted. Iran would then be free to build a huge nuclear capacity that could produce many, many nuclear bombs.

Iran's Supreme Leader says that openly. He says that Iran plans to have 190,000 centrifuges—not 6,000 or even the 19,000 that Iran has today, but ten times that amount—190,000 centrifuges enriching uranium. With this massive capacity, Iran could make the fuel for an entire nuclear arsenal and this in a matter of weeks once it makes that decision.

My longtime friend John Kerry, Secretary of State, confirmed last week that Iran could legitimately possess that massive centrifuge capacity when the deal expires. Now, I want you to think about that. The foremost sponsor of global terrorism could be weeks away from having enough enriched uranium for an entire arsenal of nuclear weapons—and this with full international legitimacy.

By the way, if Iran's intercontinental ballistic missile program is not part of the deal—and, so far, Iran refuses to even put it on the negotiating table—well, Iran could have the means to deliver that nuclear arsenal to the far-reaching corners of the Earth, including to every part of the United States.

You see, my friends, this deal has two major concessions: one, leaving Iran with a vast nuclear program; and, two, lifting the restrictions on that program in about a decade. That is why this deal is so bad. It doesn't block Iran's path to the bomb; it paves Iran's path to the bomb.

Why would anyone make this deal? Because they hope that Iran will change for the better in the coming years or they believe that the alternative to this deal is worse.

Well, I disagree. I don't believe that Iran's radical regime will change for the better after this deal. This regime has been in power for 36 years, and its voracious appetite for aggression grows with each passing year. This deal would only whet Iran's appetite for more.

Would Iran be less aggressive when sanctions are removed and its economy is stronger? If Iran is gobbling up four countries right now while it is under sanctions, how many more countries will Iran devour when sanctions are lifted?

Would Iran fund less terrorism when it has mountains of cash with which to fund more terrorism? Why should Iran's radical regime change for the better when it can enjoy the best of both worlds: aggression abroad and prosperity at home?

This is a question that everyone asks in our region. Israel's neighbors—Iran's neighbors—know that Iran will become even more aggressive and sponsor even more terrorism when its economy is unshackled and it has been given a clear path to the bomb. Many of these neighbors say that they will respond by racing to get nuclear weapons of their own.

This deal won't change Iran for the better; it will only change the Middle East for the worse. A deal that is supposed to prevent nuclear proliferation would instead spark a nuclear arms race in the most dangerous part of the planet.

This deal won't be a farewell to arms. It would be a farewell to arms control, and the Middle East would soon be crisscrossed by nuclear tripwires. A region where small skirmishes can trigger big wars would turn into a nuclear tinderbox.

If anyone thinks this deal kicks the can down the road, think again. When we get down that road, we will face a much more dangerous Iran, a Middle East littered with nuclear bombs, and a countdown to a potential nuclear nightmare.

Ladies and gentlemen, I have come here today to tell you we don't have to bet the security of the world on the hope that Iran will change for the better. We don't have to gamble with our future and with our children's future. We can insist that restrictions on Iran's nuclear program not be lifted for as long as Iran continues its aggression in the region and in the world.

Before lifting those restrictions, the world should demand that Iran do three things: first, stop its aggression against its neighbors in the Middle East; second, stop supporting terrorism around the world; and, third, stop threatening to annihilate my country, Israel, the one and only Jewish state.

If the world powers are not prepared to insist that Iran change its behavior before a deal is signed, at the very least, they should insist that Iran change its behavior before a deal expires.

If Iran changes its behavior, the restrictions would be lifted. If Iran doesn't change its behavior, the restrictions should not be lifted. If Iran wants to be treated like a normal country, let it act like a normal country.

My friends, what about the argument that there is no alternative to this deal, that Iran's nuclear know-how cannot be erased, that its nuclear program is so advanced that the best we can do is delay the inevitable, which is, essentially, what the proposed deal seeks to do?

Well, nuclear know-how without nuclear infrastructure doesn't get you very much. A race car driver without a car can't drive; a pilot without a plane can't fly; without thousands of centrifuges, tons of enriched uranium, or heavy water facilities, Iran can't make nuclear weapons.

Iran's nuclear program can be rolled back well beyond the current proposal by insisting on a better deal and keeping up the pressure on a very vulnerable regime, especially given the recent collapse in the price of oil.

Now, if Iran threatens to walk away from the table—and this often happens in a Persian bazaar—call their bluff. They will be back because they need the deal a lot more than you do. And by maintaining the pressure on Iran, and on those who do business with Iran, you have the power to make them need it even more.

My friends, for over a year, we have been told that no deal is better than a bad deal. Well, this is a bad deal, it is a very bad deal. We are better off without it.

Now we are being told that the only alternative to this bad deal is war. That is just not true. The alternative to this bad deal is a much better deal, a better deal that doesn't leave Iran with a vast nuclear infrastructure in such a short breakout time, a better deal that keeps the restrictions on Iran's nuclear program in place until Iran's aggression ends, a better deal that won't give Iran an easy path to the bomb, a better deal that Israel and its neighbors may not like but with which we could live, literally. And no country, no country has a greater stake, no country has a greater stake than Israel in a good deal that peacefully removes this threat.

Ladies and gentlemen, history has placed us at a fateful crossroads. We must now choose between two paths.

One path leads to a bad deal that will, at best, curtail Iran's nuclear ambitions for a while, but it will inexorably lead to a nuclear-armed Iran whose unbridled aggression will inevitably lead to war.

The second path, however difficult, could lead to a much better deal that would prevent a nuclear-armed Iran, a nuclearized Middle East, and the horrific consequences of both to all of humanity.

You don't have to read Robert Frost to know you have to live life, to know that the difficult path is usually the one less traveled, but it will make all the difference for the future of my country, the security of the Middle East, and the peace of the world, the peace that we all desire.

My friends, standing up to Iran is not easy; standing up to dark and murderous regimes never is. With us today is Holocaust survivor and Nobel Prize winner Elie Wiesel. Elie, your life and work inspires to give meaning to the

words ''never again.'' And I wish I could promise you, Elie, that the lessons of history have been learned. I can only urge the leaders of the world not to repeat the mistakes of the past, not to sacrifice the future for the present, not to ignore aggression in the hopes of gaining an illusory peace. But I can guarantee you this: the days when the Jewish people remain passive in the face of genocidal enemies, those days are over. We are no longer scattered among the nations, powerless to defend ourselves. We have restored our sovereignty in our ancient home, and the soldiers who defend our home have boundless courage.

For the first time in 100 generations, we, the Jewish people, can defend ourselves. This is why, as Prime Minister of Israel, I can promise you one more thing. Even if Israel has to stand alone, Israel will stand. But I know that Israel does not stand alone. I know that America stands with Israel, I know that you stand with Israel. You stand with Israel because you know that the story of Israel is not only the story of the Jewish people but of the human spirit that refuses again and again to succumb to history's horrors.

Facing me right up there in the gallery, overlooking all of us in this august Chamber, is the image of Moses. Moses led our people from slavery to the gates of the Promised Land. And before the people of Israel entered the land of Israel, Moses gave us a message that has steeled our resolve for thousands of years.

I leave you with his message today:

Be strong and resolute. Neither fear nor dread them.

My friends, may Israel and America always stand together, strong and resolute. May we neither fear nor dread the challenges ahead. May we face the future with confidence, strength, and hope.

May God bless the State of Israel, and may God bless the United States of America.

Thank you. Thank you very much. Thank you all. You are wonderful. Thank you, America. Thank you.

(Applause, the Members rising.)

At 11 o'clock and 54 minutes a.m., His Excellency Binyamin Netanyahu, Prime Minister of Israel, accompanied by the committee of escort, retired from the Hall of the House of Representatives.

The Assistant to the Sergeant at Arms escorted the Acting Dean of the Diplomatic Corps from the Chamber.

JOINT MEETING DISSOLVED

The SPEAKER. The purpose of the joint meeting having been completed, the Chair declares the joint meeting of the two Houses now dissolved.

Accordingly (at 11 o'clock and 54 minutes p.m.), the joint meeting of the two Houses was dissolved.

The Members of the Senate retired to their Chamber.

The SPEAKER. The House will continue in recess subject to the call of the Chair.

□ 1232

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. PALAZZO) at 12 o'clock and 32 minutes p.m.

PRINTING OF PROCEEDINGS HAD DURING RECESS

Mr. WOODALL. Mr. Speaker, I ask unanimous consent that the proceedings had during the recess be printed in the RECORD.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Georgia?

There was no objection.

PROVIDING FOR CONSIDERATION OF H.R. 749, PASSENGER RAIL REFORM AND INVESTMENT ACT OF 2015, AND PROVIDING FOR PROCEEDINGS DURING THE PERIOD FROM MARCH 6, 2015, THROUGH MARCH 13, 2015

Mr. WOODALL. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 134 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 134

Resolved, That at any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 749) to reauthorize Federal support for passenger rail programs, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Transportation and Infrastructure. After general debate the bill shall be considered for amendment under the five-minute rule. It shall be in order to consider as an original bill for the purpose of amendment under the five-minute rule an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114-9. That amendment in the nature of a substitute shall be considered as read. All points of order against that amendment in the nature of a substitute are waived. No amendment to that amendment in the nature of a substitute shall be in order except those printed in the report of the Committee on Rules accompanying this resolution. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole. All points of order against such amendments are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. Any Member may demand a separate vote in the House on any amendment adopted in the Committee of the Whole to the bill or to the amendment in the nature of a substitute made in order as original text. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions.

SEC. 2. On any legislative day during the period from March 6, 2015, through March 13, 2015—

(a) the Journal of the proceedings of the previous day shall be considered as approved; and

(b) the Chair may at any time declare the House adjourned to meet at a date and time, within the limits of clause 4, section 5, article I of the Constitution, to be announced by the Chair in declaring the adjournment.

SEC. 3. The Speaker may appoint Members to perform the duties of the Chair for the duration of the period addressed by section 2 of this resolution as though under clause 8(a) of rule I.

SEC. 4. At any time through the legislative day of March 13, 2015, the Chair may postpone further consideration of a measure in the House to such time as may be designated by the Speaker.

The SPEAKER pro tempore. The gentleman from Georgia is recognized for 1 hour.

Mr. WOODALL. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Massachusetts (Mr. MCGOVERN), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

Mr. Speaker, I always enjoy hearing the Reading Clerk read the work of the Rules Committee. I always look around to see how many folks are fixated on those words because words matter, and we spend a lot of time trying to craft the rules to be just right.

But as proud as I am of the work we do in the Rules Committee, I confess that coming down here to this floor just moments after the Prime Minister of Israel delivered the speech that he just delivered—wow, you talk about words that matter.

I knew I was going to learn something in that speech, Mr. Speaker. I knew I was going to feel something in that speech. And just here moments after, what I came away with was, number one, we can learn a lot from the Prime Minister about leadership, about saying what you mean and meaning what you say. When the stakes are high, when the results impact all the families that we serve, it matters.

We care a lot about people in this Chamber. Sometimes we have a crisis of leadership. Sometimes we have a crisis of followership. It is tremendously meaningful to me to see the leadership that was on display here, not just for America but for the world.

Number two, Mr. Speaker, the Prime Minister had a lesson for us all about class. He spent the first 5 minutes of that speech talking about his affection for President Obama, talking about his respect for President Obama, talking about the relationship between the United States of America and how President Obama had played a meaningful role in keeping Israel safe.

We are not always in that place down here. And oftentimes, we find politics gets under our skin. Oftentimes, when there is a big debate surrounding a serious issue, we take it as a personal affront. And sometimes when we come back down to the House floor, we don't talk to one another with the mutual respect that, I would argue, every single Member of this Chamber has earned. We don't talk to each other across the aisle, I think, in ways that would always make our constituents back home proud.

It meant a lot to me, given the emotion that surrounded the invitation of the Prime Minister to be here, that he spent his first moments of that speech not talking about frustrations, not talking about who did what to whom, but talking about his deep respect for the leader of the United States of America and what President Obama had meant to the safety and the security of Israel. I value that.

It kind of makes what we are going to talk about next, Mr. Speaker, seem a little small, but it is not small. We are talking about passenger rail in this bill.

Mr. Speaker, this rule, H. Res. 134, allows us to bring up H.R. 749, the Passenger Rail Reform and Investment Act. They call it PRRIA. And it passed unanimously out of the Transportation Committee. I have the great pleasure, Mr. Speaker, of serving both on the Rules Committee and the Transportation Committee, and rail isn't one of those you think about as being a unanimous issue.

In my great State of Georgia, Mr. Speaker—and I have taken the train from Atlanta down to New Orleans, so I know we have some great stops on Amtrak in the great State of Mississippi. But if you want to take the train from Atlanta to Columbia, South Carolina—it is about a 3-hour drive right across the way—that train is going to leave tonight, out of Atlanta at 8 o'clock, and not tomorrow but 2 days from now, that train is going to arrive in Columbia, South Carolina, having connected through the city of Washington. It makes no sense whatsoever, but that is just where the rails are. That is where the rails are.

Now, you contrast that—the complete meaninglessness that rail has for me, that Amtrak has for me in the great State of Georgia, since it takes me absolutely nowhere I want to go, at a speed that I desire, at a price that I can afford—contrast that with what is going on in the Northeast corridor.

My friend from Massachusetts, I wonder if he ever gets on a plane to fly back home. If I lived in New York City and worked in Washington, D.C., I wouldn't even have a Delta frequent flyer number. I would be on the train every single trip. Why? Because it provides reliable, fast, inexpensive service for the most densely populated population corridor in the United States of America.

That has always confounded this body, Mr. Speaker. How do we balance the needs of that northeastern transportation corridor, where Amtrak is so meaningful, so valuable to so many people—I don't think the roads and the bridges could handle the crush of humanity in the absence of Amtrak—how would we balance that success story, the only profitable corridor on the Amtrak route, with what, I would argue, is a tremendous failure in the rest of the country, where I can fly to Jacksonville, Florida, 48 hours faster than I can ride the train there, and at a lower price?

This bill is about reform, Mr. Speaker. And I am not even going to argue that we, in the Transportation Committee, got it exactly right. We worked awfully hard on it. There was a lot of leadership provided by Members on both sides of the aisle.

But on the outside chance that we didn't get it exactly right, the Rules Committee came together yesterday, Mr. Speaker, and made amendments in order. One of the great parts of this process is that you don't have to be on the committee of jurisdiction in order to have an impact on legislation. Any Member of the House can come to the Rules Committee and ask for an amendment to be made in order. This rule today makes in order seven such amendments to improve this bill. Four of those amendments come from Democratic Members. Three of those amendments come from Republican Members. Again, we were trying to maintain that collegial, bipartisan spirit that we had in the Transportation Committee on the underlying bill. We tried to continue that in the Rules Committee again last night.

I don't know how those amendments are going to shake out down here today, Mr. Speaker. And I am glad that I don't know how they are going to shake out. I don't think having a predetermined destination on this floor is what our constituents sent us here to do. I don't think that is what being a representative democracy is. I think what you want are folks to be able to come down here and express their opinions. I have the great pleasure of serving on the Rules Committee, which enables that to happen.

One of the great changes in this bill, Mr. Speaker, is we take those dollars that American citizens are paying to ride Amtrak on that northeastern corridor, that profitable corridor, and we leave those dollars there so that that route can expand and improve. The population continues to grow there. Transportation needs continue to expand there. And we create a partnership with States in those areas to say, Mr. Speaker, if you have a priority, as a Governor, as a State legislature, if you want to partner with the Federal Government to make your train service more effective, more efficient, we want to partner with you.

But if your idea of a transportation plan is to do nothing locally but rely on the Federal Government to do it all for you, we have no money for you. That seems fair. The Federal Government is not a piggy bank that State and local communities can come to and withdraw from for their needs. What it is is a partner that, for these large transportation projects, for these projects of national significance, States and localities can partner with to make those a reality.

I don't know that we will ever get the kind of Amtrak service in your or my part of the world, Mr. Speaker, that we have in the Northeast corridor. And candidly, I don't know that our constituencies will ever clamor for that service. But it is meaningful to me that even though we have different views on the issue of rail, even though we have different views on the future of rail, that we were able to come together, again, in a unanimous way to put forward a bill that will celebrate and fund those parts of the rail system that are successfully serving America and that will reform and, in some cases, eliminate those unprofitable parts of the rail system that I don't think any member of our constituency would be enthusiastic about funding with their hard-earned tax dollars.

With that, Mr. Speaker, I reserve the balance of my time.

□ 1245

Mr. MCGOVERN. Mr. Speaker, I want to thank the gentleman from Georgia (Mr. WOODALL) for yielding me the customary 30 minutes.

Mr. Speaker, I yield myself such time as I may consume.

(Mr. MCGOVERN asked and was given permission to revise and extend his remarks.)

Mr. MCGOVERN. Mr. Speaker, we support the rule, and we support the underlying bill.

With that, I reserve the balance of my time.

Mr. WOODALL. Mr. Speaker, I told a group of constituents just a moment ago—I don't know if I look a little wet up here. It is not perspiration from running back to the House floor. I feel obligated to tell my friends that. It is dripping a little bit outside, and that is the fastest way to get here from my office.

But I was back in my office with constituents from AIPAC. Sixteen thousand men and women from AIPAC came into town this week to make their voice heard. Now, I couldn't find anybody who was here on paid vacation, and I couldn't find anyone else that had someone else foot the bill. What I saw was 16,000 people who put their money where their mouth is to come and petition the government, to come and try to make us better.

I bring that up, Mr. Speaker, because what I told those men and women today of AIPAC was that there were grumpy faces on the floor of the House yesterday. I remember seeing a few. In fact, I might have been one. I will go ahead and confess, Mr. Speaker, I was one. We have some serious problems here, some serious challenges, and

some serious disagreements. In the now almost 1 hour since the Prime Minister finished speaking, I have seen more smiles; I have seen more collegiality; and I have seen more Members enjoying each other and working together in just that 1 hour than I have seen in the entire month of February.

I bring that up, Mr. Speaker, because the gentleman from Massachusetts and I have been working on rules for a long time together—a long time together—and I don't think it would offend the gentleman if I were to say that he and I often disagree about the way a rule ought to be crafted. We often disagree about the underlying legislation. Here we are on the Rules Committee, Mr. Speaker, but we may spend an hour or 2 or 3, sometimes longer, debating the merits of the underlying legislation. So to come here 1 hour after that spectacular come-together-for-things-that-matter speech the Prime Minister just gave and to find agreement with my friend on the Rules Committee—not just on the rule but, I daresay, on the underlying bill—I hope it is a sign of things to come—not just a thing to come in the regular relationship between my friend from Massachusetts and me, because that relationship is strong, but a relationship across the board.

We have passed and sent to the President lots of bills this Congress, Mr. Speaker. In fact, I think we have passed something like 40 bills out of the U.S. House of Representatives. I don't know if I went home and asked my constituency that they can name two. I think they would know the XL pipeline bill, because that is something everyone has been focused on. But I don't think, as a population, they could name two.

I hope this is the start of a success that the Rules Committee is going to have together over the next 18 months. I hope this is going to be the start of the kinds of agreements that we can create together, Mr. Speaker.

I thank my friend from Massachusetts for being part of, again, making today a little bit better than yesterday was.

With that, Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, again, I thank the gentleman for his comments. We support the rule and the underlying bill, and with that, I reserve the balance of my time.

GENERAL LEAVE

Mr. WOODALL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and include extraneous material on H. Res. 134.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Georgia?

There was no objection.

Mr. WOODALL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, while we talk about agreements here on the floor, I think sometimes folks back home are concerned that we are agreeing on the little things, things that don't matter, that we are talking about renaming a post office. While that is important to that community and while that is important to the man or woman being honored, I would argue it doesn't necessarily advance the cause of freedom and democracy. I can't tell you with a straight face that what we are doing on passenger rail today is going to advance the cause of freedom and democracy. If you want to advance the cause of freedom and democracy, you needed to be here 2 hours ago when the Prime Minister came to deliver his message to the United States Congress. Freedom and democracy lived there.

What we are advancing on this passenger rail bill, Mr. Speaker, is just common sense. It is just common sense. I don't want to get in the weeds of all the exciting things that go on in there, Mr. Speaker. I serve on the Transportation Committee. Of course it is exciting to me. Of course I am going to be involved in the minutia. I don't know that my other colleagues are quite as enthusiastic about that.

I would encourage folks to go to transportation.house.gov, Mr. Speaker. The Transportation Committee, like all committees on Capitol Hill, has a Web page, and on that Web page you can get deep into the weeds. If you are a policy wonk like I am and you want to dig down into the minutia and find out what subparagraph (f) says about clause 2, you can absolutely do it. But there are some top line numbers there, too.

And again, I want folks to have something to celebrate here. I want folks to be able to be enthusiastic about their representative body. I would argue, as the Prime Minister argued, that the greatest deliberative body, the greatest bastion of freedom on the planet, if you want to know what is going on, go to that Transportation Committee Web site. You are going to find—well, you are going to find all sorts of information. You will find something like this one-pager right here, whether you are a high school student who cares about passenger rail or whether you are a transportation engineer leading your local Department of Transportation, all of those details can be found there.

I will give you one example.

Could you believe—you come from a constituency much like I do, Mr. Speaker, but can you believe that in the United States of America today, in the era of sequester—in the era of sequester—that not one Member of this body would say isn't having an impact on our social safety net, where not one Member of this body wouldn't say isn't having an impact on our national security, in this era of sequester, Amtrak subsidizes food and beverage service—subsidizes food and beverage service. It is a loss-leading part of the transportation funding on Amtrak.

I will just tell you, I have ridden Amtrak to New York a time or two. I didn't have any beverage service. It is not like my friends on Delta who will bring me a Coca-Cola product on my flight to Washington, D.C., here. You have to go down to the beverage car. Now, if you would like to bring your own lunch on Amtrak, you absolutely can. If your husband or wife wants to make you a sack at home, you can bring it on in and eat it right there on the train. Yet the American taxpayer, as we sit here right now—this isn't prospective. This is as we sit here right now. The American taxpayer is funding—subsidizing—food service for those men and women who happen to ride Amtrak every day.

Again, for your and my constituencies, Mr. Speaker, that is worth nothing. That is worth nothing. But even for those constituencies that ride Amtrak to work every single day, don't you think in this time of budget cutting, of trying to end the $18 trillion of borrowing from our children and grandchildren, this time of trying to balance our national security needs with our social safety net needs, don't you think that one of the things we could agree on is we don't need to subsidize snack food for train riders?

The truth is, Mr. Speaker, I say that like it is a rhetorical question, that I am going to start to get out my sharp stick and poke the other side. I am not. It happens to be one of the things that we agree on.

How many years have you and I been in Congress, Mr. Speaker, trying to get rid of silly stuff that the Federal Government does? Well, for you and me, the answer is 4. For 4 years we have been working on trying to get rid of silly stuff that the Federal Government does; subsidizing Twinkies, part of that silly stuff. I am not picking on Twinkies. I have great respect for Twinkie eaters. But I don't want my tax dollars subsidizing that habit.

Unanimously, on the Transportation Committee, Mr. Speaker, we have come together to say: I don't know why we didn't do this a long time ago, I don't know why the other previous Congress hadn't gotten it done, but the buck stops here. We are going to work together and do that.

Where are those dollars going to go instead, Mr. Speaker? They are going to go to improving quality of service. Find me that constituent back home; find him in Atlanta; find him in Mississippi; find those constituents back home who wouldn't make that trade with their tax dollars every day of the week. We are doing it. We are doing it together, and we are doing it in a way I hope the Senate will act on it. If they can't take wisdom as we have defined it, I welcome a conference, and I hope we will be able to get this bill on the President's desk.

All of these great ideas that we have come together, that we have done in a collaborative way, Republicans and Democrats on the committee, Republicans and Democrats here on the floor of the House, the seven amendments

that we are going to be considering today, all of these things we have done collaboratively, Mr. Speaker, mean nothing—mean nothing—if they don't go to the President's desk for his signature. This is but a first step, but it is a proud first step.

With that, Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, again, we agree with the rule, and we agree with the underlying bill. If the gentleman would like more time, I am happy to yield to him because I always enjoy hearing him speak in the Rules Committee, and I think our colleagues could benefit from his speaking on the House floor. But I don't know what else to add except we are all in agreement, so I reserve the balance of my time.

Mr. WOODALL. Mr. Speaker, while I appreciate the accolades of my friend from Massachusetts, the truth is I am not an expert on this bill. The Transportation Committee is staffed with those experts at a staff level and at an elected Member level.

At this time, Mr. Speaker, it is my pleasure to yield 5 minutes to the gentleman from California (Mr. DENHAM), who has been a leader on the Transportation Committee, not looking for Republican solutions and not looking for Democratic solutions, but looking for commonsense solutions and then selling those to his colleagues on both sides.

Mr. DENHAM. Mr. Speaker, I thank the gentleman for yielding.

Mr. Speaker, I just want to touch on a few of the great things on this reform bill. Make no mistake, this will reform passenger rail as we know it today in many different areas.

First of all, we expect that Amtrak will be utilized more often in a more efficient way and in a more transparent way operating more like a business, a business that will give results back to its customers.

This is going to be a bill that sets up different lines of business. So if you are on the Northeast corridor and you are paying a ticket that is high priced, you don't want to subsidize Amtrak across the Nation, your money is now going to stay on the Northeast corridor so you have not only improved infrastructure, but a smoother ride, a more efficient ride, and a quicker transit time.

We want to fix rail across the Nation. We want to make sure that we are doing it in a fiscally responsible manner. On the Northeast corridor, we are going to see significant improvements and jobs created at the same time.

We are going to see in other areas of the country, in areas like mine where you have got rail that we want to extend further, we want to be able to utilize RIF loans. RIF loans have been a great program that has been sorely underutilized. You talk to companies out there that want to use RIF loans, it is amazing that they won't even apply for them because they know they will slow their projects down. The wait time in actually getting them approved to release that capital will shut your project down, so they just don't apply. We streamline that process so that we can actually unleash that capital not only for Amtrak to improve its lines of business, but for other rails across the entire country to improve theirs as well.

We also introduced competition. This leverages the private sector to reduce Amtrak's subsidies and uses our stations and right-of-way as actual income streams. Amtrak should be utilizing every income stream available to them and utilizing their right-of-way for signage, for cellphone towers, and utilizing their stations to actually generate a larger profit.

Mr. Speaker, let me just touch on one other area that I am very, very passionate about, one that hasn't been talked about a lot on this floor but one that is getting a great deal of press across the entire country. To those families that have a pet at home, to those families that have to make a decision ''Do I leave my dog or cat at home, or I am actually able to travel with them on a train?'' right now they have to make a decision to either take a car or take an airplane.

It is amazing to me to find out, as somebody from California, when I travel back and forth with my dog, I can put them on a plane, but yet I can't put them on a train to go up the Northeast corridor or anywhere else across the country. This is something that will allow new riders that didn't previously want to ride the train before because they couldn't take their pet on there to do so, but also a new revenue generation with paying for those pets the same way that our airplanes across the country are paid for taking their pets as well.

Now, this is a great, bipartisan bill, one that I am very proud that we reached across both aisles. We whipped every Member of the Transportation Committee to make sure that we had true results across the entire country to get not only bipartisan support, but unanimous support. You talk about the right way to get a bill done, this is it, by encouraging Members of both parties to actually work together for real reforms that move America forward. This rail bill does just that. It will create jobs; it will create a more efficient passenger rail; and this is going to give new opportunities to those that never were able to ride rail before the opportunity to be greater involved.

Let me just touch on one last point. Across the entire country, our passenger rail oftentimes rides on our freight rail system. They have to share the same tracks.

□ 1300

Well, one of the challenges is we have bottlenecks across the entire country. As we expand that new infrastructure, as we create these new jobs, as we create greater efficiencies, we need to be able to do it in a timely and cost-effective manner.

What we have done is cut a lot of red tape and streamlined the process. There are both environmental and historic review that we actually put time periods on. We want to do the reviews. We want to make sure that it still remains historic and that we are being environmentally sensitive.

We are just saying: Let's streamline the process so we can get the projects done quickly, getting people to work, and getting a rail system that is like no other across the entire globe.

We have great improvements here. I am very proud of this bill and the work that we have done here, and I am looking for full passage this afternoon.

Mr. MCGOVERN. Mr. Speaker, I reserve the balance of my time.

Mr. WOODALL. Mr. Speaker, at this time, it is my great pleasure to yield 3 minutes to the gentleman from Tennessee (Mr. DUNCAN), a member of the committee and a leader on transportation issues.

Mr. DUNCAN of Tennessee. Mr. Speaker, I thank the gentleman from Georgia for yielding me this time.

I rise in very strong support of this legislation for all of the reasons that were just stated by Chairman DENHAM, who has been a great chairman of the Railroad Subcommittee.

This is a major reform bill that I think every Member should be very proud to support. It is especially a very fiscally conservative bill. It will save $2.3 billion over the next 4 years, and it is moving this Congress and this legislation in a new direction, a better direction, from a fiscal standpoint.

It also is going to save a very substantial amount of money on food service. According to The New York Times, train food service lost $800 million over the last 10 years. This bill will, in a graduated way, remove the subsidy for train food service until it gets on a self-supporting basis, so it is fiscally conservative and commonsense legislation in that respect also.

It speeds up the environmental review process. This is an area that we try to do in all of our transportation bills because we have been doing all of our major transportation projects in such a convoluted, complicated bureaucratic way that we have always taken about three times as long as any other developed nation to do the things to improve our infrastructure that needs to be done.

This bill also introduces opportunities for competition. This is another good thing about this bill because, if we really believe in the free market and in free enterprise, we need to give more companies and more people a chance to get into these businesses and make all of our industries have greater ease of entry.

Another thing that I think is good about this legislation—this major reform bill—is that it empowers States to get involved by setting up a new State-supported route advisory committee. This has the potential of creating new train service in States, such

as mine in Tennessee, that don't have passenger train service at this time.

For all these reasons and for all the reasons that Congressman DENHAM—Chairman DENHAM—just mentioned, I think this is a bill that deserves the support of all the Members on both sides of the aisle.

I rise in strong support of this legislation.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume.

Again, we support the rule and the underlying bill. I want to thank everybody involved. This is a bipartisan effort.

Mr. Speaker, I yield back the balance of my time.

Mr. WOODALL. Mr. Speaker, I yield myself such time as I may consume.

I want to reiterate the partnership that went on here not just with the underlying bill, but with the amendment process that is happening here, seven amendments available for our colleagues this afternoon.

If you don't want to see Amtrak subsidized by the Federal Government—a lot of folks would have kept your voice silent—this amendment process allows your voice to be heard.

If you want to make sure that all the folks doing contracting with Amtrak are focused on veterans and veteran-owned small businesses—you want that included in the underlying bill—we have an amendment process today that allows you to add that language.

If you are concerned about the inspector general's reports and what they are looking at and how they are calculating it, we give you a chance to make those changes.

Issue after issue after issue, Mr. Speaker—again, three Republican ideas, four Democratic ideas—we allow those to come to the floor in this bill.

Mr. Speaker, passenger rail is an example of one of those things that divides this country. If you live in California, as the chairman does, you have a spectacular rail system. If you live in the Northeast corridor, you have a spectacular rail system.

If you live in the State of Georgia, you can ride your horse to your next destination faster than you can take the train. That is not an inequity that we are going to solve in this bill; and, arguably, we don't even need to solve that inequity.

I am happy for my friends in the Northeast corridor to have spectacular service. It is profitable. Folks want it, folks need it, folks use it, and folks are willing to dig into their pockets to pay for it.

In fact, there is an amendment that is going to be offered here today, Mr. Speaker, that would allow competitive private train service in that corridor. Now, that is going to be up to the body to decide whether or not they think that is a good idea.

Imagine that, imagine that, Mr. Speaker, that before us today you have your choice of: Do you want the bill as the committee has crafted it, saving money, as my friend from Tennessee described? Do you want to eliminate Amtrak subsidies altogether and say, We do not have a national interest in rail, and our budget will reflect that? Or do we want to allow even more rail service by allowing private competition on some of these Amtrak-owned routes?

Mr. Speaker, that is why I came to this body. I am not going to try to twist any arms on this floor about which amendments they ought to vote for and which they don't. Folks have their own set of a million constituents back home, and they ought to represent those interests.

What I will twist arms on this floor to do, Mr. Speaker, is to support the rule that allows for this kind of open debate. As I think my friend from Massachusetts would agree, we have not always had the open debates on important issues that I think we would all agree should be had. It is a process, and today, we got that process right.

This rule is worthy of the support of all of my colleagues: Republicans, Democrats, north, south, east, and west.

Mr. WOODALL. Mr. Speaker, House Report 114–36, the report to accompany H. Res. 134, the special rule governing consideration of H.R. 749, contains an inaccurate summary of Amendment #6 offered by Mr. MCCLINTOCK of California. The summary should read as follows:

The amendment eliminates all Federal assistance for Amtrak.

Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The previous question was ordered.

The resolution was agreed to.

A motion to reconsider was laid on the table.

MESSAGE FROM THE SENATE

A message from the Senate by Ms. Curtis, one of its clerks, announced that the Senate disagree to the request for conference by the House of Representatives on the disagreeing votes of the two Houses to the bill (H.R. 240) ''An Act making appropriations for the Department of Homeland Security for the fiscal year ending September 30, 2015, and for other purposes.''.

□ 1315

DEPARTMENT OF HOMELAND SECURITY APPROPRIATIONS ACT, 2015

Mr. SIMPSON. Mr. Speaker, I move to take from the Speaker's table the bill (H.R. 240) making appropriations for the Department of Homeland Security for the fiscal year ending September 30, 2015, and for other purposes, with the Senate amendment thereto, and ask for its immediate consideration.

The Clerk read the title of the bill.

The SPEAKER pro tempore (Mr. DENHAM). The Clerk will report the Senate amendment.

The Clerk read as follows:

Senate amendment:

Strike all after the first word and insert the following:

the following sums are appropriated, out of any money in the Treasury not otherwise appropriated, for the Department of Homeland Security for the fiscal year ending September 30, 2015, and for other purposes, namely:

TITLE I

DEPARTMENTAL MANAGEMENT AND OPERATIONS

OFFICE OF THE SECRETARY AND EXECUTIVE MANAGEMENT

For necessary expenses of the Office of the Secretary of Homeland Security, as authorized by section 102 of the Homeland Security Act of 2002 (6 U.S.C. 112), and executive management of the Department of Homeland Security, as authorized by law, $132,573,000: Provided, That not to exceed $45,000 shall be for official reception and representation expenses: Provided further, That all official costs associated with the use of government aircraft by Department of Homeland Security personnel to support official travel of the Secretary and the Deputy Secretary shall be paid from amounts made available for the Immediate Office of the Secretary and the Immediate Office of the Deputy Secretary: Provided further, That not later than 30 days after the date of enactment of this Act, the Secretary of Homeland Security shall submit to the Committees on Appropriations of the Senate and the House of Representatives, the Committees on the Judiciary of the House of Representatives and the Senate, the Committee on Homeland Security of the House of Representatives, and the Committee on Homeland Security and Governmental Affairs of the Senate, a comprehensive plan for implementation of the biometric entry and exit data system required under section 7208 of the Intelligence Reform and Terrorism Prevention Act of 2004 (8 U.S.C. 1365b), including the estimated costs for implementation.

OFFICE OF THE UNDER SECRETARY FOR MANAGEMENT

For necessary expenses of the Office of the Under Secretary for Management, as authorized by sections 701 through 705 of the Homeland Security Act of 2002 (6 U.S.C. 341 through 345), $187,503,000, of which not to exceed $2,250 shall be for official reception and representation expenses: Provided, That of the total amount made available under this heading, $4,493,000 shall remain available until September 30, 2016, solely for the alteration and improvement of facilities, tenant improvements, and relocation costs to consolidate Department headquarters operations at the Nebraska Avenue Complex; and $6,000,000 shall remain available until September 30, 2016, for the Human Resources Information Technology program: Provided further, That the Under Secretary for Management shall include in the President's budget proposal for fiscal year 2016, submitted pursuant to section 1105(a) of title 31, United States Code, a Comprehensive Acquisition Status Report, which shall include the information required under the heading ''Office of the Under Secretary for Management'' under title I of division D of the Consolidated Appropriations Act, 2012 (Public Law 112–74), and shall submit quarterly updates to such report not later than 45 days after the completion of each quarter.

OFFICE OF THE CHIEF FINANCIAL OFFICER

For necessary expenses of the Office of the Chief Financial Officer, as authorized by section 103 of the Homeland Security Act of 2002 (6 U.S.C. 113), $52,020,000: Provided, That the Secretary of Homeland Security shall submit to the Committees on Appropriations of the Senate and the House of Representatives, at the time the President's budget proposal for fiscal year 2016 is submitted pursuant to section 1105(a) of title

31, United States Code, the Future Years Homeland Security Program, as authorized by section 874 of Public Law 107–296 (6 U.S.C. 454).

OFFICE OF THE CHIEF INFORMATION OFFICER

For necessary expenses of the Office of the Chief Information Officer, as authorized by section 103 of the Homeland Security Act of 2002 (6 U.S.C. 113), and Department-wide technology investments, $288,122,000; of which $99,028,000 shall be available for salaries and expenses; and of which $189,094,000, to remain available until September 30, 2016, shall be available for development and acquisition of information technology equipment, software, services, and related activities for the Department of Homeland Security.

ANALYSIS AND OPERATIONS

For necessary expenses for intelligence analysis and operations coordination activities, as authorized by title II of the Homeland Security Act of 2002 (6 U.S.C. 121 et seq.), $255,804,000; of which not to exceed $3,825 shall be for official reception and representation expenses; and of which $102,479,000 shall remain available until September 30, 2016.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978 (5 U.S.C. App.), $118,617,000; of which not to exceed $300,000 may be used for certain confidential operational expenses, including the payment of informants, to be expended at the direction of the Inspector General.

TITLE II

SECURITY, ENFORCEMENT, AND INVESTIGATIONS

UNITED STATES CUSTOMS AND BORDER PROTECTION

SALARIES AND EXPENSES

For necessary expenses for enforcement of laws relating to border security, immigration, customs, agricultural inspections and regulatory activities related to plant and animal imports, and transportation of unaccompanied minor aliens; purchase and lease of up to 7,500 (6,500 for replacement only) police-type vehicles; and contracting with individuals for personal services abroad; $8,459,657,000; of which $3,274,000 shall be derived from the Harbor Maintenance Trust Fund for administrative expenses related to the collection of the Harbor Maintenance Fee pursuant to section 9505(c)(3) of the Internal Revenue Code of 1986 (26 U.S.C. 9505(c)(3)) and notwithstanding section 1511(e)(1) of the Homeland Security Act of 2002 (6 U.S.C. 551(e)(1)); of which $30,000,000 shall be available until September 30, 2016, solely for the purpose of hiring, training, and equipping United States Customs and Border Protection officers at ports of entry; of which not to exceed $34,425 shall be for official reception and representation expenses; of which such sums as become available in the Customs User Fee Account, except sums subject to section 13031(f)(3) of the Consolidated Omnibus Budget Reconciliation Act of 1985 (19 U.S.C. 58c(f)(3)), shall be derived from that account; of which not to exceed $150,000 shall be available for payment for rental space in connection with preclearance operations; and of which not to exceed $1,000,000 shall be for awards of compensation to informants, to be accounted for solely under the certificate of the Secretary of Homeland Security: Provided, That for fiscal year 2015, the overtime limitation prescribed in section 5(c)(1) of the Act of February 13, 1911 (19 U.S.C. 267(c)(1)) shall be $35,000; and notwithstanding any other provision of law, none of the funds appropriated by this Act shall be available to compensate any employee of United States Customs and Border Protection for overtime, from whatever source, in an amount that exceeds such limitation, except in individual cases determined by the Secretary of Homeland Security, or the designee of the Secretary, to be necessary for national security purposes, to prevent excessive costs, or in cases of immigration emergencies: Provided further, That the Border Patrol shall maintain an active duty presence of not less than 21,370 full-time equivalent agents protecting the borders of the United States in the fiscal year.

AUTOMATION MODERNIZATION

For necessary expenses for United States Customs and Border Protection for operation and improvement of automated systems, including salaries and expenses, $808,169,000; of which $446,075,000 shall remain available until September 30, 2017; and of which not less than $140,970,000 shall be for the development of the Automated Commercial Environment.

BORDER SECURITY FENCING, INFRASTRUCTURE, AND TECHNOLOGY

For expenses for border security fencing, infrastructure, and technology, $382,466,000, to remain available until September 30, 2017.

AIR AND MARINE OPERATIONS

For necessary expenses for the operations, maintenance, and procurement of marine vessels, aircraft, unmanned aircraft systems, the Air and Marine Operations Center, and other related equipment of the air and marine program, including salaries and expenses, operational training, and mission-related travel, the operations of which include the following: the interdiction of narcotics and other goods; the provision of support to Federal, State, and local agencies in the enforcement or administration of laws enforced by the Department of Homeland Security; and, at the discretion of the Secretary of Homeland Security, the provision of assistance to Federal, State, and local agencies in other law enforcement and emergency humanitarian efforts; $750,469,000; of which $299,800,000 shall be available for salaries and expenses; and of which $450,669,000 shall remain available until September 30, 2017: Provided, That no aircraft or other related equipment, with the exception of aircraft that are one of a kind and have been identified as excess to United States Customs and Border Protection requirements and aircraft that have been damaged beyond repair, shall be transferred to any other Federal agency, department, or office outside of the Department of Homeland Security during fiscal year 2015 without prior notice to the Committees on Appropriations of the Senate and the House of Representatives: Provided further, That funding made available under this heading shall be available for customs expenses when necessary to maintain or to temporarily increase operations in Puerto Rico: Provided further, That the Secretary of Homeland Security shall report to the Committees on Appropriations of the Senate and the House of Representatives, not later than 90 days after the date of enactment of this Act, on any changes to the 5-year strategic plan for the air and marine program required under the heading ''Air and Marine Interdiction, Operations, and Maintenance'' in Public Law 112–74.

CONSTRUCTION AND FACILITIES MANAGEMENT

For necessary expenses to plan, acquire, construct, renovate, equip, furnish, operate, manage, and maintain buildings, facilities, and related infrastructure necessary for the administration and enforcement of the laws relating to customs, immigration, and border security, $288,821,000, to remain available until September 30, 2019.

UNITED STATES IMMIGRATION AND CUSTOMS ENFORCEMENT

SALARIES AND EXPENSES

For necessary expenses for enforcement of immigration and customs laws, detention and removals, and investigations, including intellectual property rights and overseas vetted units operations; and purchase and lease of up to 3,790 (2,350 for replacement only) police-type vehicles; $5,932,756,000; of which not to exceed $10,000,000 shall be available until expended for conducting special operations under section 3131 of the Customs Enforcement Act of 1986 (19 U.S.C. 2081); of which not to exceed $11,475 shall be for official reception and representation expenses; of which not to exceed $2,000,000 shall be for awards of compensation to informants, to be accounted for solely under the certificate of the Secretary of Homeland Security; of which not less than $305,000 shall be for promotion of public awareness of the child pornography tipline and activities to counter child exploitation; of which not less than $5,400,000 shall be used to facilitate agreements consistent with section 287(g) of the Immigration and Nationality Act (8 U.S.C. 1357(g)); of which not to exceed $40,000,000, to remain available until September 30, 2017, is for maintenance, construction, and lease hold improvements at owned and leased facilities; and of which not to exceed $11,216,000 shall be available to fund or reimburse other Federal agencies for the costs associated with the care, maintenance, and repatriation of smuggled aliens unlawfully present in the United States: Provided, That none of the funds made available under this heading shall be available to compensate any employee for overtime in an annual amount in excess of $35,000, except that the Secretary of Homeland Security, or the designee of the Secretary, may waive that amount as necessary for national security purposes and in cases of immigration emergencies: Provided further, That of the total amount provided, $15,770,000 shall be for activities to enforce laws against forced child labor, of which not to exceed $6,000,000 shall remain available until expended: Provided further, That of the total amount available, not less than $1,600,000,000 shall be available to identify aliens convicted of a crime who may be deportable, and to remove them from the United States once they are judged deportable: Provided further, That the Secretary of Homeland Security shall prioritize the identification and removal of aliens convicted of a crime by the severity of that crime: Provided further, That funding made available under this heading shall maintain a level of not less than 34,000 detention beds through September 30, 2015: Provided further, That of the total amount provided, not less than $3,431,444,000 is for detention, enforcement, and removal operations, including transportation of unaccompanied minor aliens: Provided further, That of the amount provided for Custody Operations in the previous proviso, $45,000,000 shall remain available until September 30, 2019: Provided further, That of the total amount provided for the Visa Security Program and international investigations, $43,000,000 shall remain available until September 30, 2016: Provided further, That not less than $15,000,000 shall be available for investigation of intellectual property rights violations, including operation of the National Intellectual Property Rights Coordination Center: Provided further, That none of the funds provided under this heading may be used to continue a delegation of law enforcement authority authorized under section 287(g) of the Immigration and Nationality Act (8 U.S.C. 1357(g)) if the Department of Homeland Security Inspector General determines that the terms of the agreement governing the delegation of authority have been materially violated: Provided further, That none of the funds provided under this heading may be used to continue any contract for the provision of detention services if the two most recent overall performance evaluations received by the contracted facility are less than ''adequate'' or the equivalent median score in any subsequent performance evaluation system: Provided further, That nothing under this heading shall prevent United States Immigration and Customs Enforcement from exercising those authorities provided under immigration laws (as defined in section 101(a)(17) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(17))) during priority operations pertaining to aliens convicted

of a crime: Provided further, That without regard to the limitation as to time and condition of section 503(d) of this Act, the Secretary may propose to reprogram and transfer funds within and into this appropriation necessary to ensure the detention of aliens prioritized for removal.

AUTOMATION MODERNIZATION

For expenses of immigration and customs enforcement automated systems, $26,000,000, to remain available until September 30, 2017.

TRANSPORTATION SECURITY ADMINISTRATION

AVIATION SECURITY

For necessary expenses of the Transportation Security Administration related to providing civil aviation security services pursuant to the Aviation and Transportation Security Act (Public Law 107–71; 115 Stat. 597; 49 U.S.C. 40101 note), $5,639,095,000, to remain available until September 30, 2016; of which not to exceed $7,650 shall be for official reception and representation expenses: Provided, That any award to deploy explosives detection systems shall be based on risk, the airport's current reliance on other screening solutions, lobby congestion resulting in increased security concerns, high injury rates, airport readiness, and increased cost effectiveness: Provided further, That security service fees authorized under section 44940 of title 49, United States Code, shall be credited to this appropriation as offsetting collections and shall be available only for aviation security: Provided further, That the sum appropriated under this heading from the general fund shall be reduced on a dollar-for-dollar basis as such offsetting collections are received during fiscal year 2015 so as to result in a final fiscal year appropriation from the general fund estimated at not more than $3,574,095,000: Provided further, That the fees deposited under this heading in fiscal year 2013 and sequestered pursuant to section 251A of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 901a), that are currently unavailable for obligation, are hereby permanently cancelled: Provided further, That notwithstanding section 44923 of title 49, United States Code, for fiscal year 2015, any funds in the Aviation Security Capital Fund established by section 44923(h) of title 49, United States Code, may be used for the procurement and installation of explosives detection systems or for the issuance of other transaction agreements for the purpose of funding projects described in section 44923(a) of such title: Provided further, That notwithstanding any other provision of law, mobile explosives detection equipment purchased and deployed using funds made available under this heading may be moved and redeployed to meet evolving passenger and baggage screening security priorities at airports: Provided further, That none of the funds made available in this Act may be used for any recruiting or hiring of personnel into the Transportation Security Administration that would cause the agency to exceed a staffing level of 45,000 full-time equivalent screeners: Provided further, That the preceding proviso shall not apply to personnel hired as part-time employees: Provided further, That not later than 90 days after the date of enactment of this Act, the Administrator of the Transportation Security Administration shall submit to the Committees on Appropriations of the Senate and the House of Representatives a detailed report on—

(1) the Department of Homeland Security efforts and resources being devoted to develop more advanced integrated passenger screening technologies for the most effective security of passengers and baggage at the lowest possible operating and acquisition costs, including projected funding levels for each fiscal year for the next 5 years or until project completion, whichever is earlier;

(2) how the Transportation Security Administration is deploying its existing passenger and baggage screener workforce in the most cost effective manner; and

(3) labor savings from the deployment of improved technologies for passenger and baggage screening and how those savings are being used to offset security costs or reinvested to address security vulnerabilities:

Provided further, That not later than April 15, 2015, the Administrator of the Transportation Security Administration shall submit to the Committees on Appropriations of the Senate and the House of Representatives, a semiannual report updating information on a strategy to increase the number of air passengers eligible for expedited screening, including:

(1) specific benchmarks and performance measures to increase participation in Pre-Check by air carriers, airports, and passengers;

(2) options to facilitate direct application for enrollment in Pre-Check through the Transportation Security Administration's Web site, airports, and other enrollment locations;

(3) use of third parties to pre-screen passengers for expedited screening;

(4) inclusion of populations already vetted by the Transportation Security Administration and other trusted populations as eligible for expedited screening;

(5) resource implications of expedited passenger screening resulting from the use of risk-based security methods; and

(6) the total number and percentage of passengers using Pre-Check lanes who:

(A) have enrolled in Pre-Check since Transportation Security Administration enrollment centers were established;

(B) enrolled using the Transportation Security Administration's Pre-Check application Web site;

(C) were enrolled as frequent flyers of a participating airline;

(D) utilized Pre-Check as a result of their enrollment in a Trusted Traveler program of United States Customs and Border Protection;

(E) were selectively identified to participate in expedited screening through the use of Managed Inclusion in fiscal year 2014; and

(F) are enrolled in all other Pre-Check categories:

Provided further, That Members of the United States House of Representatives and United States Senate, including the leadership; the heads of Federal agencies and commissions, including the Secretary, Deputy Secretary, Under Secretaries, and Assistant Secretaries of the Department of Homeland Security; the United States Attorney General, Deputy Attorney General, Assistant Attorneys General, and the United States Attorneys; and senior members of the Executive Office of the President, including the Director of the Office of Management and Budget, shall not be exempt from Federal passenger and baggage screening.

SURFACE TRANSPORTATION SECURITY

For necessary expenses of the Transportation Security Administration related to surface transportation security activities, $123,749,000, to remain available until September 30, 2016.

INTELLIGENCE AND VETTING

For necessary expenses for the development and implementation of intelligence and vetting activities, $219,166,000, to remain available until September 30, 2016.

TRANSPORTATION SECURITY SUPPORT

For necessary expenses of the Transportation Security Administration related to transportation security support pursuant to the Aviation and Transportation Security Act (Public Law 107–71; 115 Stat. 597; 49 U.S.C. 40101 note), $917,226,000, to remain available until September 30, 2016: Provided, That not later than 90 days after the date of enactment of this Act, the Administrator of the Transportation Security Administration shall submit to the Committees on Appropriations of the Senate and the House of Representatives—

(1) a report providing evidence demonstrating that behavioral indicators can be used to identify passengers who may pose a threat to aviation security and the plans that will be put into place to collect additional performance data; and

(2) a report addressing each of the recommendations outlined in the report entitled ''TSA Needs Additional Information Before Procuring Next-Generation Systems'', published by the Government Accountability Office on March 31, 2014, and describing the steps the Transportation Security Administration is taking to implement acquisition best practices, increase industry engagement, and improve transparency with regard to technology acquisition programs:

Provided further, That of the funds provided under this heading, $25,000,000 shall be withheld from obligation for Headquarters Administration until the submission of the reports required by paragraphs (1) and (2) of the preceding proviso.

COAST GUARD

OPERATING EXPENSES

For necessary expenses for the operation and maintenance of the Coast Guard, not otherwise provided for; purchase or lease of not to exceed 25 passenger motor vehicles, which shall be for replacement only; purchase or lease of small boats for contingent and emergent requirements (at a unit cost of no more than $700,000) and repairs and service-life replacements, not to exceed a total of $31,000,000; purchase or lease of boats necessary for overseas deployments and activities; minor shore construction projects not exceeding $1,000,000 in total cost on any location; payments pursuant to section 156 of Public Law 97–377 (42 U.S.C. 402 note; 96 Stat. 1920); and recreation and welfare; $7,043,318,000, of which $553,000,000 shall be for defense-related activities, of which $213,000,000 is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985 and shall be available only if the President subsequently so designates all such amounts and transmits such designations to the Congress; of which $24,500,000 shall be derived from the Oil Spill Liability Trust Fund to carry out the purposes of section 1012(a)(5) of the Oil Pollution Act of 1990 (33 U.S.C. 2712(a)(5)); and of which not to exceed $15,300 shall be for official reception and representation expenses: Provided, That none of the funds made available by this Act shall be for expenses incurred for recreational vessels under section 12114 of title 46, United States Code, except to the extent fees are collected from owners of yachts and credited to this appropriation: Provided further, That to the extent fees are insufficient to pay expenses of recreational vessel documentation under such section 12114, and there is a backlog of recreational vessel applications, then personnel performing non-recreational vessel documentation functions under subchapter II of chapter 121 of title 46, United States Code, may perform documentation under section 12114: Provided further, That of the funds provided under this heading, $85,000,000 shall be withheld from obligation for Coast Guard Headquarters Directorates until a future-years capital investment plan for fiscal years 2016 through 2020, as specified under the heading ''Coast Guard, Acquisition, Construction, and Improvements'' of this Act, is submitted to the Committees on Appropriations of the Senate and the House of Representatives: Provided further, That funds made available under this heading for Overseas Contingency Operations/Global War on Terrorism may be allocated by program, project, and activity, notwithstanding section 503 of this Act: Provided further, That, without regard to the limitation as to time and condition of section 503(d) of this Act, after June 30, up to $10,000,000 may be reprogrammed to or from Military Pay and Allowances in accordance with subsections (a), (b), and (c) of section 503.

ENVIRONMENTAL COMPLIANCE AND RESTORATION

For necessary expenses to carry out the environmental compliance and restoration functions of the Coast Guard under chapter 19 of title 14, United States Code, $13,197,000, to remain available until September 30, 2019.

RESERVE TRAINING

For necessary expenses of the Coast Guard Reserve, as authorized by law; operations and maintenance of the Coast Guard reserve program; personnel and training costs; and equipment and services; $114,572,000.

ACQUISITION, CONSTRUCTION, AND IMPROVEMENTS

For necessary expenses of acquisition, construction, renovation, and improvement of aids to navigation, shore facilities, vessels, and aircraft, including equipment related thereto; and maintenance, rehabilitation, lease, and operation of facilities and equipment; as authorized by law; $1,225,223,000; of which $20,000,000 shall be derived from the Oil Spill Liability Trust Fund to carry out the purposes of section 1012(a)(5) of the Oil Pollution Act of 1990 (33 U.S.C. 2712(a)(5)); and of which the following amounts shall be available until September 30, 2019 (except as subsequently specified): $6,000,000 for military family housing; $824,347,000 to acquire, effect major repairs to, renovate, or improve vessels, small boats, and related equipment; $180,000,000 to acquire, effect major repairs to, renovate, or improve aircraft or increase aviation capability; $59,300,000 for other acquisition programs; $40,580,000 for shore facilities and aids to navigation, including facilities at Department of Defense installations used by the Coast Guard; and $114,996,000, to remain available until September 30, 2015, for personnel compensation and benefits and related costs: Provided, That the funds provided by this Act shall be immediately available and allotted to contract for the production of the eighth National Security Cutter notwithstanding the availability of funds for post-production costs: Provided further, That the Commandant of the Coast Guard shall submit to the Committees on Appropriations of the Senate and the House of Representatives, the Committee on Commerce, Science, and Transportation of the Senate, and the Committee on Transportation and Infrastructure of the House of Representatives, at the time the President's budget proposal for fiscal year 2016 is submitted pursuant to section 1105(a) of title 31, United States Code, a future-years capital investment plan for the Coast Guard that identifies for each requested capital asset—

(1) the proposed appropriations included in that budget;

(2) the total estimated cost of completion, including and clearly delineating the costs of associated major acquisition systems infrastructure and transition to operations;

(3) projected funding levels for each fiscal year for the next 5 fiscal years or until acquisition program baseline or project completion, whichever is earlier;

(4) an estimated completion date at the projected funding levels; and

(5) a current acquisition program baseline for each capital asset, as applicable, that—

(A) includes the total acquisition cost of each asset, subdivided by fiscal year and including a detailed description of the purpose of the proposed funding levels for each fiscal year, including for each fiscal year funds requested for design, pre-acquisition activities, production, structural modifications, missionization, post-delivery, and transition to operations costs;

(B) includes a detailed project schedule through completion, subdivided by fiscal year, that details—

(i) quantities planned for each fiscal year; and

(ii) major acquisition and project events, including development of operational requirements, contracting actions, design reviews, production, delivery, test and evaluation, and transition to operations, including necessary training, shore infrastructure, and logistics;

(C) notes and explains any deviations in cost, performance parameters, schedule, or estimated date of completion from the original acquisition program baseline and the most recent baseline approved by the Department of Homeland Security's Acquisition Review Board, if applicable;

(D) aligns the acquisition of each asset to mission requirements by defining existing capabilities of comparable legacy assets, identifying known capability gaps between such existing capabilities and stated mission requirements, and explaining how the acquisition of each asset will address such known capability gaps;

(E) defines life-cycle costs for each asset and the date of the estimate on which such costs are based, including all associated costs of major acquisitions systems infrastructure and transition to operations, delineated by purpose and fiscal year for the projected service life of the asset;

(F) includes the earned value management system summary schedule performance index and cost performance index for each asset, if applicable; and

(G) includes a phase-out and decommissioning schedule delineated by fiscal year for each existing legacy asset that each asset is intended to replace or recapitalize:

Provided further, That the Commandant of the Coast Guard shall ensure that amounts specified in the future-years capital investment plan are consistent, to the maximum extent practicable, with proposed appropriations necessary to support the programs, projects, and activities of the Coast Guard in the President's budget proposal for fiscal year 2016, submitted pursuant to section 1105(a) of title 31, United States Code: Provided further, That any inconsistencies between the capital investment plan and proposed appropriations shall be identified and justified: Provided further, That the Director of the Office of Management and Budget shall not delay the submission of the capital investment plan referred to by the preceding provisos: Provided further, That the Director of the Office of Management and Budget shall have no more than a single period of 10 consecutive business days to review the capital investment plan prior to submission: Provided further, That the Secretary of Homeland Security shall notify the Committees on Appropriations of the Senate and the House of Representatives, the Committee on Commerce, Science, and Transportation of the Senate, and the Committee on Transportation and Infrastructure of the House of Representatives one day after the capital investment plan is submitted to the Office of Management and Budget for review and the Director of the Office of Management and Budget shall notify the Committees on Appropriations of the Senate and the House of Representatives, the Committee on Commerce, Science, and Transportation of the Senate, and the Committee on Transportation and Infrastructure of the House of Representatives when such review is completed: Provided further, That subsections (a) and (b) of section 6402 of Public Law 110–28 shall hereafter apply with respect to the amounts made available under this heading.

RESEARCH, DEVELOPMENT, TEST, AND EVALUATION

For necessary expenses for applied scientific research, development, test, and evaluation; and for maintenance, rehabilitation, lease, and operation of facilities and equipment; as authorized by law; $17,892,000, to remain available until September 30, 2017, of which $500,000 shall be derived from the Oil Spill Liability Trust Fund to carry out the purposes of section 1012(a)(5) of the Oil Pollution Act of 1990 (33 U.S.C. 2712(a)(5)): Provided, That there may be credited to and used for the purposes of this appropriation funds received from State and local governments, other public authorities, private sources, and foreign countries for expenses incurred for research, development, testing, and evaluation.

RETIRED PAY

For retired pay, including the payment of obligations otherwise chargeable to lapsed appropriations for this purpose, payments under the Retired Serviceman's Family Protection and Survivor Benefits Plans, payment for career status bonuses, concurrent receipts, and combat-related special compensation under the National Defense Authorization Act, and payments for medical care of retired personnel and their dependents under chapter 55 of title 10, United States Code, $1,450,626,000, to remain available until expended.

UNITED STATES SECRET SERVICE

SALARIES AND EXPENSES

For necessary expenses of the United States Secret Service, including purchase of not to exceed 652 vehicles for police-type use for replacement only; hire of passenger motor vehicles; purchase of motorcycles made in the United States; hire of aircraft; services of expert witnesses at such rates as may be determined by the Director of the United States Secret Service; rental of buildings in the District of Columbia, and fencing, lighting, guard booths, and other facilities on private or other property not in Government ownership or control, as may be necessary to perform protective functions; payment of per diem or subsistence allowances to employees in cases in which a protective assignment on the actual day or days of the visit of a protectee requires an employee to work 16 hours per day or to remain overnight at a post of duty; conduct of and participation in firearms matches; presentation of awards; travel of United States Secret Service employees on protective missions without regard to the limitations on such expenditures in this or any other Act if approval is obtained in advance from the Committees on Appropriations of the Senate and the House of Representatives; research and development; grants to conduct behavioral research in support of protective research and operations; and payment in advance for commercial accommodations as may be necessary to perform protective functions; $1,615,860,000; of which not to exceed $19,125 shall be for official reception and representation expenses; of which not to exceed $100,000 shall be to provide technical assistance and equipment to foreign law enforcement organizations in counterfeit investigations; of which $2,366,000 shall be for forensic and related support of investigations of missing and exploited children; of which $6,000,000 shall be for a grant for activities related to investigations of missing and exploited children and shall remain available until September 30, 2016; and of which not less than $12,000,000 shall be for activities related to training in electronic crimes investigations and forensics: Provided, That $18,000,000 for protective travel shall remain available until September 30, 2016: Provided further, That $4,500,000 for National Special Security Events shall remain available until September 30, 2016: Provided further, That the United States Secret Service is authorized to obligate funds in anticipation of reimbursements from Federal agencies and entities, as defined in section 105 of title 5, United States Code, for personnel receiving training sponsored by the James J. Rowley Training Center, except that total obligations at the end of the fiscal year shall not exceed total budgetary resources available under this heading at the end of the fiscal year: Provided further, That none of the funds made available under this heading shall be available to compensate any employee for overtime in an annual amount in excess of $35,000, except that the Secretary of Homeland Security, or the designee of the Secretary, may waive that amount as necessary for national security purposes: Provided further, That none of the funds made available to the United States Secret Service by this Act or by previous appropriations

Acts may be made available for the protection of the head of a Federal agency other than the Secretary of Homeland Security: Provided further, That the Director of the United States Secret Service may enter into an agreement to provide such protection on a fully reimbursable basis: Provided further, That none of the funds made available to the United States Secret Service by this Act or by previous appropriations Acts may be obligated for the purpose of opening a new permanent domestic or overseas office or location unless the Committees on Appropriations of the Senate and the House of Representatives are notified 15 days in advance of such obligation: Provided further, That not later than 90 days after the date of enactment of this Act, the Director of the United States Secret Service shall submit to the Committees on Appropriations of the Senate and the House of Representatives, a report providing evidence that the United States Secret Service has sufficiently reviewed its professional standards of conduct; and has issued new guidance and procedures for the conduct of employees when engaged in overseas operations and protective missions, consistent with the critical missions of, and the unique position of public trust occupied by, the United States Secret Service: Provided further, That of the funds provided under this heading, $10,000,000 shall be withheld from obligation for Headquarters, Management and Administration until such report is submitted: Provided further, That for purposes of section 503(b) of this Act, $15,000,000 or 10 percent, whichever is less, may be transferred between Protection of Persons and Facilities and Domestic Field Operations.

ACQUISITION, CONSTRUCTION, IMPROVEMENTS, AND RELATED EXPENSES

For necessary expenses for acquisition, construction, repair, alteration, and improvement of physical and technological infrastructure, $49,935,000; of which $5,380,000, to remain available until September 30, 2019, shall be for acquisition, construction, improvement, and maintenance of the James J. Rowley Training Center; and of which $44,555,000, to remain available until September 30, 2017, shall be for Information Integration and Technology Transformation program execution.

TITLE III

PROTECTION, PREPAREDNESS, RESPONSE, AND RECOVERY

NATIONAL PROTECTION AND PROGRAMS DIRECTORATE

MANAGEMENT AND ADMINISTRATION

For salaries and expenses of the Office of the Under Secretary for the National Protection and Programs Directorate, support for operations, and information technology, $61,651,000: Provided, That not to exceed $3,825 shall be for official reception and representation expenses: Provided further, That the President's budget proposal for fiscal year 2016, submitted pursuant to section 1105(a) of title 31, United States Code, shall be detailed by office, and by program, project, and activity level, for the National Protection and Programs Directorate.

INFRASTRUCTURE PROTECTION AND INFORMATION SECURITY

For necessary expenses for infrastructure protection and information security programs and activities, as authorized by title II of the Homeland Security Act of 2002 (6 U.S.C. 121 et seq.), $1,188,679,000, of which $225,000,000 shall remain available until September 30, 2016: Provided, That if, due to delays in contract actions, the National Protection and Programs Directorate will not fully obligate funds for Federal Network Security or for Network Security Deployment program, project, and activities as provided in the accompanying statement and section 548 of this Act, such funds may be applied to Next Generation Networks program, project, and activities, notwithstanding section 503 of this Act.

FEDERAL PROTECTIVE SERVICE

The revenues and collections of security fees credited to this account shall be available until expended for necessary expenses related to the protection of federally owned and leased buildings and for the operations of the Federal Protective Service: Provided, That the Director of the Federal Protective Service shall submit at the time the President's budget proposal for fiscal year 2016 is submitted pursuant to section 1105(a) of title 31, United States Code, a strategic human capital plan that aligns fee collections to personnel requirements based on a current threat assessment.

OFFICE OF BIOMETRIC IDENTITY MANAGEMENT

For necessary expenses for the Office of Biometric Identity Management, as authorized by section 7208 of the Intelligence Reform and Terrorism Prevention Act of 2004 (8 U.S.C. 1365b), $252,056,000: Provided, That of the total amount made available under this heading, $122,150,000 shall remain available until September 30, 2017.

OFFICE OF HEALTH AFFAIRS

For necessary expenses of the Office of Health Affairs, $129,358,000; of which $26,148,000 is for salaries and expenses and $86,891,000 is for BioWatch operations: Provided, That of the amount made available under this heading, $16,319,000 shall remain available until September 30, 2016, for biosurveillance, chemical defense, medical and health planning and coordination, and workforce health protection: Provided further, That not to exceed $2,250 shall be for official reception and representation expenses.

FEDERAL EMERGENCY MANAGEMENT AGENCY

SALARIES AND EXPENSES

For necessary expenses of the Federal Emergency Management Agency, $934,396,000, including activities authorized by the National Flood Insurance Act of 1968 (42 U.S.C. 4001 et seq.), the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5121 et seq.), the Cerro Grande Fire Assistance Act of 2000 (division C, title I, 114 Stat. 583), the Earthquake Hazards Reduction Act of 1977 (42 U.S.C. 7701 et seq.), the Defense Production Act of 1950 (50 U.S.C. App. 2061 et seq.), sections 107 and 303 of the National Security Act of 1947 (50 U.S.C. 404, 405), Reorganization Plan No. 3 of 1978 (5 U.S.C. App.), the National Dam Safety Program Act (33 U.S.C. 467 et seq.), the Homeland Security Act of 2002 (6 U.S.C. 101 et seq.), the Implementing Recommendations of the 9/11 Commission Act of 2007 (Public Law 110–53), the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2201 et seq.), the Post-Katrina Emergency Management Reform Act of 2006 (Public Law 109–295; 120 Stat. 1394), the Biggert-Waters Flood Insurance Reform Act of 2012 (Public Law 112–141, 126 Stat. 916), and the Homeowner Flood Insurance Affordability Act of 2014 (Public Law 113–89): Provided, That not to exceed $2,250 shall be for official reception and representation expenses: Provided further, That of the total amount made available under this heading, $35,180,000 shall be for the Urban Search and Rescue Response System, of which none is available for Federal Emergency Management Agency administrative costs: Provided further, That of the total amount made available under this heading, $30,000,000 shall remain available until September 30, 2016, for capital improvements and other expenses related to continuity of operations at the Mount Weather Emergency Operations Center: Provided further, That of the total amount made available, $3,400,000 shall be for the Office of National Capital Region Coordination: Provided further, That of the total amount made available under this heading, not less than $4,000,000 shall remain available until September 30, 2016, for expenses related to modernization of automated systems.

STATE AND LOCAL PROGRAMS

For grants, contracts, cooperative agreements, and other activities, $1,500,000,000, which shall be allocated as follows:

(1) $467,000,000 shall be for the State Homeland Security Grant Program under section 2004 of the Homeland Security Act of 2002 (6 U.S.C. 605), of which not less than $55,000,000 shall be for Operation Stonegarden: Provided, That notwithstanding subsection (c)(4) of such section 2004, for fiscal year 2015, the Commonwealth of Puerto Rico shall make available to local and tribal governments amounts provided to the Commonwealth of Puerto Rico under this paragraph in accordance with subsection (c)(1) of such section 2004.

(2) $600,000,000 shall be for the Urban Area Security Initiative under section 2003 of the Homeland Security Act of 2002 (6 U.S.C. 604), of which not less than $13,000,000 shall be for organizations (as described under section 501(c)(3) of the Internal Revenue Code of 1986 and exempt from tax under section 501(a) of such code) determined by the Secretary of Homeland Security to be at high risk of a terrorist attack.

(3) $100,000,000 shall be for Public Transportation Security Assistance, Railroad Security Assistance, and Over-the-Road Bus Security Assistance under sections 1406, 1513, and 1532 of the Implementing Recommendations of the 9/11 Commission Act of 2007 (Public Law 110–53; 6 U.S.C. 1135, 1163, and 1182), of which not less than $10,000,000 shall be for Amtrak security and $3,000,000 shall be for Over-the-Road Bus Security: Provided, That such public transportation security assistance shall be provided directly to public transportation agencies.

(4) $100,000,000 shall be for Port Security Grants in accordance with 46 U.S.C. 70107.

(5) $233,000,000 shall be to sustain current operations for training, exercises, technical assistance, and other programs, of which $162,991,000 shall be for training of State, local, and tribal emergency response providers:

Provided, That for grants under paragraphs (1) through (4), applications for grants shall be made available to eligible applicants not later than 60 days after the date of enactment of this Act, that eligible applicants shall submit applications not later than 80 days after the grant announcement, and the Administrator of the Federal Emergency Management Agency shall act within 65 days after the receipt of an application: Provided further, That notwithstanding section 2008(a)(11) of the Homeland Security Act of 2002 (6 U.S.C. 609(a)(11)) or any other provision of law, a grantee may not use more than 5 percent of the amount of a grant made available under this heading for expenses directly related to administration of the grant: Provided further, That for grants under paragraphs (1) and (2), the installation of communications towers is not considered construction of a building or other physical facility: Provided further, That grantees shall provide reports on their use of funds, as determined necessary by the Secretary of Homeland Security: Provided further, That notwithstanding section 509 of this Act, the Administrator of the Federal Emergency Management Agency may use the funds provided in paragraph (5) to acquire real property for the purpose of establishing or appropriately extending the security buffer zones around Federal Emergency Management Agency training facilities.

FIREFIGHTER ASSISTANCE GRANTS

For grants for programs authorized by the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2201 et seq.), $680,000,000, to remain available until September 30, 2016, of which $340,000,000 shall be available to carry out section 33 of that Act (15 U.S.C. 2229) and $340,000,000 shall be available to carry out section 34 of that Act (15 U.S.C. 2229a).

EMERGENCY MANAGEMENT PERFORMANCE GRANTS

For emergency management performance grants, as authorized by the National Flood Insurance Act of 1968 (42 U.S.C. 4001 et seq.), the

Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5121 et seq.), the Earthquake Hazards Reduction Act of 1977 (42 U.S.C. 7701 et seq.), and Reorganization Plan No. 3 of 1978 (5 U.S.C. App.), $350,000,000.

RADIOLOGICAL EMERGENCY PREPAREDNESS PROGRAM

The aggregate charges assessed during fiscal year 2015, as authorized in title III of the Departments of Veterans Affairs and Housing and Urban Development, and Independent Agencies Appropriations Act, 1999 (42 U.S.C. 5196e), shall not be less than 100 percent of the amounts anticipated by the Department of Homeland Security necessary for its radiological emergency preparedness program for the next fiscal year: Provided, That the methodology for assessment and collection of fees shall be fair and equitable and shall reflect costs of providing such services, including administrative costs of collecting such fees: Provided further, That fees received under this heading shall be deposited in this account as offsetting collections and will become available for authorized purposes on October 1, 2015, and remain available until expended.

UNITED STATES FIRE ADMINISTRATION

For necessary expenses of the United States Fire Administration and for other purposes, as authorized by the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2201 et seq.) and the Homeland Security Act of 2002 (6 U.S.C. 101 et seq.), $44,000,000.

DISASTER RELIEF FUND

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses in carrying out the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5121 et seq.), $7,033,464,494, to remain available until expended, of which $24,000,000 shall be transferred to the Department of Homeland Security Office of Inspector General for audits and investigations related to disasters: Provided, That the Administrator of the Federal Emergency Management Agency shall submit to the Committees on Appropriations of the Senate and the House of Representatives the following reports, including a specific description of the methodology and the source data used in developing such reports:

(1) an estimate of the following amounts shall be submitted for the budget year at the time that the President's budget proposal for fiscal year 2016 is submitted pursuant to section 1105(a) of title 31, United States Code:

(A) the unobligated balance of funds to be carried over from the prior fiscal year to the budget year;

(B) the unobligated balance of funds to be carried over from the budget year to the budget year plus 1;

(C) the amount of obligations for non-catastrophic events for the budget year;

(D) the amount of obligations for the budget year for catastrophic events delineated by event and by State;

(E) the total amount that has been previously obligated or will be required for catastrophic events delineated by event and by State for all prior years, the current year, the budget year, the budget year plus 1, the budget year plus 2, and the budget year plus 3 and beyond;

(F) the amount of previously obligated funds that will be recovered for the budget year;

(G) the amount that will be required for obligations for emergencies, as described in section 102(1) of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5122(1)), major disasters, as described in section 102(2) of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5122(2)), fire management assistance grants, as described in section 420 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5187), surge activities, and disaster readiness and support activities; and

(H) the amount required for activities not covered under section 251(b)(2)(D)(iii) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 901(b)(2)(D)(iii); Public Law 99–177);

(2) an estimate or actual amounts, if available, of the following for the current fiscal year shall be submitted not later than the fifth day of each month, and shall be published by the Administrator on the Agency's Web site not later than the fifth day of each month:

(A) a summary of the amount of appropriations made available by source, the transfers executed, the previously allocated funds recovered, and the commitments, allocations, and obligations made;

(B) a table of disaster relief activity delineated by month, including—

(i) the beginning and ending balances;

(ii) the total obligations to include amounts obligated for fire assistance, emergencies, surge, and disaster support activities;

(iii) the obligations for catastrophic events delineated by event and by State; and

(iv) the amount of previously obligated funds that are recovered;

(C) a summary of allocations, obligations, and expenditures for catastrophic events delineated by event;

(D) in addition, for a disaster declaration related to Hurricane Sandy, the cost of the following categories of spending: public assistance, individual assistance, mitigation, administrative, operations, and any other relevant category (including emergency measures and disaster resources); and

(E) the date on which funds appropriated will be exhausted:

Provided further, That the Administrator shall publish on the Agency's Web site not later than 5 days after an award of a public assistance grant under section 406 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5172) the specifics of the grant award: Provided further, That for any mission assignment or mission assignment task order to another Federal department or agency regarding a major disaster, not later than 5 days after the issuance of the mission assignment or task order, the Administrator shall publish on the Agency's website the following: the name of the impacted State and the disaster declaration for such State, the assigned agency, the assistance requested, a description of the disaster, the total cost estimate, and the amount obligated: Provided further, That not later than 10 days after the last day of each month until the mission assignment or task order is completed and closed out, the Administrator shall update any changes to the total cost estimate and the amount obligated: Provided further, That of the amount provided under this heading, $6,437,792,622 shall be for major disasters declared pursuant to the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5121 et seq.): Provided further, That the amount in the preceding proviso is designated by the Congress as being for disaster relief pursuant to section 251(b)(2)(D) of the Balanced Budget and Emergency Deficit Control Act of 1985.

FLOOD HAZARD MAPPING AND RISK ANALYSIS PROGRAM

For necessary expenses, including administrative costs, under section 1360 of the National Flood Insurance Act of 1968 (42 U.S.C. 4101), and under sections 100215, 100216, 100226, 100230, and 100246 of the Biggert-Waters Flood Insurance Reform Act of 2012, (Public Law 112–141, 126 Stat. 916), $100,000,000, and such additional sums as may be provided by State and local governments or other political subdivisions for cost-shared mapping activities under section 1360(f)(2) of such Act (42 U.S.C. 4101(f)(2)), to remain available until expended.

NATIONAL FLOOD INSURANCE FUND

For activities under the National Flood Insurance Act of 1968 (42 U.S.C. 4001 et seq.), the Flood Disaster Protection Act of 1973 (42 U.S.C. 4001 et seq.), the Biggert-Waters Flood Insurance Reform Act of 2012 (subtitle A of title II of division F of Public Law 112–141; 126 Stat. 916), and the Homeowner Flood Insurance Affordability Act of 2014 (Public Law 113–89; 128 Stat. 1020), $179,294,000, which shall remain available until September 30, 2016, and shall be derived from offsetting amounts collected under section 1308(d) of the National Flood Insurance Act of 1968 (42 U.S.C. 4015(d)); which is available for salaries and expenses associated with flood mitigation and flood insurance operations; and floodplain management and additional amounts for flood mapping: Provided, That of such amount, $23,759,000 shall be available for salaries and expenses associated with flood mitigation and flood insurance operations and $155,535,000 shall be available for flood plain management and flood mapping: Provided further, That any additional fees collected pursuant to section 1308(d) of the National Flood Insurance Act of 1968 (42 U.S.C. 4015(d)) shall be credited as an offsetting collection to this account, to be available for flood plain management and flood mapping: Provided further, That in fiscal year 2015, no funds shall be available from the National Flood Insurance Fund under section 1310 of the National Flood Insurance Act of 1968 (42 U.S.C. 4017) in excess of:

(1) $136,000,000 for operating expenses;

(2) $1,139,000,000 for commissions and taxes of agents;

(3) such sums as are necessary for interest on Treasury borrowings; and

(4) $150,000,000, which shall remain available until expended, for flood mitigation actions and for flood mitigation assistance under section 1366 of the National Flood Insurance Act of 1968 (42 U.S.C. 4104c), notwithstanding sections 1366(e) and 1310(a)(7) of such Act (42 U.S.C. 4104c(e), 4017):

Provided further, That the amounts collected under section 102 of the Flood Disaster Protection Act of 1973 (42 U.S.C. 4012a) and section 1366(e) of the National Flood Insurance Act of 1968 shall be deposited in the National Flood Insurance Fund to supplement other amounts specified as available for section 1366 of the National Flood Insurance Act of 1968, notwithstanding section 102(f)(8), section 1366(e), and paragraphs (1) through (3) of section 1367(b) of such Act (42 U.S.C. 4012a(f)(8), 4104c(e), 4104d(b)(1)–(3)): Provided further, That total administrative costs shall not exceed 4 percent of the total appropriation: Provided further, That $5,000,000 is available to carry out section 24 of the Homeowner Flood Insurance Affordability Act of 2014 (42 U.S.C. 4033).

NATIONAL PREDISASTER MITIGATION FUND

For the predisaster mitigation grant program under section 203 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5133), $25,000,000, to remain available until expended.

EMERGENCY FOOD AND SHELTER

To carry out the emergency food and shelter program pursuant to title III of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11331 et seq.), $120,000,000, to remain available until expended: Provided, That total administrative costs shall not exceed 3.5 percent of the total amount made available under this heading.

TITLE IV

RESEARCH, DEVELOPMENT, TRAINING, AND SERVICES

UNITED STATES CITIZENSHIP AND IMMIGRATION SERVICES

For necessary expenses for citizenship and immigration services, $124,435,000 for the E-Verify Program, as described in section 403(a) of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (8 U.S.C. 1324a note), to assist United States employers with maintaining

a legal workforce: Provided, That, notwithstanding any other provision of law, funds otherwise made available to United States Citizenship and Immigration Services may be used to acquire, operate, equip, and dispose of up to 5 vehicles, for replacement only, for areas where the Administrator of General Services does not provide vehicles for lease: Provided further, That the Director of United States Citizenship and Immigration Services may authorize employees who are assigned to those areas to use such vehicles to travel between the employees' residences and places of employment.

FEDERAL LAW ENFORCEMENT TRAINING CENTER

SALARIES AND EXPENSES

For necessary expenses of the Federal Law Enforcement Training Center, including materials and support costs of Federal law enforcement basic training; the purchase of not to exceed 117 vehicles for police-type use and hire of passenger motor vehicles; expenses for student athletic and related activities; the conduct of and participation in firearms matches and presentation of awards; public awareness and enhancement of community support of law enforcement training; room and board for student interns; a flat monthly reimbursement to employees authorized to use personal mobile phones for official duties; and services as authorized by section 3109 of title 5, United States Code; $230,497,000; of which up to $54,154,000 shall remain available until September 30, 2016, for materials and support costs of Federal law enforcement basic training; of which $300,000 shall remain available until expended to be distributed to Federal law enforcement agencies for expenses incurred participating in training accreditation; and of which not to exceed $7,180 shall be for official reception and representation expenses: Provided, That the Center is authorized to obligate funds in anticipation of reimbursements from agencies receiving training sponsored by the Center, except that total obligations at the end of the fiscal year shall not exceed total budgetary resources available at the end of the fiscal year: Provided further, That section 1202(a) of Public Law 107–206 (42 U.S.C. 3771 note), as amended under this heading in division F of Public Law 113–76, is further amended by striking ''December 31, 2016'' and inserting ''December 31, 2017'': Provided further, That the Director of the Federal Law Enforcement Training Center shall schedule basic or advanced law enforcement training, or both, at all four training facilities under the control of the Federal Law Enforcement Training Center to ensure that such training facilities are operated at the highest capacity throughout the fiscal year: Provided further, That the Federal Law Enforcement Training Accreditation Board, including representatives from the Federal law enforcement community and non-Federal accreditation experts involved in law enforcement training, shall lead the Federal law enforcement training accreditation process to continue the implementation of measuring and assessing the quality and effectiveness of Federal law enforcement training programs, facilities, and instructors.

ACQUISITIONS, CONSTRUCTION, IMPROVEMENTS, AND RELATED EXPENSES

For acquisition of necessary additional real property and facilities, construction, and ongoing maintenance, facility improvements, and related expenses of the Federal Law Enforcement Training Center, $27,841,000, to remain available until September 30, 2019: Provided, That the Center is authorized to accept reimbursement to this appropriation from government agencies requesting the construction of special use facilities.

SCIENCE AND TECHNOLOGY

MANAGEMENT AND ADMINISTRATION

For salaries and expenses of the Office of the Under Secretary for Science and Technology and for management and administration of programs and activities, as authorized by title III of the Homeland Security Act of 2002 (6 U.S.C. 181 et seq.), $129,993,000: Provided, That not to exceed $7,650 shall be for official reception and representation expenses.

RESEARCH, DEVELOPMENT, ACQUISITION, AND OPERATIONS

For necessary expenses for science and technology research, including advanced research projects, development, test and evaluation, acquisition, and operations as authorized by title III of the Homeland Security Act of 2002 (6 U.S.C. 181 et seq.), and the purchase or lease of not to exceed 5 vehicles, $973,915,000; of which $538,926,000 shall remain available until September 30, 2017; and of which $434,989,000 shall remain available until September 30, 2019, solely for operation and construction of laboratory facilities: Provided, That of the funds provided for the operation and construction of laboratory facilities under this heading, $300,000,000 shall be for construction of the National Bio- and Agro-defense Facility.

DOMESTIC NUCLEAR DETECTION OFFICE

MANAGEMENT AND ADMINISTRATION

For salaries and expenses of the Domestic Nuclear Detection Office, as authorized by title XIX of the Homeland Security Act of 2002 (6 U.S.C. 591 et seq.), for management and administration of programs and activities, $37,339,000: Provided, That not to exceed $2,250 shall be for official reception and representation expenses.

RESEARCH, DEVELOPMENT, AND OPERATIONS

For necessary expenses for radiological and nuclear research, development, testing, evaluation, and operations, $197,900,000, to remain available until September 30, 2017.

SYSTEMS ACQUISITION

For necessary expenses for the Domestic Nuclear Detection Office acquisition and deployment of radiological detection systems in accordance with the global nuclear detection architecture, $72,603,000, to remain available until September 30, 2017.

TITLE V

GENERAL PROVISIONS

(INCLUDING RESCISSIONS OF FUNDS)

SEC. 501. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year unless expressly so provided herein.

SEC. 502. Subject to the requirements of section 503 of this Act, the unexpended balances of prior appropriations provided for activities in this Act may be transferred to appropriation accounts for such activities established pursuant to this Act, may be merged with funds in the applicable established accounts, and thereafter may be accounted for as one fund for the same time period as originally enacted.

SEC. 503. (a) None of the funds provided by this Act, provided by previous appropriations Acts to the agencies in or transferred to the Department of Homeland Security that remain available for obligation or expenditure in fiscal year 2015, or provided from any accounts in the Treasury of the United States derived by the collection of fees available to the agencies funded by this Act, shall be available for obligation or expenditure through a reprogramming of funds that:

(1) creates a new program, project, or activity;

(2) eliminates a program, project, office, or activity;

(3) increases funds for any program, project, or activity for which funds have been denied or restricted by the Congress;

(4) proposes to use funds directed for a specific activity by either of the Committees on Appropriations of the Senate or the House of Representatives for a different purpose; or

(5) contracts out any function or activity for which funding levels were requested for Federal full-time equivalents in the object classification tables contained in the fiscal year 2015 Budget Appendix for the Department of Homeland Security, as modified by the report accompanying this Act, unless the Committees on Appropriations of the Senate and the House of Representatives are notified 15 days in advance of such reprogramming of funds.

(b) None of the funds provided by this Act, provided by previous appropriations Acts to the agencies in or transferred to the Department of Homeland Security that remain available for obligation or expenditure in fiscal year 2015, or provided from any accounts in the Treasury of the United States derived by the collection of fees or proceeds available to the agencies funded by this Act, shall be available for obligation or expenditure for programs, projects, or activities through a reprogramming of funds in excess of $5,000,000 or 10 percent, whichever is less, that:

(1) augments existing programs, projects, or activities;

(2) reduces by 10 percent funding for any existing program, project, or activity;

(3) reduces by 10 percent the numbers of personnel approved by the Congress; or

(4) results from any general savings from a reduction in personnel that would result in a change in existing programs, projects, or activities as approved by the Congress, unless the Committees on Appropriations of the Senate and the House of Representatives are notified 15 days in advance of such reprogramming of funds.

(c) Not to exceed 5 percent of any appropriation made available for the current fiscal year for the Department of Homeland Security by this Act or provided by previous appropriations Acts may be transferred between such appropriations, but no such appropriation, except as otherwise specifically provided, shall be increased by more than 10 percent by such transfers: Provided, That any transfer under this section shall be treated as a reprogramming of funds under subsection (b) and shall not be available for obligation unless the Committees on Appropriations of the Senate and the House of Representatives are notified 15 days in advance of such transfer.

(d) Notwithstanding subsections (a), (b), and (c) of this section, no funds shall be reprogrammed within or transferred between appropriations based upon an initial notification provided after June 30, except in extraordinary circumstances that imminently threaten the safety of human life or the protection of property.

(e) The notification thresholds and procedures set forth in this section shall apply to any use of deobligated balances of funds provided in previous Department of Homeland Security Appropriations Acts.

SEC. 504. The Department of Homeland Security Working Capital Fund, established pursuant to section 403 of Public Law 103–356 (31 U.S.C. 501 note), shall continue operations as a permanent working capital fund for fiscal year 2015: Provided, That none of the funds appropriated or otherwise made available to the Department of Homeland Security may be used to make payments to the Working Capital Fund, except for the activities and amounts allowed in the President's fiscal year 2015 budget: Provided further, That funds provided to the Working Capital Fund shall be available for obligation until expended to carry out the purposes of the Working Capital Fund: Provided further, That all departmental components shall be charged only for direct usage of each Working Capital Fund service: Provided further, That funds provided to the Working Capital Fund shall be used only for purposes consistent with the contributing component: Provided further, That the Working Capital Fund shall be paid in advance or reimbursed at rates which will return the full cost of each service: Provided further, That the Committees on Appropriations of the Senate and House of Representatives shall be notified of any activity added to or removed from the fund: Provided further, That the Chief Financial Officer of the Department of Homeland Security

shall submit a quarterly execution report with activity level detail, not later than 30 days after the end of each quarter.

SEC. 505. Except as otherwise specifically provided by law, not to exceed 50 percent of unobligated balances remaining available at the end of fiscal year 2015, as recorded in the financial records at the time of a reprogramming request, but not later than June 30, 2016, from appropriations for salaries and expenses for fiscal year 2015 in this Act shall remain available through September 30, 2016, in the account and for the purposes for which the appropriations were provided: Provided, That prior to the obligation of such funds, a request shall be submitted to the Committees on Appropriations of the Senate and the House of Representatives for approval in accordance with section 503 of this Act.

SEC. 506. Funds made available by this Act for intelligence activities are deemed to be specifically authorized by the Congress for purposes of section 504 of the National Security Act of 1947 (50 U.S.C. 414) during fiscal year 2015 until the enactment of an Act authorizing intelligence activities for fiscal year 2015.

SEC. 507. (a) Except as provided in subsections (b) and (c), none of the funds made available by this Act may be used to—

(1) make or award a grant allocation, grant, contract, other transaction agreement, or task or delivery order on a Department of Homeland Security multiple award contract, or to issue a letter of intent totaling in excess of $1,000,000;

(2) award a task or delivery order requiring an obligation of funds in an amount greater than $10,000,000 from multi-year Department of Homeland Security funds;

(3) make a sole-source grant award; or

(4) announce publicly the intention to make or award items under paragraph (1), (2), or (3) including a contract covered by the Federal Acquisition Regulation.

(b) The Secretary of Homeland Security may waive the prohibition under subsection (a) if the Secretary notifies the Committees on Appropriations of the Senate and the House of Representatives at least 3 full business days in advance of making an award or issuing a letter as described in that subsection.

(c) If the Secretary of Homeland Security determines that compliance with this section would pose a substantial risk to human life, health, or safety, an award may be made without notification, and the Secretary shall notify the Committees on Appropriations of the Senate and the House of Representatives not later than 5 full business days after such an award is made or letter issued.

(d) A notification under this section—

(1) may not involve funds that are not available for obligation; and

(2) shall include the amount of the award; the fiscal year for which the funds for the award were appropriated; the type of contract; and the account from which the funds are being drawn.

(e) The Administrator of the Federal Emergency Management Agency shall brief the Committees on Appropriations of the Senate and the House of Representatives 5 full business days in advance of announcing publicly the intention of making an award under ''State and Local Programs''.

SEC. 508. Notwithstanding any other provision of law, no agency shall purchase, construct, or lease any additional facilities, except within or contiguous to existing locations, to be used for the purpose of conducting Federal law enforcement training without the advance approval of the Committees on Appropriations of the Senate and the House of Representatives, except that the Federal Law Enforcement Training Center is authorized to obtain the temporary use of additional facilities by lease, contract, or other agreement for training that cannot be accommodated in existing Center facilities.

SEC. 509. None of the funds appropriated or otherwise made available by this Act may be used for expenses for any construction, repair, alteration, or acquisition project for which a prospectus otherwise required under chapter 33 of title 40, United States Code, has not been approved, except that necessary funds may be expended for each project for required expenses for the development of a proposed prospectus.

SEC. 510. (a) Sections 520, 522, and 530 of the Department of Homeland Security Appropriations Act, 2008 (division E of Public Law 110–161; 121 Stat. 2073 and 2074) shall apply with respect to funds made available in this Act in the same manner as such sections applied to funds made available in that Act.

(b) The third proviso of section 537 of the Department of Homeland Security Appropriations Act, 2006 (6 U.S.C. 114), shall not apply with respect to funds made available in this Act.

SEC. 511. None of the funds made available in this Act may be used in contravention of the applicable provisions of the Buy American Act. For purposes of the preceding sentence, the term ''Buy American Act'' means chapter 83 of title 41, United States Code.

SEC. 512. None of the funds made available in this Act may be used to amend the oath of allegiance required by section 337 of the Immigration and Nationality Act (8 U.S.C. 1448).

SEC. 513. Not later than 30 days after the last day of each month, the Chief Financial Officer of the Department of Homeland Security shall submit to the Committees on Appropriations of the Senate and the House of Representatives a monthly budget and staffing report for that month that includes total obligations of the Department for that month for the fiscal year at the appropriation and program, project, and activity levels, by the source year of the appropriation. Total obligations for staffing shall also be provided by subcategory of on-board and funded full-time equivalent staffing levels, respectively, and the report shall specify the number of, and total obligations for, contract employees for each office of the Department.

SEC. 514. Except as provided in section 44945 of title 49, United States Code, funds appropriated or transferred to Transportation Security Administration ''Aviation Security'', ''Administration'', and ''Transportation Security Support'' for fiscal years 2004 and 2005 that are recovered or deobligated shall be available only for the procurement or installation of explosives detection systems, air cargo, baggage, and checkpoint screening systems, subject to notification: Provided, That semiannual reports shall be submitted to the Committees on Appropriations of the Senate and the House of Representatives on any funds that are recovered or deobligated.

SEC. 515. None of the funds appropriated by this Act may be used to process or approve a competition under Office of Management and Budget Circular A–76 for services provided by employees (including employees serving on a temporary or term basis) of United States Citizenship and Immigration Services of the Department of Homeland Security who are known as Immigration Information Officers, Contact Representatives, Investigative Assistants, or Immigration Services Officers.

SEC. 516. Any funds appropriated to ''Coast Guard, Acquisition, Construction, and Improvements'' for fiscal years 2002, 2003, 2004, 2005, and 2006 for the 110–123 foot patrol boat conversion that are recovered, collected, or otherwise received as the result of negotiation, mediation, or litigation, shall be available until expended for the Fast Response Cutter program.

SEC. 517. The functions of the Federal Law Enforcement Training Center instructor staff shall be classified as inherently governmental for the purpose of the Federal Activities Inventory Reform Act of 1998 (31 U.S.C. 501 note).

SEC. 518. (a) The Secretary of Homeland Security shall submit a report not later than October 15, 2015, to the Office of Inspector General of the Department of Homeland Security listing all grants and contracts awarded by any means other than full and open competition during fiscal year 2015.

(b) The Inspector General shall review the report required by subsection (a) to assess Departmental compliance with applicable laws and regulations and report the results of that review to the Committees on Appropriations of the Senate and the House of Representatives not later than February 15, 2016.

SEC. 519. None of the funds provided by this or previous appropriations Acts shall be used to fund any position designated as a Principal Federal Official (or the successor thereto) for any Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5121 et seq.) declared disasters or emergencies unless—

(1) the responsibilities of the Principal Federal Official do not include operational functions related to incident management, including coordination of operations, and are consistent with the requirements of section 509(c) and sections 503(c)(3) and 503(c)(4)(A) of the Homeland Security Act of 2002 (6 U.S.C. 319(c) and 313(c)(3) and 313(c)(4)(A)) and section 302 of the Robert T. Stafford Disaster Relief and Assistance Act (42 U.S.C. 5143);

(2) not later than 10 business days after the latter of the date on which the Secretary of Homeland Security appoints the Principal Federal Official and the date on which the President issues a declaration under section 401 or section 501 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5170 and 5191, respectively), the Secretary of Homeland Security shall submit a notification of the appointment of the Principal Federal Official and a description of the responsibilities of such Official and how such responsibilities are consistent with paragraph (1) to the Committees on Appropriations of the Senate and the House of Representatives, the Committee on Transportation and Infrastructure of the House of Representatives, and the Committee on Homeland Security and Governmental Affairs of the Senate; and

(3) not later than 60 days after the date of enactment of this Act, the Secretary shall provide a report specifying timeframes and milestones regarding the update of operations, planning and policy documents, and training and exercise protocols, to ensure consistency with paragraph (1) of this section.

SEC. 520. None of the funds provided or otherwise made available in this Act shall be available to carry out section 872 of the Homeland Security Act of 2002 (6 U.S.C. 452).

SEC. 521. Funds made available in this Act may be used to alter operations within the Civil Engineering Program of the Coast Guard nationwide, including civil engineering units, facilities design and construction centers, maintenance and logistics commands, and the Coast Guard Academy, except that none of the funds provided in this Act may be used to reduce operations within any Civil Engineering Unit unless specifically authorized by a statute enacted after the date of enactment of this Act.

SEC. 522. None of the funds made available in this Act may be used by United States Citizenship and Immigration Services to grant an immigration benefit unless the results of background checks required by law to be completed prior to the granting of the benefit have been received by United States Citizenship and Immigration Services, and the results do not preclude the granting of the benefit.

SEC. 523. Section 831 of the Homeland Security Act of 2002 (6 U.S.C. 391) is amended—

(1) in subsection (a), by striking ''Until September 30, 2014,'' and inserting ''Until September 30, 2015,''; and

(2) in subsection (c)(1), by striking ''September 30, 2014,'' and inserting ''September 30, 2015,''.

SEC. 524. The Secretary of Homeland Security shall require that all contracts of the Department of Homeland Security that provide award fees link such fees to successful acquisition outcomes (which outcomes shall be specified in terms of cost, schedule, and performance).

SEC. 525. Notwithstanding any other provision of law, none of the funds provided in this or any other Act shall be used to approve a waiver of the navigation and vessel-inspection laws pursuant to 46 U.S.C. 501(b) for the transportation of crude oil distributed from the Strategic Petroleum Reserve until the Secretary of Homeland Security, after consultation with the Secretaries of the Departments of Energy and Transportation and representatives from the United States flag maritime industry, takes adequate measures to ensure the use of United States flag vessels: Provided, That the Secretary shall notify the Committees on Appropriations of the Senate and the House of Representatives, the Committee on Commerce, Science, and Transportation of the Senate, and the Committee on Transportation and Infrastructure of the House of Representatives within 2 business days of any request for waivers of navigation and vessel-inspection laws pursuant to 46 U.S.C. 501(b).

SEC. 526. None of the funds made available in this Act for United States Customs and Border Protection may be used to prevent an individual not in the business of importing a prescription drug (within the meaning of section 801(g) of the Federal Food, Drug, and Cosmetic Act) from importing a prescription drug from Canada that complies with the Federal Food, Drug, and Cosmetic Act: Provided, That this section shall apply only to individuals transporting on their person a personal-use quantity of the prescription drug, not to exceed a 90-day supply: Provided further, That the prescription drug may not be—

(1) a controlled substance, as defined in section 102 of the Controlled Substances Act (21 U.S.C. 802); or

(2) a biological product, as defined in section 351 of the Public Health Service Act (42 U.S.C. 262).

SEC. 527. None of the funds in this Act shall be used to reduce the United States Coast Guard's Operations Systems Center mission or its government-employed or contract staff levels.

SEC. 528. The Secretary of Homeland Security, in consultation with the Secretary of the Treasury, shall notify the Committees on Appropriations of the Senate and the House of Representatives of any proposed transfers of funds available under section 9703.1(g)(4)(B) of title 31, United States Code (as added by Public Law 102–393) from the Department of the Treasury Forfeiture Fund to any agency within the Department of Homeland Security: Provided, That none of the funds identified for such a transfer may be obligated until the Committees on Appropriations of the Senate and the House of Representatives approve the proposed transfers.

SEC. 529. None of the funds made available in this Act may be used for planning, testing, piloting, or developing a national identification card.

SEC. 530. None of the funds appropriated by this Act may be used to conduct, or to implement the results of, a competition under Office of Management and Budget Circular A–76 for activities performed with respect to the Coast Guard National Vessel Documentation Center.

SEC. 531. (a) Notwithstanding any other provision of this Act, except as provided in subsection (b), and 30 days after the date on which the President determines whether to declare a major disaster because of an event and any appeal is completed, the Administrator shall publish on the Web site of the Federal Emergency Management Agency a report regarding that decision that shall summarize damage assessment information used to determine whether to declare a major disaster.

(b) The Administrator may redact from a report under subsection (a) any data that the Administrator determines would compromise national security.

(c) In this section—

(1) the term ''Administrator'' means the Administrator of the Federal Emergency Management Agency; and

(2) the term ''major disaster'' has the meaning given that term in section 102 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5122).

SEC. 532. Any official that is required by this Act to report or to certify to the Committees on Appropriations of the Senate and the House of Representatives may not delegate such authority to perform that act unless specifically authorized herein.

SEC. 533. None of the funds appropriated or otherwise made available in this or any other Act may be used to transfer, release, or assist in the transfer or release to or within the United States, its territories, or possessions Khalid Sheikh Mohammed or any other detainee who—

(1) is not a United States citizen or a member of the Armed Forces of the United States; and

(2) is or was held on or after June 24, 2009, at the United States Naval Station, Guantanamo Bay, Cuba, by the Department of Defense.

SEC. 534. None of the funds made available in this Act may be used for first-class travel by the employees of agencies funded by this Act in contravention of sections 301–10.122 through 301–10.124 of title 41, Code of Federal Regulations.

SEC. 535. None of the funds made available in this Act may be used to employ workers described in section 274A(h)(3) of the Immigration and Nationality Act (8 U.S.C. 1324a(h)(3)).

SEC. 536. (a) Any company that collects or retains personal information directly from any individual who participates in the Registered Traveler or successor program of the Transportation Security Administration shall hereafter safeguard and dispose of such information in accordance with the requirements in—

(1) the National Institute for Standards and Technology Special Publication 800–30, entitled ''Risk Management Guide for Information Technology Systems'';

(2) the National Institute for Standards and Technology Special Publication 800–53, Revision 3, entitled ''Recommended Security Controls for Federal Information Systems and Organizations''; and

(3) any supplemental standards established by the Administrator of the Transportation Security Administration (referred to in this section as the ''Administrator'').

(b) The airport authority or air carrier operator that sponsors the company under the Registered Traveler program shall hereafter be known as the ''Sponsoring Entity''.

(c) The Administrator shall hereafter require any company covered by subsection (a) to provide, not later than 30 days after the date of enactment of this Act, to the Sponsoring Entity written certification that the procedures used by the company to safeguard and dispose of information are in compliance with the requirements under subsection (a). Such certification shall include a description of the procedures used by the company to comply with such requirements.

SEC. 537. Notwithstanding any other provision of this Act, none of the funds appropriated or otherwise made available by this Act may be used to pay award or incentive fees for contractor performance that has been judged to be below satisfactory performance or performance that does not meet the basic requirements of a contract.

SEC. 538. In developing any process to screen aviation passengers and crews for transportation or national security purposes, the Secretary of Homeland Security shall ensure that all such processes take into consideration such passengers' and crews' privacy and civil liberties consistent with applicable laws, regulations, and guidance.

SEC. 539. (a) Notwithstanding section 1356(n) of title 8, United States Code, of the funds deposited into the Immigration Examinations Fee Account, $10,000,000 may be allocated by United States Citizenship and Immigration Services in fiscal year 2015 for the purpose of providing an immigrant integration grants program.

(b) None of the funds made available to United States Citizenship and Immigration Services for grants for immigrant integration may be used to provide services to aliens who have not been lawfully admitted for permanent residence.

SEC. 540. For an additional amount for the ''Office of the Under Secretary for Management'', $48,600,000, to remain available until expended, for necessary expenses to plan, acquire, design, construct, renovate, remediate, equip, furnish, improve infrastructure, and occupy buildings and facilities for the department headquarters consolidation project and associated mission support consolidation: Provided, That the Committees on Appropriations of the Senate and the House of Representatives shall receive an expenditure plan not later than 90 days after the date of enactment of the Act detailing the allocation of these funds.

SEC. 541. None of the funds appropriated or otherwise made available by this Act may be used by the Department of Homeland Security to enter into any Federal contract unless such contract is entered into in accordance with the requirements of subtitle I of title 41, United States Code, or chapter 137 of title 10, United States Code, and the Federal Acquisition Regulation, unless such contract is otherwise authorized by statute to be entered into without regard to the above referenced statutes.

SEC. 542. (a) For an additional amount for financial systems modernization, $34,072,000 to remain available until September 30, 2016.

(b) Funds made available in subsection (a) for financial systems modernization may be transferred by the Secretary of Homeland Security between appropriations for the same purpose, notwithstanding section 503 of this Act.

(c) No transfer described in subsection (b) shall occur until 15 days after the Committees on Appropriations of the Senate and the House of Representatives are notified of such transfer.

SEC. 543. Notwithstanding the 10 percent limitation contained in section 503(c) of this Act, the Secretary of Homeland Security may transfer to the fund established by 8 U.S.C. 1101 note, up to $20,000,000 from appropriations available to the Department of Homeland Security: Provided, That the Secretary shall notify the Committees on Appropriations of the Senate and the House of Representatives 5 days in advance of such transfer.

SEC. 544. Notwithstanding any other provision of law, if the Secretary of Homeland Security determines that specific United States Immigration and Customs Enforcement Service Processing Centers or other United States Immigration and Customs Enforcement owned detention facilities no longer meet the mission need, the Secretary is authorized to dispose of individual Service Processing Centers or other United States Immigration and Customs Enforcement owned detention facilities by directing the Administrator of General Services to sell all real and related personal property which support Service Processing Centers or other United States Immigration and Customs Enforcement owned detention facilities, subject to such terms and conditions as necessary to protect Government interests and meet program requirements: Provided, That the proceeds, net of the costs of sale incurred by the General Services Administration and United States Immigration and Customs Enforcement, shall be deposited as offsetting collections into a separate account that shall be available, subject to appropriation, until expended for other real property capital asset needs of existing United States Immigration and Customs Enforcement assets, excluding daily operations and maintenance costs, as the Secretary deems appropriate: Provided further, That any sale or collocation of federally owned detention facilities shall not result in the maintenance of fewer than 34,000 detention beds: Provided further, That the Committees on Appropriations of the Senate and the House of Representatives shall be notified 15 days prior to the announcement of any proposed sale or collocation.

SEC. 545. The Commissioner of United States Customs and Border Protection and the Assistant Secretary of Homeland Security for United States Immigration and Customs Enforcement shall, with respect to fiscal years 2015, 2016, 2017, and 2018, submit to the Committees on Appropriations of the Senate and the House of Representatives, at the time that the President's budget proposal for fiscal year 2016 is submitted pursuant to the requirements of section 1105(a) of title 31, United States Code, the information required in the multi-year investment and management plans required, respectively, under the headings ''U.S. Customs and Border Protection, Salaries and Expenses'' under title II of division D of the Consolidated Appropriations Act, 2012 (Public Law 112–74); ''U.S. Customs and Border Protection, Border Security Fencing, Infrastructure, and Technology'' under such title; and section 568 of such Act.

SEC. 546. The Secretary of Homeland Security shall ensure enforcement of all immigration laws (as defined in section 101(a)(17) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(17))).

SEC. 547. (a) Of the amounts made available by this Act for ''National Protection and Programs Directorate, Infrastructure Protection and Information Security'', $140,525,000 for the Federal Network Security program, project, and activity shall be used to deploy on Federal systems technology to improve the information security of agency information systems covered by section 3543(a) of title 44, United States Code: Provided, That funds made available under this section shall be used to assist and support Government-wide and agency-specific efforts to provide adequate, risk-based, and cost-effective cybersecurity to address escalating and rapidly evolving threats to information security, including the acquisition and operation of a continuous monitoring and diagnostics program, in collaboration with departments and agencies, that includes equipment, software, and Department of Homeland Security supplied services: Provided further, That continuous monitoring and diagnostics software procured by the funds made available by this section shall not transmit to the Department of Homeland Security any personally identifiable information or content of network communications of other agencies' users: Provided further, That such software shall be installed, maintained, and operated in accordance with all applicable privacy laws and agency-specific policies regarding network content.

(b) Funds made available under this section may not be used to supplant funds provided for any such system within an agency budget.

(c) Not later than July 1, 2015, the heads of all Federal agencies shall submit to the Committees on Appropriations of the Senate and the House of Representatives expenditure plans for necessary cybersecurity improvements to address known vulnerabilities to information systems described in subsection (a).

(d) Not later than October 1, 2015, and semiannually thereafter, the head of each Federal agency shall submit to the Director of the Office of Management and Budget a report on the execution of the expenditure plan for that agency required by subsection (c): Provided, That the Director of the Office of Management and Budget shall summarize such execution reports and annually submit such summaries to Congress in conjunction with the annual progress report on implementation of the E-Government Act of 2002 (Public Law 107–347), as required by section 3606 of title 44, United States Code.

(e) This section shall not apply to the legislative and judicial branches of the Federal Government and shall apply to all Federal agencies within the executive branch except for the Department of Defense, the Central Intelligence Agency, and the Office of the Director of National Intelligence.

SEC. 548. (a) None of the funds made available in this Act may be used to maintain or establish a computer network unless such network blocks the viewing, downloading, and exchanging of pornography.

(b) Nothing in subsection (a) shall limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities.

SEC. 549. None of the funds made available in this Act may be used by a Federal law enforcement officer to facilitate the transfer of an operable firearm to an individual if the Federal law enforcement officer knows or suspects that the individual is an agent of a drug cartel unless law enforcement personnel of the United States continuously monitor or control the firearm at all times.

SEC. 550. None of the funds provided in this or any other Act may be obligated to implement the National Preparedness Grant Program or any other successor grant programs unless explicitly authorized by Congress.

SEC. 551. None of the funds made available in this Act may be used to provide funding for the position of Public Advocate, or a successor position, within United States Immigration and Customs Enforcement.

SEC. 552. (a) Section 559 of division F of Public Law 113–76 is amended as follows:

(1) Subsection (f)(2)(B) is amended by adding at the end: ''Such transfer shall not be required for personal property, including furniture, fixtures, and equipment.''; and

(2) Subsection (e)(3)(b) is amended by inserting after ''payment of overtime'' the following: ''and the salaries, training and benefits of individuals employed by U.S. Customs and Border Protection to support U.S. Customs and Border Protection officers in performing law enforcement functions at ports of entry, including primary and secondary processing of passengers''.

(b) Section 560(g) of division D of Public Law 113–6 is amended by inserting after ''payment of overtime'' the following: ''and the salaries, training and benefits of individuals employed by U.S. Customs and Border Protection to support U.S. Customs and Border Protection officers in performing law enforcement functions at ports of entry, including primary and secondary processing of passengers''.

(c) The Commissioner of United States Customs and Border Protection may modify a reimbursable fee agreement in effect as of the date of enactment of this Act to include costs specified in this section.

SEC. 553. None of the funds made available in this Act may be used to pay for the travel to or attendance of more than 50 employees of a single component of the Department of Homeland Security, who are stationed in the United States, at a single international conference unless the Secretary of Homeland Security, or a designee, determines that such attendance is in the national interest and notifies the Committees on Appropriations of the Senate and the House of Representatives within at least 10 days of that determination and the basis for that determination: Provided, That for purposes of this section the term ''international conference'' shall mean a conference occurring outside of the United States attended by representatives of the United States Government and of foreign governments, international organizations, or nongovernmental organizations.

SEC. 554. None of the funds made available in this Act may be used to reimburse any Federal department or agency for its participation in a National Special Security Event.

SEC. 555. With the exception of countries with preclearance facilities in service prior to 2013, none of the funds made available in this Act may be used for new United States Customs and Border Protection air preclearance agreements entering into force after February 1, 2014, unless—

(1) the Secretary of Homeland Security, in consultation with the Secretary of State, has certified to Congress that air preclearance operations at the airport provide a homeland or national security benefit to the United States;

(2) United States passenger air carriers are not precluded from operating at existing preclearance locations; and

(3) a United States passenger air carrier is operating at all airports contemplated for establishment of new air preclearance operations.

SEC. 556. None of the funds made available by this or any other Act may be used by the Administrator of the Transportation Security Administration to implement, administer, or enforce, in abrogation of the responsibility described in section 44903(n)(1) of title 49, United States Code, any requirement that airport operators provide airport-financed staffing to monitor exit points from the sterile area of any airport at which the Transportation Security Administration provided such monitoring as of December 1, 2013.

SEC. 557. In making grants under the heading ''Firefighter Assistance Grants'', the Secretary may grant waivers from the requirements in subsections (a)(1)(A), (a)(1)(B), (a)(1)(E), (c)(1), (c)(2), and (c)(4) of section 34 of the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2229a).

SEC. 558. (a) IN GENERAL.—Beginning on the date of the enactment of this Act, the Secretary shall not—

(1) establish, collect, or otherwise impose any new border crossing fee on individuals crossing the Southern border or the Northern border at a land port of entry; or

(2) conduct any study relating to the imposition of a border crossing fee.

(b) BORDER CROSSING FEE DEFINED.—In this section, the term ''border crossing fee'' means a fee that every pedestrian, cyclist, and driver and passenger of a private motor vehicle is required to pay for the privilege of crossing the Southern border or the Northern border at a land port of entry.

SEC. 559. The administrative law judge annuitants participating in the Senior Administrative Law Judge Program managed by the Director of the Office of Personnel Management under section 3323 of title 5, United States Code, shall be available on a temporary reemployment basis to conduct arbitrations of disputes arising from delivery of assistance under the Federal Emergency Management Agency Public Assistance Program.

SEC. 560. As authorized by section 601(b) of the United States-Colombia Trade Promotion Agreement Implementation Act (Public Law 112–42) fees collected from passengers arriving from Canada, Mexico, or an adjacent island pursuant to section 13031(a)(5) of the Consolidated Omnibus Budget Reconciliation Act of 1985 (19 U.S.C. 58c(a)(5)) shall be available until expended.

SEC. 561. None of the funds appropriated by this or any other Act shall be used to pay the salaries and expenses of personnel who prepare or submit appropriations language as part of the President's budget submission to the Congress of the United States for programs under the jurisdiction of the Appropriations Subcommittees on the Department of Homeland Security that assumes revenues or reflects a reduction from the previous year due to user fees proposals that have not been enacted into law prior to the submission of the budget unless such budget submission identifies which additional spending reductions should occur in the event the user fees proposals are not enacted prior to the date of the convening of a committee of conference for the fiscal year 2016 appropriations Act.

SEC. 562. (a) The Secretary of Homeland Security shall submit to the Congress, not later than 180 days after the date of enactment of this Act and annually thereafter, beginning at the time the President's budget proposal for fiscal year 2017 is submitted pursuant to section 1105(a) of title 31, United States Code, a comprehensive report on the purchase and usage of weapons, subdivided by weapon type. The report shall include—

(1) the quantity of weapons in inventory at the end of the preceding calendar year, and the

amount of weapons, subdivided by weapon type, included in the budget request for each relevant component or agency in the Department of Homeland Security;

(2) a description of how such quantity and purchase aligns to each component or agency's mission requirements for certification, qualification, training, and operations; and

(3) details on all contracting practices applied by the Department of Homeland Security, including comparative details regarding other contracting options with respect to cost and availability.

(b) The reports required by subsection (a) shall be submitted in an appropriate format in order to ensure the safety of law enforcement personnel.

SEC. 563. None of the funds made available by this Act shall be used for the environmental remediation of the Coast Guard's LORAN support in Wildwood/Lower Township, New Jersey.

SEC. 564. None of the funds made available to the Department of Homeland Security by this or any other Act may be obligated for any structural pay reform that affects more than 100 full-time equivalent employee positions or costs more than $5,000,000 in a single year before the end of the 30-day period beginning on the date on which the Secretary of Homeland Security submits to Congress a notification that includes—

(1) the number of full-time equivalent employee positions affected by such change;

(2) funding required for such change for the current year and through the Future Years Homeland Security Program;

(3) justification for such change; and

(4) an analysis of compensation alternatives to such change that were considered by the Department.

SEC. 565. (a) Any agency receiving funds made available in this Act, shall, subject to subsections (b) and (c), post on the public Web site of that agency any report required to be submitted by the Committees on Appropriations of the Senate and the House of Representatives in this Act, upon the determination by the head of the agency that it shall serve the national interest.

(b) Subsection (a) shall not apply to a report if—

(1) the public posting of the report compromises homeland or national security; or

(2) the report contains proprietary information.

(c) The head of the agency posting such report shall do so only after such report has been made available to the requesting Committee or Committees of Congress for no less than 45 days except as otherwise specified in law.

SEC. 566. Section 605 of division E of Public Law 110–161 (6 U.S.C. 1404) is hereby repealed.

SEC. 567. The Administrator of the Federal Emergency Management Agency may transfer up to $95,000,000 in unobligated balances made available for the appropriations account for ''Federal Emergency Management Agency, Disaster Assistance Direct Loan Program'' under section 2(a) of the Community Disaster Loan Act of 2005 (Public Law 109–88; 119 Stat. 2061) or under chapter 5 of title I of division B of the Consolidated Security, Disaster Assistance, and Continuing Appropriations Act, 2009 (Public Law (110–329; 122 Stat. 3592) to the appropriations account for ''Federal Emergency Management Agency, Disaster Relief Fund''. Amounts transferred to such account under this section shall be available for any authorized purpose of such account.

SEC. 568. Notwithstanding any other provision of law, Gerardo Ismael Hernandez, a Transportation Security Officer employed by the Transportation Security Administration who died as the direct result of an injury sustained in the line of duty on November 1, 2013, at the Los Angeles International Airport, shall be deemed to have been a public safety officer for the purposes of the Omnibus Crime Control and Safe Street Act of 1968 (42 U.S.C. 3711 et seq.).

SEC. 569. The Office of Management and Budget and the Department of Homeland Security shall ensure the congressional budget justifications accompanying the President's budget proposal for the Department of Homeland Security, submitted pursuant to section 1105(a) of title 31, United States Code, include estimates of the number of unaccompanied alien children anticipated to be apprehended in the budget year and the number of agent or officer hours required to process, manage, and care for such children: Provided, That such materials shall also include estimates of all other associated costs for each relevant Departmental component, including but not limited to personnel; equipment; supplies; facilities; managerial, technical, and advisory services; medical treatment; and all costs associated with transporting such children from one Departmental component to another or from a Departmental component to another Federal agency.

SEC. 570. Notwithstanding section 404 or 420 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5170c and 5187), until September 30, 2015, the President may provide hazard mitigation assistance in accordance with such section 404 in any area in which assistance was provided under such section 420.

SEC. 571. That without regard to the limitation as to time and condition of section 503(d) of this Act, the Secretary may propose to reprogram within and transfer funds into ''U.S. Customs and Border Protection, Salaries and Expenses'' and ''U.S. Immigration and Customs Enforcement, Salaries and Expenses'' as necessary to ensure the care and transportation of unaccompanied alien children.

SEC. 572. Notwithstanding any other provision of law, grants awarded to States along the Southwest Border of the United States under sections 2003 or 2004 of the Homeland Security Act of 2002 (6 U.S.C. 604 and 605) using funds provided under the heading ''Federal Emergency Management Agency, State and Local Programs'' in division F of Public Law 113–76 or division D of Public Law 113–6 may be used by recipients or sub-recipients for costs, or reimbursement of costs, related to providing humanitarian relief to unaccompanied alien children and alien adults accompanied by an alien minor where they are encountered after entering the United States, provided that such costs were incurred during the award period of performance.

(RESCISSIONS)

SEC. 573. Of the funds appropriated to the Department of Homeland Security, the following funds are hereby rescinded from the following accounts and programs in the specified amounts: Provided, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985 (Public Law 99–177):

(1) $5,000,000 from unobligated prior year balances from ''U.S. Customs and Border Protection, Border Security, Fencing, Infrastructure, and Technology'';

(2) $8,000,000 from Public Law 113–76 under the heading ''U.S. Customs and Border Protection, Air and Marine Operations'' in division F of such Act;

(3) $10,000,000 from unobligated prior year balances from ''U.S. Customs and Border Protection, Construction and Facilities Management'';

(4) $15,300,000 from ''Transportation Security Administration, Aviation Security'' account 70x0550;

(5) $187,000,000 from Public Law 113–76 under the heading ''Transportation Security Administration, Aviation Security'';

(6) $2,550,000 from Public Law 112–10 under the heading ''Coast Guard, Acquisition, Construction, and Improvements'';

(7) $12,095,000 from Public Law 112–74 under the heading ''Coast Guard, Acquisition, Construction, and Improvements'';

(8) $16,349,000 from Public Law 113–6 under the heading ''Coast Guard, Acquisition, Construction, and Improvements'';

(9) $30,643,000 from Public Law 113–76 under the heading ''Coast Guard, Acquisition, Construction, and Improvements'';

(10) $24,000,000 from ''Federal Emergency Management Agency, National Predisaster Mitigation Fund'' account 70x0716; and

(11) $16,627,000 from ''Science and Technology, Research, Development, Acquisition, and Operations'' account 70x0800.

(RESCISSION)

SEC. 574. From the unobligated balances made available in the Department of the Treasury Forfeiture Fund established by section 9703 of title 31, United States Code, (added by section 638 of Public Law 102–393), $175,000,000 shall be rescinded.

(RESCISSIONS)

SEC. 575. Of the funds transferred to the Department of Homeland Security when it was created in 2003, the following funds are hereby rescinded from the following accounts and programs in the specified amounts:

(1) $1,317,018 from ''U.S. Customs and Border Protection, Salaries and Expenses'';

(2) $57,998 from ''Coast Guard, Acquisition, Construction, and Improvements'';

(3) $17,597 from ''Federal Emergency Management Agency, Office of Domestic Preparedness''; and

(4) $82,926 from ''Federal Emergency Management Agency, National Predisaster Mitigation Fund''.

SEC. 576. The following unobligated balances made available to the Department of Homeland Security pursuant to section 505 of the Department of Homeland Security Appropriations Act, 2014 (Public Law 113–76) are rescinded:

(1) $463,404 from ''Office of the Secretary and Executive Management'';

(2) $47,023 from ''Office of the Under Secretary for Management'';

(3) $29,852 from ''Office of the Chief Financial Officer'';

(4) $16,346 from ''Office of the Chief Information Officer'';

(5) $816,384 from ''Analysis and Operations'';

(6) $158,931 from ''Office of Inspector General'';

(7) $635,153 from ''U.S. Customs and Border Protection, Salaries and Expenses'';

(8) $65,195 from ''U.S. Customs and Border Protection, Automation Modernization'';

(9) $96,177 from ''U.S. Customs and Border Protection, Air and Marine Operations'';

(10) $2,368,902 from ''U.S. Immigration and Customs Enforcement, Salaries and Expenses'';

(11) $600,000 from ''Transportation Security Administration, Federal Air Marshals'';

(12) $3,096,521 from ''Coast Guard, Operating Expenses'';

(13) $208,654 from ''Coast Guard, Reserve Training'';

(14) $1,722,319 from ''Coast Guard, Acquisition, Construction, and Improvements'';

(15) $1,256,900 from ''United States Secret Service, Salaries and Expenses'';

(16) $107,432 from ''National Protection and Programs Directorate, Management and Administration'';

(17) $679,212 from ''National Protection and Programs Directorate, Infrastructure Protection and Information Security'';

(18) $26,169 from ''Office of Biometric Identity Management'';

(19) $37,201 from ''Office of Health Affairs'';

(20) $818,184 from ''Federal Emergency Management Agency, Salaries and Expenses'';

(21) $447,280 from ''Federal Emergency Management Agency, State and Local Programs'';

(22) $98,841 from ''Federal Emergency Management Agency, United States Fire Administration'';

(23) $448,073 from ''United States Citizenship and Immigration Services'';

(24) $519,503 from ''Federal Law Enforcement Training Center, Salaries and Expenses'';

(25) $500,005 from ''Science and Technology, Management and Administration''; and

(26) $68,910 from ''Domestic Nuclear Detection Office, Management and Administration''.

(RESCISSION)

SEC. 577. Of the unobligated balances made available to ''Federal Emergency Management Agency, Disaster Relief Fund'', $375,000,000 shall be rescinded: Provided, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985, as amended: Provided further, That no amounts may be rescinded from the amounts that were designated by the Congress as being for disaster relief pursuant to section 251(b)(2)(D) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 578. The explanatory statement regarding this Act, printed in the House of Representatives section of the Congressional Record, on or about January 13, 2015, by the Chairman of the Committee on Appropriations of the House, shall have the same effect with respect to the allocation of funds and implementation of this Act as if it were a joint explanatory statement of a committee of conference.

This Act may be cited as the ''Department of Homeland Security Appropriations Act, 2015''.

Mr. SIMPSON (during the reading). Mr. Speaker, I ask unanimous consent to dispense with the reading of the Senate amendment.

Mr. MASSIE. I object.

The SPEAKER pro tempore. Objection is heard.

The Clerk will continue to read.

The Clerk continued to read.

□ 1330

Mr. MASSIE (during the reading). Mr. Speaker, I ask unanimous consent to dispense with the reading.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Kentucky?

There was no objection.

MOTION TO RECEDE AND CONCUR

Mr. SIMPSON. Mr. Speaker, I have a privileged motion under clause 4 of rule XXII at the desk.

The SPEAKER pro tempore. The Clerk will report the motion.

The Clerk read as follows:

Mr. Simpson moves that the House recede from its disagreement to the amendment of the Senate and concur therein.

MOTION TO TABLE

Mr. MASSIE. Mr. Speaker, I move to lay the Senate amendment on the table.

The SPEAKER pro tempore. The question is on the motion to table the Senate amendment.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. MASSIE. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 140, nays 278, not voting 14, as follows:

[Roll No. 108]

YEAS—140

Abraham
Aderholt
Allen
Amash
Babin
Barletta
Barr
Barton
Bilirakis
Bishop (UT)
Black
Blackburn
Blum
Boustany
Brat
Bridenstine
Brooks (AL)
Buck
Burgess
Byrne
Carter (GA)
Chabot
Chaffetz
Clawson (FL)
Collins (GA)
Culberson
DeSantis
DesJarlais
Duffy
Duncan (SC)
Duncan (TN)
Farenthold
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Guinta
Guthrie
Harper
Harris
Hartzler
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Kelly (PA)
King (IA)
Labrador
LaMalfa
Lamborn
Latta
Loudermilk
Love
Lummis
Marchant
Marino
Massie
McClintock
Meadows
Mica
Miller (FL)
Mooney (WV)
Mullin
Mulvaney
Neugebauer
Nugent
Palazzo
Palmer
Pearce
Perry
Poe (TX)
Pompeo
Posey
Price, Tom
Ratcliffe
Renacci
Ribble
Rice (SC)
Roby
Rogers (AL)
Rohrabacher
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Salmon
Sanford
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shuster
Smith (NE)
Smith (TX)
Stewart
Stutzman
Tipton
Walberg
Walker
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Williams
Wilson (SC)
Wittman
Woodall
Yoder
Yoho
Young (IA)
Zeldin

NAYS—278

Adams
Aguilar
Amodei
Ashford
Beatty
Becerra
Benishek
Bera
Beyer
Bishop (GA)
Bishop (MI)
Blumenauer
Bonamici
Bost
Boyle, Brendan F.
Brady (PA)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Bucshon
Bustos
Butterfield
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Cummings
Curbelo (FL)
Davis (CA)
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSaulnier
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Doyle, Michael F.
Duckworth
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Farr
Fattah
Fincher
Fitzpatrick
Foster
Foxx
Frankel (FL)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Grothman
Gutiérrez
Hahn
Hanna
Hardy
Hastings
Heck (NV)
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Hurd (TX)
Israel
Jackson Lee
Jeffries
Johnson, E. B.
Jolly
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Lance
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Matsui
McCarthy
McCaul
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meehan
Meng
Messer
Miller (MI)
Moolenaar
Moore
Moulton
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Newhouse
Noem
Nolan
Norcross
Nunes
O'Rourke
Olson
Pallone
Pascrell
Paulsen
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poliquin
Polis
Price (NC)
Quigley
Rangel
Reed
Reichert
Rice (NY)
Richmond
Rigell
Rogers (KY)
Rokita
Ros-Lehtinen
Roybal-Allard
Royce
Ruiz
Ruppersberger
Russell
Ryan (OH)
Ryan (WI)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Scalise
Schakowsky
Schiff
Schock
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Shimkus
Simpson
Sinema
Sires
Slaughter
Stefanik
Stivers
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walden
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Whitfield
Wilson (FL)
Womack
Yarmuth
Young (AK)
Young (IN)
Zinke

NOT VOTING—14

Bass
Brady (TX)
Davis, Danny
Granger
Hinojosa
Johnson (GA)
Long
Meeks
Roe (TN)
Rush
Smith (MO)
Smith (NJ)
Smith (WA)
Speier

□ 1405

Mrs. CAPPS, Messrs. PITTS, EMMER of Minnesota, LUETKEMEYER, WHITFIELD, BUCSHON, VALADAO, and OLSON changed their vote from ''yea'' to ''nay.''

Mr. MILLER of Florida, Mrs. HARTZLER, Mr. HARPER, and Ms. HERRERA BEUTLER changed their vote from ''nay'' to ''yea.''

So the motion to table was rejected.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated against:

Mr. OLSON. Mr. Speaker, on rollcall No. 108 I inadvertently voted ''nay'' when I intended to vote ''yay''.

Mr. SMITH of Washington. Mr. Speaker, this afternoon, Tuesday, March 3, 2015, I was detained in a meeting and unable to be present for the first recorded vote of the day. Had I been present, I would have voted ''no'' on rollcall vote No. 108 (on the motion to table the Senate amendment to H.R. 240).

The SPEAKER pro tempore. The gentleman from Idaho (Mr. SIMPSON) and the gentlewoman from New York (Mrs. LOWEY) each will control 30 minutes on the motion.

Mr. MASSIE. Mr. Speaker, I would inquire if both managers support the motion.

The SPEAKER pro tempore. Is the gentlewoman from New York opposed to the motion?

Mrs. LOWEY. No, Mr. Speaker.

The SPEAKER pro tempore. Is the gentleman from Kentucky opposed?

Mr. MASSIE. I am, yes. I am opposed to the motion.

The SPEAKER pro tempore. The gentleman from Idaho (Mr. SIMPSON), the gentlewoman from New York (Mrs. LOWEY), and the gentleman from Kentucky (Mr. MASSIE) each will control 20 minutes.

The Chair recognizes the gentleman from Idaho.

Mr. SIMPSON. Mr. Speaker, I yield myself such time as I may consume.

I rise today with a motion that will move us forward to ensure the security of our Nation by keeping the Department of Homeland Security funded until the end of the fiscal year.

Funding for the Department of Homeland Security will expire this week. To allow a shutdown of these critical functions would be an abdication of one of our primary duties as Members of Congress.

It is the constitutional duty of this body to provide funding for the Federal Government, all of the Federal Government, and this should be without the threat of shutdowns or the lurching uncertainty of continuing resolutions.

The House acted in January to fund DHS for the year and has extended short-term funding several times in order to maintain the critical security activities that keep our Nation safe. The Senate has now done all it can do, given their unique procedural constraints.

It is clear that the legislation before us, while not exactly what the House wanted, is the only path forward to avoid a potentially devastating shutdown and to provide stable, continuous funding for the agencies and programs tasked with defending the home turf.

Let us remember that the underlying legislation—and this is important—is a great bill. The security of our homeland is one of our highest priorities, and this bill provides $39.7 billion for that purpose. It will assure that we can defend our Nation against threats of terrorism and that the men and women on our front line remain well-equipped and trained.

We are now nearly halfway into the fiscal year, and it is imperative that we get this bill enacted. At the same time, Congress must continue to fight the President's executive actions on immigration that I do not support and the American people do not support. We must continue this vote, but we must also allow funding for critical security functions to move forward.

These two priorities are not mutually exclusive. We can and should do both. For now, the President's executive actions have been stopped in court. This is where we must focus our efforts and continue to battle against this unconstitutional overreach.

Mr. Speaker, it is high time to act to provide responsible, adequate funding for the Department of Homeland Security to protect the people who elected us and to defend this great Nation.

I urge an ''aye'' vote, and I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I support the motion to recede and concur and reserve the balance of my time.

Mr. MASSIE. Mr. Speaker, I am opposed to the motion to recede and concur.

At this time, I yield 1 minute to the distinguished gentleman from Virginia (Mr. GRIFFITH).

Mr. GRIFFITH. Mr. Speaker, ladies and gentlemen, I have to tell you that the only reason we are here is because of the unique procedural posture that the Senate finds itself in, and that unique posture is a perversion of the democratic principles upon which our Republic was based.

We would not be here if it weren't for the modern filibuster and cloture rule which requires 60 votes to do anything. Last week, HARRY REID made it clear that he would not support going to conference.

Jefferson was very clear when he set up the procedures for this place. Each House makes an independent decision, then you get together in conference and work out your differences; but, because of the unique position of the Senate's processes, that cannot happen in these circumstances.

We should not reward the Senate for their bad behavior. We should reject this motion and force a new discussion on this issue.

Mr. Speaker, I submit that all we are doing is rewarding the Senate for having bad rules and bad process.

Mr. MASSIE. Mr. Speaker, I yield 2 minutes to the distinguished gentleman from Florida (Mr. DESANTIS).

Mr. DESANTIS. Mr. Speaker, I hear that we just need to let the courts work their will to defend the Constitution, as if we don't have an independent obligation to do that. We took the oath that we would support it. We didn't say we would be in Congress, pass bills, and let the courts support and defend the Constitution.

Here is the problem, though, beyond just that basic insight. If I were representing the Department of Justice in front of the fifth circuit to try to get this injunction overturned, the first sentence in my brief would be that the United States Congress has voted, knowing this program was in existence, to fully fund all operations. Courts, you should step out of this dispute. It is between the political branches, and they have settled it.

It is not just waiting for the courts. In fact, the action today, if this bill were to pass, I believe it would actually harm the case in the courts, and I think it makes it more difficult for those States to make the case that what the President did was unconstitutional if the one branch whose powers were invaded decided that they were not going to bite back effectively.

Mr. MASSIE. Mr. Speaker, I yield 2 minutes to the distinguished gentleman from Arizona (Mr. SALMON).

Mr. SALMON. Mr. Speaker, I think this is a very, very sad day when we have to make a Hobson's choice of either funding our national security or standing for the Constitution.

We actually took an oath just a few short weeks ago to defend this Constitution from all enemies, foreign and domestic. That is our role; that is our responsibility. If not now, then when? It is never going to be easy. It is never going to be easy. It has never been easy to stand up for freedom.

I have heard some people say: Well, you Republicans, you just need to learn how to govern. If it was just about governing, then I think that the American people can just close shop and let the President just run everything, but we actually have a Constitution that we have to adhere to.

□ 1415

Despots all over the world, they govern. They keep the trains running on time.

But we stand for something different. We stand for a constitutional republic, where we have three coequal branches that all have an equal say. The Founding Fathers gave us a tool to deal with a time just like this. It is called the power of the purse. If we relegate that responsibility and dropkick it to the courts, as the gentleman from Florida (Mr. DESANTIS) just said, then they have nothing else than to assume that we just basically folded to the pressure.

I believe this is a sad day for America. I believe America deserves better. If we are not going to fight now, when are we going to fight?

Mr. MASSIE. Mr. Speaker, I reserve the balance of my time.

Mr. SIMPSON. Mr. Speaker, I yield 2 minutes to the gentleman from Pennsylvania (Mr. DENT).

Mr. DENT. Mr. Speaker, I rise in strong support of the privileged resolution and encourage my colleagues to concur in the Senate amendment to H.R. 240 in order to pass the fiscal year 2015 Department of Homeland Security Appropriations bill.

It is time for us to move forward and demonstrate our true capacity to govern to the American people and to those tasked with the arduous work of defending our borders, protecting our communities, and manning the front lines when confronted by natural disasters or acts of terrorism.

I had the distinct privilege and pleasure of working on the underlying appropriations bill as a member of the House Homeland Security Appropriations Subcommittee, and I can assure my colleagues that this is a good bill. It is a darn good bill. It is a bipartisan bill. Among the bill's many highlights, it would support the largest operational force of Border Patrol agents and CBP officers in history.

If you are concerned about illegal immigration, vote for this bill. It fully funds E-Verify. If you are concerned about illegal immigration and interior enforcement, vote for this bill. It provides an increase of almost $700 million for Immigration and Customs Enforcement, 34,000 detention beds, and an increase in family detention beds by 3,732

beds. Again, if you are worried about illegal immigration, vote for this bill.

It fully funds FEMA's disaster relief programs and the first responder grant programs that are critical to so many State and local departments. It takes important steps toward implementation of a biometric entry and exit data system, which is critical to maintaining interior enforcement in this country. The bill helps us thwart cyber attacks, and, of course, it helps maintain our Coast Guard.

Mr. Speaker, it is time for the House to move past the corrosive pattern of self-imposed cliffs and shutdowns and get to the work that the American people expect us to address—issues like tax reform, trade, transportation and infrastructure, things that are going to help create American jobs and improve our economy. It is time to move forward and stop playing these silly games.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. SIMPSON. I yield the gentleman an additional 30 seconds.

Mr. DENT. At these times of global uncertainty and brutal acts of terrorism, it is imperative that we maintain persistent vigilance against the numerous threats facing our homeland.

Again, I urge my colleagues to support this bill. It is the right bill. It is a bill that we supported last summer with strong overwhelming support on both sides of the aisle. It deserves that same kind of support here today.

Let's prove to the American people that we are serious about protecting this homeland and that we have the capacity to govern. These cliffs are disastrous for all of us. It is time to move on.

Mrs. LOWEY. I reserve the balance of my time.

Mr. MASSIE. Mr. Speaker, I yield 2 minutes to the distinguished gentleman from Florida (Mr. CLAWSON).

Mr. CLAWSON of Florida. Mr. Speaker, this is America. Everybody matters in America. I grew up with somebody who seemed to have bad luck from day one. Where I seemed to catch breaks, he could get none. And recently, midlast year, because of a move, he needed to find a job. He went months without finding full-time employment, never got benefits, never got the stability that he looked for for him and his wife. And I love him very much.

When the President made his edict, he called me on the phone. He said: CURT, I don't understand what y'all are doing in Washington. I want to know if what is going on right now is going to help me get a job or not.

And I said: Unfortunately, you have got a lot of new competitors in the labor force.

I say, this is America, and everybody matters. I say, the unemployed folks, the 18 million underemployed and unemployed, they haven't been a part of this conversation like they needed to be. I say that unilateral actions by a leader who doesn't take all stakeholders into account makes those that aren't taken into account not matter. I say we need to have this conversation again.

This is America. Everybody matters, not just those that came over the border legally but those that have been here looking for jobs for long periods of time. I say we can do better. I say we can have a broader conversation. I say everybody matters.

You all know these people that are unemployed. They are in your family. They are your close friends. They are the people you see every day doing the jobs that some of us wouldn't want to do. I say, those people matter.

I say, Mr. President, before you do a cram-down of the law for the benefit of one group of our society, I say all the other groups in this society, particularly the unemployed, also matter.

The SPEAKER pro tempore. Members are reminded to direct their remarks to the Chair.

Mr. MASSIE. Mr. Speaker, I yield 1 minute to the distinguished gentleman from South Carolina (Mr. DUNCAN).

Mr. DUNCAN of South Carolina. Mr. Speaker, last week, the gentlewoman from Florida (Ms. BROWN) said, Why are we here? She got all upset.

Let me tell you why we are here: because the President of the United States violated the constitutional separation of powers. Regardless of how you feel about immigration or immigration reform or even amnesty, surely you believe in the United States Constitution that you swore an oath to. Surely you believe in this institution that we are debating in today.

He said 22 times that he did not have the power to unilaterally make law or change the law, yet that is, in fact, what he did. That is why this debate is so important today. It really has nothing to do with DHS funding, amnesty, or immigration. That is the vehicle that we are using, sure. But it has everything to do with the United States Constitution and the sacred separation of powers that says the executive branch executes the laws. We make the law in this Chamber. We are the only ones to have the constitutional authority to do that.

Mr. MASSIE. Mr. Speaker, I yield 2 minutes to the distinguished gentleman from Ohio (Mr. JORDAN).

Mr. JORDAN. I thank the gentleman for yielding.

Mr. Speaker, remember why we are here: 22 times the President said he couldn't do what he turned around and did, something legal scholars have said is unconstitutional; more importantly, something a Federal judge has said is wrong.

Six weeks ago, we sent a bill to the United States Senate to fund DHS at the levels the Democrats agreed to. We just said, don't have any money be used for something unconstitutional and that the Federal judge ruled was wrong. For 6 weeks, they said, we can't bring the bill up. We can't debate it, amend it, pass it. And then at the last hour, at the eleventh hour on the last day, they bring it up, debate it, amend it, and send it back—without the language stopping the unconstitutional activity and something the only court to rule on it has said is wrong.

This is unconstitutional. We all know it. This is the wrong way to go.

Fund DHS. Don't let this wrong action the President took in November—something he said he couldn't do—don't let it stand.

But more importantly, or as importantly as, the unconstitutional nature is the unfair nature of the action. It is unfair to taxpayers that illegal, noncitizens are going to be able to get tax refunds.

It is unfair to seniors that illegal noncitizens are going to be able to participate in our Social Security system.

It is unfair to voters, as our Secretary of State testified, that now they will have the documents that will potentially make it much easier for 4 to 5 million people to participate in our election process.

And most importantly, Mr. Speaker, it is unfair to legal immigrants who did it the right way, who followed the law, who came here and want to be a part of this great country, the greatest Nation of the world, as we just heard Prime Minister Netanyahu talking about how great this country is—it is unfair to legal immigrants.

Mr. Speaker, this is unconstitutionally wrong. Most importantly, it is unfair.

Mr. MASSIE. Mr. Speaker, may I inquire as to the balance of my time.

The SPEAKER pro tempore. The gentleman from Kentucky has 11½ minutes remaining.

Mr. MASSIE. I reserve the balance of my time.

Mr. SIMPSON. Mr. Speaker, I yield 3 minutes to the gentleman from Oklahoma (Mr. COLE).

Mr. COLE. I thank the gentleman for yielding.

Mr. Speaker, I share the outrage of my friends over the President's actions because I don't think there is any question that is why we are here. The President did something that most of us, I think, on our side of the aisle believe was unconstitutional, illegal, and ill-advised.

Secondly, I share my friend's anger at the United States Senate. I think it is reprehensible not to pick up a bill and act on it, not to go to conference. That is exactly the way we are designed to work. We know that, frankly, the Democratic now minority, thankfully, in the Senate has operated that way for 4 years. I am not surprised, having operated that way in the majority, that they continue to operate that way in the minority.

But every now and then, you need to take a step back and recognize we are not the only place where these issues get thrashed out, and we are not the only players in this drama.

Indeed, we have been very fortunate on our side of this debate. We have

been joined by 26 State attorneys general who hold exactly the same view that we do and have taken the President of the United States and the administration to court and have prevailed in the first court case, as my friends have pointed out. In addition, they have won an injunction so that the President cannot do the very things my friends are concerned about that he wants to do.

So we not only have the court, at least to this point, on our side, but we have it in a venue where you actually can win in the end.

We are not likely to be able to do that in the Congress, given the Democratic control of the filibuster in the other body and the Presidential veto at the end of the process. In the courts, you can actually win. It is a constitutional issue. It ought to be settled constitutionally through a judicial process.

Since we have stopped the President, since we are prevailing in court, it seems to me the logical thing to do is what the gentleman from Pennsylvania (Mr. DENT) suggested and look at a bipartisan compromise bill that protects the American people from real and physical harm and danger at the moment that we are sorting out our constitutional political differences in the appropriate format. That is all this bill is about. It was agreed to in a bipartisan fashion. It was agreed to in a bicameral fashion. The reasons why we were concerned about it or used it have now been addressed by the courts.

So I would urge my colleagues on both sides of the aisle, let's set aside our differences. They are going to be resolved in the appropriate way, in the appropriate fashion, and in the right forum. And let's do the right thing for the American people, pass this legislation, and make sure that our fellow citizens stay secure.

Mrs. LOWEY. I reserve the balance of my time.

Mr. MASSIE. Mr. Speaker, at this time, I yield 1 minute to the distinguished gentleman from South Carolina (Mr. MULVANEY).

Mr. MULVANEY. Mr. Speaker, I think the gentleman from Pennsylvania who spoke earlier was absolutely right. The people back home want us to do things. So I think the important thing to do now is to find out, why aren't we able to do anything? And I lay the blame firmly at the feet of the seven Democrats in the Senate who have said to their voters, they thought what the President did was wrong, yet they have voted time and again to continue the filibuster. That is wrong. And those are the people who are preventing the country from moving forward.

Beyond that, to the extent those seven Senate Democrats continue to want to abuse the rules, it is incumbent upon our conservative Republican colleagues in the Senate to change the rules.

Conservative Republicans, Mr. Speaker, who have been very quick to try to tell the House what to do should now be over there right now making the case that if the Senate Democrats are going to use a rule to undermine the Constitution, then the rule needs to change.

Mr. MASSIE. Mr. Speaker, I yield 1 minute to the distinguished gentleman from Texas (Mr. GOHMERT).

Mr. GOHMERT. Mr. Speaker, last December, we were told that the best way to approach the matter—despite some of us thinking to the contrary—was to fund everything but DHS. We were told, This is the play.

Well, some of us were afraid that if we did that, that we would come to this point and totally cave and would allow at least a congressional statement that we are not going to take action to defund illegal, unconstitutional amnesty.

So I stand with those veterans who believe that they should get health care before people who came illegally, that they should get a hotline to call before those who came illegally. I stand with the seniors who believe they deserve the Social Security they paid into, rather than people who have come illegally and are even going to get tax refunds, when they didn't put any taxes in.

□ 1430

I stand with the Speaker of the House of Representatives—at least where he was last week.

Mr. MASSIE. Mr. Speaker, I yield 1 minute to the gentleman from New Jersey (Mr. GARRETT).

Mr. GARRETT. I thank the gentleman.

Mr. Speaker, the issue before us today is, in fact, security. As a Member of Congress from the Fifth Congressional District of New Jersey, my constituents in New Jersey, like most Americans, understand the devastating impact of a lack of security in certain areas. We live in the shadow of the Twin Towers and understand when security is not a paramount interest of this government. But with that said, an equal responsibility of this Congress and this government is to the security as being a nation of laws and abiding by the fundamental law of this country, which is the Constitution.

Mr. Speaker, we can achieve both of those: be a secure nation by funding Homeland Security, which this House has done twice now, and we can also become a nation by following the rule of law and following the Constitution which this body has done twice now by sending full funding of Homeland Security to the Senate and simply asking them to do what all Americans want Washington to do today—conference on these issues, discuss these issues, and come to a resolution where the Constitution is upheld, the rule of law is upheld, and homeland security is upheld as well.

Mr. MASSIE. Mr. Speaker, I yield 1 minute to the distinguished gentleman from Arizona (Mr. GOSAR).

Mr. GOSAR. I thank my friend.

Mr. Speaker, constitutional attorney Jonathan Turley once said that, since Roosevelt, we have made the executive branch stronger and stronger and stronger. But they have actually had a dance partner, and that is us—that is us, the legislative branch, both the House and the Senate.

Mr. Speaker, when are we going to stand up for the rule of law? How do I go back to Arizona where they defy the rule of law, where we allow anybody to pass go, collect $200, and go to the front of the line? How do we accomplish that without standing up for something? This is that time. This is the time to stand up and not leave everything to the courts.

Mr. SIMPSON. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I reserve the balance of my time.

The SPEAKER pro tempore. Is the gentleman from Kentucky ready to close?

Mr. MASSIE. Mr. Speaker, I have more speakers.

The SPEAKER pro tempore. The gentleman from Kentucky is recognized.

Mr. MASSIE. At this time, I yield 1 minute to the gentleman from Alabama (Mr. PALMER).

Mr. PALMER. Mr. Speaker, there was a comment about this is about governing. It really is. It is about governing constitutionally. We are no longer three separate but equal branches of government. The abuse of the executive order has diminished Congress, and the abuse of the Senate rules has diminished this House. We are now reduced to passing what the Senate will allow us to pass, and the Senate is reduced to passing what the President will not veto.

This is about the Constitution. We have 3 more days in which we can consider legislation that upholds the rule of law and that restores the balance of powers. We should take those 3 days.

Ladies and gentlemen, this is a day that we will remember for the rest of our lives. The country is looking to us right now to make a decision whether or not we will uphold our oath of office. I call upon every Member of this House to be an oath keeper.

Mr. MASSIE. Mr. Speaker, I yield 2 minutes to the distinguished gentleman from Idaho (Mr. LABRADOR).

Mr. LABRADOR. Mr. Speaker, I thank the gentleman from Kentucky.

This fight today is not about immigration. This fight today is about the separation of powers. Any person who votes for this deal today is voting to cede some of our power to the Executive. Any person who votes for this deal today is voting to allow the President to make decisions like this on taxation, on EPA, and on any other agency that this President decides that he has the executive authority to take over the powers of the Congress.

Mr. Speaker, today we all sat here, and I think every Republican stood up when Bibi Netanyahu talked about

leadership. When he talked about what it was important for a leader to do, he said that we are being told that the only alternative to this bad deal—speaking about the deal on Iran—is war. That is just not true. The alternative to this bad deal is just a better deal. Every one of our Republicans stood up when he said that.

But today we are being told by our leadership that the only alternative to this bad deal is a government shutdown. That is not true. The alternative to this bad deal today is a better deal. It is to force the Senate to actually go to conference so both the House and the Senate can speak the will of the American people.

Mr. MASSIE. Mr. Speaker, I yield 1 minute to the distinguished gentleman from Virginia (Mr. BRAT).

Mr. BRAT. Mr. Speaker, I think everyone in this body knows what it means to run for office. We each represent 700,000 people, and we each take that job very seriously. So it is a sad day today. Everybody in this body has fought very hard to try to come to agreement. Unfortunately, Members in the other body have not allowed us to do that. The fault lies in the U.S. Senate.

We have asked and we have trusted our leadership to come up with a strong fight, strong messaging, whatever we can do to solve this constitutional problem for the last 2 months, and at the last minute of the day, the Senate has delayed, delayed, and delayed. So what is really going on is they are not standing up and representing their people at home. We in this body owe it to the American people to represent their views, and the Senate will not even allow a vote to bring up a debate.

Mr. Speaker, I implore everyone back at home and in my district and across the country to ask your kids; ask your ninth graders, your college kids, ask everybody. It is fairly simple. The Congress and the Senate have to work together.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. MASSIE. Mr. Speaker, I yield the gentleman an additional 15 seconds.

Mr. BRAT. I think the truth in ethics is often pretty easy to see. Go to your kids. Go to your ninth graders in high school civics class and ask them how these bodies are supposed to operate. Ask them to investigate.

I think when our kids go home and investigate and we investigate what has been going on in the last few months, they will find the answer, and that is that the Senate will not do its job in representing their people.

Mr. MASSIE. Mr. Speaker, I yield 1 minute to the distinguished gentleman from Arizona (Mr. SCHWEIKERT).

Mr. SCHWEIKERT. Mr. Speaker, thank you to my friend from Kentucky.

All right, for my friends on the left, you are going to support this unconstitutional expansion of power. When there is a Republican President, are you going to sit there and continue to applaud, saying, ''Yes, we did not support the separation of powers when we had the chance'' and look the other way?

One of my heartbreaks here is I believe there were creative things we could have done, but we are completely dearth of the willingness to try.

Mr. Speaker, this is about trying to defend the U.S. Constitution that we all raised our hands to uphold, and yet are we going to allow a vote to go forward to walk away from that fight?

This should break everyone's heart in this body.

Mr. MASSIE. Mr. Speaker, may I inquire as to how much time is remaining?

The SPEAKER pro tempore. The gentleman from Kentucky has 3¼ minutes remaining.

Mr. MASSIE. I yield 1 minute to the distinguished gentleman from Florida (Mr. YOHO).

Mr. YOHO. Mr. Speaker, I want to look around this body. What are we asking to do? We are asking to fund DHS 100 percent. We are asking to put safeguards in there so that we don't move with an executive order that has been deemed illegal by a Federal judge. That is all we are asking. And we need to have that language in this bill.

I don't know anybody in here who doesn't want to fund DHS.

Mr. Speaker, for us to vote for this without that funding or without that language in there blocking what this President wants to do, and if we vote for that, we are voting against our Constitution. Article I, section 8 is very clear that we have the authority for naturalization, and I say we vote against funding without that safeguard.

Mr. MASSIE. Mr. Speaker, I yield 1 minute to the gentleman from Georgia (Mr. JODY B. HICE).

Mr. JODY B. HICE of Georgia. Mr. Speaker, as we all know, we are in this predicament and in this mess because of the unconstitutional and unilateral decisions from the President to ignore our Constitution, and the only thing standing in the way of that progressing is a stay from the courts. As thankful as I am for the courts, the reality is we must stand up and defend our Constitution. It is a constitutional issue, Mr. Speaker, and we have the responsibility to stand for that cause.

This is not a time to watch this body be obstructed from multiple attempts to make it dysfunctional. It is a constitutional issue. This is a time to stand upon the Constitution, and I urge this body to do so.

PARLIAMENTARY INQUIRY

Mr. MASSIE. Mr. Speaker, I have a parliamentary inquiry.

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. MASSIE. What order is the closing when there are three speakers and only one opposed?

The SPEAKER pro tempore. The Chair will recognize Members in reverse order of opening speeches.

Mr. MASSIE. Mr. Speaker, I reserve the balance of my time.

Mr. SIMPSON. Mr. Speaker, I reserve the balance of my time.

We have no other speakers, and we are prepared to close.

Mrs. LOWEY. Mr. Speaker, I reserve the balance of my time.

The SPEAKER pro tempore. The gentleman from Kentucky will be first to close.

Mr. MASSIE. Mr. Speaker, may I inquire as to how much time is remaining?

The SPEAKER pro tempore. The gentleman from Kentucky has 1¼ minutes remaining.

Mr. MASSIE. Mr. Speaker, in closing, the Congress and, in particular, the House of Representatives has the power of the purse. Our Constitution gives this power to the legislative branch, not the executive branch. This means that the President cannot fund his illegal executive actions on immigration unless we, the House of Representatives, let him.

If today we agree to just give the President all the taxpayer funds he wants so that he can implement his illegal actions, why should the American people ever trust us again? They will realize that all our bluster about border security is just that, bluster. They will realize that we don't actually care about the best interests of the American people and that, instead, we just care about going along to get along, even if that means going along with the unconstitutional and illegal actions of the executive branch.

Today we heard Mr. Netanyahu say this is the most powerful legislative organization in the world. I would say it is—except for when the Senate decides that it is not. We need to stand up, use the power of the purse, and exercise our constitutional duty to fund only legal and constitutional activities.

Mr. Speaker, I urge my colleagues to vote today in the best interests of the American people.

I yield back the balance of my time.

Mrs. LOWEY. Mr. Speaker, I support the motion to recede and concur, and I yield back the balance of my time.

Mr. SIMPSON. Mr. Speaker, thank you for the spirited debate we have had, and I yield myself such time as I may consume.

Mr. Speaker, I agree with many of the comments made by my colleague from Kentucky and the people that have spoken during his time. The problem is I don't see a path to victory with what they are looking at. What they want to do will not result in defunding the President's actions, because there is no funding in this bill for the President's actions. There is no funding in this bill for the President's actions. Everybody knows that, don't we? What it will lead to is a closedown of the Department of Homeland Security. And that is not a victory. That is dangerous.

Mr. Speaker, there is a difference of opinion between the Republicans and Democrats and between the administration and Congress as to whether the actions that the President made were constitutional or not.

I have actually voted for something in this body several years ago that I thought was perfectly legal and perfectly constitutional. The court later found out it was unconstitutional and told us it was unconstitutional. That is why you have a court. When there are differences of opinion as to what is constitutional and what is not constitutional, a court makes that determination. It has happened since the Founders who wrote our Constitution disagreed about what they had written—Marbury v. Madison. It was up to the courts to make the determination of what the Constitution said.

As for voting for this hurting our case—it is not our case; it is the Attorney General's case of the States—that is before the courts currently, if this voting to defund Homeland Security that doesn't have any funding for the President's action hurts our case, then I would say that any law that passes Congress can't be declared unconstitutional because we all voted for it. That is not reality. Again, let the courts do their job.

Now, it is true that a majority in this Congress and in the Senate voted to defund the President's actions, but because of the Senate rules, it didn't pass.

□ 1445

We didn't even get to go to conference because of the Senate rules. Some people suggest maybe we ought to change the Senate rules. We ought to insist that the Senate change their rules.

For the last 4, 8 years, I was kind of glad the Senate rules were the way they were. They prevented what I believed to be a lot of bad stuff from coming over here from the Senate.

I don't know that I would go that way because, remember, at some point in time in history—I hope it is not soon—but at some point in time in history, my party is going to be in the minority over there, and it is going to be nice to be able to control some of the agenda.

Let's remember, the underlying bill is a darn good bill, and we need to pass it, and we need to pass it for the security of the American people, and for the employees that work at the Department of Homeland Security, so that those that are considered essential don't have to go to work without pay. That is irresponsible. That is us not doing our job.

I will fight with anyone, and I will stand on their side—as long as they can show me a path to potential victory. Let's get this bill passed. It is a good bill. I encourage all my colleagues to vote for this.

I yield back the balance of my time, and I move the previous question on the motion.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. MASSIE. I request a recorded vote—the yeas and nays—on the previous question.

The SPEAKER pro tempore. Is the gentleman asking for the yeas and the nays on ordering the previous question?

Mr. MASSIE. I withdraw that request.

The SPEAKER pro tempore. The request is withdrawn.

The previous question is ordered.

The question is on the motion offered by the gentleman from Idaho.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. MASSIE. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 257, nays 167, not voting 9, as follows:

[Roll No. 109]

YEAS—257

Adams
Aguilar
Ashford
Beatty
Becerra
Benishek
Bera
Beyer
Bishop (GA)
Bishop (MI)
Blumenauer
Boehner
Bonamici
Bost
Boyle, Brendan F.
Brady (PA)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Bustos
Butterfield
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (NY)
Comstock
Connolly
Conyers
Cooper
Costa
Costello (PA)
Courtney
Crowley
Cuellar
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSaulnier
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Doyle, Michael F.
Duckworth
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Farr
Fattah
Fitzpatrick
Foster
Frankel (FL)
Frelinghuysen
Fudge
Gabbard
Gallego
Gibson
Graham
Granger
Grayson
Green, Al
Green, Gene
Grijalva
Guinta
Gutiérrez
Hahn
Hanna
Hardy
Hastings
Heck (NV)
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Hurd (TX)
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jolly
Kaptur
Katko
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Lance
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Matsui
McCarthy
McCaul
McCollum
McDermott
McGovern
McHenry
McMorris Rodgers
McNerney
McSally
Meehan
Meng
Miller (MI)
Moolenaar
Moore
Moulton
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Noem
Nolan
Norcross
Nunes
O'Rourke
Pallone
Pascrell
Paulsen
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poliquin
Polis
Price (NC)
Quigley
Rangel
Reichert
Rice (NY)
Richmond
Rogers (KY)
Ros-Lehtinen
Roybal-Allard
Royce
Ruiz
Ruppersberger
Ryan (OH)
Ryan (WI)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Scalise
Schakowsky
Schiff
Schock
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Shimkus
Simpson
Sinema
Sires
Slaughter
Smith (NJ)
Smith (WA)
Stefanik
Stivers
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Tiberi
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walden
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth
Young (IN)

NAYS—167

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Bilirakis
Bishop (UT)
Black
Blackburn
Blum
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Buck
Bucshon
Burgess
Byrne
Carter (GA)
Chabot
Chaffetz
Clawson (FL)
Collins (GA)
Conaway
Cook
Cramer
Crawford
Crenshaw
Culberson
DeSantis
DesJarlais
Duffy
Duncan (SC)
Duncan (TN)
Farenthold
Fincher
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guthrie
Harper
Harris
Hartzler
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Kelly (PA)
King (IA)
Labrador
LaMalfa
Lamborn
Latta
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
McClintock
McKinley
Meadows
Messer
Mica
Miller (FL)
Mooney (WV)
Mullin
Mulvaney
Neugebauer
Newhouse
Nugent
Olson
Palazzo
Palmer
Pearce
Perry
Poe (TX)
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Renacci
Ribble
Rice (SC)
Rigell
Roby
Rogers (AL)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Russell
Salmon
Sanford
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shuster
Smith (NE)
Smith (TX)
Stewart
Stutzman
Thornberry
Tipton
Wagner
Walberg
Walker
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Zeldin
Zinke

NOT VOTING—9

Bass
Garamendi
Hinojosa
Long
Meeks
Roe (TN)
Rush
Smith (MO)
Speier

□ 1514

Messrs. BUCSHON and BRADY of Texas changed their vote from ''yea'' to ''nay.''

Mr. GRAYSON changed his vote from ''nay'' to ''yea.''

So the motion to recede and concur in the Senate amendment to H.R. 240 was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. GARAMENDI. Mr. Speaker, on rollcall No. 109 I am a ''yes'' vote. I could not return from a White House meeting in time to meet the rollcall.

PERSONAL EXPLANATION

Mr. ROE of Tennessee. Mr. Speaker, I was unable to vote because of a serious illness in my family. Had I been present, I would have voted: rollcall No. 108—''aye,'' rollcall No. 109—''nay.''

THE JOURNAL

The SPEAKER pro tempore. The unfinished business is the question on agreeing to the Speaker's approval of the Journal, which the Chair will put de novo.

The question is on the Speaker's approval of the Journal.

Pursuant to clause 1, rule I, the Journal stands approved.

BUDGET OF THE UNITED STATES FEDERAL GOVERNMENT

The SPEAKER pro tempore (Mr. COSTELLO of Pennsylvania). Under the Speaker's announced policy of January 6, 2015, the gentleman from Indiana (Mr. ROKITA) is recognized for 60 minutes as the designee of the majority leader.

Mr. ROKITA. Mr. Speaker, it is my honor on behalf of a lot of colleagues who can't be here right now and on behalf of our colleagues who are going to speak to talk about the budget of the United States Federal Government.

Mr. Speaker, I rise this afternoon after our legislative business for the day because it is the concern of many of us—and perhaps it is the concern of all of us who ran for office, who got elected, who honorably serve in this body—to say—to make sure, perhaps—that our priorities are in order.

And, Mr. Speaker, if you simply look at any number of ''debt clocks'' that run on all kinds of different Web sites, including one that continues live in my office, you see perhaps—I hope it is clear to you, Mr. Speaker—that our priorities are not in order. We are over $18 trillion in debt as I take the microphone right now.

Mr. Speaker, that is not the half of it. Over the next several decades we are scheduled to have over $100 trillion in debt. And that is not acceptable. In fact, I can't think of too many things that are more immoral than the present-day majority, than our present-day citizens leaving this burden to future citizens, people who do not yet exist. Talk about taxation without representation. But that is what we are faced with. That is what we do every day around here when our budget is not in balance and our priorities remain out of order.

To be clear, Mr. Speaker, we are able to get to this point, as very few other countries are, because of the fact we are the world's reserve currency, because of the fact that we continue to be able to print money, and because of the fact that, despite all our problems, when compared in a relative fashion to all the other countries of the world, we simply aren't as bad yet. But over time, that can very easily change, Mr. Speaker.

The solution to this isn't all that complicated. We have to stop spending more than we take in. We have to keep growing our economy. We have to simplify our Tax Code so that it can actually generate more revenue than it is doing right now. Of course, we have to reform what is driving the debt, and that is our spending. That is what the Republicans—in this Chamber, at least—are trying to achieve. We are trying to put our priorities back in balance.

Washington doesn't have a revenue problem, Mr. Speaker; Washington has a spending problem. In terms of revenue, we take in over $2 trillion a year—and these are rough figures—but we spend generally over $3 trillion. That is simply not sustainable. That simply can't go on if we are to have any credibility on this issue and if we are going to remain a strong country, best of nations in the 21st century, and continue to win.

So the House Budget Committee, and specifically the Republicans on the House Budget Committee, are about getting our priorities in order. And frankly, to our credit, for the last 4 years, Mr. Speaker, we have done just that.

Every year since 2010, we have proposed balanced budgets that, if followed, would have led us on a path to prosperity, would have made it clear that we are best of class in the world again and the best investment going. All we had to do is take the steps outlined in that budget and it would have become so.

This year, we are going to try again. We are going to balance this budget. We are going to have a markup in a week or so. We are going to propose and present ideas to the American public. Most of these ideas they have seen before over the last 4 years. There may be some new ones. We are still writing our budget. We are still taking input from Members and non-Members alike.

But one thing the American people can count on: it will be an honest budget, it will be credible, it will balance, and it will fulfill the promise we explicitly and implicitly made over and again to future generations that their generation will be better off than the generation before it. Isn't that what we are all about? Isn't that what we are supposed to be about?

But as I speak with you here today, the facts tell a different story. In fact, the current generation is the first one in American history that is destined and will, by any objective measure, leave the next one worse off. It has never happened before in American history. It is happening now.

I know several of us on the Budget Committee refuse to let that happen on our watch, and so we come to you tonight with several ideas.

I want to first recognize a very good friend of mine, a professional who came from the private sector and practiced accounting as a certified public accountant for over 25 years. He has added tremendous value to all the work we are doing on the Budget Committee. Aside from budget issues, he is a tremendous asset to nearly every issue that is debated on the floor of the House. I yield the floor, Mr. Speaker, to my good friend, Congressman RICE of South Carolina.

Mr. RICE of South Carolina. I thank the gentleman for yielding. South Carolina thanks you.

What an honor it is to stand here before this group to talk about the Federal budget. These were a couple of slides that were actually handed out to the Budget Committee that illustrate very wonderfully the challenge that we face.

The total revenue for the Federal Government for fiscal year 2014 is $3.02 trillion, most of it from individual income taxes. And then social insurance is the payroll taxes we pay for Social Security and Medicare, and then we have the spending. You can compare the two.

Revenues are $3.02 trillion. Spending is $3.5 trillion. Our deficit is half a trillion dollars, roughly, projected this year. That sounds terrible. Of course, 3 years ago, just before I was elected to Congress, it was a $1.4 trillion deficit. So it has, in fact, been cut well down. It is about 40 percent of what it was. And I will take all the credit for that.

Actually, it has come down dramatically. But we are still on an unsustainable path, and it is projected to rise, largely because of demographics. The baby boomers are retiring, and the need for social insurance is going to rise in the coming decades. It will overwhelm us if we do not prepare for it.

Republicans, Democrats, the Congressional Budget Office, the Office of Management and Budget, and any known economist will tell you that if we don't deal with this issue, it will overwhelm us. We are on an unsustainable path. We are piling billions and billions of dollars in debt on our children and our grandchildren every year.

Right now, we stand at $18 trillion in debt. On our current path, I believe the number $25 trillion is what they are projecting at the end of 10 years if we don't do something to deal with it.

If you look at the spending, you can see the red areas are what they call entitlement spending or mandatory spending, Social Security being the

biggest part of that, and Medicare, Medicaid. Then interest on the debt is here at $229 billion a year. And then other mandatory, which would be unemployment, welfare; the ObamaCare insurance subsidies will be in that. You can see that red area is about two-thirds of our total spending of $3.5 trillion.

□ 1530

The blue area is what they call discretionary spending. Discretionary spending is the only part that Congress has a play or a say in every year. If you break that down further, the discretionary spending, defense is this part here in dark blue that is about half of it, and nondefense discretionary is the remainder.

Nondefense discretionary is the thing most people think of as government; the FBI, the CIA, the White House, the Department of the Interior, Park Service, EPA, Army Corps of Engineers, all these things are in nondefense discretionary. People think: Well, gosh, we should cut the Department of Education, we should cut the EPA.

Well, that is great. If you cut every dime of nondefense discretionary spending out of the budget, every cent of it, we would still have a deficit. If you eliminated every part other than defense, we would still have a deficit, so you see how severe the problem is.

Another thing people don't understand is, because of the sequester, defense and nondefense discretionary have been whittled down over the last several years; and, in fact, nondefense discretionary spending is below 2008 levels right now.

It is as low as it has been since President Barack Obama has been in office because of the sequester spending. Defense spending has been cut to the bone. It is below levels that the Pentagon is telling us are necessary to maintain our readiness in this troubled world.

Now, there is always waste, and there is always further room to cut. The point of all that is, with these things having been whittled as low as they have, it is very obvious that we will not be able to handle our budget problems.

We will never be able to reach a balanced budget unless we deal with this area in red, what is called mandatory spending, the entitlement programs. There is no way to fix this problem without dealing with those.

Now, you say: Well, why don't we just raise taxes? Right now, we are taking in, I believe it is, about 17 percent of our gross domestic product in tax revenues. It is more money in real dollars than this government has ever received.

We are getting more revenue than we ever have, and it is a higher percentage of our gross domestic product than has been received on average over the last 40 years. We are already at a higher level of revenue. Revenue is not the problem. The problem is that spending is out of control.

For the last 3 years, the House Committee on the Budget has issued its own budget. It has been called the Ryan budget. It has been called the House Committee on the Budget budget. It has been called the Path to Prosperity. That budget takes reasonable steps to balance the budget over a 10-year period.

Now, the President issued his own budget this year. The way this is supposed to work is the President is supposed to issue his budget by the end of January. This is the first time since he has been in office that he has actually done that. We actually got it on time.

The House is supposed to issue its budget, I think it is, about March 15th. It goes over to the Senate; they do their version. The House and the Senate conference, and then we send it to the President.

For the first time since the President has been in office, we are on track to actually have a budget. It is an amazing fact to me that, since President Barack Obama has been in office, we have not had a budget.

You can't run your household without a budget, you can't run a bakery without a budget, and here we are, trying to run the most complex institution on Earth without a budget. It is not just a lack of long-term planning; it is a lack of even planning for the current year. You have to have a budget.

Anyway, we are on track to have a budget. The House Committee on the Budget has put one out for the last 3 years. The President has issued his budget now. The House Committee on the Budget's budget over the last 3 years would have balanced in 10 years.

I anticipate we will do the same thing this year. We will put forth a budget that has reasonable adjustments and balances in 10 years and stops piling mounds of debt on our children and our grandchildren.

The President's budget, on the other hand, increases spending from $3.5 trillion a year to a little over $4 trillion a year. It adds $2 trillion in taxes over the next 10 years, and it never balances, ever. It continues to pile debt on our children and grandchildren. The House Committee on the Budget's budget doesn't raise taxes, and it does balance in 10 years.

This is the projection by the Congressional Budget Office—nonpartisan, not Democrat, not Republican—of the path that we are currently on. The cutoff of the blue area there is where we are today.

You can see with the demographics and with the burden that we are going to be placing on our social safety net and our entitlement programs—Social Security and Medicare—right now, where we are, if you look back in history—this goes back to 1941—never in the history of the United States has the debt as a percentage of our gross domestic product been as high as it is right now.

The debt is about 70 percent of our gross domestic product, the debt held by the public. The only other time that it was this high was in World War II.

We can adopt changes. We have time. We can adopt some modifications to bring this back under control; but, if we do not, you can see the mushrooming effect of the additional debt, interest rates climbing, the interest that we pay on our debt rising, the effect of the entitlement programs, running our debt to over 100 percent of our gross domestic product, which will make it difficult for us to recover from.

Mr. ROKITA. Will the gentleman yield?

Mr. RICE of South Carolina. Yes, sir.

Mr. ROKITA. I thank the gentleman, and I thank the gentleman for showing not only Members of Congress, but the American people, this chart that you have right there. I think you are hitting the nail on the head. This is exactly the problem.

If I could just add a few things to it?

Mr. RICE of South Carolina. I wish you would.

Mr. ROKITA. Well, if you go back to World War II, the gentleman rightly points out, Mr. Speaker, you see that our debt level crescendoed, obviously as a result of that war.

What is different about that period in our history from our current situation is the fact that, as the gentleman knows, World War II, one way or the other, was going to be a one-time event.

Thankfully, because of this country's courage and the men and women who served for our country, it ended the right way. As a result, the event ended, and we immediately began paying down our debt.

Some might say: Well, we have been there before. What is different this time? Why can't we solve the problem this time?

Well, we can solve the problem because, number one, we are Americans, but what makes the situation different, Mr. Speaker, and what the gentleman alludes to is what is driving our debt.

What drove the debt in World War II, again, was a one-time event. What is driving the debt now is not scheduled to end, has no end really in sight, unless we reform the programs that are driving it. That is one of the things that is strikingly different in terms of the current path we are on from where we have been before, and that is why we have to arrest what is driving the debt, and that is our social entitlement programs.

There is also another difference between now and World War II, and it is exemplified in this chart that I have, and that is who owns our debt. Of course, back in World War II, the gentleman will remember the bond posters that you could see all over the country, where we asked our private citizens to finance the war.

Now, as you can see from this chart, the people we are asking to finance our debt not only are our own citizens but—increasingly and alarmingly more

so—other countries, who by the very definition of being other nations don't have our best interests top of mind.

That makes this a very different situation as well. We are increasingly, over time, becoming beholden to other countries to finance our spending problem.

Mr. Speaker, I would like to continue yielding to the gentleman from South Carolina.

Mr. RICE of South Carolina. I thank the gentleman for his remarks.

Mr. ROKITA, were you aware that by the year 2030, according to CBO's projections, that our spending just on Social Security, Medicare, Medicaid, and our interest, just those four things will take up the entire revenue of the United States Government, leaving nothing for other mandatory programs, like welfare, like unemployment, like food stamps, like all those things?

It will also leave nothing for other discretionary spending like the FBI, like the Park Service, like border security, and like the CIA; but even more importantly, it will leave nothing for defense, nothing for the Army, the Navy, the Coast Guard, nothing to buy the first bullet.

By 2030, just those four programs—Social Security, Medicare, Medicaid, and the interest on our debt—will take up every dime that the United States Government brings in if we don't change something.

Now, the President's budget adds $2 trillion in taxes, but it adds even more than that in spending. What does he spend the money on? It is a lot of additional programs. He adds a little bit to defense, he adds a little bit across the board to other discretionary, but he throws in a lot of other programs—for example, his proposal to pay for community college, which is a nice idea, a wonderful idea—but the problem is that we can't pay for the promises we have made already.

Mr. Speaker, shouldn't we, before we make new promises, find a way to pay for the promises that we have already made?

The President's budget, in addition to more taxes, more spending, and more government programs, it is just another big growth of government, which we have seen over and over again during this administration. From Dodd-Frank to ObamaCare and other things, you have seen a huge explosion in government.

Now, what has the effect of that been? The President loves to say, Mr. Speaker, that he is for the middle class, but I want to show you an interesting graph.

This blue line here going down is the median household income in the United States. This is the middle class that the President is always saying he is for. You can see from 2008—when he took office—until today, that blue line has gone down 8.7 percent.

Median household income in the country has dropped 8.7 percent—more government programs, bigger government, more intrusion on government in your life, more intrusion of government in our national economy—and you can see the stifling effect that it has on our economy.

I think we had 2 percent growth last quarter. Here we are, 7 years after the Great Recession. We should have had a huge snapback. All we are doing is muddling along, trying to swallow this giant addition of Big Government that is being created. Middle class income is down 8.7 percent.

Look at this, Mr. Speaker. This purple line here represents the consumer price index for medical care. Over that same time, it is up over 10 percent. This red line represents the consumer price index for gasoline, which is now turning down, but it is still above where the President took office.

This green line is the consumer price index for food and beverages because, you see, gasoline and heating oil and electricity all go into the cost of food. You have to fertilize it, you have to prepare the seed, you have to transport it. All those things go into the cost of food.

So, you see, food has gone up 20 percent, gasoline has gone up 10 percent, health care has gone up 15 percent—all these additional costs on the middle class.

□ 1545

At the same time, the median household income has dropped by 8.7 percent. When the President gets up and talks about how the stock market is doing and how the economy has recovered, I can tell you, Mr. Speaker, you can look at this chart and very easily see why the average middle class family doesn't feel it. They don't agree with it.

The President's proposed budget, by adding more taxes and more government programs, will do nothing but exacerbate this problem, the middle class squeeze. We are going to squeeze the middle class until there is nothing left. I cringe when the President says he is for the middle class. Don't listen to what he says; look at what he is doing.

Mr. Speaker, I believe in the House Budget Committee's budget that balances in 10 years, that makes responsible adjustments to our social safety net, that makes responsible adjustments to our discretionary programs, and that brings our budget into balance in 10 years.

When I came to Congress, I thought our debt was the biggest problem we faced. I no longer believe that. I know we can handle it. I have been through the budget committee. All we have to do is start now to make responsible adjustments. The longer we wait, the more difficult it becomes.

My tenure in Congress is and will continue to be focused on American competitiveness. I think we have given away a lot of our competitive edge to the rest of the world. I think, if we decide we want to compete, that nobody can stop us. The only people stopping us is us.

We have tied a noose of tax and regulation around our own neck, and we are running our businesses and our jobs overseas. That is my focus. We cannot fix this problem with our budget unless we have growth, and the way to increase growth is to increase our competitive status in the world.

This is a list of things created by a Harvard economist and a good friend named Michael Porter. He has been to Congress more than once. He has talked to over 100 Congressmen about how to make this country more competitive.

These are eight items. One of them is—in fact, the most important one is to create a sustainable Federal budget because you see, my friends, without a sustainable budget—now, you remember, the Office of Management and Budget that works for the White House says we are on an unsustainable course. Congressional Budget Office, we are on an unsustainable course.

Step number one to make this country competitive and to bring jobs back to this country: create a responsible Federal budget. I submit to you, Mr. Speaker, that the President's budget fails miserably in that regard. Just as his policies are failing the middle class miserably, this budget will make us less competitive in the world.

Second, it says simplify the corporate Tax Code. Simplify and streamline regulation. The House budget assumes many of these things that make this country more competitive in adopting its budget.

Mr. ROKITA. Will the gentleman yield?

Mr. RICE of South Carolina. I yield to the gentleman from Indiana.

Mr. ROKITA. I thank the gentleman again. The gentleman hits the nail right on the head. Middle class economics is a term, and it is just that.

Watch what the President does to see how he affects the middle class.

Mr. RICE of South Carolina. Not what he says.

Mr. ROKITA. Not what he says, exactly right.

I also want to draw your attention, Mr. Speaker, to what the gentleman said on his poster board there about the eighth point, create a sustainable Federal budget, and the gentleman talked very articulately about the need for that.

It seems obvious, quite frankly, I would think, to every American family that must do this inside the walls of their own dwellings, but for some reason, it escapes the Federal Government.

I draw the House's attention, the Speaker's attention, to the wording that appears after that comma. It says, ''including entitlement reform''—''create a sustainable budget, including entitlement reform.'' We touched on this a little bit earlier in the hour that we have.

At this point, I am worried, Mr. Speaker, that some who are watching this discussion may think: Well, wait a

minute. Wait a minute. I put my hard-earned money into these programs, being Medicare and Social Security, primarily, every 2 weeks or whenever my paycheck comes, and I see the government taking out a lot, and that is my money. That is my property. What is Congress thinking? What are these two gentleman from South Carolina and Indiana and others who are going to speak here in a minute saying when they said entitlement reform? I put in; therefore, I should get out.

I want to take just a minute to address that because, of course, in a very real sense, that is what every working American has done. In another equally real and more important sense, we haven't. We haven't, and that is what is driving our debt.

Now, the gentleman had a pie graph up earlier that easily showed—and he will put it back up—the fact that most of our spending at the Federal Government level is on programs that are on autopilot. Right?

We, as Congressmen, can't vote on these priorities through the budget mechanism itself. We have to affect the underlying law. That is to say Congressman RICE and Congressman ROKITA don't get to determine, through the budget process, year after year, what someone's Social Security check is going to be, what Medicare services people are going to get or not get. That is not done necessarily through the budget.

We talked about the need to reform those programs in the budget document, but it is not done through the budget language only. You have to reform that underlying law. Two-thirds of our budget, again, as the chart shows, is on autopilot. It goes year after year after year and gets worse after worse, and that is what is driving our debt.

Now, to my point about have we paid for those programs or not, this is a chart that describes the average American working couple. This is a Medicare example, so this is not Social Security. This is Medicare.

It shows that a couple making a combined $71,500 a year, on average, over a lifetime, has put in roughly about 30 percent of what they are taking out of Medicare.

Let me say that again. They are putting in 30 percent. We are putting in, the average American couple, putting in 30 percent of what we are going to take out of Medicare. The rest, Mr. Speaker, goes on the deck, and that is the crux of the problem.

If you go to the second set of bars, you see that the problem only gets worse, as a percentage of the amount we are putting in is only going to go down. That is what makes this a moral situation, a moral case that we are making the children of tomorrow pay, so that we can have more on our plate now, quite frankly.

It is just not Medicare. Social Security is in a much better position than this, but it is on the same trend. It is not just our health care and our social entitlement programs. It is the highway trust fund, for example, which I hope we address, not only in our budget document, but throughout this Congress. To date, the President hasn't done that. So that is really the problem here.

I yield briefly back to my good friend from South Carolina, Congressman RICE, and then move swiftly to Mr. WOMACK from the great State of Arkansas.

Mr. RICE of South Carolina. In closing, my friend, I just wanted to point out what the House Budget Committee does to bring the budget within balance within 10 years, and it is not all this but three major things.

One, it repeals ObamaCare, which costs $2.1 trillion over the next 10 years.

Two, it initiates what is called premium support for Medicare, what you are just talking about, and it doesn't do away with Medicare, and it doesn't affect anybody who is either retired or retiring within 8 years.

What it does for people that are outside that window, Medicare is still offered, and they will allow four other insurance companies to bid for Medicare coverage.

The government won't pay for the cheapest; it will pay for the second cheapest. If you want to buy a cheaper policy, you can, but it brings private industry in it. If you want to buy a cheaper policy, you can, and you will get money.

If you want to buy a more expensive policy, you can, and you will have to pay a little bit more for it. That is a huge savings in Medicare and something that we have to do.

So premium support for Medicare, repeal ObamaCare, and, third, it doesn't cut discretionary spending, defense and nondefense, but it slows the growth a little. Those three things go 80 percent of the way to bringing our budget within balance within 10 years.

Let me tell you, my friends, we don't have a choice. We are piling debt on our children and grandchildren. CBO, OMB, they will all tell you, Social Security trust fund, it will be broke in 2030 or thereabouts. Medicare trust fund will be broke in 2030 or thereabouts.

You know the problem with Federal trust funds? They are not funded, and you can't trust them. Other than that, they are great.

Mr. ROKITA, I appreciate you allowing me to participate in this.

Mr. ROKITA. I thank the gentleman for his leadership.

The gentleman is exactly right. If we act now, no one who is on or near to be on any of these programs has to be affected. We can easily take care of the promises that were made and that these folks, again, who are on these programs or near to be on these programs have rightly relied on, and that is because we are still the world's reserve currency. We are not Greece.

If we make these reforms now, we are talking about the reforms affecting folks a generation ago, those in my age bracket or younger, who would have time to prepare for the new situation.

People who are having kids today, who will live probably past 100, they will have the time, under a new program that reflects the realities of living in the 21st century and, frankly, how long we live in the 21st century.

Mr. Speaker, I yield to the gentleman from Arkansas (Mr. WOMACK), a good friend of mine, the former mayor of Rogers, Arkansas, a decorated military officer who is also a great friend and a great leader in this Congress.

Mr. WOMACK. I thank the gentleman, first of all, for his great leadership on this subject.

The gentleman from the Hoosier State and I came in together. Back in 2010, we were elected to this Congress, and I can't speak necessarily for the gentleman, I can only speak for myself, but I would almost bet that my friend from Indiana would agree that we came up here to tackle the Nation's biggest problems.

Mr. Speaker, the Framers of our country were visionaries. They got it right on the formation of the country and the established government that guides our every decision. They not only had the foresight to establish constitutional principles and processes that addressed the challenges of the day, but that sustain and guide our Nation now 2¼ centuries later.

What you have just heard in the last few minutes, and I have been witness to the presentation made by my friend from South Carolina, with commentary from the gentleman from Indiana, I am going to present many of the same arguments in the time that I have before you today because I think they are worth repeating, and my chart may show it a little bit differently.

Mr. Speaker, I came to the Congress and was immediately placed on the Appropriations Committee. As a member of that committee, one of my jobs is to look after the discretionary piece of the Federal budget. As has already been mentioned, the discretionary piece of the Federal budget is getting squeezed.

There was a time in the not too distant past that discretionary spending was the largest share of spending and, as was mentioned by my friend from South Carolina, things that you recognize your Federal Government for. He articulated a number of those.

When you look at this particular chart, this end of the chart would represent 1962. The other end of the chart is just about 3 years from now, in 2018, you can see—in case you have trouble seeing, let me just go through the color coding here.

The purple at the top is the amount of money that we have to pay, year in and year out, to service our debt. Those of you at home, Mr. Speaker, that have a credit card bill that comes

in every month, there will be a category there or a block there that says minimum payment due.

The minimum payment is usually the reflection of interest due on that account and not necessarily a reduction in the principle amount owed. That is exactly what this purple is. That is the minimum payment due, year and in and year out, that we have to make in order to satisfy the creditors, the people that have given money to this country, loaned money to this country for governmental purposes.

□ 1600

As you can see, Mr. Speaker, this chart shows that that area in purple has grown through the years. It tightened up a little bit back a few years ago. But now, if you look at that last piece of it, from right here, you will notice that it is taking a dip. And if we extended that chart out for many more years, it gets progressively worse.

The next color is red, and that is the reflection of mandatory spending, talked about by the gentleman before me, that constitutes how much money we have to spend year in and year out to pay for the programs that people all across this country are entitled to. The biggest driver of the long-term consequences of mandatory spending would be Medicare. There are many charts that will show you the glide path Medicare is on.

Mr. Speaker, something happened last night at midnight that affects the ongoing cost of that piece of mandatory spending. That is, 11,000 people celebrated a birthday as we rolled into the new day; 11,000 people aged into that program. Now, Mr. Speaker, tonight at midnight, something else is going to happen that is going to influence the growth of that area in red; and that is, another 11,000 people, or thereabouts, are going to age into this program that they automatically qualify for when they turn 65. Thankfully, more and more people are living well beyond 65, and I am glad for that.

If you look at that red, coupled with the purple, you can see that since 1962, it has commanded a much larger share of Federal spending, and it is putting a tremendous squeeze on the programs that people like me, as an appropriator, have to work with to fund the other essential forms of government.

In fact, I have a lot of people say to me when I go home: You know, Mr. WOMACK, you are an appropriator. You are in charge of all this spending. You ought to be able, with your vote and with your leadership on that committee, you ought to be able to see that the books of the Federal Government are balanced.

But, Mr. Speaker, if you look at the last two colors—the green, which is nondefense spending, and the blue, which represents defense discretionary spending—these two colors have gotten smaller and smaller and smaller, so small now that they represent about a third of our spending. And you do the math.

Mr. SANFORD. Will the gentleman yield?

Mr. WOMACK. I would be happy to yield to the gentleman from South Carolina.

Mr. SANFORD. I thank the gentleman from Arkansas for raising what I think is such a fundamental point with regard to government spending. It really raises the crossroads I think that we are at as a society. Because in my mind, I keep going out to about 2025, which you well illustrate on that chart. And at that point, we are only going to have enough money for interest and entitlements and nothing else, without either raising taxes substantially, cutting benefits substantially, or running very large deficits going forward. And ultimately, there comes a point of no return, as you correctly point out with your charts, wherein the world financial markets won't lend you anymore.

So I think you are on to a remarkably important theme, and I think it underscores the degree to which we are going to have an important debate in this Chamber in really the next month because what the President has essentially said is that I am not going to deal with this.

If you look fundamentally at the White House budget, at the core, it abandons this notion of financial discipline. I mean, it adds $2.2 trillion of new taxes. It adds $8.5 trillion of new debt. It goes from running structural $500 billion deficits to $1.1 trillion deficits, with no end in sight to the deficits that continue to grow.

So this theme that you are getting on with regard to the mandatory component and the interest component of government spending I don't think can be underscored enough. And I don't want to interrupt you, but it just hit me as you were talking.

Mr. WOMACK. Well, I am glad the gentleman did interrupt.

And to carry our colloquy just a little bit further, the gentleman from South Carolina is a former Governor of South Carolina, so he has had some experience dealing with balanced budgets and having to live within your means, as a former chief executive of a State, one of the 50 States in our country. So you have a great appreciation for how important it is to be able to craft budgets that live within your means and address the major drivers of what could be deficit spending at the State level.

Mr. SANFORD. Will the gentleman yield?

Mr. WOMACK. I would be happy to.

Mr. SANFORD. Just on that point, though, it is so interesting that ultimately it is not just about balancing budgets, because I think that a lot of people from across this country look at the carrying on and the going on of Congress, and they say, You know, it is about green eye shades, and it is about trying to balance some numbers. No. It is about sustaining this Republic.

Admiral Mike Mullen, when asked, What is the biggest threat to the American society? he didn't answer ''China,'' he didn't answer ''Russia.'' His answer was: The biggest threat to the American way of life is the national debt.

If you were to look at a whole host of different folks across recent history—I mean, Paul Kennedy wrote I think an excellent book entitled ''The Rise and Fall of the Great Powers,'' and its premise was that economic supremacy was the precursor to military supremacy, for a civilization to be able to continue to project force.

I think it is so interesting that the Prime Minister of Israel was here earlier today. We heard Prime Minister Netanyahu lay out his concerns with regards to some things happening in the Middle East. But America's variability, whether it is in engaging with an ally like Israel or whether it is engaging in a whole host of other conflicts that are innumerable and guaranteed across the next 25 years or so, our ability to impact those things will be driven, frankly, by these economic numbers.

I think it has been maligned, but Reinhart and Rogoff, a professor from the University of Maryland and a professor from Harvard, wrote a book entitled, ''This Time Is Different.'' They chronicled 800 years of financial history, and there have been some questions about how they got to some of their numbers. But the larger premise was in that title, ''This Time is Different.''

What you are pointing out is that, no, it is never different; math always works. And there is something fundamental about our civilization's need for not just a balanced budget for balanced budget's sake but to be able to sustain our ability to project power and maintain a way of life that we love, I think, that is underlined in these very charts that you are showing.

Mr. WOMACK. I thank the gentleman.

Reclaiming my time, I just want to say, before I go to my next chart, that this isn't an option for us, to allow this to continue on this path without the interaction of this Congress and solutions offered by this Congress, many of which are going to be big deals because when you get this far along into a problem, the solutions to the problem get much larger. They are going to require a lot more political courage. But we have to address it because if we don't, in just a few years beyond the 2018 timeframe that this chart shows, there will be no money left for the items that you see in green and blue.

And let me hasten to remind you that the items in blue are national defense.

Mr. SANFORD. Will the gentleman yield?

Mr. WOMACK. I yield to the gentleman from South Carolina.

Mr. SANFORD. On that point, I love keeping strange jotted notes in my office.

Again, the number that you are getting at—because you are now touching

on national defense—you know, Habsburg defaulted on all or part of its debt 14 times between 1557 and 1696. Pre-revolutionary France saw 62 percent of its royal revenue going to interest payments alone. Britain, between World War I and World War II, saw interest payments climb to 44 percent of the British budget. In the Ottoman Empire, interest payments and amortization rose from 15 percent of its budget in 1860 to 50 percent in 1875.

In other words, this music has been played before with disastrous consequences, and that is why I think it is relevant.

Keynes actually quoted Lenin, of all folks, and Lenin's quote was this: ''There is no subtler, no surer means of overturning the existing basis of society than to debauch the currency. The process engages all the hidden forces of economic law on the side of destruction and does it in a manner which not one man in a million is able to diagnose.''

What you are laying out with the chart which you so appropriately lay before the Congress is the very formula that Lenin, himself, was talking about in things that will challenge not only defense but the way in which a government sustains itself.

Mr. WOMACK. I appreciate the gentleman's perspective.

Finally, Mr. Speaker, I want to show you this one.

I was fortunate to get elected in 2010 by a significant majority of the people in the Third District of Arkansas. I consider that area of our State to be the most dynamic in all of our State. It has got a lot going for it. It has got great jobs, great health care, wonderful educational institutions, effective governments, the University of Arkansas Razorbacks. I mean, there are a lot of great things you can say about the area that I represent. And it is different than a lot of places around our country, I will submit to that.

While I made a promise to the people that elected me, the biggest promise that I made, the one that I hold closest to my heart and the promise that drives all of the decisions that I make, particularly to my friends that have joined me here in the Chamber today regarding budgets, deficits, debt, long-term spending, and those kinds of things, are the promises I made to these two young men right here. This is Liam. He is 8. And that is Kaden. Kaden is not even 2 yet. They are cousins. These are my grandkids.

When I look into the eyes of these two precious little boys, I see the innocence of youth, but I also see something that they can't see. I see a tremendous burden that is growing every day, every week, every year that these two kids have had nothing to do in creating, and that is a mountain of debt and interest payments for borrowed money that go as far as the eye can see.

Mr. SANFORD. Will the gentleman yield on that point?

Mr. WOMACK. I will.

Mr. SANFORD. Again, I think you are capturing, in essence, the totality of this debate because there is a guy up at the University of Boston called Laurence Kotlikoff, and he wrote a book called ''The Coming Generational Storm.'' Its premise is really built around your two grandkids because he says that the imputed tax for a child born into America today is about 84 percent, 84 percent.

I mean, our civilization won't work. A market-based economy doesn't work with an 84 percent tax rate. Yet that is what he said is coming those two young children's way in the event that nothing is done to change the course and the trajectory of the way that Washington is spending money. He says that the total debt really amounts to around $200 trillion. So it hit me, as I was looking into your two grandchildren's eyes there in the photograph.

Mr. WOMACK. I want to give you some perspective before I close, Mr. Speaker.

The only budget that we have laying out there right now is the President's budget. It arrived on time. It never balances—never—and continues to add a lot of taxes and a lot of debt and a lot of interest burdens on the generations of these two kids right here.

But here is what is inescapable: the net interest on the debt that we will pay this year—and I might need some help on this, Mr. ROKITA—I think it is around $250 billion?

Mr. ROKITA. Yes.

Mr. WOMACK. Around $250 billion. It is a lot of money. We could build a lot of roads and bridges, educate a lot of people, pay for a lot of things with that $250 billion, give or take.

The President's budget, if you rolled it out for 10 years, in the 10-year window before this young man can vote and before this young man turns 12, the net interest on the debt will rise to $785 billion a year. That is not a sustainable path, and that is why I was pleased to accept the appointment to the Budget Committee as one of the three appropriators assigned to this committee. That is why I enjoy the work that I do. That is why I appreciate so much my friend from Indiana, my friend from Georgia, my friend from South Carolina, and the others that will parade down here and talk about these issues. They are the most serious things that affect domestic America today.

And out of deference to these two young men and to their parents—Will and Amanda, and Kayle and Philip—it is my hope and my prayer that we will find the courage to support the solutions, as large as they may be, to save America's next greatest generation.

□ 1615

Mr. ROKITA. Well, I thank the gentleman from Arkansas. Clearly, Mr. Speaker, you see why he was elected mayor of Rogers, Arkansas. You see why he has been a leader in our U.S. military, and you see how and why he leads on the floor of this House.

I want to, again, thank Congressman TOM RICE from South Carolina for speaking today, and Congressman MARK SANFORD, former Governor of South Carolina, now Congressman of the First District, for speaking today. Again, I thank Congressman STEVE WOMACK.

With the time we have remaining, I yield to a good friend of mine who came in at the same time as STEVE WOMACK and I in a wave of 87 new Congresspersons, the new crew, as I call it, my good friend, ROB WOODALL, also a member of the Budget Committee, to put some icing over what we have learned over the past hour.

Mr. WOODALL. I thank my friend from Indiana for yielding, and I appreciate his leadership. Mr. Speaker, I don't know if you have thought about it—you have not been in this institution very long. You came here with a lot of hopes and dreams. The gentleman from Indiana, the vice chairman of the Budget Committee, has been here 4 years. He has been here 4 years. What I have loved about this institution the 4 years I have served here is that what was once a seniority-based institution, what was once if you could just hold on to your little piece of power long enough, you might one day rise to a place where you can be influential.

When we came in that big class of 2010 and a new leadership structure was swept in here, folks said: No more. They said: We want to find folks who have talents and skills and who have the ability to lead, and we are going to put them in places where they can do that. I am so proud the gentleman from Indiana is able to fill that role for me. I sit on the Budget Committee, too, and I get to take advantage of his leadership.

Mr. Speaker, the gentleman from Arkansas was down here earlier, and I don't think I am telling secrets out of school—I am sure the vice chairman will correct me if I am—but he raised his hands in one of these closed-door meetings and he said: I want to do the big things. I want to do the big things. I don't want to nibble around the edges. I don't want to just rearrange the dollars here and there. He said: I want to solve the problem once and for all, and I will do whatever it takes to make that happen.

I know that has always been the philosophy that the gentleman from South Carolina has brought to bear, that I want to do the big things. Let the political chips fall where they may. It is a funny thing. It turns out, Mr. Speaker, that if you do the right things for the right reasons, sometimes elections take care of themselves. You can spend all your time worrying about elections or you can worry about doing the right thing for the right reason.

Mr. Speaker, I brought this chart here so you can see it, too. The blue line charts the revenue in this country. The red line charts the spending in this country. It is there as a percentage of

GDP. There is no set of circumstances where revenue will ever match spending, Mr. Speaker. The President didn't provide that leadership; my friend from Indiana is. That is why I am so proud to be on the floor with you today.

Mr. ROKITA. Mr. Speaker, I yield back the balance of my time.

THE BLUE DOG COALITION

The SPEAKER pro tempore (Mr. CURBELO of Florida). Under the Speaker's announced policy of January 6, 2015, the gentleman from California (Mr. COSTA) is recognized for 60 minutes as the designee of the minority leader.

Mr. COSTA. Mr. Speaker, my name is Congressman JIM COSTA from Fresno, California. Since I was first elected over 10 years ago, I have been a member of the Blue Dog caucus. This afternoon, members of the Blue Dog caucus that stretch the width and the breadth of this great country of ours are going to speak about what brings us together, about the passions that they have and the people that they advocate for and why they believe that their efforts at being a constructive and a very positive member of the Blue Dog caucus adds value to their ability to represent their constituencies and to the vision that I think we, as Americans, all share together, which is to make our Congress, to make our representative democracy, a more functioning system. Because clearly today, the American public, in poll after poll after poll, demonstrate their frustration with the inability of the United States Congress to come together and to work on common solutions for our country, solutions that share our common values but also involve the art, the art of the political compromise, too often I believe an art that has become lost here in our Nation's Capital in Washington, D.C.

So among the first of the members of our caucus that will speak is the gentlewoman from Arizona's Ninth District, KYRSTEN SINEMA, a colleague of mine who always is advocating for her constituency in the most positive ways.

Ms. SINEMA. Thank you, Mr. COSTA, and thank you today for organizing this Special Order.

Mr. Speaker, this is an important opportunity for us to come together and show how bipartisanship can fix our broken system.

At home in Arizona, I hear from everyone that Washington is broken. There is too much time spent playing political games and too little time spent working together to get things done. Most people are sick and tired of Congress' failing to do its job because of partisan politics. That is why I joined the Blue Dog Coalition, because they prioritize the people they represent more than their party leadership.

Everybody knows that Congress is not working effectively, and the Blue Dogs are trying to change that. They are focused on ending political polarization, reforming Congress, stopping reckless government spending, and creating economic opportunity for Americans who have been left behind by this recession.

Mr. Speaker, I come to work every single day to get things done for Arizona. I have a proven record of reaching out to members of both political parties to find common ground on issues ranging from jobs and the economy to reducing spending and government waste. As a cofounder of the United Solutions Caucus and a No Labels Problem Solver, I have worked with members of both parties to get things done. At home, Congressman MATT SALMON and I work together to help Arizona veterans get the care they deserve, and I have worked with Congressman MICHAEL MCCAUL to introduce legislation that puts an end to automatic pay raises for Members of Congress.

Neither party is always right. In fact, both parties are often wrong. It is time for us to listen to each other and work together to grow our economy, help our country's families, and honor our veterans. Recently, we came together to pass bipartisan legislation to prevent veteran suicide and improve access to mental health care and health services for veterans. Just this week, we agreed on legislation to expand college savings plans and make higher education a reality for students and their families. We need more of these kinds of accomplishments in Congress.

In Arizona, the voters established an independent redistricting commission that allows for an open and transparent process and creates competitive districts where neither party has a monopoly. We Blue Dogs have proposed similar reforms to create impartial, fairly drawn districts across the country to cut back on the polarization that cripples our system.

Mr. Speaker, the American people deserve leaders who do whatever it takes to come up with practical, commonsense solutions that help us move forward. It is time for us to focus on areas of common ground and come up with real answers to our country's most pressing problems. So let's put aside the finger pointing and the fighting. Let's roll up our sleeves and get back to work.

Mr. COSTA. I thank the gentlewoman from Arizona.

Mr. Speaker, our next Blue Dog colleague who will speak is a gentleman whom I have served with both in the California State Legislature as well as here in Congress. He and I are good friends. We both represent wonderful parts of California, and he is one of the longer serving members in the Blue Dog caucus, the gentleman from northern California, Congressman MIKE THOMPSON from California's Fifth District.

Mr. THOMPSON of California. I thank the gentleman, and my friend, for yielding.

Mr. Speaker, Members, I came down to the floor this afternoon to join my Blue Dog colleagues in calling for all of us in Congress to come together and do the work that we have been asked to do, the work that we have been sent to Washington, sent to Congress to do on behalf of the people that we represent. I came to Congress to get things done, to get things done for the people that I represent, and to get things done for the great country that we are all so privileged to live in and to participate in.

As Mr. COSTA mentioned, he and I served together in the State legislature in California, and I am very proud of the work that we did there. We were able to get a lot of things done. In the time that I was there, the majority of the time, I chaired the Senate Budget Committee. That was one of the reasons why I was so proud to be a Blue Dog, although the common thread that holds all Blue Dogs together is the issue of fiscal responsibility.

In my time in Sacramento chairing the Budget Committee, we always had a balanced budget. Fiscal responsibility was important, and it is equally as important here in Congress. Nobody likes the fact that we have huge deficits or huge debts. We understand that some things are unavoidable, but there has to be an understanding of and an intentional effort on the part of all us to make sure that we are fiscally responsible and that we manage that debt, we manage that deficit, and we bring it down to a level that won't burden our children and our grandchildren in the years to come.

So I was stunned when I came to Congress and found out that it was very, very difficult to get anything done, to get people to work together. As JIM pointed out, I am one of the longer serving Members, so I was stunned a long time ago in what you can probably refer to today as ''the good old days,'' when we were actually able to work together and get things done, but we didn't have a high level of that cooperation even back then.

Last week, I was with the Aspen Institute on a trade conference. Anybody who is familiar with them knows that they are able to bring together a bipartisan and bicameral representation of Congress, Members from the Senate and Members from the House, Democrats and Republicans. They also bring together some of the most famous scholars to talk about whatever the issue of the conference is. I was struck, at this trade conference, when one of the new Members that we serve with, now starting his sophomore term, after the scholars spoke and he was recognized, said: I came to Congress to involve myself in this type of problem solving, when people came together, talked about issues, talked about problems, and talked about solutions. He said: And this is the first time since I have been here that we have been able to engage in that type of dialogue.

That is not right, Members, and we all know that. We are here to work on

the problems that face our great country, and we need to get down and do that work.

Mr. COSTA. Will the gentleman yield?

Mr. THOMPSON of California. I yield to the gentleman from California.

Mr. COSTA. I appreciate your explaining your experience in the California Legislature because we not only worked together in a bipartisan fashion, but we also worked together with the lower house and the State senate, because you could never get anything done if you didn't work together with both houses. Of course, that is part of our problem here today.

Mr. THOMPSON of California. Mr. Speaker, the gentleman is correct. That is how the legislative process works. You don't just punt something over to the other Chamber and then say, ''We have done our job''; because you haven't done your job until the President, in the case of Congress, signs his name on the line making that bill or that job come to fruition, making it the law.

You are right. In the State capitol, we did that. We knew we had to work together because the same piece of legislation had to pass both houses and had to meet there for the Governor's signature in order to become law. The same thing happens here.

I know it can be done. One of the things that I did in some of my earlier years here, Mr. Speaker, is I was successful in getting a wilderness bill passed, a wilderness bill that protected into perpetuity 350,000 acres in my district in California. Wilderness bills have passed before, so that, in itself, was not the biggest thing that has ever happened here. But I am particularly proud because I was in the minority then.

The chair of Natural Resources was Richard Pombo from California, someone whom I consider a friend, although not a political ally. He was not someone who was favorable to approving wilderness legislation. But I worked with him and his committee. He had the bill up in for a markup. We had it on the floor. We passed it. I compromised; he compromised. That bill went through the House. The companion bill went through the Senate, as Mr. COSTA was explaining has to be done, and it went to then-President George W. Bush, who signed it into law.

So it is incongruent with the way we work today. Today you would just start by saying: An unfriendly chairman, an unfriendly President, we can't get anything done. That is just absolutely not true.

If we come together and if we work together, we can find solutions to the problems that we face. There are any number of issues that need to come together and need to be put on this floor for a vote. You can look at immigration reform, tax reform, gun violence prevention, and certainly one that everyone can agree with is an infrastructure bill.

□ 1630

There is not a person that any one of us represents who doesn't know that we need to invest in America's infrastructure—in our roads, in our highways, in our broadband, in our overpasses, in our bridges. And now with the new Panama Canal coming on line and the bigger ships coming into this country, we have huge investments that need to be made in our ports and our harbors. These are investments that not only put Americans to work generating more revenue, but put better jobs and make our economy stronger than it has ever been before.

I submit, Members, that these are things that we can do. As has been said before, the things that bring us together, the things that bring us together as Americans, are far greater than the things that divide us. I will plead, let's get together, let's roll up our sleeves, let's work together on addressing the major issues that face America.

I thank you, Mr. COSTA, for bringing us here today.

Mr. COSTA. I thank the Congressman from California.

Congressman MIKE THOMPSON, I think, expressly indicated why he is a Blue Dog and, over the years, his efforts to bridge the gap, to reach across the aisle, to get something done; because he recognizes, as do all of us Blue Dogs, that the political dysfunction that is occurring here in our Nation's Capital is real. It has measurable costs, and it is preventing our country, sadly, from solving the problems that our constituents send us here to solve, whether it is the economic recovery that could be stronger, whether it is fixing our Nation's deficit, whether it is fixing a broken immigration system, or an array of other issues that are pressing, that are important to the people back home.

The next gentleman who would like to address our Congress is the gentleman from the great State of Illinois, Congressman DAN LIPINSKI, my colleague and classmate from Illinois' Third District.

Mr. LIPINSKI. Mr. Speaker, I thank Mr. COSTA for putting this together today.

The reason I came to Congress, the reason I ran for Congress, was to get things done. I think that is what all our constituents are expecting us to do.

Unfortunately, when I am at home, I am constantly reminded that my constituents are wondering why we don't get more done, what is happening in Washington. When I am shopping at Menards or at Jewel, people come up to me and say: Why can't everyone work together there in Washington?

They know that I have been doing that. That is why I am part of the Blue Dog coalition, because we want to bring people together here in Washington—in the House, the Senate—bring everyone together to work out the many, many problems that our Nation has.

We just had Mr. THOMPSON talking about a transportation bill. Everyone talks about the need to fix our transportation infrastructure. We have roads and bridges that are crumbling. Our public transit also has infrastructure that is crumbling. We all need a good transportation system to get wherever we need to go during the day.

Our Nation, for the sake of having an efficient economy, needs a good transportation system. We can put people to work immediately fixing our transportation system, yet we haven't been able to come together to solve this problem. That is one thing that we need to do, and it is something I think that we can do.

We have just seen all the trouble that we had run into here with the Homeland Security bill, an issue that should be easy. We all want to protect our homeland. We all know the threats that we are facing. And although we may have disagreements on many issues, protecting our Nation is not one of those. Yet, unfortunately, we do run into issues, and we really need to instead focus on what can we work together on and what is possible.

We have a divided government now. It used to be that after an election, everyone would come together, look around and say: Okay. This is who is the majority in the House, the majority in the Senate, who is in the White House. What can we agree upon? How can we work together to solve problems? Where can we find our agreement? Instead, we seem to focus on how our party can get control of everything in the next election. Mr. Speaker, this is not the way that the American people want us to work. They want us to come together.

Now, some of the previous speakers talked about electoral reform and redistricting reform. Those can certainly help. Those are things that we support and that the Blue Dogs are working to get done. But even before we get those things done, we can work together and accomplish great things here. The American people aren't demanding that of us. They are demanding that we change the way that Washington is working right now. That is what the Blue Dogs are doing.

That is the only way we are going to be able to face so many of the problems that we face, including the issue that is really at the heart of the Blue Dogs, has always been, and continues to be: dealing with our fiscal situation. We need to be fiscally responsible. The American people understand this. They know we need to make the tough choices here in Washington to get our fiscal House in order.

The Blue Dogs have always led on that. We continue to lead on that, but it is going to take bipartisan cooperation to get that done because we have a divided government. But we need to do it. We need to take care of these issues. The Blue Dogs continue to work on these things. We really need the support of everyone to come together

here in Washington and across the country to solve these great problems that we have, that we face.

Mr. Speaker, I am sure there are people who may be out there watching this on C–SPAN, and probably a lot of people who are just so happy to finally turn on C–SPAN and hear people talking about working together, not talking about what is wrong with the other side, how I am right and the other side is wrong, but the need to work together. That is what the Blue Dogs are about. That is what it continues to be about, and that is the way that we are going to make America the greatest Nation on the face of the Earth—but a Nation that faces, as we all understand, many issues, many problems, just as our families are facing many issues right now. By working together, we can make our Nation even greater, and only by working together will we get there.

I am very happy to join my Blue Dog colleagues here tonight and every day working to help make America a better place to live. So let us all come together, Mr. Speaker, and work on some of these problems. ''Compromise,'' I know, sometimes is a dirty word. You don't have to give up your principles to compromise. Stick to your principles, but compromise. Get done what we can get done, and make this Nation a greater place.

I thank my Blue Dog colleagues very much. Thank you, Mr. COSTA, for this. We are going to continue to bring the message to the American people and get things done.

Mr. COSTA. Mr. Speaker, I want to thank the gentleman from Illinois, my classmate, for his good words. Clearly, I think he speaks on behalf of not only the Blue Dogs, but the majority of Americans who believe that we need to be working together to solve problems, whether it is our budget, our fiscal deficit, or whether it is our transportation system, as the gentleman from Illinois so succinctly pointed out. It can never be ''my way or the highway,'' because if that is the case, we will never get anything done, as has been witnessed here for the last couple of months. But when we do work together, as the compromised bipartisan vote that we saw this afternoon on Homeland Security, we can get something done.

My next friend and colleague is the gentleman from Georgia, Congressman SANFORD BISHOP, from the Second District. He has distinguished himself over the years and has been a member of not only the Blue Dog caucus, but he represents some of the best parts of Georgia—Fort Benning and agriculture, like I represent.

SANFORD, we are glad to have you here this afternoon to tell us the thoughts of the people of Georgia's Second District on the terrific job you do on their behalf.

Mr. BISHOP of Georgia. Mr. Speaker, I thank the gentleman for putting together this Special Order, and I thank the gentleman for yielding.

Martin Luther King, Jr., once said: ''Ultimately a genuine leader is not a searcher for consensus but a molder of consensus.''

Debate is a natural consequence of representative democracy. Gridlock, on the other hand, is not.

Sitting down with those across the aisle is not just an act of placing faith in political or ideological adversaries, but an act of placing faith in our egalitarian democratic system, a system, as it was, founded on the art of creating consensus in order to move forward.

All of us here speaking from the well this hour believe in working together for better government, working for responsible government, working for transparent government. The moderate Blue Dogs are here not only to find common ground between lawmakers, but to forge an understanding of what it is to truly work together.

The Blue Dog Coalition is dedicated to a core set of beliefs that transcend partisan politics. We represent the center of the House of Representatives and appeal to the mainstream values of the American public. The coalition develops substantive proposals and positions distinct from those advocated by the extremes in both parties. Needless to say, we Blue Dogs are less swayed by the leadership of either party and more persuaded by the needs and the concerns of mainstream Americans.

But this is nothing new. Twenty years ago, the Blue Dog Coalition was formed following the 1994 election. Over the past 20 years, many of our proposals have been praised as fair, responsible, and positive additions to a Congressional environment too often marked as partisan and antagonistic.

Throughout those years, the Blue Dogs have been dedicated to solving problems based on five principles of political leadership: tell the truth; govern for the future; put the country first; be responsible; work together.

My job is to represent the interests and the values of the people in my district in middle and southwest Georgia. As a Blue Dog Democrat, I push for commonsense measures that will make government work better for my constituents.

The people of Georgia's Second Congressional District, like all Americans, deserve a government that puts their needs ahead of partisan politics. We seek to use the legislative process to create a higher, better quality of life for all of our citizens. Eliminating government waste and inefficiency are crucial to achieving this goal.

We work with our colleagues on the right and the left, on both sides of the aisle, to pass commonsense reforms that will make government work for the people of our great Nation. As Members of Congress, it is our responsibility to ensure that government works for the American people.

I am committed to working together with my colleagues to pass legislation that eliminates Federal waste and inefficiency. If we can do this, it will give us a better chance at getting things done. That is how we rebuild trust with the American people, by showing them that we are doing the job we were sent here to do.

Today, many folks might suppose that bipartisanship is dead. The Blue Dogs have been here and are still here to say that it is not dead. We are committed to working—not to finger point, not to fight, but to fix. I believe that problem solving together across both sides of the aisle we can make that happen.

So I am delighted that my colleague, Mr. COSTA, and my colleagues from the Blue Dog Coalition have come together with this Special Order so that we can say to each other, say to the American people, that we cry out for a government that will work for the people to get the needs, the common goals, the common hopes, and their common aspirations addressed.

We may have differences, but we have more similarities than we have differences. If we find those common denominators of experience that combine us, we can get the job done for the American people.

I thank you for this time.

□ 1645

Mr. COSTA. Congressman BISHOP, my friend, I could not have said it better: for the people and by the people.

Mr. Speaker, for those who are watching on C–SPAN this afternoon, we welcome your input, and we welcome your comments. For those of you who are interested, please sign onto our Web site, which is www.bluedog.schrader.house.gov, as a way by which you can communicate with us. We all have our Web sites. Obviously, not only our constituents from our respective districts but people from throughout the country, we would urge you to weigh in. Let us know how you feel, which is an appropriate segue for our next speaker.

The Blue Dogs every 2 years select three leaders to represent them and to organize our agenda. We have a policy individual who will be speaking in a moment, Congressman JIM COOPER. We have the communications director, which is the position I serve, and then we have our chairperson. Our chairperson is a gentleman whom I have the honor and privilege to serve with. He is my friend, and he is doing an excellent job, the gentleman from Oregon's Fifth District, Representative KURT SCHRADER.

Mr. SCHRADER. Thank you very, very much. I want to thank my friend, the gentleman from California, for hosting this particular Special Order.

Mr. Speaker, I think it is important for America to realize that we all don't hate one another. We actually get along pretty well on a personal level, and there are those of us on both sides of the aisle who want to work together to solve our country's problems. You have heard a little bit about that already.

I think, at this time, more than ever, it is important for Congress to come together. The little debate we had last week or a week and a half ago on the Department of Homeland Security, I think, drives that point home. Oftentimes, within families, there are disagreements. Whether it is a Republican family or a Democratic family, we are not going to agree on all of the issues all of the time. That doesn't make one side wrong and the other side right. What it does mean is there is an honest difference of opinion. In the way our forefathers set the system up, we are supposed to work through that. There are checks and balances. No one party, no one Chamber, no one individual is supposed to have ultimate veto over the rights of everyday, Main Street Americans.

What we in the Blue Dog Coalition try to do is to bridge those differences, to provide a forum to find ways to agree, not to disagree with the other team. As for the Homeland Security bill, whatever you think about some of the attachments to the bill or about some of the actions by the President of the United States, it is important to fund Homeland Security more now than ever. With the stuff that has gone on overseas that could possibly threaten our own shores, it makes it imperative that we work together. I am actually proud, despite the sausage-making look of it in the media and, perhaps, to a lot of Americans, that there were Republicans and Democrats who came together to solve that problem.

We will live to fight another day on immigration reform and on some of the other issues which we have genuine, legitimate differences of opinion on, but it should not be lost on the American people that it was Democrats and Republicans coming together to solve a very basic problem that our Congress and Nation are charged to solve, which is to provide for the security of the American people.

The Blue Dogs have been doing this for years. You heard of our inception after the 1994 elections, when the Blue Dogs felt we were getting choked. We were regular Southern Democrats, if you will, at that time. It has branched out, like Mr. COSTA has indicated, to include the whole country now. Yellow Dog Democrats were getting ''choked blue'' by their rather liberal leadership that they felt did not respect or, frankly, represent some of their interests, so out of that came the Blue Dogs.

The body has grown and decreased in numbers with every election cycle. There has been a consistent drumbeat, however, for folks like us in moderate districts, not just on the Democratic side, but on the Republican side. We actually have quarterly meetings with a Republican group called the Tuesday Group, where we try and get together and share ideas about things we can work together on—not in opposition to but work together on. Boy, I wish leadership would work in that same vein. We would be a lot better off.

Mr. COSTA. Will the gentleman yield?

Mr. SCHRADER. I yield to the gentleman from California.

Mr. COSTA. We have talked a lot about this among our fellow Blue Dogs, but I think the point that you raise there is worth repeating because, frankly, I think there are a lot of Members on both sides of the aisle who, if they had the opportunity, would like to figure out how they could work together. I know, as the chair of the Blue Dog Caucus, it is your desire to reach out and continue to make that effort. I just want to applaud you for that.

I also want to ask: Are there other ways in which constituents can make their Congresspeople feel more comfortable about doing that? With this notion of ''it is my way or the highway,'' I think the majority of my constituents wonder what is going on there. I mean, ''What are you folks thinking in Washington? because that is not the way we do it at home.''

Mr. SCHRADER. In reclaiming my time, I totally agree with the gentleman from California.

I think, sometimes, there is that bubble we operate under here in Washington, D.C., and we forget that the people back home, frankly, are sometimes not watching C–SPAN. They are busy trying to put food on their tables, seeing if their kids can get great educations. Frankly, in recent times, they are just trying to keep their bloody jobs. So I think it is important for us to relate to the people who are paying our salaries. This is their Chamber—this is their building—not a bubble of Washington, D.C., types. It is important for us to sit down and represent what they are talking about.

When I went home in this last election cycle and, frankly, in every election cycle, the big issue for Americans in the Congressional Fifth District in the great State of Oregon—the Willamette Valley-central Oregon coast—is not any one issue. It is: ''Will you please work together.'' This is complicated stuff—some of these bills are pretty darned complicated—but I think everyday Americans understand. ''Okay. That is why I hired you. Work it out. Figure it out.'' To their credit, they don't give me a lot of room for excuses.

''Well, gee. I am not in the majority. I don't control it.''

''Kurt, I elected you. I want you to figure out a way of how to work with folks.''

We can do that. The farm bill in the last Congress was a classic example of how we actually worked together, Republicans and Democrats. You could not tell a Democrat or a Republican based on what they were talking about, because they were representing different districts, different geographies around this country, lobbying hard for their farming interests or nutritional programs that they felt passionately about. That is the way Congress is supposed to work. That is what the Blue Dog Coalition is all about—building those relationships.

If you have noticed in the 114th Congress, in the first 2 months, while DHS, the Affordable Care Act, and sometimes choice or abortion have gotten a lot of the headlines from the media, I would urge you to look at the votes for the big, important bills that have come forward. There are a number of bills that leadership—and I give the Republican leadership credit for this—brought forward that moderate Democrats had voted for in past Congresses or had expressed interest in, and they got overwhelming and sometimes significant Democrat support. That is not talked about by the media, folks.

You have got to realize that there are many opportunities like that that go below the radar screen. It may not be the sexiest topic in the world, but it is stuff like making sure the Affordable Care Act works, making sure that small businesses are able to function properly, making sure that the Dodd-Frank financial reform actually is workable and respects the interests of the different members of the community out there, even the Keystone vote. I mean, we have to be thoughtful about it, and Democrats and Republicans need to work together and find areas they can agree on. We have tried to do that time and again. It is the heartbeat of the Blue Dog Coalition.

Basically, what we are standing for, as you have heard, is fiscal reform and fiscal responsibility. It has been a hallmark of the Blue Dogs over the last 20 years. We are generally a government efficiency organization. We believe government is not evil, but it could sure work a heck of a lot better. Every one of the folks out there in America understands that some government rule is making a problem for them, and it shouldn't have to happen. We as Blue Dogs try and cut through that government regulation.

We are also business friendly. Yes, Democrats can be business friendly, believe it or not. They are called ''Blue Dogs.'' There is another group called New Democrats. There is another group growing outside this that wants to include all Americans, which is called No Labels. Most Blue Dogs are, frankly, members of No Labels. There is another group that works together, Democrats and Republicans. Yes, folks. There are a lot of different people in this Congress who are very interested in trying to work together to make your Congress work and deal with your lunch bucket issues that mean the most to you—job creation, educational reform, infrastructure—as was alluded to. These are values, I think, every American holds dear, and those are the issues we should be working on.

Senator Lieberman said at one point that it is kind of ironic that everyone is interested in bipartisanship, but if you don't agree with somebody 100 percent of the time, you don't agree with them any of the time. The real world is: life is complicated, and you are

going to have times when you agree and times when you disagree. One of the basic axioms of politics is: you don't have enemies or friends; you have allies and adversaries at the end of the day because issues change over time, and you will find that the ebb and flow of interests will conflate with party, geography—all of those issues.

The Blue Dog Coalition is dedicated to trying to bring people together across this country—Republicans and Democrats, business interests, individuals—trying to make your government more responsible and more efficient with electoral reform, congressional reform, getting back in this great, august Chamber to regular order—to where your interests are represented through the committees, through the elected Representatives you have. That is what is important here, and that binds Democrats and Republicans, liberals and conservatives and moderates, like us. That is the hallmark of the Blue Dog Coalition.

I won't belabor the point. I thank the gentleman for bringing us to the floor here. I think it is important for America to be a little inspired that there are people who care about this country, who cut through the partisan politics and even go against our respective leaderships to try and solve the problems you want us to solve. I think, at the end of the day, that is where America is. To get back to a greatness, which was alluded to before, it is going to require more members of the Blue Dog Coalition and of the Tuesday Group on the other side of the aisle to be elected to Congress and hope America gets mad as hell and starts to hold their Members accountable for working together and making America great again.

Mr. COSTA. I want to thank the gentleman from Oregon for his leadership as the chair of the Blue Dog Coalition.

Your efforts to reach out to the Tuesday Group and to the No Labels Caucus and your efforts to take difficult positions and cast hard votes, I think, are all examples of political profiles in courage, and we commend you for your leadership and your efforts.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H.R. 1029, EPA SCIENCE ADVISORY BOARD REFORM ACT OF 2015, AND PROVIDING FOR CONSIDERATION OF H.R. 1030, SECRET SCIENCE REFORM ACT OF 2015

Mr. BURGESS, from the Committee on Rules, submitted a privileged report (Rept. No. 114–37) on the resolution (H. Res. 138) providing for consideration of the bill (H.R. 1029) to amend the Environmental Research, Development, and Demonstration Authorization Act of 1978 to provide for Scientific Advisory Board member qualifications, public participation, and for other purposes, and providing for consideration of the bill (H.R. 1030) to prohibit the Environmental Protection Agency from proposing, finalizing, or disseminating regulations or assessments based upon science that is not transparent or reproducible, which was referred to the House Calendar and ordered to be printed.

Mr. COSTA. Mr. Speaker, the next Blue Dog Coalition member who will speak is one of our newest members. He hails from the great State of Nebraska, and we are honored to have him as one of our newest members of the Blue Dog Coalition. He is BRAD ASHFORD from Nebraska's Second District. A lot of agriculture and a lot of good people Congressman BRAD ASHFORD has the opportunity to represent, and we appreciate the fact that he is here.

Mr. ASHFORD. Thank you, Mr. COSTA. I am privileged to have the opportunity to speak today.

Mr. Speaker, you mentioned, just briefly, the concept of ''Profiles of Courage.'' John Kennedy, in writing that book, wrote about a great Nebraskan, George Norris. George Norris was a Senator from Nebraska, and prior to that time, he served in this House. In 1908, he led a bipartisan effort in the House to change the rules of the House in order to make the House more transparent and more accountable to the American people.

□ 1700

In that regard, in John Kennedy's book he wrote about Congressman Norris, and then, subsequently, Senator Norris. In the 1930s, Senator Norris, who had worked to create the Tennessee Valley Authority, worked across the aisle with FDR—he was a Republican—to pass the Rural Electrification Act that electrified the country. He did so working across the aisle.

And in the 1930s—and 1934, specifically—he reached out to the people of Nebraska and said to them: We can do better. We can have a more transparent government. We can have a bipartisan, nonpartisan government that will address the tough issues of Nebraska in the Depression of the 1930s. And he recommended to the voters: Look, let's do this. Let's have a unicameral, nonpartisan legislature.

And the lobbyists and the special interests said: George, you should go back to Washington. This isn't going to work in Nebraska.

Well, the voters of Nebraska, in 1934, voted for a unicameral, nonpartisan legislature, and I am proud to say that we have such a legislature today.

I am so proud and honored to be here. There was a discussion earlier by prior speakers about relationships. And what is so interesting to me and amazing to me—not amazing, really, but gratifying—are those relationships, are the relationships that I have been able to achieve through my association with the Blue Dogs and relationships with Republicans and Democrats alike. It is very, very gratifying that that exists. That is what I am used to in Nebraska.

When I first arrived here, I went to a Democratic Caucus. I served in the Nebraska unicameral legislature for 16 years. I never went to a caucus in my life. I didn't really know exactly what a Democrat or Republican really was. I suppose I would have to look, but of the 49 members of the Nebraska Legislature, I would have to think long and hard about what party they belonged to.

And in the 16 years that I served there, we had many tough issues. In fact, one of the toughest issues we had in the State was the pipeline issue, and that was referenced earlier—the TransCanada pipeline. Well, it goes through Nebraska. As originally routed, it would have gone through some of the most sensitive areas of our State, the Sandhills area and the Ogallala Aquifer.

We spent a year together, the 49 of us. Not every day. We would kill each other if we spent every day together, but we spent a lot of time. At the end of the day, we came up with a process to reroute the TransCanada pipeline to move it away from the most sensitive parties of the Ogallala Aquifer. We did it with a vote of 49–0, environmentalists and those on the other side of the issue coming together to pass a routing bill.

So the idea that George Norris had was, number one, be transparent. Let the people of Nebraska know exactly what you are doing.

What is interesting about the 16 years that I was there—and, quite frankly, if you do count Republicans and Democrats in the unicameral legislature, you will find that there are a lot more Republicans, traditionally, than there are Democrats, at least during the 16 years I was there, and I don't think that at any time I was there, any year, any legislative session I was there, that there were not an equal number of committee chairs that were Republican and Democrat. There was nothing magic about that. It was just the way we balanced things out in our State. We did it and do it intuitively. We do it intuitively.

I don't suggest that we are going to decide tomorrow or even next year or 10 years from now to have a unicameral, bipartisan, nonpartisan legislature, but the lessons that I learned there are the lessons that I have brought here. And when I had the opportunity, Mr. COSTA, to meet the Blue Dogs, it reminded me of home. It reminded me of the Nebraska Legislature and the idea that Republicans and Democrats make that decision for themselves.

But as my good friend and former Senator from Nebraska Ed Zorinsky used to say, there are no Republican Senators or Democratic Senators. There are only American Senators, U.S. Senators. It is in the water in Nebraska. That is how we think. That is how we are. And what is great about this place is those same relationships, those same committed people are there to make those kinds of relationships work in a bipartisan way. We have heard examples of that today.

When I ran for this office, I said to the voters of the Second Congressional District of Nebraska, Sarpy County and Douglas County, Nebraska, the two most populace counties: I'm going to go to Washington, and I'm going to make 25 friends. Because in Nebraska, if you make 25 friends, you get 25 people to vote for a bill, it passes.

You know what? I found more than 25 friends. I found a lot of friends, a lot of great people who sit in this body, this place, every single day, Republicans and Democrats.

I just got back—and then I will conclude, Mr. COSTA—from a trip to Afghanistan, Iraq, Jordan, the Emirates, and Kuwait. I went with three other Members: ELISE STEFANIK, who is a freshman Republican from New York; JOE WILSON, who is a veteran Member from South Carolina; and SETH MOULTON, who is a freshman from Massachusetts. What great people. What great committed Americans to have gone on that trip.

So, Mr. Speaker, I commend the Blue Dogs to the country, to those that are watching, in furtherance of the old tradition of transparency and working together and making things happen.

Mr. COSTA. During your visit, on a bipartisan basis, in Afghanistan, Iraq, and Jordan, you were visiting some of the most challenging hotspots in the world today, and I suspect you got an opportunity to visit and see American men and women serving abroad and the heroic and difficult jobs that they are doing and the great sacrifices of their families. I suspect you had an opportunity to tell them that in Washington we are trying to do all we can to support them.

Mr. ASHFORD. Thank you for the comment. Yes, I was fortunate enough to visit with Nebraskans who were serving in Iraq and serving in Afghanistan. I was on a C–130. We were traveling over the Strait of Hormuz area. The navigator in the C–130 said to me: Sir—because he had to call me ''sir''; that is the protocol—get behind us. We're doing the best we can over here, and we need your support.

And they are going to get our support and have our support. Thank you for the question. I was so deeply appreciative of the opportunity to meet with my fellow Nebraskans who were there as well.

Mr. COSTA. Well, I have made that trip several times, and we can never say thank you enough to the American men and women who serve in our Nation's military.

I would just ask you, every week, I know you go back to your district and the good people in Nebraska—and that good water you are drinking there, bring more of it here to Washington because I think, if we can drink some more of that water, it certainly wouldn't hurt us here in our Nation's Capital.

I want to thank the gentleman from Nebraska for his good words.

As I prepare to close, I want to thank my fellow Blue Dog colleagues for coming down to the well of the House of Representatives this afternoon to talk about the common interests that we as Blue Dog Coalition members have, the efforts that we are making to reach across the aisle, the efforts that we are making to work with the No Labels group, as well as others, on a call to service to repair the engagement of civic dialogue, understanding that, frankly, if we tone down our rhetoric and we have a better understanding of how the different congressional districts that we all represent are, we can find the common threads, the common bonds to bring together solutions that we can agree upon for all of America. After all, we all believe that is what we have been sent here for, I believe, in one way or another.

Another effort that the Blue Dog Coalition is engaged in with No Labels and others is congressional reform. Clearly, many Americans, when they look at Washington and they see the news of the evening, they think: Jeez, there must be something broke there. It ain't working right. It's not working the way we read in our textbooks.

We are trying to restore efforts in congressional form in terms of regular order, in terms of our budget process and producing all 11 budget bills every year and go to a conference as we are supposed to do. We haven't done that in 12 years in Congress, whether it is the Democrats in the majority or the Republicans in the majority, so there is a lot of fixing. Obviously, finger-pointing doesn't fix the problem.

In addition to that, we have electoral reform. I think we all know that last year, last November, we had the lowest recorded turnout in America since 1942. What does that tell you? What does that tell you when the majority of Americans, regardless of whether they are registered as Republicans or Democrats, identify themselves as Independents?

It tells you that America is looking toward people in Washington to provide the leadership to solve problems. They don't expect us to solve all of them—they are not unrealistic—but they would like us to prioritize on getting a budget on time, getting our fiscal house in order, on trying to fix a broken immigration system, produce a 5-year transportation bill, improve government accountability, and transparency. That is what they would like us to work on.

As I said when I began earlier this afternoon, I am Congressman JIM COSTA. I represent the 16th Congressional District in California, including all of Merced County, half of the flat land of Madera County—a lot of agriculture in both Merced and Madera Counties—and Fresno County. Fresno is, of course, my home.

The wonderful people that are part of the San Joaquin Valley that I have had the honor and privilege to represent over the years are what all Americans are like. They are some of the best and brightest. They are tenacious. They are hard working. They represent the story of America.

What is that story? Immigrants past, immigrants present—people come in from all over the world, striving to have a better life, a better opportunity for themselves and for their families.

That is why we are working to solve the water problems in the San Joaquin Valley—because, if we can solve the water problems in California and in the West, with the planet clicking 7 billion people last year and soon to have 9 billion people by the middle of this century, our solutions to water problems in California can be a template to solving water problems around the world because where water flows, food grows.

Clearly, we know that that is a daunting challenge, just like our energy problems are—but guess what. We are making progress on our energy problems. When I first came to Congress 10 years ago, we imported over 60 percent of our energy needs. Today, we import a little over 40 percent.

If we continue on the current path, in the next 10 years, we will be importing around 20 percent or less by using all the energy tools in our energy toolbox, just as we must use all the water tools in our water toolbox.

There is a lot to do. I would like to thank my colleagues in the Blue Dog Coalition for their time today, and their continued efforts over the year. Clearly, we have a lot of work to do together, and we want to reach out to work with everybody in the House of Representatives, the people's House.

The Blue Dog Coalition is ready and willing to work with everyone. We look forward to creating bridges, not cul de sacs, working with our colleagues on both sides of the aisle to advance commonsense policies that are physically sound, that benefit our entire Nation.

You could also call the Blue Dog Coalition the commonsense caucus because we reject the notion of gridlock in Washington. It is embarrassing; it is inexcusable.

Every day, when we put politics ahead of policy, we put our Nation at risk, and we stand to lose. Therefore, Congress must come together to address the critical issues as I said before: tax reform, immigration reform, and ways to further our Nation's economic recovery.

□ 1715

There is no problem in America, if we work together, that we cannot solve. We are here to represent and advocate for our constituents.

Please, for those of you who enjoyed the comments made by my fellow Blue Dog Coalition members this afternoon, you can go to www.bluedog.schrader.house.gov for more information.

The Blue Dog Coalition will continue to work to make a difference by advocating for sound legislation and working together with our colleagues on a bipartisan basis. That is what I have always done.

Today, as with my Blue Dog Coalition partners, we have the honor and the privilege to represent our constituents from throughout the land; and I would ask that my colleagues continue to make that effort because I think, at the end of the day, that is what all Americans want us to do.

I yield back the balance of my time.

MESSAGES FROM THE PRESIDENT

Messages in writing from the President of the United States were communicated to the House by Mr. Brian Pate, one of his secretaries.

CONTINUATION OF THE NATIONAL EMERGENCY WITH RESPECT TO ZIMBABWE—MESSAGE FROM THE PRESIDENT OF THE UNITED STATES (H. DOC. NO. 114–13)

The SPEAKER pro tempore laid before the House the following message from the President of the United States; which was read and, together with the accompanying papers, referred to the Committee on Foreign Affairs and ordered to be printed:

To the Congress of the United States:

Section 202(d) of the National Emergencies Act (50 U.S.C. 1622(d)) provides for the automatic termination of a national emergency unless, within 90 days prior to the anniversary date of its declaration, the President publishes in the *Federal Register* and transmits to the Congress a notice stating that the emergency is to continue in effect beyond the anniversary date. In accordance with this provision, I have sent to the *Federal Register* for publication the enclosed notice stating that the national emergency declared in Executive Order 13288 of March 6, 2003, with respect to the actions and policies of certain members of the Government of Zimbabwe and other persons to undermine Zimbabwe's democratic processes or institutions is to continue in effect beyond March 6, 2015.

The threat constituted by the actions and policies of certain members of the Government of Zimbabwe and other persons to undermine Zimbabwe's democratic processes or institutions has not been resolved. These actions and policies continue to pose an unusual and extraordinary threat to the foreign policy of the United States. For these reasons, I have determined that it is necessary to continue this national emergency and to maintain in force the sanctions to respond to this threat.

BARACK OBAMA.

THE WHITE HOUSE, *March 3, 2015.*

CONTINUATION OF THE NATIONAL EMERGENCY WITH RESPECT TO UKRAINE—MESSAGE FROM THE PRESIDENT OF THE UNITED STATES (H. DOC. NO. 114–14)

The SPEAKER pro tempore laid before the House the following message from the President of the United States; which was read and, together with the accompanying papers, referred to the Committee on Foreign Affairs and ordered to be printed:

To the Congress of the United States:

Section 202(d) of the National Emergencies Act (50 U.S.C. 1622 (d)) provides for the automatic termination of a national emergency unless, within 90 days prior to the anniversary date of its declaration, the President publishes in the *Federal Register* and transmits to the Congress a notice stating that the emergency is to continue in effect beyond the anniversary date. In accordance with this provision, I have sent to the *Federal Register* for publication the enclosed notice stating that the national emergency declared in Executive Order 13660 of March 6, 2014, is to continue in effect beyond March 6, 2015.

The actions and policies of persons that undermine democratic processes and institutions in Ukraine; threaten its peace, security, stability, sovereignty, and territorial integrity; and contribute to the misappropriation of its assets, as well as the actions and policies of the Government of the Russian Federation, including its purported annexation of Crimea and its use of force in Ukraine, continue to pose an unusual and extraordinary threat to the national security and foreign policy of the United States. Therefore, I have determined that it is necessary to continue the national emergency declared in Executive Order 13660 with respect to Ukraine.

BARACK OBAMA.

THE WHITE HOUSE, *March 3, 2015.*

APPOINTMENT OF MEMBERS TO JOINT ECONOMIC COMMITTEE

The SPEAKER pro tempore. The Chair announces the Speaker's appointment, pursuant to 15 U.S.C. 1024(a), and the order of the House of January 6, 2015, of the following Members on the part of the House to the Joint Economic Committee:

Mr. DELANEY, Maryland

Ms. ADAMS, North Carolina

Mr. BEYER, Virginia

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. SMITH of Missouri (at the request of Mr. MCCARTHY) for today on account of attending a funeral.

PUBLICATION OF BUDGETARY MATERIAL

REVISIONS TO THE ALLOCATIONS AND OTHER APPROPRIATE LEVELS OF THE FISCAL YEAR 2015 BUDGET RESOLUTION RELATED TO H.R. 240, DEPARTMENT OF HOMELAND SECURITY APPROPRIATIONS ACT, 2015

Mr. TOM PRICE of Georgia. Mr. Speaker, pursuant to section 314(a) of the Congressional Budget Act of 1974, I hereby submit for printing in the CONGRESSIONAL RECORD revisions to the aggregate budget levels and committee allocations set forth pursuant to H. Con. Res. 25 as deemed in force by H. Res. 5. The revision is for new budget authority and outlays for provisions designated as disaster relief, pursuant to section 251(b)(2)(D) of the Balanced Budget and Emergency Deficit Control Act of 1985, contained in H.R. 240, the Department of Homeland Security Appropriations Act, 2015. A corresponding table is attached.

This revision represents an adjustment for purposes of enforcing sections 302 and 311 of the Congressional Budget Act of 1974. For purposes of such Act, these revised allocations and aggregates are to be considered as included in the levels of the budget resolution, pursuant to section 101 of H. Con. Res. 25, as adjusted.

BUDGET AGGREGATES

[On-budget amounts, in millions of dollars]

	Fiscal year	
	2015	2015–2024
Current Aggregates:		
Budget Authority	3,033,228	[1]
Outlays	3,027,646	[1]
Revenues	2,535,978	31,206,399
Adjustment for H.R. 240, the Department of Homeland Security Appropriations Act, 2015:		
Budget Authority	91	[1]
Outlays	40	[1]
Revenues	0	0
Revised Aggregates:		
Budget Authority	3,033,319	[1]
Outlays	3,027,686	[1]
Revenues	2,535,978	31,206,399

[1] Not applicable because annual appropriations acts for fiscal years 2016–2024 will not be considered until future sessions of Congress.

ALLOCATION OF SPENDING AUTHORITY TO HOUSE COMMITTEE ON APPROPRIATIONS

[In millions of dollars]

	2015
Base Discretionary Action:	
BA	1,021,550
OT	1,144,061
Adjustment for Disaster Designated Spending:	
BA	91
OT	40
Global War on Terrorism:	
BA	85,357
OT	39,981
Total Discretionary Action:	
BA	1,106,998
OT	1,184,082
Current Law Mandatory:	
BA	868,410
OT	861,637

BILL PRESENTED TO THE PRESIDENT

Karen L. Haas, Clerk of the House, reported that on February 27, 2015, she presented to the President of the United States, for his approval, the following bill:

H.R. 33. To amend the Internal Revenue Code of 1986 to ensure that emergency services volunteers are not taken into account as employees under the shared responsibility requirements contained in the Patient Protection and Affordable Care Act.

ADJOURNMENT

Mr. COSTA. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 5 o'clock and 20 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, March 4, 2015, at 10 a.m. for morning-hour debate.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. BURGESS: Committee on Rules. House Resolution 138. Resolution providing for consideration of the bill (H.R. 1029) to amend the Environmental Research, Development, and Demonstration Authorization Act of 1978 to provide for Scientific Advisory Board member qualifications, public participation, and for other purposes, and providing for consideration of the bill (H.R. 1030) to prohibit the Environmental Protection Agency from proposing, finalizing, or disseminating regulations or assessments based upon science that is not transparent or reproducible (Rept. 114–37). Referred to the House Calendar.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. GARAMENDI (for himself, Mr. DESAULNIER, Ms. MATSUI, Mr. MCNERNEY, and Mr. THOMPSON of California):

H.R. 1208. A bill to establish the Sacramento-San Joaquin Delta National Heritage Area; to the Committee on Natural Resources.

By Mr. BURGESS (for himself, Mrs. CAPPS, and Ms. DUCKWORTH):

H.R. 1209. A bill to amend the Public Health Service Act to provide for the designation of maternity care health professional shortage areas; to the Committee on Energy and Commerce.

By Mr. BARR (for himself, Mr. AMODEI, Mr. BLUM, Mr. DOLD, Mr. DUFFY, Mr. FINCHER, Mr. GUINTA, Mrs. HARTZLER, Mr. HILL, Mr. HULTGREN, Mr. JOYCE, Mr. KING of New York, Mr. LUCAS, Mr. LUETKEMEYER, Mr. MESSER, Mr. MULVANEY, Mr. NEUGEBAUER, Mr. RENACCI, Mr. RIBBLE, Mr. ROTHFUS, Mr. STIVERS, Mr. STUTZMAN, Mr. TIPTON, Mr. WEBER of Texas, and Mr. EMMER of Minnesota):

H.R. 1210. A bill to amend the Truth in Lending Act to provide a safe harbor from certain requirements related to qualified mortgages for residential mortgage loans held on an originating depository institution's portfolio, and for other purposes; to the Committee on Financial Services.

By Mrs. NAPOLITANO (for herself, Mr. GIBSON, and Mr. TONKO):

H.R. 1211. A bill to amend the Public Health Service Act to revise and extend projects relating to children and violence to provide access to school-based comprehensive mental health programs; to the Committee on Energy and Commerce.

By Mrs. BLACKBURN (for herself, Mr. GUTHRIE, Mr. MCKINLEY, Mr. OLSON, Mr. LATTA, Mrs. BROOKS of Indiana, Mrs. ELLMERS of North Carolina, Mr. CRAMER, Mr. MULLIN, Mr. FLORES, Mr. LANCE, Mr. BARTON, Mr. SHIMKUS, Mr. HUDSON, Mr. PITTS, Mr. HARPER, Mr. POMPEO, Mr. JOHNSON of Ohio, Mr. COLLINS of New York, and Mr. BURGESS):

H.R. 1212. A bill to prohibit the Federal Communications Commission from reclassifying broadband Internet access service as a telecommunications service and from imposing certain regulations on providers of such service; to the Committee on Energy and Commerce.

By Mrs. MILLER of Michigan (for herself and Mr. BRADY of Pennsylvania):

H.R. 1213. A bill to make administrative and technical corrections to the Congressional Accountability Act of 1995; to the Committee on House Administration.

By Mr. AMODEI:

H.R. 1214. A bill to amend the Small Tracts Act to expand the authority of the Secretary of Agriculture to sell or exchange small parcels of National Forest System land to enhance the management of the National Forest System, to resolve minor encroachments, and for other purposes; to the Committee on Natural Resources, and in addition to the Committee on Agriculture, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. LABRADOR (for himself, Mr. DUNCAN of South Carolina, Mr. MCCLINTOCK, Mr. RIBBLE, Mr. SIMPSON, Mr. BENISHEK, Mr. PEARCE, Mr. BABIN, Mr. WESTERMAN, and Mr. GROTHMAN):

H.R. 1215. A bill to exempt certain 16- and 17-year-old children employed in logging or mechanized operations from child labor laws; to the Committee on Education and the Workforce.

By Mr. LYNCH (for himself, Mr. CAPUANO, Mr. ELLISON, and Mr. HINOJOSA):

H.R. 1216. A bill to require the Securities and Exchange Commission to carry out a pilot program to examine maker-taker pricing, and for other purposes; to the Committee on Financial Services.

By Mr. KING of New York (for himself, Mr. THOMPSON of California, Mr. FITZPATRICK, Mr. MEEHAN, Ms. ESTY, Mr. DOLD, Miss RICE of New York, and Mr. THOMPSON of Mississippi):

H.R. 1217. A bill to protect Second Amendment rights, ensure that all individuals who should be prohibited from buying a firearm are listed in the National Instant Criminal Background Check System, and provide a responsible and consistent background check process; to the Committee on the Judiciary, and in addition to the Committee on Veterans' Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BOUSTANY (for himself and Mr. KIND):

H.R. 1218. A bill to amend the Internal Revenue Code of 1986 to treat certain amounts paid for physical activity, fitness, and exercise as amounts paid for medical care; to the Committee on Ways and Means.

By Mr. COLE:

H.R. 1219. A bill to authorize the Secretary of the Interior to convey certain land and appurtenances of the Arbuckle Project, Oklahoma, to the Arbuckle Master Conservancy District, and for other purposes; to the Committee on Natural Resources.

By Mr. DENT (for himself, Mr. PAYNE, Mr. FITZPATRICK, and Mr. COURTNEY):

H.R. 1220. A bill to amend title XVIII of the Social Security Act to waive coinsurance under Medicare for colorectal cancer screening tests, regardless of whether therapeutic intervention is required during the screening; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. ELLMERS of North Carolina (for herself, Ms. DEGETTE, and Mr. WENSTRUP):

H.R. 1221. A bill to amend title XIX of the Social Security Act to cover physician services delivered by podiatric physicians to ensure access by Medicaid beneficiaries to appropriate quality foot and ankle care, to amend title XVIII of such Act to modify the

requirements for diabetic shoes to be included under Medicare, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. ESTY (for herself, Mr. BRADY of Pennsylvania, Mr. COHEN, Mr. COOK, Mr. GARAMENDI, Mr. ISRAEL, Mr. JONES, Mr. KEATING, Mr. KING of New York, Mr. TED LIEU of California, Mr. DAVID SCOTT of Georgia, Ms. SPEIER, Mr. WELCH, and Mr. DESAULNIER):

H.R. 1222. A bill to amend chapter 21 of title 5, United States Code, to provide that fathers of certain permanently disabled or deceased veterans shall be included with mothers of such veterans as preference eligibles for treatment in the civil service; to the Committee on Oversight and Government Reform.

By Mr. FORTENBERRY:

H.R. 1223. A bill to amend the Internal Revenue Code of 1986 to prevent the retroactive claim of the earned income tax credit after issuance of a social security number; to the Committee on Ways and Means.

By Mr. PERLMUTTER (for himself and Mr. SCHWEIKERT):

H.R. 1224. A bill to require the exercise of clean-up call options under securities issued by the Federal Home Loan Mortgage Corporation and to prohibit any new mortgage-backed securities issued by such Corporation or the Federal National Mortgage Association from containing provisions for a clean-up call option, and for other purposes; to the Committee on Financial Services.

By Mr. PIERLUISI:

H.R. 1225. A bill to amend title XVIII of the Social Security Act to allow certain hospitals in Puerto Rico to qualify for incentives for adoption and meaningful use of certified EHR Technology under the Medicare program, and for other purposes; to the Committee on Ways and Means.

By Mr. RIBBLE:

H.R. 1226. A bill to amend the Individuals with Disabilities Education Act to clarify the maintenance of effort requirement for local educational agencies; to the Committee on Education and the Workforce.

By Mr. TAKANO (for himself, Mr. COOK, and Mr. MULVANEY):

H.R. 1227. A bill to authorize a pilot program in the Department of Defense to enhance efforts to provide job placement assistance and related employment services directly to members of the National Guard and Reserves and veterans of the Armed Forces; to the Committee on Armed Services, and in addition to the Committee on Veterans' Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. TURNER:

H.R. 1228. A bill to limit United States assistance to Bosnia and Herzegovina until Bosnia and Herzegovina is in compliance with the state borders established by the Conference on Yugoslavia Arbitration Commission; to the Committee on Foreign Affairs, and in addition to the Committee on Armed Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. WELCH (for himself and Mr. JONES):

H.R. 1229. A bill to amend the FAA Modernization and Reform Act of 2012 to provide guidance and limitations regarding the integration of unmanned aircraft systems into United States airspace, and for other purposes; to the Committee on Transportation and Infrastructure, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. WESTERMAN:

H.R. 1230. A bill to amend title 5, United States Code, to adjust the calculation of average pay for purposes of Federal civilian annuities; to the Committee on Oversight and Government Reform.

By Mr. HOYER (for himself, Mr. VAN HOLLEN, Ms. NORTON, Ms. EDWARDS, Mr. DELANEY, Mr. CONNOLLY, Mr. BEYER, and Mrs. COMSTOCK):

H. Con. Res. 21. Concurrent resolution authorizing the use of the Capitol Grounds for the Greater Washington Soap Box Derby; to the Committee on Transportation and Infrastructure.

By Mr. OLSON:

H. Con. Res. 22. Concurrent resolution authorizing the use of Emancipation Hall in the Capitol Visitor Center for a ceremony to present the Congressional Gold Medal to the World War II members of the Doolittle Tokyo Raiders; to the Committee on House Administration.

By Mr. THOMPSON of California (for himself, Mr. SWALWELL of California, Ms. SPEIER, Mr. TAKANO, Ms. NORTON, Ms. CLARK of Massachusetts, Mr. POCAN, Ms. MATSUI, Mrs. NAPOLITANO, Ms. LEE, Ms. KAPTUR, Ms. ESTY, Ms. DELAURO, Mr. LOWENTHAL, Mr. FARR, Ms. BONAMICI, Mrs. DAVIS of California, Mr. RANGEL, Ms. SLAUGHTER, Ms. HAHN, Mrs. CAROLYN B. MALONEY of New York, Ms. LORETTA SANCHEZ of California, Ms. WASSERMAN SCHULTZ, Ms. CLARKE of New York, Ms. MCCOLLUM, Mrs. DINGELL, Mr. HINOJOSA, Ms. BROWN of Florida, Ms. ADAMS, Mr. GRIJALVA, Mr. HASTINGS, Ms. LINDA T. SÁNCHEZ of California, Ms. JACKSON LEE, Mr. KIND, Ms. TITUS, Ms. EDWARDS, Mr. CASTRO of Texas, Mr. PETERS, Mrs. BUSTOS, Mr. KEATING, Ms. TSONGAS, Mr. LOEBSACK, Mr. LARSEN of Washington, Mr. SARBANES, Ms. LOFGREN, Ms. ESHOO, Mr. MEEKS, Ms. WILSON of Florida, Mr. VALADAO, Ms. PINGREE, Mr. PERLMUTTER, Mr. ENGEL, Ms. BORDALLO, Mr. COSTA, Ms. JUDY CHU of California, Mrs. TORRES, and Mrs. BROOKS of Indiana):

H. Res. 137. A resolution supporting the goals and ideals of National Women's History Month; to the Committee on Oversight and Government Reform.

By Mrs. BLACK (for herself, Mr. PEARCE, Mr. LATTA, Mr. HUELSKAMP, Mrs. WALORSKI, Mrs. ELLMERS of North Carolina, Mr. NEUGEBAUER, Mrs. WAGNER, Mrs. MCMORRIS RODGERS, and Mrs. HARTZLER):

H. Res. 139. A resolution condemning violence against religious minorities in the Middle East and any actions that limit the free expression and practice of faith by these minorities; to the Committee on Foreign Affairs.

By Mr. LAMALFA (for himself, Ms. SINEMA, Mrs. ROBY, and Mr. SWALWELL of California):

H. Res. 140. A resolution expressing support for designation of August 2015 as ''Blue Star Mothers of America Month''; to the Committee on Armed Services.

By Ms. LEE (for herself, Mr. BURGESS, Mr. HARPER, Mr. LEVIN, Mr. LANGEVIN, Ms. CLARKE of New York, Ms. NORTON, Mr. GRIJALVA, Mr. KELLY of Pennsylvania, Mr. RYAN of Ohio, and Ms. MOORE):

H. Res. 141. A resolution supporting the goals and ideals of Multiple Sclerosis Awareness Week; to the Committee on Energy and Commerce.

PRIVATE BILLS AND RESOLUTIONS

Under clause 3 of rule XII,

Mrs. DAVIS of California introduced a bill (H.R. 1231) for the relief of Flavia Maboloc Cahoon; which was referred to the Committee on the Judiciary.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. GARAMENDI:

H.R. 1208.

Congress has the power to enact this legislation pursuant to the following:

The Congress enacts this bill pursuant to Clauses 1 and 18 of Section 8 of Article I of the United States Constitution and Amendment XVI of the United States Constitution.

By Mr. BURGESS:

H.R. 1209.

Congress has the power to enact this legislation pursuant to the following:

Article One, Section Eight, Clause Three ''To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.''

By Mr. BARR:

H.R. 1210.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3: ''The Congress shall have power . . . To regulate commerce with foreign nations, and among the several states, and with the Indian tribes.''

By Mrs. NAPOLITANO:

H.R. 1211.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

The Congress shall have power to lay and collect taxes, duties, imposts and excises, to pay the debts and provide for the common defense and general welfare of the United States; but all duties, imposts and excises shall be uniform throughout the United States;

By Mrs. BLACKBURN:

H.R. 1212.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 ''necessary and proper'' clause.

By Mrs. MILLER of Michigan:

H.R. 1213.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution, which grants Congress the authority to make laws governing the commerce among several states, including employment discrimination laws.

By Mr. AMODEI:

H.R. 1214.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this bill rests is the power of Congress to make rules for the government and regulation of the land and naval forces, as enumerated in Article I, Section 8, Clause 14 of the United States Constitution.

By Mr. LABRADOR:
H.R. 1215.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, Clause 3, which gives Congress the authority, ''To Regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;''
By Mr. LYNCH:
H.R. 1216.
Congress has the power to enact this legislation pursuant to the following:
Article I Section 8 Clause 18 of the United States Constitution.
By Mr. KING of New York:
H.R. 1217.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 6
The Congress shall have Power . . . To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.
By Mr. BOUSTANY:
H.R. 1218.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
By Mr. COLE:
H.R. 1219.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to Article I, Section 8 which allows Congress to regulate trade amongst the Indian Tribes.
This bill is enacted pursuant to the power granted to Congress under Article IV, Section 3, Clause 2 which grants Congress the power to make all needful Rules and Regulations respecting . . . Property belonging to the United States.
By Mr. DENT:
H.R. 1220.
Congress has the power to enact this legislation pursuant to the following:
Article 1 section 8 of the US Constitution
By Mrs. ELLMERS of North Carolina:
H.R. 1221.
Congress has the power to enact this legislation pursuant to the following:
The Commerce Clause: Article I, Section 8, Clause 3 of the U.S. Constitution gives Congress the power ''to regulate commerce with foreign nations, and among the several states, and with the Indian tribes.''
By Ms. ESTY:
H.R. 1222.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
By Mr. FORTENBERRY:
H.R. 1223.
Congress has the power to enact this legislation pursuant to the following:
The constitutional authority for this bill is pursuant to Article I, Section 8, Clause 18 of the United States Constitution.
By Mr. PERLMUTTER:
H.R. 1224.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8 of the US Constitution
By Mr. PIERLUISI:
H.R. 1225.
Congress has the power to enact this legislation pursuant to the following:
The constitutional authority on which this bill rests is the power of the Congress to provide for the general welfare of the United States, as enumerated in Article I, Section 8, Clause 1 of the United States Constitution; to make all laws which shall be necessary and proper for carrying into execution such power, as enumerated in Article I, Section 8, Clause 18 of the Constitution; and to make rules and regulations respecting the U.S. territories, as enumerated in Article IV, Section 3, Clause 2 of the Constitution.
By Mr. RIBBLE:
H.R. 1226.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the U.S. Constitution
By Mr. TAKANO:
H.R. 1227.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8 of the Constitution of the United States.
By Mr. TURNER:
H.R. 1228.
Congress has the power to enact this legislation pursuant to the following:
Clause 3 of Section 8 of Article I of the Constitution.
By Mr. WELCH:
H.R. 1229.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, Clause 18: The Congress shall have Power To . . . make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof..
By Mr. WESTERMAN:
H.R. 1230.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Sec. 8, Clause 1. General Welfare Clause.
The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;
By Mrs. DAVIS of California:
H.R. 1231.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 1

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 20: Mr. RYAN of Ohio.
H.R. 93: Mr. ENGEL.
H.R. 156: Mr. LUCAS.
H.R. 213: Mr. CRAMER.
H.R. 223: Mr. QUIGLEY.
H.R. 228: Mr. NORCROSS.
H.R. 239: Mr. LOBIONDO, Mr. NOLAN, Mr. BEN RAY LUJÁN of New Mexico, Mr. SIRES, Ms. CLARK of Massachusetts, Mr. JOHNSON of Georgia, Mr. LEVIN, Ms. TSONGAS, Ms. SCHAKOWSKY, Mr. TONKO, Mr. BEYER, Mr. WALZ, Ms. SLAUGHTER, Mr. BLUMENAUER, Mr. POCAN, Mr. MCGOVERN, Mr. WELCH, Mr. SCHIFF, Mr. ELLISON, Mr. ISRAEL, Ms. CLARKE of New York, Ms. ESTY, Ms. SPEIER, Mrs. NAPOLITANO, Mr. TAKANO, Ms. DELAURO, Mr. GUTIÉRREZ, Mrs. CAPPS, Mr. CROWLEY, Mr. HIMES, Ms. NORTON, Mr. CARTWRIGHT, Ms. MATSUI, Mr. RANGEL, Mr. CONNOLLY, Mr. PRICE of North Carolina, Mr. SARBANES, Ms. LEE, Mr. DOGGETT, Ms. ESHOO, Mr. KIND, Ms. DEGETTE, Mr. LOEBSACK, Mr. LIPINSKI, Mr. QUIGLEY, Mr. DEUTCH, Ms. LOFGREN, Mr. MCDERMOTT, Ms. PINGREE, Mr. VAN HOLLEN, Mr. LANGEVIN, Mr. SWALWELL of California, Ms. MCCOLLUM, Mr. SCOTT of Virginia, Mr. YARMUTH, Mr. DEFAZIO, Mr. GRIJALVA, Mr. NADLER, Mrs. BUSTOS, Ms. ROYBAL-ALLARD, Mr. KILMER, Mr. KEATING, Mr. PETERS, Mr. O'ROURKE, and Mr. CAPUANO.
H.R. 284: Mr. WHITFIELD and Mr. YOUNG of Iowa.
H.R. 335: Mr. BEYER and Ms. ESTY.
H.R. 348: Mr. COLLINS of Georgia, Mr. SMITH of Texas, Mrs. MIMI WALTERS of California, and Mr. ISSA.
H.R. 531: Mr. CARTWRIGHT.
H.R. 546: Mr. CONYERS, Mr. MCNERNEY, Mr. KILMER, and Mr. RUSH.
H.R. 572: Mr. THOMPSON of California.
H.R. 579: Mr. RENACCI and Mr. AMODEI.
H.R. 592: Mr. NOLAN.
H.R. 624: Ms. MOORE, Ms. SLAUGHTER, Mr. CICILLINE, Mr. ELLISON, and Mrs. BROOKS of Indiana.
H.R. 625: Mr. JOYCE and Mr. NORCROSS.
H.R. 650: Mr. DUFFY, Mr. FRANKS of Arizona, Mrs. WALORSKI, Mr. GOSAR, and Mr. WHITFIELD.
H.R. 662: Mr. BLUM, Mr. BARR, and Mr. ROONEY of Florida.
H.R. 699: Mr. PERLMUTTER.
H.R. 700: Mr. KILMER.
H.R. 707: Mr. ASHFORD.
H.R. 721: Mr. DUNCAN of Tennessee, Mr. BOST, Mr. HUDSON, Mr. REICHERT, Mr. RICE of South Carolina, Mr. ROSS, Ms. BROWN of Florida, Mr. NADLER, Mr. DEFAZIO, Mr. SIRES, Mr. VALADAO, Mr. BISHOP of Georgia, Mr. GOSAR, Mrs. HARTZLER, Mr. LOWENTHAL, and Mr. THOMPSON of California.
H.R. 756: Ms. DUCKWORTH and Mr. BEYER.
H.R. 767: Ms. LINDA T. SÁNCHEZ of California.
H.R. 769: Mr. RODNEY DAVIS of Illinois.
H.R. 774: Mr. HUFFMAN.
H.R. 775: Ms. BONAMICI, Ms. BROWN of Florida, Mr. TONKO, Mr. CARTWRIGHT, Mr. KILMER, Mr. DESANTIS, and Mr. LEWIS.
H.R. 776: Mr. SCHOCK.
H.R. 835: Mr. HASTINGS.
H.R. 836: Mr. BURGESS, Mr. AMODEI, Mr. YOUNG of Indiana, Mr. DESJARLAIS, and Mr. FLORES.
H.R. 842: Mr. CLAWSON of Florida, Mr. SEAN PATRICK MALONEY of New York, and Mr. NEWHOUSE.
H.R. 843: Mr. UPTON.
H.R. 846: Ms. PELOSI and Mr. PERLMUTTER.
H.R. 855: Mr. NOLAN.
H.R. 869: Mr. NOLAN and Mr. PAULSEN.
H.R. 874: Mr. BEN RAY LUJÁN of New Mexico and Ms. BONAMICI.
H.R. 879: Mr. CURBELO of Florida.
H.R. 882: Mr. DOLD.
H.R. 885: Mrs. BUSTOS.
H.R. 887: Mr. SCHWEIKERT.
H.R. 893: Mr. LEWIS, Mr. HUDSON, Mr. YODER, Mr. JOYCE, Mr. COLLINS of Georgia, Mr. MARCHANT, Mr. PETERSON, Mr. DELANEY, Mr. ROHRABACHER, Mr. EMMER of Minnesota, Ms. LORETTA SANCHEZ of California, Mrs. COMSTOCK, Mr. HARRIS, Mr. GENE GREEN of Texas, Mr. WESTMORELAND, Mr. BURGESS, Mr. YOUNG of Iowa, Mr. WENSTRUP, Mr. PALAZZO, Mr. STIVERS, Mr. MCKINLEY, Mrs. BLACK, Ms. GABBARD, Mr. CLAWSON of Florida, Ms. TITUS, Ms. KUSTER, Mr. WEBSTER of Florida, Ms. GRAHAM, Mr. DUNCAN of Tennessee, Mr. ROGERS of Kentucky, Mr. RICHMOND, and Mr. GUINTA.
H.R. 921: Mr. ASHFORD and Mr. HILL.
H.R. 928: Mrs. ROBY, Ms. GRANGER, Mr. BISHOP of Utah, and Mr. LOBIONDO.
H.R. 932: Mr. DELANEY, Mr. VEASEY, and Mr. ENGEL.
H.R. 935: Mr. TED LIEU of California and Ms. NORTON.
H.R. 940: Mr. WESTMORELAND, Mr. HARDY, Mr. SMITH of Texas, Mr. ALLEN, Mr. SCALISE, Mr. MEADOWS, Mr. SENSENBRENNER, and Mr. TOM PRICE of Georgia.
H.R. 953: Mr. GUINTA.
H.R. 955: Mr. SCHWEIKERT.
H.R. 971: Mr. POLIQUIN, Mr. GRAVES of Missouri, and Mr. GROTHMAN.
H.R. 975: Mr. ZINKE and Mr. MULVANEY.
H.R. 976: Mr. WILLIAMS and Mr. HILL.

H.R. 1000: Ms. SLAUGHTER.
H.R. 1051: Mr. ROYCE.
H.R. 1062: Mr. JONES, Mr. POMPEO, and Mr. HUELSKAMP.
H.R. 1063: Mr. LARSON of Connecticut and Mr. KIND.
H.R. 1077: Mr. GOSAR.
H.R. 1078: Mr. MCNERNEY and Mr. BILIRAKIS.
H.R. 1094: Mr. DUNCAN of South Carolina, Mr. CRENSHAW, Mrs. WALORSKI, Mr. DUFFY, and Mr. GOSAR.
H.R. 1095: Mr. QUIGLEY and Mr. ELLISON.
H.R. 1105: Mr. MCCAUL, Mr. WESTMORELAND, Mr. MULLIN, Mr. JONES, Mr. LAMALFA, Mr. DENHAM, Mr. YOUNG of Alaska, Mrs. BLACK, Mr. YOUNG of Indiana, Mr. HULTGREN, Mr. STEWART, Mr. HARPER, Mr. BLUM, Mr. PAULSEN, Mr. CRAMER, Mr. MASSIE, Mr. MEEHAN, Mr. COOK, Mr. SCHOCK, Mr. BUCK, Mr. ZINKE, Mr. MARCHANT, Mrs. COMSTOCK, and Mr. DUFFY.
H.R. 1142: Mr. MARCHANT.
H.R. 1143: Mr. RYAN of Ohio and Mrs. BROOKS of Indiana.
H.R. 1148: Mr. ISSA, Mr. BROOKS of Alabama, Mr. BYRNE, Mr. LANCE, Mr. SESSIONS, Mr. STIVERS, and Mr. GOSAR.
H.R. 1149: Mr. STIVERS.
H.R. 1162: Ms. BONAMICI.
H.R. 1173: Mr. HINOJOSA and Mr. ELLISON.
H.R. 1179: Mr. TOM PRICE of Georgia.
H.R. 1185: Mr. BURGESS and Mr. RIBBLE.
H.R. 1188: Ms. BONAMICI.
H.R. 1198: Ms. KUSTER.
H.J. Res. 22: Miss RICE of New York.
H.J. Res. 29: Mr. DESANTIS.
H.J. Res. 32: Mr. OLSON.
H. Res. 12: Mrs. NAPOLITANO, Ms. JACKSON LEE, Mr. TAKAI, Mr. TED LIEU of California, Mr. HONDA, and Mr. CÁRDENAS.
H. Res. 15: Mr. RODNEY DAVIS of Illinois.
H. Res. 28: Mr. LEWIS and Mr. CROWLEY.
H. Res. 102: Mr. PETERSON and Mr. COHEN.
H. Res. 109: Mr. BENISHEK and Mr. BURGESS.
H. Res. 122: Ms. SLAUGHTER.

CONGRESSIONAL EARMARKS, LIMITED TAX BENEFITS, OR LIMITED TARIFF BENEFITS

Under clause 9 of rule XXI, lists or statements on congressional earmarks, limited tax benefits, or limited tariff benefits were submitted as follows:

The amendment to be offered by Representative GRAYSON, or a designee, to H.R. 1029, the EPA Science Advisory Board Reform Act of 2015, does not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

The amendment to be offered by Representative DONNA F. EDWARDS, or a designee, to H.R. 1030, the Secret Science Reform Act, does not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

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PROCEEDINGS AND DEBATES OF THE 114th CONGRESS, FIRST SESSION

Vol. 161 WASHINGTON, TUESDAY, MARCH 3, 2015 *No. 36*

Senate

The Senate met at 9:45 a.m. and was called to order by the President pro tempore (Mr. HATCH).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Eternal God, let the moments and hours of this day reverberate with the sounds of Your unfolding providence. May our Senators hear You working throughout their deliberations, transforming the discordant into the harmonious. May Your unseen presence enable them to discern the direction that they should take, as they seek to heed Your instructions and follow Your commands. As they fellowship with You, give them discomfort with easy answers, half truths, and superficial relationships. Lord, inspire them to believe that they can make a difference in this world.

We pray in Your Holy Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER (Mr. BOOZMAN). The majority leader is recognized.

AUTHORIZING APPOINTMENT OF ESCORT COMMITTEE

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the President of the Senate be authorized to appoint a committee on the part of the Senate to join with a like committee on the part of the House of Representatives to escort His Excellency Benjamin Netanyahu into the House Chamber for the joint meeting at 11 a.m., on Tuesday, March 3, 2015.

The PRESIDING OFFICER. Without objection, it is so ordered.

THE ISRAELI PRIME MINISTER'S ADDRESS TO CONGRESS

Mr. MCCONNELL. Mr. President, later this morning, the Israeli Prime Minister Benjamin Netanyahu will deliver an important address to Congress. Members of both parties extend a warm welcome to him.

This leader is a great friend of our country, and his visit comes at a critical moment in the relations between our countries.

The Prime Minister's address coincides with an increasingly aggressive Iranian campaign to expand its sphere of influence across the Middle East. It represents a threat to both of our countries, it represents a threat to moderate Sunni allies, and it represents a threat to the international community at large.

That is why Prime Minister Netanyahu is here today. He is ideally suited to explain the multitude of challenges this presents—including the threat of an Iran with nuclear weapons capability—and how our countries can address them jointly.

So we are glad the Prime Minister is here with us today. We will be listening closely to what he has to say.

I hope the Obama administration will be listening, too, because this visit isn't about personalities, it is about doing what is best for both of our countries, and here some context is important.

As it has been since its founding, Israel is in a constant state of existential crisis. It is continuously threatened by terrorists, such as Hezbollah and the Palestinian Islamic Jihad, who work every day to see a democratic Israel destroyed. Israel's leaders wake every morning knowing that with just one wrong decision, it could be their last in an open and tolerant democracy. That is the frame through which the Israelis approach their national security policy.

Here is the frame the Obama administration uses: It formulates policy with two objectives in mind—fulfilling political campaign promises made back in 2008 and pursuing politically expedient solutions to whatever stands in the way of the first objective. We can see the basis for tension right there.

For me, there are two bookends that define President Obama's foreign policy.

The Executive orders that attempted to close Guantanamo without a credible plan for what to do with its detainees, and to essentially end our ability to capture, detain, and interrogate terrorists, regardless of the threats that remain for our country, represent one bookend.

The President's push to withdraw all combat forces from Iraq and Afghanistan by the end of his term, regardless of the threats posed by the Taliban or the senior leadership of Al Qaeda, represents the other bookend.

The politics-above-policy approach mystifies allies such as Israel. You can see it in many other decisions too—for instance, the President's failure to negotiate an agreement with Iraq for a residual military force that may have prevented the assault by ISIL. Instead, as threats from Al Qaeda and affiliated groups metastasized, the President focused on unwinding or reversing past policies through Executive order. Uprisings in North Africa and the broader Middle East resulted in additional ungoverned space in Syria, Libya, and Yemen. The capital of Yemen is now occupied by the Houthi militia, and the Yemenis are no more ready to detain the terrorists at Guantanamo today than they were in 2009.

What has the President's response to all this been? To draw down our conventional forces and capabilities.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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Even as China and Russia have grown more belligerent, the President sees no need to reverse the harmful damage of the defense cuts he has insisted upon. He sees no need to rebuild our conventional and nuclear forces.

He sees no need to accept that leaving behind residual forces in Iraq and Afghanistan represents an effective means by which to preserve the strategic gains we have made over the years, through tremendous sacrifice.

The President has always assumed the role of Commander in Chief with great reluctance. That is particularly true of his dealings with Iran. For years, Iran has continued to enrich uranium. For years, Iran has refused to come clean to the IAEA. But ending Iran's nuclear weapons program has never fit neatly between the administration's policy bookends.

The President believed he could extend a hand of friendship and bring the Supreme Leader to the table. Even though that approach failed, the President now seems determined to conclude an agreement with Iran that would leave it with a threshold nuclear capability. It is an agreement that could allow Iran to retain thousands of centrifuges, master the nuclear fuel cycle, advance ballistic missile research and testing, and keep secret any possible military dimensions of nuclear development that have already occurred.

The administration has pursued these negotiations not as part of an overall strategy to end Iran's nuclear program, but as a stand-alone matter of litigation where a settlement must be reached. This negotiation should not be about getting the best deal that the Iranians will agree to, it should be about the strategic objective of ending Iran's nuclear weapons program. To do this, the administration must be committed to using force if negotiations fail.

The strategic ambiguity of leaving ''all options on the table'' has never been convincing, and the administration refused to work with Congress on developing a sanctions and declaratory military response should negotiations fail. It is unlikely that this Congress could be convinced to lift sanctions absent a complete disclosure on the part of the Iranians of all previous research conducted in pursuit of a nuclear device.

And this gets back to the differences between the perspective of the Israeli government concerning Iran's nuclear capability and those of the Obama administration.

Iran is pursuing full spectrum warfighting capabilities to wage war against Israel, the United States, and our Sunni allies in the region.

Iran is developing cyber capabilities to harass and harm its adversaries, ballistic missile capabilities, and conventional capabilities to deny United States warships access to the Persian Gulf.

Iran remains a state sponsor of terror.

Tehran also continues to push ever deeper into Iraq.

In its fight within Iraq, Iran's proxy Shia militias have gained valuable combat experience on the ground to add to the terrorist tactics of employing IEDs that were perfected against United States forces. The withdrawal of U.S. forces from Iraq not only led to the abandonment of the Sunni tribes which had allied with us in Anbar Province, it led to a greater reliance upon the Iranians by the Baghdad government.

The Iranian Revolutionary Guard Corps and the Qods Force are expanding their command and control and combat capabilities in Iraq and Syria and gaining valuable warfighting lessons.

The Qods force and Hezbollah are mastering an expeditionary fighting capability that should concern Israel, the United States, and our Sunni allies. The Iranians are natural allies of the Houthi militias in Yemen.

Setting aside the nuclear program, from a perspective of strategy, the Iranians are advancing across the region in all other aspects of warfighting. All of this has occurred while sanctions have been in place and the price of oil has declined.

From the perspective of any Israeli Prime Minister, Iran's advances have occurred while the terrorist presence in the Sinai has grown, the Nusrah front and ISIL are present in Syria, and Libya has become a terrorist training ground.

Because the administration has all but conceded the Iranian nuclear enrichment capability, Israel has grown more isolated. It has come to understand that it may have to act alone. Yet rather than ending Iran's nuclear weapons program, President Obama's objective seems to be to defer any decision about the use of force to one of his successors. That may be politically expedient, but it is inconsistent with the national security requirements of Israel.

I say all this to underline the importance of the Prime Minister's address this morning.

We have seen the results of a politics-above-all foreign policy now for several years: It leaves our Nation strategically weaker, and will make challenges faced by the President's successor all the more difficult.

Israel has seen this too. Israel knows it may well be the first to suffer if the Obama White House makes another flawed political decision, but Americans should understand it is not just Israel that needs to worry. We should be concerned by a nuclear Iran. The whole world should be concerned by a nuclear Iran, and the Prime Minister is going to help explain why that is. For Israel's sake and ours, I for one am very glad he is.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Senator from Nevada is recognized.

LYNCH NOMINATION

Mr. REID. Mr. President, today marks the 115th day since President Obama announced he was nominating Loretta Lynch to be Attorney General of the United States. That makes her the longest pending Attorney General nominee in more than four decades.

The Senate Judiciary Committee reported her nomination favorably last week. So what is the wait? Why can't we get this woman approved? It appears we are not going to this week.

She has a spotless record and credentials that are above reproach. There is absolutely no reason she should have to wait any longer for confirmation. Our Nation needs an Attorney General. Each day that passes without Ms. Lynch's nomination being confirmed is yet another testimony to Republicans' inability to govern.

NATIONAL LABOR RELATIONS BOARD

Mr. REID. Mr. President, last December, rightfully, the National Labor Relations Board voted to make important changes to union election procedures. Their rule changes are good for workers and businesses. They modernize the election process and help prevent delays and frivolous litigation.

I am sure there are some businesses that oppose this, but I haven't found them. This is simply a problem that has been engendered by the Republicans in the Senate. They are trying to roll back these reforms instead of supporting the rights of workers. The reforms they made are so basic, such as using email and using other processes such as a fax machine and using the employers' records, not the unions' records.

Later this afternoon the Senate will consider a Republican-introduced resolution of disapproval which seeks to undo the NLRB's rules changes. This is yet another sad reminder of how little regard Republicans have for the American worker.

Last year we saw Republicans vote against an increase in the minimum wage, as well as legislation that would ensure American women get the same pay for doing the same work as men. Republicans in Congress I don't think get it.

We are in this building, in this Chamber, to help the American people and want to work to make sure businesses are prosperous, but we also can't lose sight of the fact that workers are what makes the businesses profitable.

So if you are for American workers and the families they support, then prove it with your vote on this resolution.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

MORNING BUSINESS

The PRESIDING OFFICER. Under the previous order, the Senate will be in a period of morning business until 10:30 a.m., with Senators permitted to speak for up to 10 minutes each, with the time equally divided, and the majority controlling the first half.

The Senator from North Dakota.

Mr. HOEVEN. Mr. President, I ask unanimous consent to engage in a colloquy for up to 20 minutes.

The PRESIDING OFFICER. Is there objection?

Mr. DURBIN. Mr. President, I understand the time is equally divided between now and 10:30. Is there sufficient time for the Republican Senator to use 20 minutes?

The PRESIDING OFFICER. The time would be 18 minutes on each side.

Mr. DURBIN. Then I have no objection to how the Senators choose to use that time.

The PRESIDING OFFICER. Without objection, it is so ordered.

WELCOMING PRIME MINISTER NETANYAHU

Mr. HOEVEN. Mr. President, I am here this morning to engage in a colloquy with the good Senator from South Carolina. We will be joined by the Senators from New Hampshire and Kentucky and perhaps the Senator from Arizona.

The purpose of the colloquy is to welcome Prime Minister Netanyahu this morning—who will be speaking in front of Congress—and to talk about why it is so important he is joining us today.

In a few moments we will hear remarks from Israeli Prime Minister Benjamin Netanyahu in the House Chamber and welcome him to Congress to affirm the friendship between the people of the United States and the people of Israel and to assess the threats facing our two democracies.

Actually, today's speech is not unusual. This is the 115th time that a foreign leader has addressed a joint session of Congress. This is the seventh time an Israeli Prime Minister will address a joint session of Congress. It is Prime Minister Netanyahu's third address to Congress.

It is not surprising we are hearing from the leader of our ally, Israel. Israel is a democracy in a neighborhood of authoritarian governments. Prime Minister Netanyahu speaks the language of freedom with us today. There can be no doubt of his passion on behalf of the people he represents and that makes us take his message very seriously.

So this joint session is not unusual nor surprising, but that does not mean that it is unimportant. In fact, today's speech is profoundly important. The partnership between the United States and Israel is critical for the security of the Middle East and the world. We need a strong U.S.-Israeli partnership to stop Iran from developing a nuclear weapon. We need a strong U.S.-Israeli partnership to stand against the extremism that is ripping apart nations across the Middle East. We need a strong U.S.-Israeli partnership to demonstrate the value of democracy, human rights, and the rule of law for societies that are no longer satisfied with dictatorships.

For all of these reasons it is good to have Prime Minister Netanyahu here today. It is good to reaffirm the bond between Israelis and Americans, and it is good to join hands again with an ally to stand against tyranny and extremism. I look forward to hearing from the Prime Minister because views directly from Israel are extremely important.

Since its birth in 1948, Israel has faced one security threat after another. Israel's strength and vitality in the face of these threats are a testament to the ability of its people and its leaders to head off threats to security before they become impossible to overcome. There is no substitute for the Israeli view of security in the Middle East and the Iranian threat in particular.

So today represents an important moment to learn how Israel sees its own security and understand the next steps for the U.S.-Israeli partnership.

I now turn to my colleague from South Carolina and ask for his comments about this important speech from the Prime Minister of Israel today.

Mr. GRAHAM. Mr. President, I appreciate being on the floor with the Senator from North Dakota who has been very involved in trying to secure America against a variety of threats.

I will get to the heart of the matter. Some people feel the Prime Minister should not be here at this time because in a couple weeks there will be an election in Israel. They have a parliamentary system. They do things differently—they vote for parties, not people—and they are having a real contest over there about who should be in charge and what coalitions will lead Israel.

I have a very simple comment: That is for Israelis to decide. They decide who they want to run their country. They can vote for the party or groups of people who they think best represent their view of Israel. That is their business, not mine. My business is to try to find out what is best for America when it comes to defending our Nation. That is why all of us are on the floor today.

I don't think I can adequately do my job if I don't hear from the Prime Minister of Israel, if he is willing to talk to me. Some people may be able to do that. God bless you.

If someone feels as though now is the time to boycott this speech, if they want to send a message about politics in Israel, be my guest. I am going to be at this speech to try to learn what to do regarding America and Israel concerning the nuclear threat.

Why do I think it is important for me to be there? I can't think of a better voice to tell me what would happen in the region if we get a bad deal with the Iranians.

Israel is in the crosshairs of the Iranian ayatollahs—has been for decades—threatening to destroy the State of Israel. I want to hear from the people on the ground, Israel in particular, as to what a good deal would look like and what a bad deal would look like. I want to hear from the Prime Minister of Israel the consequences of a bad deal.

As to me, I do not trust this administration to negotiate a good deal, but maybe I am wrong; and the best way to find out is for Congress to look at the deal. If it is a good deal, I will vote for it, because the Arabs and Israelis will tell us if this is something we can live with. At the end of the day a good deal is a blessing for the world, and a bad deal is a nightmare.

(Mr. COTTON assumed the Chair.)

So to the good Senator from North Dakota, I not only welcome the Prime Minister of Israel to speak to Congress, I am looking forward to it, because I hope to learn something that would make me a better Senator regarding our own national security. The only thing I can tell the American people without any hesitation—ISIL is a threat to us, a threat to the region. They are the most barbaric terrorist organization roaming the globe today. They represent a direct threat to our homeland. But the threat they represent is a distant second to Iran having a nuclear weapon. That ought to tell you a lot about how I feel. If I can watch TV, as you do every night, and see what ISIL is doing to Christians and others throughout the region and say that is secondary to Iran, I hope that means something. It means a lot to me. Because if Iranians get a nuclear weapon, then every Arab in the region who can afford one is going to get a nuclear weapon, and we are on our way to Armageddon.

North Korea in the making is what I worry about. The same people who are negotiating this deal were negotiating the North Korean deal. Congress was absent. Now it is time for Congress to be involved and say whether this is a good deal. I have legislation with Senator CORKER and six Democrats and six Republicans asking that Congress review any deal, and I would be curious to see what the Prime Minister thinks about that.

So in summary, this would be the most important decision we make as a body, how to deal with the Iranian nuclear threat. This will be the most important issue I will deal with as a U.S. Senator, and I have been here almost 20 years. The consequence of a bad deal is an absolute nightmare.

If you were to relieve the sanctions tomorrow and gave the Iranians the money they were due under sanction relief, do you think they would build schools and hospitals or would they continue to pour money into their

military to disrupt the region and continue to build ICBMs? As I speak, without a nuclear weapon Iran is leading an offensive today in Iraq. And I know the Presiding Officer of the Senate was a ranger, an infantryman in Iraq. Could you ever imagine in your wildest dreams that the Iraqi security forces are marrying up with Shia militia and Suleimani, the head of the Revolutionary Guard is on the ground in Iraq leading the efforts, and we are sitting on the sidelines? You talk about a screwed-up foreign policy.

Are we going to let eight guys negotiate with Iran—the people who brought you Iraq and Syria and the mess you see in the region? You feel good enough about them doing a deal with the Iranians that you don't even look at the deal yourself? This is beyond screwed up, and the worst is yet to come. A bad deal. But, maybe the best is yet to come, a good deal. I don't know. But I want to hear what Israel believes a good deal would look like. And if you don't want to hear that, then, boy, we are on different planets as to the consequences of what is going on in the world today.

With that, I would ask a question to the Senator from New Hampshire, who has been watching the Iranian behavior on the ground throughout the Middle East and the missile program in particular, and ask her what are her concerns about Iran with extra money coming into the coffers in sanction relief?

Ms. AYOTTE. I thank the Senator from North Dakota and the Senator from South Carolina.

As I look at where we are right now—first of all, our support for Israel and our friendship with Israel—this has been a very strong bipartisan issue, and it is an issue that rightly crosses party lines because we share the same values, the relationship is very important, we share technology, we share intelligence, and we share the concern that we do not want the world's worst regime to obtain the world's most destructive weapon, and that is the Iranian regime.

So I want to welcome Prime Minister Netanyahu to the Congress and very much listen to what he has to say, because he comes to us in a very important time where the administration is negotiating a potential agreement with Iran. What we want most of all is that that agreement will end Iran's nuclear program and be a real, verifiable, transparent agreement, because a good agreement is a blessing, a bad agreement is a nightmare. We have to hear from the Prime Minister of Israel, and I look forward to hearing what he has to say today about what a good agreement looks like.

But make no mistake about why we must stop the Iranian regime from having a nuclear weapon. Because what they are doing around the world right now—they are the largest State sponsor of terrorism in the world. They have essentially destabilized the Government of Yemen through their support of the Houthis there. They have been supporting Hezbollah, a terrorist organization. They have been helping the Assad regime murder its own people. They have been participating in cyber attacks against our interests. This is a regime that has said they want to wipe Israel off the map. I can understand—and I want to hear from the Prime Minister of Israel—why the people of Israel would say ''never again'' when they hear those words.

But make no mistake, this is not just about the security of Israel; this is about our security in the United States of America. They have called us ''the great Satan,'' and this is an issue that represents a threat to our core national security interests, to allow state-sponsored terrorism to obtain the most destructive weapon in the world. That is a danger we cannot afford in our country. It is one of concern. It is important that we share with our strong ally, Israel. We need to do everything we can in this Congress on a bipartisan basis to ensure that never happens. That is why I am honored to be a sponsor of bipartisan legislation that would give the Congress a say on this very important issue, because we worked together to put together some of the toughest sanctions that actually brought the Iranians to the negotiating table. We should not lift the sanctions that have been put together on a bipartisan basis without ensuring that this is a good agreement that will end their nuclear program. When I say end it, I don't mean end it for a decade, I mean end it permanently, because Iran has been engaged in terrorist activity for longer than a decade. So this is something we have to make sure is a transparent, verifiable agreement.

I would also add we cannot have a situation where we have a splitup. There has been a discussion about a year breakout period in this agreement. I would like to hear what the Prime Minister thinks about that, because my concern about that is this will lead to the situation my colleague from South Carolina talked about, where we have a Sunni-Shia nuclear arms race in the Middle East, where everyone seeks to enrich uranium and to have a breakout period. That results in more proliferation of nuclear weapons in a way that makes the world less safe and endangers the United States of America.

So today we welcome Prime Minister Netanyahu. I very much look forward to listening carefully to what he has to say. This is a bipartisan issue. This is about the security of the United States of America. This is obviously about our strong friendship with Israel. We are aligned in ensuring that Iran does not have a nuclear weapon and ensuring that we work together to stop their support of terrorism around the world, that we work together to end their ICBM program, which the estimates are they could hit the east coast of the United States of America by 2015 if they continue on this path. This is about us, this is about our relationship with Israel, and I very much look forward to hearing the Prime Minister today.

Mr. HOEVEN. Mr. President, I wish to thank our colleague from New Hampshire and I would like to return to the Senator from South Carolina and pose a question.

I have been a supporter of the strong sanctions the Senator put in place with the Kirk-Menendez legislation the Senator from South Carolina was very involved with. During these negotiations those sanctions have been relaxed by the administration, which I think is of great concern. I think the biggest deterrent to Iran pursuing a nuclear weapon is the sanctions we put in place with our allies.

So now as the administration negotiates this agreement, my colleague from South Carolina and others on a bipartisan basis have put forward legislation requiring that that agreement would come to this body for an up-or-down vote. I would like him to describe that effort and why it is so important and why the speech today with the Prime Minister goes to the heart of that very important matter.

Mr. GRAHAM. I think the legislation the Senator from North Dakota described is the most important thing we will do this year. The sanctions against Iran, congressionally created, were 100 to 0. Every Member of the Senate believed the Iranians needed to be sanctioned for the mischief they have created and for their nuclear ambitions to stop their march toward a nuclear weapon.

The administration objected, but 100 Members of this body voted for those sanctions. If there is a deal with the Iranians, and I hope there is a good deal, the diplomatic solution to this problem is preferred by everyone. It is a simple concept. Before the sanctions Congress created can be lifted, Congress has to look at the deal and have a say. Under the 1, 2, 3 sections of the Atomic Energy Act there is a provision that allows for Congress to approve commercial nuclear deals between the United States and another country when nuclear technology is shared. We have done that 24 times, but Congress had to approve nuclear deals between the United States and other nations, including Russia, China, Argentina, and that rogue country called Canada. I can't imagine wanting to look at a deal with Canada but not wanting to take a look at a deal with Iran.

This bipartisan legislation is very simple. Any deal negotiated with the P5+1 will come to the Senate and the House to be disapproved—not approved. Now I did that to accommodate my Democratic colleagues. There is concern that with 54 Republicans that we hate Obama so much we would just reject the deal because we don't like him. Well, I am not in that camp. I don't like President Obama's foreign policy, but I hope I am smart enough to understand that a good deal is a blessing. I

would like to think I have some track record of doing what I think is best for the country. So if it is a good deal, Israel and the Arabs will tell us, and I will gladly vote to approve it. But the construct, I say to Senator HOEVEN, is that to disapprove the deal, you have to get 60 votes. That means some Democratic colleagues have to join with Republicans to say this is not good enough, go back and try again. It is not that we want to end negotiations; we don't want to legitimize an industrial-strength nuclear program that is on the verge of a breakout such as North Korea in the making. We are not going to sit on the sidelines where a deal is negotiated where they have thousands of centrifuges and the only thing between them and a nuclear breakout is the United Nations. That did not work well in North Korea. We are not going to do that again.

So we are going to look at the deal. I think every Senator should want to look at the deal, and it allows your constituents to have a say. Not one person is having any input regarding the P5+1 talks. But if it comes back to the Congress, you have a person you can call. You can pick up the phone and call your Member of the House and Senate. You can say something about the deal because you are affected. It is not just Israel that is in the crosshairs of these people, it is us, the United States.

I worry they would share the technology with a terrorist organization and it would work its way here. Name one weapon they developed that they haven't shared with terrorists. This bipartisan approach is sound. It is consistent with what we have done 24 different times with other nations, and I hope we can have an overwhelming vote here soon.

Do your best job. Let us look at it. If it is a good deal, we will vote yes, and if it is a bad deal we will vote no, and try harder to get another deal.

The PRESIDING OFFICER. The majority's time has expired.

Mr. HOEVEN. Mr. President, I ask unanimous consent for 30 seconds to wrap up.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. HOEVEN. I wish to thank my colleagues from South Carolina and New Hampshire. This is a bipartisan effort to join with the administration, and on a matter of this importance I believe Congress must be involved. So, again, we appeal to our colleagues on the other side of the aisle to join with us on this effort.

I will conclude by saying we look forward very much to having the Prime Minister speak to us this morning.

Thank you, Mr. President.

APPOINTMENT

The PRESIDING OFFICER. For the information of the Senate, the Chair makes the following announcement:

The President pro tempore of the Senate and the Speaker of the House of Representatives, pursuant to the provisions of section 201(a)(2) of the Congressional Budget Act of 1974, have appointed Dr. Homer Keith Hall as Director of the Congressional Budget Office, effective April 1, 2015, for the term expiring January 3, 2019.

The PRESIDING OFFICER. The assistant Democratic leader.

THE ISRAELI PRIME MINISTER'S SPEECH TO CONGRESS

Mr. DURBIN. Mr. President, at 11 a.m. this morning there will be a historic joint session of Congress. Usually a leader from some other country speaking at a joint session of Congress doesn't make history. It has happened over 100 times. I have attended many of those during the time I have served in the House and the Senate. What is historic about this session is that it was called unilaterally by the Republican Speaker of the House, JOHN BOEHNER. Usually and consistently, joint sessions of Congress have been called on a bipartisan basis and in most cases involve the administration and executive branch. In this case Speaker BOEHNER made history his own way by saying he would announce a joint session of Congress welcoming the Prime Minister of Israel.

I also checked with the Senate Historian, and it turns out there is another piece of history being made today. He can find no precedent where Members of Congress came forward from both the House and the Senate and announced publicly they would not attend a joint session of Congress, and that has happened today.

That is a personal and private decision by each Member of Congress as to whether they wish to attend the joint session this morning. I am going to attend it primarily because of my respect for the State of Israel and the fact that throughout my public career in the House and Senate, I have valued the bipartisan support of Israel which I found in both the House and the Senate.

I am proud that it was President Harry Truman—a Democrat—who was the first Executive in the world to recognize the nation of Israel. I am proud that throughout history Democratic and Republican Presidents alike have supported the State of Israel, and I have tried to do the same as a Member of the U.S. House and Senate.

This meeting with Prime Minister Netanyahu comes at an awkward moment. He is 2 weeks away from a national election in Israel. Some have questioned the timing of this. I will not raise that question because I don't know the political scene in Israel. I don't know if this visit helps him or hurts him, but it is, in fact, 2 weeks away from this important election.

What we all agree on, I hope, both Democrats and Republicans, is one starting point: A nuclear Iran is unacceptable. We have to do everything we can to stop that possibility because it would invite an arms race in the Middle East—many other countries would race to become nuclear powers, and that would be destabilizing—and also because we know the agenda of Iran. It has been engaged in terrorist activities throughout the Middle East and around the world. Putting a nuclear weapon in the hands of a country that is dedicated to terrorism is the kind of concern that I hope all of us share when we look to the future.

As Democrats and Republicans gather for the joint session, we are in common purpose: to stop the development of a nuclear Iran. What troubles me greatly is the criticisms I have heard on this floor and in the past week or two about the Obama administration and this issue. President Obama has made it clear from the start that he is opposed to having a nuclearized Iran. In fact, it was President Obama, using his power as President, who has really brought together the sanctions regime that is working to bring Iran to the negotiating table. He didn't do it alone, as one of my colleagues from South Carolina noted. There were times when Congress wanted to push harder than the President. But we have to concede the obvious: Were it not for the President's dogged determination, we would not have this alliance, this coalition imposing sanctions on Iran today that have made a difference and brought Iran to the negotiating table. Give President Obama credit for that. Whether it is Prime Minister Netanyahu or the Republicans, who are generally critical of the President, at least acknowledge the obvious. The President made his position clear that he opposes a nuclear Iran, and he made it clear that he would put his resources and energy into building a coalition to stop that possibility.

Secondly, it is this President's leadership which has created the Iron Dome defense—the missile defense—which has protected Israel. That has been a very effective defense mechanism. I know that as chairman of the Defense Appropriations Subcommittee, we appropriated hundreds of millions of dollars for that protection. President Obama initiated—if not initiated, was an early supporter of this effort and has funded it throughout his Presidency, and now it has kept Israel safe. I hope the Republicans and Prime Minister Netanyahu will give the administration credit for that effort to keep their nation safe.

I will also say about negotiations that here is the reality: We have countries around the world joining us in a regime to impose sanctions on Iran in order to bring Iran to the negotiating table, and they are there. The negotiations are at a delicate moment—literally weeks away from seeing whether we can move forward. I hope they are successful. The President has said at best there is a 50/50 chance of success. It is just that challenging. But let's consider what the alternative will be if negotiations fail.

First, if we can reach an agreement, we have to verify it. We can't take the word of Iran. We need to make certain that when they promise they will destroy certain equipment, they will not go forward in developing a nuclear weapon, we can verify that. Without verification, the agreement is worthless, and the President has said as much.

Let's assume the worst case: Either the negotiations break down or the verification proves Iran did not negotiate in good faith. What then is the alternative? Well, if the coalition that imposed the sanctions believes we made good-faith efforts to bring Iran to a peaceful place and they failed, then we can continue the sanctions regime and put more pressure on them to move forward to a good solution. But if there is a feeling among our coalition that we have not negotiated in good faith, that we didn't make an honest effort to find common ground with Iran that avoids nuclearizing, we could lose the sanctions regime, and then it would become next to impossible to put the pressure on Iran to make them change.

What the President is trying to do is to achieve through negotiations a peaceful end to this global challenge and secondly to make sure the sanctions regime—the countries that have joined us, P5+1 and others—will continue to believe we are operating in good faith and continue to support us. The alternative is to allow Iran to develop a nuclear weapon. That is unthinkable. If it starts to occur, there will be a military response, and it will be deadly. I don't know the scope or nature of it. There is no way to guess. But we understand what it would mean if military action is taken against Iran because of the development of these nuclear weapons.

Let me also say that I am considering and reviewing the so-called Corker-Menendez proposal that the Congress will review any agreement that is reached with the Iranians. I have not reached a decision yet because I think it raises a serious and important question of policy and the Constitution. We know that if we are dealing with a treaty, it is up to the Senate to step forward and approve such a treaty. But this is not a treaty; this is in the nature of an agreement. We have had nuclear arms agreements in the past that were not subject to congressional approval. We have had agreements on the environment and other issues that were not subject to congressional approval. I need to look and review carefully whether the Corker-Menendez legislation that has been proposed is a reasonable assertion of congressional authority.

I will also add that it is obvious—and I wish to state it because it was raised as a question in the earlier comments—any congressionally imposed sanctions will require congressional action to suspend them. Ultimately, Congress has the last word on sanctions we have put into law. I don't think there is any question about that. Those sanctions imposed by the executive branch the President may remove or change by Executive order should he choose, but the congressional authority to continue sanctions or even propose new ones is not diminished by any agreement which is reached by the President.

Earlier I listened to the majority leader as he came to the floor and spoke about a number of issues. I would like to address one of the issues he raised in criticism of the President. He criticized the President for proposing the closure of Guantanamo as a prison for those who we suspect are engaged in terrorism. The President's position on this has been very clear, and I have supported it for two reasons. First, we know Guantanamo has become a symbol around the world—a symbol which has been used against the United States when they want to recruit terrorists to attack our country. I think Guantanamo has outlived its usefulness and should be closed.

The second point is one that is very obvious. We have over 300 convicted terrorists currently serving their time in the existing Federal prison system. In Federal prisons across this Nation, including my State of Illinois, we have convicted terrorists who are reporting to their cells every day and are no threat to the community at large. They are being handled in a professional, thoughtful way by the men and women who work for the Bureau of Prisons, and there has never been any question as to whether the terrorists in this system are somehow a threat to this country. In fact, they are well contained and have been for a long time.

The alternative at Guantanamo is one that even fiscal conservatives ought to think about twice. We are currently spending up to $3 million per Guantanamo prisoner each year to incarcerate them—almost $3 million a prisoner. What does it cost to keep the most dangerous prisoners in the Federal prison system in the maximum security prisons? No more than $60,000 a year—$60,000 to keep them in the Federal prison system and $3 million to keep them in Guantanamo. It is 50 times the cost, if my calculations are correct. That suggests to me a horrible waste of money—money that could be better spent to keep America safe rather than maintain this symbol of Guantanamo.

Secondly, an argument was made by the majority leader earlier that we made the mistake of bringing our troops home from Iraq and Afghanistan. I disagree. This notion of a permanent army of occupation by the United States in the Middle East is certainly not one that I welcome. We need to encourage those countries—Iraq and Afghanistan—to develop their own capacity to protect their own countries. The United States can be helpful. We can provide support. But ultimately we have to call on these countries to step forward and to defend themselves with our support so long as they are fighting the forces of terrorism.

I see my colleague Senator MENENDEZ is on the floor.

I yield the floor.

The PRESIDING OFFICER. The Senator from New Jersey.

Mr. MENENDEZ. Mr. President, I appreciate my distinguished colleague yielding some time to me.

I rise in anticipation of the speech of our ally and our partner, Prime Minister Benjamin Netanyahu of Israel, to the soon-to-be joint meeting of Congress.

I agree with many of my colleagues that the political timing of the Prime Minister's speech to the Congress is a challenging one and one that didn't derive itself under the best of circumstances. But I also think very clearly that it is important to listen to what the elected leader of the people of Israel—the one true democracy in the Middle East, a major trading partner of the United States, a major security ally of the United States, and the one country most likely to be voting with us in common cause in international forums—has to say.

There is a history here that I think drives the leader of the Jewish people to the circumstances in which he feels so passionately about the security of his country. If you traveled to Israel, as I have, and I think many Members here have as well, here is a country in which you can go from Tel Aviv to Jerusalem on a good day in 45 minutes. It is a country which—if you fly its width, it would take just a couple of minutes. It is a country which has its back to the sea and which is surrounded by neighbors who, generally speaking, are hostile. It is a country whose people have a history in which there are those who have sought to annihilate them. Maybe we cannot fathom those challenges, but those are the challenges of the people of Israel. So when you have an issue such as Iran's march toward nuclear weapons, you have an understanding of why the people of Israel have a concern for the existential threat that Iran, if it achieves nuclear weapons, is ultimately capable of creating.

I have worked as hard as anyone else. As a matter of fact, I started my focus on Iran when I was in the House of Representatives and found out that the United States was sending voluntary contributions to the International Atomic Energy Administration beyond our membership dues to do what? To create operational capacity of the Bushehr nuclear facility—not in the national interest and security of the United States, not in the interest of our ally, the State of Israel, and I led a drive to stop those voluntary contributions.

Since then—it has been almost 20 years now—I have been following Iran's march toward nuclear power, not for peaceful purposes—because, let's be honest, a country that has one of the

world's largest oil and other reserves doesn't need nuclear power for domestic consumption, and because of what we clearly believe was the militarization of its efforts at Parchin that, in fact, there were purposes that were not benign.

We all hope for a deal. Although today when Foreign Minister Zarif said in response to President Obama's comments that 10 years should be the minimum timeframe for a deal, he—Foreign Minister Zarif—said that is unacceptable, illogical, and excessive, that is a problem.

So I look forward to listening to what the Prime Minister has to say about the challenge to all of us—our national security and to Israel's national security—and to understand all of the dimensions, historical and otherwise, so we can conclude and make our own judgments. If Prime Minister Cameron can come here and lobby the Congress on sanctions, which is fine with me, then I think it is also fair to listen to what the Prime Minister of Israel has to say, and I look forward to hearing what he has to say.

With that, I yield the floor.

CONCLUSION OF MORNING BUSINESS

The PRESIDING OFFICER. Morning business is closed.

JOINT MEETING OF THE TWO HOUSES—ADDRESS BY THE PRIME MINISTER OF ISRAEL

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 10:30 a.m., took a recess, and the Senate, preceded by the Secretary of the Senate, Julie E. Adams; the Deputy Sergeant at Arms, James Morhard; and the President pro tempore (ORRIN G. HATCH), proceeded to the Hall of the House of Representatives to hear an address delivered by His Excellency Benjamin Netanyahu, Prime Minister of Israel.

(The address delivered by the Prime Minister of Israel to the joint meeting of the two Houses of Congress is printed in the proceedings of the House of Representatives in today's RECORD.)

At 2:15 p.m., the Senate, having returned to its Chamber, reassembled and was called to order by the Presiding Officer (Mr. PORTMAN).

The PRESIDING OFFICER. The majority leader.

MEASURE READ THE FIRST TIME—S. 625

Mr. MCCONNELL. Mr. President, I understand there is a bill at the desk, and I ask for its first reading.

The PRESIDING OFFICER. The clerk will read the bill by title for the first time.

The senior assistant legislative clerk read as follows:

A bill (S. 625) to provide for congressional review and oversight of agreements relating to Iran's nuclear program, and for other purposes.

Mr. MCCONNELL. I now ask for a second reading and, in order to place the bill on the calendar under the provisions of rule XIV, I object to my own request.

The PRESIDING OFFICER. Objection is heard.

The bill will be read for the second time on the next legislative day.

Mr. MCCONNELL. Mr. President, this morning Prime Minister Netanyahu laid out the threat posed by a nuclear Iran in very clear terms—not just to Israel, not just to the United States, but to the entire world. He reminded us that no deal with Iran is better than a bad deal with Iran.

That seems to run counter to the Obama administration's thinking on the issue, which is worrying enough. What is also worrying is its seeming determination to pursue a deal on its own, without the input of the people's elected representatives. Remember, it was Congress that helped bring Iran to the table by putting sanctions in place, actually against—against—the wishes of the administration.

Congress was right then. And Congress and the American people need to be a part of this discussion too. That is why I am acting to place this bipartisan bill on the legislative calendar. It is legislation crafted by Members of both parties that would ensure the American people have a say in any deal. Senators CORKER, GRAHAM, and others worked on similar legislation, and they will mark that bill up in committee.

Congress must be involved in reviewing and voting on an agreement reached between this White House and Iran, and this bill would ensure that happens.

I yield the floor.

The PRESIDING OFFICER. The Senator from Tennessee.

PROVIDING FOR CONGRESSIONAL DISAPPROVAL OF A RULE SUBMITTED BY THE NATIONAL LABOR RELATIONS BOARD—MOTION TO PROCEED

Mr. ALEXANDER. Mr. President, pursuant to the provisions of the Congressional Review Act, I move to proceed to S.J. Res. 8, a joint resolution providing for congressional disapproval of the rule submitted by the National Labor Relations Board relating to representation case procedures, and I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

This motion is not debatable.

The question is on agreeing to the motion.

The clerk will call the roll.

The bill clerk (Sara Schwartzman) called the roll.

Mr. CORNYN. The following Senator is necessarily absent: the Senator from Missouri (Mr. BLUNT).

Mr. DURBIN. I announce that the Senator from Missouri (Mrs. MCCASKILL) is necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 53, nays 45, as follows:

[Rollcall Vote No. 66 Leg.]

YEAS—53

Alexander	Fischer	Paul
Ayotte	Flake	Perdue
Barrasso	Gardner	Portman
Boozman	Graham	Risch
Burr	Grassley	Roberts
Capito	Hatch	Rounds
Cassidy	Heller	Rubio
Coats	Hoeven	Sasse
Cochran	Inhofe	Scott
Collins	Isakson	Sessions
Corker	Johnson	Shelby
Cornyn	Kirk	Sullivan
Cotton	Lankford	Thune
Crapo	Lee	Tillis
Cruz	McCain	Toomey
Daines	McConnell	Vitter
Enzi	Moran	Wicker
Ernst	Murkowski	

NAYS—45

Baldwin	Gillibrand	Nelson
Bennet	Heinrich	Peters
Blumenthal	Heitkamp	Reed
Booker	Hirono	Reid
Boxer	Kaine	Sanders
Brown	King	Schatz
Cantwell	Klobuchar	Schumer
Cardin	Leahy	Shaheen
Carper	Manchin	Stabenow
Casey	Markey	Tester
Coons	Menendez	Udall
Donnelly	Merkley	Warner
Durbin	Mikulski	Warren
Feinstein	Murphy	Whitehouse
Franken	Murray	Wyden

NOT VOTING—2

Blunt	McCaskill

The motion was agreed to.

PROVIDING FOR CONGRESSIONAL DISAPPROVAL OF A RULE SUBMITTED BY THE NATIONAL LABOR RELATIONS BOARD

The PRESIDING OFFICER. The clerk will now report the joint resolution.

The senior assistant legislative clerk read as follows:

A joint resolution (S.J. Res. 8) providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the National Labor Relations Board relating to representation case procedures.

The PRESIDING OFFICER. Pursuant to the Congressional Review Act, there will now be up to 10 hours for debate, equally divided between those favoring and those opposing the joint resolution.

The Senator from Tennessee is recognized.

Mr. ALEXANDER. Mr. President, I have come to the floor today to discuss the Congressional Review Act resolution that Senator MCCONNELL, the Republican leader, Senator ENZI, the Senator from Wyoming, and I have filed to stop a new National Labor Relations Board rule. Last December, the National Labor Relations Board issued a

final rule that shortened the time between when pro-union organizers ask an employer for a secret ballot election and when that election actually takes place.

I refer to this as the ''ambush election rule,'' because it forces a union election before an employer has the chance to figure out what is going on. Even worse, it jeopardizes employees' privacy by requiring employers to turn over employees' personal information, including email addresses, phone numbers, shift hours, and locations to union organizers.

This action by the National Labor Relations Board, which increasingly has become a union advocate instead of umpiring disputes between employees and employers, has attracted enormous attention across this country. I have letters from the U.S. Chamber of Commerce, the Coalition for a Democratic Workplace, the National Council of Chain Restaurants, the National Retail Federation, the Retail Industry Leaders Association, Associated Builders and Contractors, the American Lodging and Hotel Association, HR Policy Association, the National Association of Manufacturers, the Society for Human Resource Management, the Associated General Contractors of America—173 total organizations that have registered their deep concern about this ambush election rule.

Senator ENZI is already on the floor. He has for many years fought this battle. We want the American people to understand why the ambush election rule is such a bad idea, why it is so unfair to employers, forcing them to have a union election before they can figure out what is going on. For the same reason, it is unfair to employees. Employees have to vote in a union election before they have a chance to hear both sides.

Here is how the procedure will work. If a majority of the Senate approves this resolution, it will then go to the House for a vote. If it passes both chambers, the President can veto the resolution. It will take two-thirds of the Senate to override that veto.

If the NLRB's new rule is disapproved, the Board cannot issue a substantially similar rule without congressional approval. The question I would ask is: What is the rush? What is the problem here? Today, more than 95 percent of union elections occur within 56 days of the petition filing. But under this new rule, elections could take place in as few as 11 days. This rule will harm employers and employees alike. If you are an employer that is ambushed by that 11-day election, here is how it works. On day 1, you get a faxed copy of an election petition that has been filed at your local NLRB regional office stating that 30 percent of your employees support a union.

The union may have already been quietly trying to organize for months without your knowledge. Your employees have only been able to hear the union's point of view. By day 2 or 3, you must publicly post an election notice in your workplace. If you communicate to your employees electronically, you have to publish the notice online as well. By noon on day 7 you must file with the NLRB what is called a statement of position. This is a comprehensive document in which an employer sets out legal positions and claims in writing. Under the NLRB's new rule, you waive your rights to use any legal arguments not raised in this document. So it should be pretty obvious that by day 7 you will have to have a lawyer on hand. You probably need that lawyer on hand on day 2, and hopefully on day 1, because if you make any mistakes in the lead-up to the election, the NLRB might set aside the result and order a rerun election. Worse, if a bigger mistake is made, it could require an employer to automatically bargain with the union.

Now think about the real world. At our hearing before the Health, Education, Labor, and Pensions Committee, a representative of the National Federation of Independent Businesses testified. She said there are 350,000 independent business owners in the NFIB, with an average of 10 employees. So you have small businesses all over America. They do not sit around with labor lawyers; they do not have money to hire labor lawyers. They are expected to know in a day or two exactly what to do about a complicated petition before the NLRB because of this ambush election rule that could cause the election to happen within 11 days.

On day 7, you must also present the union and the NLRB with a list of prospective voters as well as their job classifications, shifts, and work locations.

Now if you are a business with five, six, seven, eight employees, you are going to be spending your time working on this union matter. Your customers might want your services. They might want on-time deliveries. All of a sudden, you are running around trying to find a labor lawyer, trying to avoid making mistakes, so you can deal with this ambush election.

On day 8, a pre-election hearing is held at the NLRB regional office and an election day is set. By day 10, the employer must present the union with a list of employee names, personal email addresses, personal cell phone numbers, and home addresses. You have to hand this information over, even if the employees object.

Day 11 is the earliest day on which the NLRB can conduct the election under the new rule. The union has the power to postpone an election by an additional 10 days, but the employer has no corresponding power. The union has ambushed the employer and has the power to postpone the election, but the employer has no similar right.

Under this new NLRB rule, before the hearing on day 8, an employer will have less than 1 week to do the following things:

Figure out what an election petition is. For most of those hundreds of thousands of small businesses with five, six, eight employees, they might have no idea what it is.

Find legal representation. Finding a lawyer is not just a matter of looking in a phone book, it is a matter of finding a lawyer with whom you are comfortable, whom you trust, and whom you know has some ability. That may take a while, particularly if you are not a large company and you are not accustomed to labor relations litigation.

Determine legal positions on the relevant issues—learning what statements and actions the law permits and prohibits.

Communicate with employees about the decision they are making.

Correct any misstatements and falsehoods that employees may be hearing from union organizers.

As I mentioned earlier, making even the slightest mistake in the lead-up to an election can result in the NLRB setting aside the results and ordering a rerun election, or worse, when a bigger mistake is made, the Board could require an employer to automatically bargain with the union.

But it is the employees who stand to lose the most under the new rule. First, some of the employees may know what is going on before the union files its notice of an election. But all of the employees do not have a chance to hear both sides of the issue in an ambush election.

Second, because of the ambush, employees may have only heard half the story. Only 4.3 percent of union elections occur more than 56 days after the petition is filed. The current median number of days between the filing of an election is 38 days. These figures are well within the NLRB's own goals for timely elections.

The unions won 64 percent of elections in 2013. In recent years the union win rate has actually been going up. What is the rush? Why is 38 days too long? It is well within the NLRB's own goals and unions are winning more elections than they lose.

Let's turn to 1959, when a former Member of this body, Senator John F. Kennedy, warned against rushing employees into elections in a debate over amendments to the National Labor Relations Act. This is what he said:

> There should be at least a 30-day interval between the request for an election and the holding of the election in which both parties can present their viewpoints.

Senator John F. Kennedy, April 21, 1959.

If Senator Kennedy thought 30 days was approximately right, if 38 days is the mean today, and if that is within the NLRB's own goals, why the rush? Why the push for an ambush election? Why have an election that can be set in 11 days before employers and employees know what is going on?

When a workplace is unionized, especially in a State that has no right-to-

work law, employees have dues money taken out of every paycheck whether they like it or not. They lose the ability to deal directly with their employers to address concerns or ask for a promotion or a raise. Instead, employees have to work through the union. Important considerations, such as which of their fellow employees will be included in a bargaining unit, will no longer be determined before the election. As the two dissenting members of the NLRB put it when this rule was decided: Employees will be asked to ''vote now, understand later.''

I wish to emphasize what the employees are losing, in addition to the opportunity to fully understand the election before them. Employees are losing their privacy, because the rule requires employers to hand over employees' personal email addresses, cell phone numbers, shift hours and locations, job classifications, even if the employees have made clear they do not want to be contacted by union organizers.

Some on the other side say: It is the modern age. But I would say that in the modern age our privacy is assaulted from every side. We should be even more careful about rushing an election and releasing personal information. Employers should not have to hand over employees' personal email address, cell phone numbers, shift locations, and job classifications just because a petition is filed by 30 percent of the employees. Many employees may have no interest in creating a union.

This rule appears to be a solution in search of a problem. It is clear to see it is wrong, and that is why Senators ENZI, MCCONNELL, and I are asking the Senate to disapprove it today and prohibit the NLRB from issuing any similar rule.

I will come back to the floor during our debate time to talk about how this rule is part of the National Labor Relations Board's attempt to become more advocate than umpire. That is the reason Senator MCCONNELL and I have introduced legislation that would change the National Labor Relations Board back from an advocate to an umpire by doing three things. First, it would end partisan advocacy by creating a six-member board of three Republicans and three Democrats where a majority would require both sides to find middle ground. Second, the legislation would rein in the general counsel. Businesses and unions would be able to challenge complaints filed by the general counsel in Federal district court. Third, it would encourage timely decisions. Either party in a case before the Board may appeal to the Federal court of appeals if the Board fails to reach a decision within 1 year.

When I come back to the floor I will also talk about the joint employer standard and the NLRB's decision to destroy more than 700,000 American franchise businesses. These men and women operate health clubs, barbershops, auto parts shops, childcare centers, neighborhood restaurants, music stores, cleaning services, and much more.

Combine the attack on franchises with the ambush election rule and an NLRB decision allowing micro-unions—where unions target small units in a large company—and we see there is a consistent trend by unions and their friends in the NLRB to tip the balance in ways never intended by the creators of the National Labor Relations Act.

The National Labor Relations Board is supposed to be an umpire, not an advocate. If there ever was an example of unfairness and tipping the balance in a single direction, it would be the ambush election rule. The rule allows union organizers to ambush an unsuspecting company and force an election in 11 days—before the employer and its employees have time to figure out what is going on.

In conclusion, I think Senator Kennedy's advice is good advice to follow. Much has changed since 1959, but fairness, balance, and giving everyone a chance to have an opportunity to know what is going on have not. Senator Kennedy thought 30 days was about right, and 38 days is the mean today. This ambush election rule would reduce it to 11.

That is the wrong thing to do, and I hope the majority in the Senate agrees with me on that. I hope the House agrees with us on that. I hope the President will agree with us on that. If he vetoes it, as he has said today he will, then I hope a majority of both parties will speak up for employers and employees in the United States and say no ambush elections for us.

Mr. President, I yield the floor.

The PRESIDING OFFICER (Mr. LANKFORD). The Senator from Washington.

Mrs. MURRAY. Mr. President, I believe that real long-term economic growth is built from the middle out, not from the top down, and our government has a role to play in investing in working families, making sure they have the opportunity to work hard and succeed and offering a hand up to those who want to climb the economic ladder and provide a better life for themselves and their families. Our government and our economy should be working for all families, not just the wealthiest few.

Thankfully, we have had the opportunity to put some policies into place over the past few years that have pulled our economy back from the brink and have started moving us in the right direction. We are not there yet, but across the country businesses have now added almost 12 million new jobs over 59 straight months of job growth, including almost 1 million manufacturing jobs. The unemployment rate is now under 6 percent. Health care costs are growing at their lowest rate in almost 50 years, while millions more families have access to affordable coverage. The Federal budget deficit has been reduced by more than two-thirds since President Obama took office. Although some Republicans are now threatening to bring this back, we have been able to move away from the constant tea party-driven crisis and uncertainty that was destroying jobs and holding our economy back.

We are headed in a good direction, and I am proud of the policies we fought for that helped us get here, but we have a whole lot more to do. Over the past few decades, working families have seen their incomes stagnate while the cost of living and health care and education has continued to go up. For most workers, wages have stayed flat or have fallen over the past five decades. According to the National Employment Law Project, from 2009 to 2013 hourly wages declined by 3.4 percent. During that time low- and mid-wage workers experienced greater declines than higher wage workers. That means that across our country today too many families are struggling to make ends meet on rock-bottom wages and poor working conditions on the job.

While the middle class's share of America's prosperity is at an alltime low, the biggest corporations have posted record profits. Congress should be working on ways to build an economy that works for all of our families, not just those at the top. Unfortunately, once again, instead of standing up for workers, my Republican colleagues are rushing to the defense of the biggest corporations that have an interest in keeping wages low and denying workers a voice to improve their workplace.

Workers have a right to decide whether they want union representation. To ensure they are able to exercise that right, the National Labor Relations Board—or the NLRB—helps to make sure workers have a fair up-or-down vote.

Unfortunately, too often big corporations take advantage of loopholes in the current election process to delay a vote on union representation. Unnecessary litigation and excessive delays threaten the rights of workers who want to have a free and fair election. In too many cases big corporations take advantage of every possible opportunity and wasteful legal hurdle—sometimes on small technicalities—just to delay a vote.

Sometimes the confrontation and hostility during the election process can be extreme. A study from the Center for Economic and Policy Research found that among workers who openly advocate for a union during an election campaign one in five is fired. Bureaucratic delays make the problem worse. Another study—this one from UC Berkeley—found the longer the delay before an election, the more likely the NLRB will charge employers with attempts to tamper with the vote.

What is clear from that research is that delays only create more barriers that deny workers their right to organize a union. The NLRB was absolutely

right to carry out its mission to review and streamline its election process and to bring down those barriers for workers to get a fair vote because it is clear the current system is outdated and vulnerable to abuse.

As I have mentioned, the current election process is overburdened by unnecessary and wasteful litigation which drags out elections and puts workers' rights on hold. Not only that, the election process for one region of the country can be substantially different from another region, and that adds to inefficiencies and a lot of confusion.

Workers have the right to vote on union representation in elections that are efficient and free from unnecessary delays and wasteful stall tactics. So after a very rigorous review process, in December of last year, the NLRB made reforms to their election procedures. These updates will make modest but important changes to modernize and streamline the process. They will reduce unnecessary litigation on issues that will not affect the outcome of the election. The new reforms will bring the election process into the 21st century by letting employers and unions file forms electronically. They will allow the use of more modern forms of communication to employees through their cell phones and their emails.

It is important to note that in many regions the NLRB has already adopted some of these much needed reforms to the election process, so we know this can work. These reforms will simply standardized the best practices for the election process across regions, which will help all sides—all sides—know what to expect during the process to promote uniformity and predictability.

These changes aren't just good for the workers, but they are good for employers by streamlining the process when workers file a petition to have an election on whether to join a union, and the reforms will make sure all sides have the information they need.

I have laid out the improvements the new reforms will make, but let's talk about what these guidelines will not do. The new process does not require elections to be held within any specific timeframe. I want to repeat that because it is important. Contrary to what some of our colleagues on the other side of the aisle are arguing, these new guidelines do not require elections to be held within any specific timeframe. Not only that, but this rule does not in any way prevent companies from communicating their views about unionization. Employers are able to communicate extensively with their employees about union issues, and these reforms do nothing to stop that. Employers would still be able to talk with their workers about what a union would mean for their company.

The reforms simply make some commonsense updates to create a fair opportunity for workers to decide if they want union representation, but some of my colleagues on the other side of the aisle take great offense to these modest changes. Instead of standing up for workers across the country who are struggling with stagnant wages and poor working conditions, Republicans have chosen to challenge these commonsense reforms with a resolution of disapproval, and that is why we are here today.

Instead of talking about how to create jobs and help working families who are struggling, Republicans would rather roll back workers' rights to gain a voice at the bargaining table. The Republicans' attempt to stop this rule through a resolution would have major consequences for businesses, for unions, and workers who want a fair election process.

Passing the resolution would not only prevent the NLRB from implementing these commonsense reforms, but this resolution would take the drastic step of also preventing the NLRB from adopting any similar election rules in the future. So the outdated election process that leads today to frivolous litigation and delays would remain frozen in time without further congressional action.

Let us be clear. This rule is simply about reducing unnecessary litigation and allowing the use of cell phones and email. I have heard some of my colleagues call this frontier justice. Everyone else calls it the 21st century.

By law workers have the right to join a union so they can have a voice in the workplace. That is not an ambush, it is their right. It is guaranteed by the National Labor Relations Act and by the First Amendment of our Constitution. So when workers want to vote on whether to form a union, they aren't looking for special treatment, they are simply trying to exercise their basic right. We, as a nation, should not turn our back on empowering workers through collective bargaining, especially because that is the very thing that has helped so many workers climb into the middle class. Workers having a seat at the bargaining table is very critical to America's middle class. When more workers can stand up for their rights or wage increases or making sure their workplaces are safer or they have access to health care, those things get better for them.

In short, Americans are better able to share in the economic prosperity they have earned through their hard work. It is no coincidence that when union membership was at its peak in the middle of the last century, America's middle class grew strong. Collective bargaining is what gave workers the power to increase their wages. Unions helped workers get the training they needed to build their skills so they could advance on the job. They helped to make sure men and women had safe work places, and through collective bargaining access to health care rose. Workers shared in our country's prosperity. All of those benefits strengthen economic security for the middle class and for those working hard to get there.

In Congress, we need to continue to work to expand economic security for more families. That should be our mission, to help move our country forward. This resolution would simply be a step backward. So instead of attacking workers who just want a voice in the workplace, I hope my colleagues will reject this resolution. Instead, I really hope Republicans will join with Democrats and work with us to protect workers rights and increase wages and grow our Nation's middle class. I truly hope we can break through the gridlock and work together on policies that create jobs, expand our economic security, and generate a very broad-based economic growth for our workers and our families, not just for the wealthiest few.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Wyoming.

Mr. ENZI. Mr. President, I rise today to object to another administrative overreach. As I travel the country and Wyoming, that is what I hear about—the way this administration keeps overreaching. Fortunately, there is a mechanism for us to object to the overreach; it is the Congressional Review Act. Very seldom can it be used. This is one of those instances where it can. When it is published as a final rule, we have an opportunity to circulate a petition. If we get enough signatures on it, we can have what we are having today, which is 10 hours of debate, with a vote up or down on whether that rule is what Congress intended—not what the administration intended but what Congress intended.

Unfortunately, when this rule was written, there was a provision that it went to the President. The President doesn't assign rules. Congress assigns rules, so Congress ought to have the final voice on whether a rule is appropriate. We don't. But we have a chance to voice it because we are going to get 10 hours of debate to talk about this proposed rule by the National Labor Relations Board—a totally appointed board, not an elected board, three Democrats, two Republicans. If this were as modest a change as we just heard, there would have been some common ground that would have brought one or both of the Republicans along. That has been a thing of the National Labor Relations Board in the past but not anymore. Now the Republican members of this National Labor Relations Board are ambushed as well, and we come up with what we call the ambush elections rule.

So I rise to encourage my colleagues to support the Congressional Review Act resolution of disapproval of the National Labor Relations Board ambush elections rule. I again thank my friend Senator ALEXANDER, the chairman of the Health, Education, Labor and Pensions Committee, for leading this resolution. Oversight of Federal agencies is one of the most important duties of a committee chair, and I appreciate his work and the way he goes about it.

The National Labor Relations Board has proposed a rule that would drastically alter the way union elections are held.

A union election is one of the most significant decisions employees will have to decide at their workplace. It fundamentally alters their relationship with their employer, with the men and women they work with every day, and with the community. A union election means that small business employers have to meet unfamiliar and complicated legal obligations, with serious consequences for failing to meet deadlines, file specific documents, or assert their rights in the process.

The current process for holding union elections is both fair and timely. It ensures that businesses and employers have the necessary time to fully meet their legal requirements. It gives employees time to educate themselves about what unionization will mean for them and their families and to investigate the union that would be representing them to ensure that it is consistent with their values and priorities.

Under the current process, the average time between when an election petition is filed and ballots are cast is only 38 days. That is under 6 weeks. And more than 95 percent of union elections are held within 2 months of an election petition.

The rule the National Labor Relations Board is pushing would squeeze union elections into as few as 11 days. No, it doesn't require 11 days; it can shorten the time to as few as 11 days. That is just 11 days for employees to learn about the union that would have overwhelming influence on the future of their work conditions and to learn about what unionization would mean in their workplace and what dues they would have to pay. That is 11 days for employers to learn about their rights and requirements during the election, to collect information about employees that must be submitted, to draw up the final documents, to ensure that they haven't missed anything, and to make their position clear to their employees—all that while running their business. It is not enough time. The smaller the business, the more critical it is.

It is important to point out that a union that wants to organize in the workplace isn't subjected to that timeline at all. A union can start its campaign months in advance, maybe even years. Professional union organizers can start making their pitch long before they intend to petition for an election. Organizers have plenty of time to figure out which employees are union supporters and which employees might be on the fence but could be convinced. A union can take its time to create a narrative and build its case to workers, and it can do so without the business ever knowing. And then when the union decides the time is right, it can petition for the election when it is most advantageous for the union.

This is why we call it the ambush election rule—because if this rule goes into effect, after a union has had months to build its case in its favor, a business will only have a few days to respond. That is only a few days to figure out what union officials have told employees; to determine if there are any misstatements, falsehoods, or misconceptions that need to be addressed in what employees have been told; to make the employer's position clear and answer any questions employees might have; and to meet all their legal obligations under the union election process. But it is not so simple because under the rules, employers must follow specific guidelines about what they can and cannot say and even who can say it.

I don't know any entrepreneurs who started a business because they were excited about understanding the ins and outs of the National Labor Relations Act. That is why it is important to maintain the current system, which includes sufficient time for employers to study election procedures, understand their legal requirements, and ensure they are meeting their obligations to their employees. The National Labor Relations Board's rule will deny employers the necessary time to do their due diligence.

This would be especially true for small businesses that don't have in-house lawyers or human resources departments. Small businesses are the backbone of our economy, and staying competitive means that small business owners have to take on a whole range of responsibilities. They have to be accountants. They have to be janitors. They have to play dozens of different roles every day to keep their business going. The rule we are debating today would mean they would suddenly have to become labor lawyers too.

Most small business owners are not familiar with the complex business laws that determine what they can and cannot do during a union election. They might not know that if they make certain statements or take certain actions, the National Labor Relations Board can impose a bargaining obligation on them even without a secret ballot election. Let me repeat that. They might not know that if they make certain statements or take certain actions, the National Labor Relations Board can impose a bargaining obligation on them without a secret ballot election. They might not know that they have certain rights but that they have to exercise those rights at a certain point in the process or they forfeit them.

Under the current system, they have time to learn. More importantly, they have time to work with their employees and even with the union organizers. One of the ways the current system succeeds is that it allows businesses, employees, and unions that would want to hold an election to work together through the election process. Many of the union elections that happen in less than the 38-day average are able to move forward so quickly because all sides can come to an agreement on the issues, efficiently resolve any disagreements, and hold an election without any holdup. Businesses have enough time to understand the process, and that allows them to work cooperatively. If a business can be confident that it doesn't need to file unnecessary paperwork or hold unnecessary meetings, it can move forward without unnecessary delays. That won't be the case under the new rule where businesses—especially small businesses—don't have the time to get comfortable enough with the process. And I predict that the number of elections where unions and businesses can work cooperatively to hold elections more efficiently will fall significantly.

Under the new rule, a small business is going to have two options—either go into an election blind and hope they don't make any mistakes and hope everything comes out OK or take every precaution, hold every hearing, and fully exercise every right to make sure they don't miss anything important.

I believe small business owners want to work in good faith with unions through this process, but the ambush election rule is going to make it harder for them to do that. Efficient elections are better for everyone. Businesses can get back to work faster, unions can hold an election sooner, and employees get a fair and timely vote. But this rule is going to make it harder for that to be the case.

The National Labor Relations Board says it is making this rule because the process needs to be streamlined and updated. But what the Board is doing in a very partisan way simply doesn't make sense in light of the fact that the average time for a union election is 38 days—which means many elections happen sooner than that—and that nearly all elections are completed in less than 2 months.

The Board says these rules are meant to address problems with some elections that have been held up for months or years. That would really affect these mean numbers, so that can't be much of the case. If that is the case, why did they write a rule that is going to undermine a system that already provides for timely elections and gives businesses the time they need to work cooperatively with unions? When an agency makes a rule, it is supposed to be solving a specific problem, and that rule is supposed to be targeted at fixing this problem. In this case, NLRB's rule has not targeted the problem they want to fix. What is worse, this rule is going to undermine a system that meets the needs of businesses, unions, and employees in all but a handful of cases.

This rule doesn't make sense, and the way the Board is pushing this rule doesn't fit with how labor laws should be updated and improved. The National Labor Relations Act is a carefully balanced law that hasn't been changed very often. When changes have been made, it has been the result of careful

negotiation, input from stakeholders, and thoughtful debate. Unfortunately, it looks as though the only stakeholders in the room when the Board wrote this ambush elections rule were the unions.

The Board also says that its rule is intended to update the elections process to account for new technology, such as email and cell phones. Unfortunately, the rule fails to take into account the key concerns about data privacy and security that we face today. It undermines employees' privacy at a time when identity theft, computer crimes, and cyber security are serious issues.

Under current law, an employer is required to turn over employees' names and addresses within 7 days once an election is set. The proposed rule would not only expand the type of personal information that must be turned over, but would require that information be handed over to the union within 2 days. The expanded information the Board wants employers to give to the unions includes all personal home phone numbers, all cell phone numbers, and all email addresses that the employer has on file. It would also require work location, shift information, and employment classification. All of that can be used to harass the employee whether they want to be contacted or not, whether they want information or not.

Now keep in mind that under the new rule, the question about which workers are eligible to unionize or to participate in the vote isn't determined until after the election. What? They are not going to know which workers are eligible to unionize or to participate in the vote until after the election. That is a strange rule. The ambush election rule would require employees to hand over personal information on their employees to unions without confirming which employees should or should not be on that list. That is part of the process that gets left out.

The purpose of requiring the information, of course, is so the union organizers can come to your home, call you whenever they want, email you, find you after work and intercept you before or after your shift. There is no time limit to how many times union organizers can contact you or at what time. There is no opt-out for employees who simply don't want to be contacted. That could turn into a serious invasion of privacy for any employee, but for an employee who isn't eligible to participate in the election but has his or her information turned over to the union anyway, that is a serious breach of privacy.

I think it is important to point out how this rule undermines employee privacy, particularly when we frequently hear about news of data breaches, stolen credit card numbers, and identity theft. Protecting personal information is not something that can be taken lightly. Union elections can be very intense, an emotional experience for employees, employers, and union organizers alike. The last thing this rule should do is create a situation where an employee's personal information is used as a tool for harassment or intimidation.

The National Labor Relations Board is supposed to be an impartial body that hears cases, weighs the facts, and makes fair, unbiased decisions according to the law. Although the Board's decisions set precedents that determine how labor laws are applied going forward, it has not traditionally been a rulemaking agency. It has issued only a small number of rules, especially compared to other departments and agencies. Unfortunately, the Board has gone too far with the ambush elections rule. It has taken upon itself to impose new regulations that would hurt businesses, undermine a sensitive process that has already provided fair and timely elections, give up employee privacy, and bend carefully balanced labor laws in favor of the unions. Congress needs to tell the National Labor Relations Board this rule is out of bounds.

The Congressional Review Act gives Congress a tool to rein in agencies that use the Federal rulemaking process in ways Congress never intended. When an agency goes beyond what Congress has authorized or tries to issue regulations that would be harmful, the Congressional Review Act ensures that Congress can intervene and hopefully prevent that rule from going into effect. Congressional Review Act resolutions can't be held up by the usual procedural delay tactics, although today we saw a historic event. For the first time the Congressional Review Act had to have a cloture motion for it. That is privileged, so the cloture motion only required 51, but I have done several of these, and that is the first time I ever remember having to do a cloture motion. That is a filibuster. That is a delay on an inevitable discussion of the actions taken by a board.

So at the end of the day the Senate has to vote. That is important because it means Congress's oversight responsibilities over executive branch overreach has a real and immediate effect when we use the Congressional Review Act. But it goes further than that, because the Congressional Review Act also says once Congress has disapproved a rule, it cannot be reissued by the agency. That is important in this case, because this isn't the first time the National Labor Relations Board has issued this rule. The rule we are debating today is nearly identical to the rule the Board proposed in 2012, which was overturned by the courts because the Board failed to follow its own procedures when it issued the rule.

We need to pass this Congressional Review Act resolution, not just to roll back the National Labor Relations Board's unnecessary and harmful rule, but to make it clear to the Board that Congress has the final word on this rule and any other rule, and that the issue is closed.

It will also be a lesson to other boards and agencies proposing rules without finding common ground, without looking at some of the common sense, and without looking out for the hard-working taxpayers.

The Board has already issued this rule twice, and we should make sure this is the last time. Congress should make it clear that unnecessary regulations that hurt small business and undermine the fair and timely elections process are nonstarters.

I urge all my colleagues to support this resolution of disapproval. We need to remind the National Labor Relations Board and other boards and agencies that their duty is to consider the facts of specific cases, to treat parties in those cases fairly, and to make impartial decisions according to the law. The Board's role is not to try to stack the system against one side or tip the scales in favor of the other, which is what this rule does. This rule makes it harder for businesses to meet their obligations in good faith. It denies employees the time they need to be able to make informed decisions, and it undermines the fair and timely process for union elections that is currently in place.

As you heard a number of times, John F. Kennedy, when he was a Member of the Senate, said 30 days was a pretty good time. Moving it down to 11 days—I don't think he would approve of that.

This is one of the most important votes on labor issues we will have this year, and I urge my colleagues to put a stop to this burdensome rule.

I yield the floor.

I suggest the absence of a quorum, and I ask unanimous consent that the time be equally allocated to the two sides.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. FLAKE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

(The remarks of Mr. FLAKE pertaining to the introduction of S. 638 are printed in today's RECORD under ''Statements on Introduced Bills and Joint Resolutions.'')

Mr. FLAKE. Mr. President, on a separate topic, I would like to urge my colleagues to support S.J. Res. 8, the joint resolution of disapproval under the Congressional Review Act of the National Labor Relations Board's final rule regarding union representation election procedures.

As we heard today, it is often called the ambush election rule. It gained its namesake because it shortens the time between when a union files a petition for an election and the holding of that election.

As a cosponsor of this resolution and a signer of the discharge petition to bring it before us for consideration, I believe this rule needs to be stopped before it takes effect on April 14.

According to NLRB data for the last 10 years, the median time before the union election was 38 days. This proposed rule could shorten that timeframe to as few as 11 days. The rule gives employers only 7 days to find legal counsel and appear before an NLRB regional office at a preelection hearing. Prior to that hearing, the employer must file a Statement of Position, which raises any and all legal challenges they may use later on. This is particularly burdensome for small businesses that typically don't have inhouse legal counsel. They have little time to get advice on what is permitted during this process.

There are also privacy issues with this rule's requirement that employers must hand over employees' personal information—including cellphone numbers, personal email addresses, shift times, and locations—to unions. With more than 95 percent of these elections occurring in less than 2 months, it is hard to understand why this onerous ambush election rule is even necessary.

Instead of burdening small businesses with complicated legal work and increased regulations, this administration and the NLRB should be focusing their efforts on increasing job growth and improving the economy.

I encourage my colleagues to support this resolution of disapproval.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. FLAKE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. FLAKE. Mr. President, I ask unanimous consent that the Democrats control the time between 4 p.m. and 5 p.m. and the majority control the time between 5 p.m. and 6 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. FLAKE. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. WYDEN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

AFFORDABLE CARE ACT

Mr. WYDEN. Mr. President, tomorrow morning the Supreme Court is going to hear oral arguments in King v. Burwell. The Supreme Court's ruling could have sweeping consequences for the well-being of millions of Americans and for our Nation's entire health care system.

The issue at hand is whether Americans who receive the opportunity to buy quality health insurance, thanks to the Affordable Care Act, can get assistance in paying for that care. The law gives our States a choice. Our States can design and manage an insurance exchange on their own or they can allow their citizens to shop on a federally run exchange. Furthermore, the law created tax credits to help Americans afford the cost of health insurance.

Thirty-six States took the Federal option. Eighty-seven percent of the people who signed up in those States get some measure of assistance so as to better afford coverage. However, the petitioners in King v. Burwell argue that those Americans should be denied any assistance.

In my view, the answer is simple. Let's help those who are in need. Let's not go back to that time in America when health care was for the healthy and for the wealthy.

If one flips on C–SPAN and listens to the Congress debate and question the administration, one might hear something wildly different. Some Members of Congress seem to be rooting for Americans to lose their subsidies and consequently their access to affordable health coverage. In fact, Members of Congress have filed briefs with the Supreme Court making essentially that argument. At the same time, they have asked how the Obama administration would clean up the aftermath. To me, that is like pouring gasoline on a fire and then indignantly demanding that somebody else go put it out.

There is no question the law's implementation has at times been a challenge. That is true of all major legislation. It is clear there ought to be bipartisan interest in continuing to improve the law. But the reality has been what we have had is a wornout, 6-year-old fight over the Affordable Care Act. The act's core purpose, which has been clear from the outset, is to help as many of our people get affordable, high-quality health insurance as possible, and the tax credits are absolutely key to making that work. In this case, those tax credits are in question.

To make their argument, the King petitioners scoured the text of the law and plucked out one obscure phrase buried in the text. That phrase is ''established by the State,'' relating to how the tax credits are calculated. According to the petitioners, those four words—that one small phrase—is enough to put millions of Americans in danger of losing their health insurance. The petitioners are arguing, against common sense and the actual text and intent of the Affordable Care Act, that the intent was supposed to deprive millions of struggling families and individuals of affordable health care coverage.

In my view, this should not be a difficult case for our Supreme Court to decide. Looking at the law itself, the text is clear. To cite some examples, when a State declines to establish an exchange, the Federal Government is directed to fill in and establish ''such exchange.'' This makes sure insurance coverage and tax credits become available to any ''applicable taxpayer,'' regardless of where that taxpayer might live. Furthermore, the information used to calculate the subsidies is gathered from everybody who buys an insurance plan. That would be unnecessary if Americans in only some States were eligible for the tax credits.

On top of that, it is a firmly established principle of statutory construction that when interpreting a provision of a law, a court should read the provision in context, not in isolation. It should consider how the part fits into the whole. As the Supreme Court has said, it is a ''fundamental canon of statutory construction that the words of a statute must be read in their context and with a view to their place in the overall statutory scheme.''

Here, looking at the overall statutory scheme, in my view there is only one plausible explanation. States have the option of establishing exchanges. If they decline, the Federal Government will establish an exchange for them. It was written that way so everyone who needs assistance and meets the relevant qualifications can receive that assistance. In my view, we just can't reach any other conclusion. Without the broadest possible access to health insurance—and financial assistance for those who need it—the system would simply be at risk.

The interpretation made by the petitioners makes absolutely no sense in the context of the overall statutory approach. It would contradict the fundamental purpose of the Affordable Care Act which, as stated in the title, is to provide ''quality, affordable health care for all Americans.''

Finally, a statute should be interpreted under the assumption that as the Court has said: ''Congress . . . does not . . . hide elephants in mouseholes.'' Congress does not slip major rules, which have huge ramifications, into obscure corners of the law. In this case, Congress would not slip a major rule denying tax credits to millions—what would in effect be a poison pill—the Congress would not slip that deep into a line that simply defines the term ''coverage month.''

Furthermore, there is no evidence in the legislative history to support what I consider to be a warped reading of the law by the petitioners. If the Congress intended for the tax credits to help only some Americans, the Congress would have said that. The issue would have come up in committee hearings and markups and press conferences or in debates in the Senate or in the other body. It would have been reflected in fact sheets and in press releases that were made available to the public. It would have come up in committee reports that accompanied the bill's long journey through the Congress. It never did, not even once. The only way to get to the petitioners' view is by cherry-picking and contorting a four-word phrase.

Look at the long record of analysis provided by the trusted nonpartisan

staffs of the Congressional Budget Office and the Joint Committee on Taxation. We rely on them. They are bipartisan. They are nonpartisan. It was their job to do the math, to score the bills and figure out exactly what the economic impacts would be. In every analysis and in every communication the Congressional Budget Office and the Joint Committee on Taxation had with the Congress, they correctly presumed that tax credits would be available to all who qualified. The tables and reports prepared by the Congressional Budget Office and the Joint Committee on Taxation are all online. So what I have said can be backed up, and anyone can read those materials.

In my view, the petitioner's argument in this case is weak and the text of the law and congressional intent is clear. But, still, the wrong decision could make quality health insurance suddenly unaffordable for millions of Americans from one end of the country to the other. The negative effects of that ruling would radiate throughout our health care system. Recent studies of this case have suggested that the cost of insurance could soar upward for more than 7 million Americans. Only those most in danger of needing serious medical assistance would remain insured. The cost of insurance premiums, particularly in the individual market, would skyrocket for all. As a result, a crisis that would begin with 7 million people could grow to affect 8, 9 or 10 million and perhaps even more. In my view, it would send our country back to those dark days when health care in America was for the healthy and the wealthy. That is what the Affordable Care Act is intended to prevent. That is not what the American people want.

The Federal Government, independent health care organizations, and those whose insurance is at stake all agree—the tax credits are meant for all. Even America's Health Insurance Plans, the trade association representing the Nation's largest insurers, takes that view. It wrote in a brief filed with the Court that eliminating the subsidies ''would leave consumers in those states with a more unstable market and far higher costs than if the ACA had not been enacted. . . . ''

The only groups that argue otherwise are essentially political partisans that want to see the Affordable Care Act brought down at any cost. These arguments, in my view, are baseless, and they pose a serious danger to the health of millions of Americans—those in our country who went far too long without access to quality, affordable health care and who have it now with the Affordable Care Act.

I strongly hope the Supreme Court will take a conservative approach in its ruling—a conservative approach—and reject the challenge to the law. Then Congress can get on with the important business of bringing both sides together to improve the law where it needs to be improved and address the other important needs of America's health care system.

With that, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. FRANKEN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. FRANKEN. Mr. President, I rise today to oppose this resolution which would overturn modest but vitally important updates to the process that enables workers to exercise their rights to join a labor union. Today's attack on the NLRB's rule to modernize its election process is misplaced and misguided.

Today middle-class families are struggling with wages that aren't keeping up with expenses, while large corporations make record profits, and those at the top are doing better and better. But our economy doesn't grow from the top down; it grows from the middle out. Our economy is strongest when we have a thriving middle class with a strong voice in the workplace.

That is why we should be talking about how to restore basic workplace fairness to middle-class Americans and to those aspiring to be in the middle class. To me, that means if you work full time, you shouldn't have to live in poverty. It means making sure that moms and dads don't have to choose between keeping their jobs and taking a few hours to take their sick child to the doctor. Those are the things we should be focusing on. In fact, if we want to accomplish those things, we need to strengthen the voices of regular Americans in the workplace. The NLRB representation rule takes a small but important step toward strengthening those voices. That is why the resolution before us today is not only misplaced, it is also misguided. This resolution would do the opposite of empowering workers.

The purpose of this resolution is to block rules that will modernize a broken election process. Because that election process is broken, it is preventing workers from exercising a basic right they are supposed to have in the workplace—the right to have a seat at the bargaining table.

Too often, loopholes are being exploited to prevent workers from having the freedom to decide whether they want to form a union. Today, 35 percent of the time that workers file a petition for a union election, they never even get to have an election. The 10 percent of litigated cases that this rule targets for reform take over 6 months on average to get to an election, and some elections can be delayed for years. That is why workers need this rule to ensure a fair, effective process that is free of excessive delays.

Some of the updates in the rule simply standardize best practices that are already used in some parts of the country. For example, in some regions of the country hearings are regularly scheduled to be held 7 days after the petition is filed and petitions are accepted by fax. Also, under the representation rule workers and companies can file documents electronically, bringing the process up to date with 21st-century technologies. It also increases transparency in the election process. Everyone involved—from workers petitioning for an election, to companies, to the NLRB itself—has to provide information to the other parties earlier in the process and in more complete form.

Nothing in this rule will change an employer's right to express its support for or opposition to a union. Nothing in the rule will change an employer's ability to communicate with workers from their very first day on the job. If the employer opposes collective bargaining in the workplace for better wages and working conditions, the company has the right to do that from the very beginning.

Modernizing and streamlining the process by which workers exercise their rights to join a union should not be controversial. Under the National Labor Relations Act, our laws explicitly recognize the rights of employees to engage in collective bargaining through representatives of their own choosing. That is the law.

As a member of three unions myself, I have seen firsthand how important it is for workers to have a voice in their workplace. The evidence shows that being a member of a union can have a tremendous impact on the lives of real people and their families. Workers covered by a collective bargaining agreement are paid more on average than those not covered. Unionized workers are more likely to have health care, retirement benefits, and paid leave benefits than other workers.

So, again, the changes made by the election rule are just commonsense updates that will support these important objectives. I urge my colleagues to oppose this resolution so that these commonsense reforms will be able to ensure a fairer election process for everyone.

I yield to the Senator from New York.

The PRESIDING OFFICER. The Senator from New York.

Mr. SCHUMER. Mr. President, I thank my colleague from Minnesota for his outstanding remarks.

I want to rise to make one thing clear in this debate. My friends on the other side of the aisle once again have taken up the cause of special interests at the expense of hard-working Americans. Once again they are using their new majority in the Senate to find ways to keep the rules rigged against American workers.

Let's look at this. The bottom line is very simple. Middle-class incomes are declining. One of the main reasons middle-class incomes are declining is the decline of unions. That is what just about everybody who studies it says.

We are now 11 percent unionized. We were 30 percent, private sector only 6 percent. The bottom line is we had a lot of poor Americans in the 1920s.

Laws that were enacted by this Congress allowed unions to organize and workers, through collective bargaining, were able to gain some of the wealth from their labor. We had broad prosperity as America was unionized in the 1950s and 1960s and 1970s and 1980s. What happened was that corporate America learned how to both prevent new unions from occurring in new industries and breaking old unions.

As a result now, middle-class incomes are declining. Our colleagues on the other side of the aisle, once again, they talk they want to help the middle class, but in all the obvious ways to help the middle class—and unions do, whether the management likes it or not, they manage to give the workers more money—they do not walk the walk.

These NLRB changes are simple. There have not been substantial updates to the NLRB election process since the 1970s. The new changes pull the process into the 21st century, letting unions and employers file electronically and using modern forms of communications such as cell phones. Our colleagues are opposed to this. They want to undo it. My God, the changes will modernize union elections, prevent delays, reduce frivolous litigation, something even the Republican Board members on the NLRB supported in principle in their dissent.

Right now big corporations can use delays in labor elections to try and take advantage to postpone and even deny workers' rights to vote. This is what my friends on the other side of the aisle are rising up against: workers whose incomes are declining trying to get a little more money when corporate profits are at a record. The other side says, nope, side with the corporate profits over middle-class wages. That is what they are saying. That has been the theme in this Congress. It is going to continue to be the theme.

We will make it clear to the American people who is on their side. The congressional review process on these changes allowing employers and unions to file forms electronically, and we have to invoke this unique process, streamlining the process so workers are not kicked around with an army of lawyers?

It is disappointing that my friends across the aisle have made such a mountain out of a molehill with these rules. At the beginning of this Congress, I was hopeful my colleagues were ready to join us and go to work for working families who have experienced a lost decade of economic advancement, whose real wages have declined.

In an op-ed in the Wall Street Journal this year Leaders MCCONNELL and BOEHNER said one of the their primary goals was helping struggling middle-class Americans who are clearly frustrated by a lack of opportunity and a stagnation of wages. If their only answer is to reduce regulations on corporations, lower corporate taxes, lower the taxes of the wealthy, and that is going to help the middle class, I have news for them, that is not going to fly.

I feel in my heart deeply that the decline of middle-class wages is a decline of America. I feel we have to do something about it, but we certainly should not regress. My colleagues, with this motion, it will make it harder for the middle class to grow wages, make it easier to say even a larger share of productivity goes to capital and a smaller share to labor, despite their rhetoric and despite the problems we face.

I see my dear friend from Tennessee. I hate to oppose him in such strong language because I think he is a fine gentleman, but on this issue we disagree.

I yield the floor.

Ms. MIKULSKI. Madam President, I wish to talk about protecting the middle class.

I am on the side of an economy that works for everyone and building a stronger middle class to bring opportunities to families across the Nation.

What is an economy that works for everyone? It means that if you work hard and play by the rules, you deserve a fair shot at the American dream.

An economy that works for everyone also means giving workers the right to organize, negotiate, and exercise their rights under the law in a timely way. I believe this can be done in a way that also enables businesses to prosper and to create jobs.

Unions raise wages, improve working conditions, and ensure fair treatment on the job. In many jobs they make the difference between living in poverty and making ends meet or the difference between just getting by and making enough to make a better life for a family. The right to unionize and collectively bargain helped grow the middle class.

When workers are choosing whether to unionize or not, they need a process that is fair, predictable, and efficient. But unfair rules, lax enforcement, and insincere negotiating has crippled union organizing and threatened the middle-class lifestyle that was once the economic pride of our country.

The main role of the National Labor Relations Board is to manage the relations between unions, employees, and employers in the private sector. The primary functions of the Board are to prevent or resolve unfair labor practices and to supervise union elections so that they are done accurately and fairly.

Now, the NLRB has put out rules that make modest updates to the election process that make sense in the 21st century. The rules would eliminate needless delays that slow the election process to a halt and modernize the process for sharing contact information to allow the use of email to communicate about the election.

But this and other commonsense updates are under attack in Congress. Under this Congressional Review Act resolution, the whole rule would get tossed out. There is limited debate and there is no chance for offering amendments. Middle-class workers deserve better than this.

Currently, workers organize themselves by signing a document saying they want to join a union. Once a majority of workers sign up, they can ask their employers to be recognized as a union and collectively bargain for a contract.

However, some employers delay, delay, delay—refusing to recognize the union and requiring workers to go through an intimidating antiunion campaign that ends in an unfair election. Workers should be protected from these kinds of stall tactics and intimidation.

It is common sense that communication should be allowed to take place over email. These rules would allow for that. Documents should be allowed to be submitted electronically. These rules would allow for that, too. This creates a more efficient process that benefits workers.

I want workers to make more money. When families have more money in their paychecks, it is good news for the middle class and it is good news for our Nation's economy. When workers have a seat at the table, it means they have a better chance at getting the wages and the protections at the workplace they deserve. I want to grow our middle class by giving more workers this critical seat at the table. But they won't get it if Congress pulls the chair out from underneath them by throwing out this rule.

The PRESIDING OFFICER (Ms. AYOTTE). The Senator from Tennessee.

Mr. ALEXANDER. Madam President, I know we are in Democratic time right now. So if a Member of the other side shows up, I will sit down. I appreciate the courtesy of my colleagues on the other side allowing me to continue my remarks. I will not take more than 7 or 8 minutes.

My good friend from New York just spoke. We have worked together on a number of things. He talked about the middle class. I think he is right to talk about the middle class and the effect of the National Labor Relations Board on the middle class.

Let me give a little bit different perspective on it. My problem with this NLRB is that it is not acting like an umpire between employers and employees, it is acting like an advocate for the unions. It did so in 2011 with the micro-union decision. It is doing so with the ambush elections rule, going against the advice of Senator John F. Kennedy in 1959, who said 30 days seemed like a fair time to give employees to consider whether to have a union.

They are ambushing employers—it's like riding through a canyon and suddenly people start shooting at you. In just 11 days—we have hundreds of thousands of small businesses across the

country that are trying to work, sell their goods, make a living, improve their status. That is the middle class we talked about.

Say you have five employees, say you are down in Maryville, TN, or Wichita, KS, the last thing on your mind is a labor lawyer. Here comes an election in 11 days. Suddenly small businesses have to find and pay a labor lawyer. They need legal advice at every step because in as few as 11 days they might have an election. There is no need to rush into an election that rapidly other than to give union organizers an opportunity to force a union election before the employer and its employees know what is going on.

Let me give one more example of the assault on the middle class that I see from this NLRB and our friends on the other side. In every community in America, there are lots of franchisees. These are the men and women who operate health clubs, barber shops, auto parts shops, childcare centers, neighborhood restaurants, music stores, cleaning services, and much more.

We had some franchisees testify before the labor committee the other day. These franchisees could have worked for a big corporation, but they said: I would like to run my own business. Franchisees can own a Ruby Tuesday's, a Rainbow Station, or an auto parts franchise. They own that business. They run that business.

They use that brand name to help it succeed. They use brand names like Planet Fitness, Merry Maids, or Panera Bread. They might work 12 hours a day serving customers, meeting a payroll, or cleaning. This is hard work, but 700,000 Americans do it because it is their way up the economic ladder. It is their way to say: I have my own business. I do not work for the big guys. I am a little guy working my way up.

Successful franchisees are one of the most important ways to climb the economic ladder of success. Yet this NLRB, the same one that wants to have ambush elections, has a pending decision that would threaten franchisees' very way of life. It is called the joint employer standard, which since 1984 has required a business to hold direct control over the terms and conditions of a worker's employment.

Through broad language, the NLRB is saying to McDonald's or Ruby Tuesday's that they are part of the parent company, and anything they do at their store has to be accepted by the parent company.

What are the consequences if that happens? The parent companies are going to say: We are not going to take that risk. We are going to own all of our stores. So we will own all of the Rainbow Stations. The parent company will own all of the McDonald's stores, or all of the Ruby Tuesday's.

What will that do? That might protect the parent company because it can hire a team of labor lawyers. It can instruct its employees what to do and what not to do to avoid problems. But it takes away the middle-class opportunity of moving up the economic ladder from these 700,000 franchisees. That is what this NLRB is doing. The ambush election rule is nothing more than speeding up the time that it takes between when pro-union organizers ask an employer for a secret ballot election, and when that election actually takes place.

Every step you take has to be perfect according or else you might have to have a rerun election or be ordered to negotiate with the union. That jeopardizes the fairness in our system. The National Labor Relations Act was intended to create an environment of balance and fairness among employers and employees. Senator Kennedy said in 1959 that 30 days would be a reasonable amount of time between when a union organizer files a petition and when an election is held.

Senator MCCONNELL and I have another bill to restore the balance in the National Labor Relations Board. It is absolutely fair. The Board would be three Democrats, three Republicans. If the general counsel's complaint is outside the law, the aggrieved party can take it to Federal court. If the NLRB takes longer than 1 year to decide a case, either party can take it to Federal court. That is fair. That is the kind of umpire we need in labor relations today. So this is about the middle class. This is about moving up the economic ladder. This is about the kind of actions that give 700,000 Americans their franchise business. This is about the hundreds of thousands of Americans, with 4, 5, 6, 10, 15 employees, who do not need to be ambushed as they try to earn a living, pay their bills, sweep the floor, make a profit, pay employees, and create the American dream.

The stakes are high. We are right to say let's return the National Labor Relations Board to an umpire.

Let us hope the House agrees. Let us hope the President agrees. It's time to return fairness and balance to labor-management relations in this country.

I yield the floor.

Mr. ISAKSON. Madam President, are we in a quorum call?

The PRESIDING OFFICER. We are not.

Mr. ISAKSON. Madam President, I rise to speak and to commend the chairman of the Health, Education, Labor and Pensions Committee, Senator ALEXANDER, for this resolution that is on the floor to rescind and overturn the ambush election rule the NLRB has asked to go in effect on April 14. It is just dadgum wrong. It is a solution in search of a problem.

We don't have a problem in terms of labor relations. Ninety-five percent of all the elections for unionization take place within 56 days. The median term is 38 days. That is 1½ months to 2 months. That is all it takes. This would compress that period of time from the average now of 38 days to 11 days.

Is 11 days enough time for a worker to get all the information they need to find out whether they want to become unionized? No, it is not. Is it fair to an employer to give him only 11 days to defend himself against a union organization trying to take him to a union shop? No, it is not. Does it do anything for the middle class? No, it does not. This is a solution for an issue, as I said, that doesn't exist, a problem that doesn't exist. It is time we stood up for American business and American workers.

I ran a sub S corporation, which is a small business in Georgia. Most everybody thinks this is a big business issue. It is not; it is a small business issue. It is a repeat effort by the NLRB to continue to meddle and tilt the playing field between labor and management.

Everybody knows that during the Industrial Revolution this country overlooked the worker. We had child labor, we had workers working too long, and we didn't have good safety rules. We all know labor unions came about because businesses failed to address their needs. But that was 100 years ago. Today we have good labor law, we have fair labor law, and we have opportunities for people to be unionized if they want.

Of all the elections called in the last 2 years, 64.2 percent have gone to a unionized shop—64.2 percent. In other words, the law we have now today works. It works for the worker and it works for the union. But it doesn't work to compress that time period to 11 days. That would cause confusion, it would cause discord, it would cause a terrible burden on the employer and terrible pressure on the employee.

Included in the rule are, in my opinion, privacy violations by the organizers. It will require the company to turn over cell phone numbers, private information and all of that, so the unions can harass them to try to get them to sign a petition for a clarification and certification. It is just downright wrong.

The chairman of the Health, Education, Labor and Pensions Committee is exactly right: This is an unfair rule. It has no place being passed and adopted. We have every right to rescind it, which I hope this Senate will do.

Let's remember who the middle class really is. Let's remember who small business really is. Let's remember why we have unions and why we have a National Labor Relations Board. We have it for fair and equitable treatment of labor law. We don't have it to tilt the playing field in favor of labor or in favor of management. We have it to be fair, so everybody gets a fair shake and a fair notice and a fair time to have their say.

So I rise to commend the chairman for his efforts and what he has done. I support his effort and what he has done, and I hope the Members of the Senate will vote in favor of rescinding this rule before it goes into effect. It would be a terrible one-two punch to have this rule go into effect on April 14

and the IRS's tax day be April 15. That is too much punishment for one period of time. It is just not the right thing to do.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Ms. STABENOW. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. STABENOW. Madam President, my Democratic colleagues and I come to the floor all the time talking about how we grow a middle class, how we help middle-class families, and how we make sure we have a strong economy because we have a strong middle class. Yet what we are seeing on the floor right now is an effort by our Republican colleagues to fight to keep a system which is rigged against American workers being able to get a livable wage, to have a voice in the workplace.

We know what we ought to be doing is looking for every possible way to support those who are working hard every day, to have a wage that allows them to care for their family, to send their children to college and achieve the American dream. They should have a voice in the workplace around safety issues, around other issues that are important for working men and women. We have in front of us a National Labor Relations Board rule change that was made to basically modernize the system around employee elections so that people have a fair shot to have their voice heard in the workplace.

It is pretty interesting to me that we are talking about simple changes that allow the use of email communications or fax communications—not exactly radical things in the world we live in. Without this modernization by the NLRB, we actually have a situation where people are denied the ability to communicate through email; to be able to talk about forming a union and communicate with each other through email, which is pretty crazy when you think about it. This particular vote would stop folks from using email or faxes.

The NLRB rule change was to modernize the election process, to eliminate certain paperwork hurdles that didn't make any sense, so an employer could not delay the ability for folks to vote as to whether they want to be part of a union. That is what is in front of us now.

What I wish was in front of us is the agenda we have been pushing, which is to actually strengthen the middle class. Instead, what we have in front of us is a vote about keeping the system rigged against American workers. There is no mistake about it. A ''yes'' vote, which eliminates this modernization process, is a vote to keep the system rigged against men and women who are working hard every day in the workplace and who just want a fair shot to make it.

Interestingly, this only affects about 10 percent of union elections, because 90 percent of elections are done through agreement with employers and employees. That is a testament to the fact that the majority of folks can work together, if 90 percent of them are working out agreements.

What we really ought to be talking about on the floor is equal pay for equal work and how we enforce that. I am stunned that we have the Republican majority fighting to keep the system rigged against American workers and then turning around and saying, well, we are not going to pass laws that enforce equal pay for equal work, or we are not going to pass laws that create a livable wage so people who are working are out of poverty, so that we reward work by having a livable wage. That is not what is on the floor. What is on the floor is an effort to roll back the modernization of a process that would make sure the system is not rigged against workers.

Why are we not talking about equal pay or raising the minimum wage or talking about the cost of going to college? The majority of people today, who are playing by the rules, trying to do the right thing, trying to get the skills they need to be responsible citizens and work in the workplace, come out of college buried in debt—buried in debt—but we are not talking about that. We are not spending our time on that.

We are not talking about protecting pensions earned by workers over a lifetime, who are counting on those to be protected. We are not talking about how we strengthen and expand and guarantee Social Security for the future, or any number of things we could be talking about. If we just made sure that equal pay for equal work wasn't a slogan but actually a reality of this country, we would jump-start the middle class. We would jump-start the economy if women were earning dollar for dollar what men are earning. That alone, along with any number of other things, affects middle-class families.

It is not about creating an economy by giving to those at the top and having it trickle down and hoping someday, somehow, it will affect the majority of Americans. We believe you start with the middle, you grow the economy from the middle out. It is a middle-class economy that lifts everyone up and addresses the strength of our country.

So I am very concerned that when we look at precious floor time and what the priorities are, we are debating a rollback on the modernization of rules with the National Labor Relations Board that will basically keep in place a rigged system. Without that modernization it is just one more mark against workers who are trying to have a voice and are trying to lift themselves up and improve their wages and ability to be successful and be rewarded for their work.

There is a lot more we could and should be doing. We are going to continue to raise the issues that middle-class families care about. We are going to continue to fight for middle-class families every single day, and we are going to continue to oppose those who want to keep a rigged system against the middle class.

So I urge a ''no'' vote on this particular resolution, and hopefully we can stand together and actually create jobs and a better standard of living by doing those things that are going to help middle-class families across America.

I yield the floor.

Mr. DURBIN. Madam President, would you advise me what the time allotment now is for debate?

The PRESIDING OFFICER. The majority controls the time from 5 until 6.

Mr. DURBIN. I ask unanimous consent to speak for 10 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. DURBIN. Madam President, it is interesting, when we get on the topic of unions, how we all come to this with such a different point of view. I come to it as a person who grew up in a household where every member of my family was a member of a union. My father and mother, who each had eighth grade educations, belonged to railroad unions in East St. Louis, IL. Because of that, there was bargaining for their wages and benefits—which I didn't understand as a kid, but I do now—that resulted in the quality of life we enjoy in our family. We weren't wealthy, but we were comfortable. I never went hungry, and I thought we lived a pretty good life. Mom and dad were hard workers. If you were a hard worker in those days and had the benefit of union representation, you could make a decent living. And we did.

If we study history, we will find that is what has gone on in America. Primarily after World War II, we saw two things happening: a rise in unionism—people who belonged to organized unions—and a rise in the middle class. In other words, employees who were able to bargain for their wages and benefits and retirement ended up with enough money to raise their families and to build the middle class in America.

In that period from post-World War II until the 1960s, the United States really took its place on the map in terms of our position in the economy. Exactly the opposite has been true since. Unionism—those who belong to organized unions—has been going down in most sectors except for government employment, and we have also seen a decline in the middle class. I don't think that is a coincidence; I think that is an indication that when workers do not have a voice in the workplace, they lose that bargaining ability to get a just wage, a good wage, a living wage, and the benefits that should come with it.

The irony is that American workers are still the best in the world. If we

just look at the issue of productivity of American workers, there is no reason for us to apologize. Our workers know how to create profit for the people they work for. Sadly, though, when it comes to this, we don't find that the companies that employ them reward their productivity with more wages and benefits. They don't. As a result, workers are working harder, making more profits for their company than ever, and yet they aren't seeing any real growth in their wages.

So there comes a time when workers should have the power to make a choice in their lives, and that is when they decide whether they want representation—an election to form a union where they work. That is what this bill is all about.

The National Labor Relations Board came up with a process that said: If you are going to have an election in the workplace so that workers can decide whether they want to belong to a union, let's at least make it fair, make sure that employers and employees and the unions have enough information. They can tell the workers their point of view, and the workers can decide.

I come to the floor today in support of the National Labor Relations Board's rule for modernizing and streamlining the election process for the workers. There is a wide divergence of opinions on both sides of the aisle here in terms of the value of unions. I value them. Some do not. But I think the ability of workers to organize and bargain collectively is about the only way to level the playing field and to create a growing middle class, which we need in America.

Last December the National Labor Relations Board came up with a rule, after a long process, to modernize the election process—the first time in almost 50 years. Fifty years ago they wrote the rules, and they said: You know, there are a few things that have changed in 50 years.

Here is what they said: The rule moves preelection problems, such as the 25-day waiting period and review, and consolidates options for delay and appeal into a single appeals process. In a nod to modern communications, the rule says employers and unions can file election petitions electronically rather than by fax or mail. This does not strike me as radical thinking. Think of all the things we do electronically today, from paying our bills each month, to communicating with one another, to gathering information. Bringing this to the labor situation, the choice of a union, is certainly not radical. And it requires employers to provide unions with the employees' personal email and phone numbers in addition to the existing requirement for names and addresses—personal email and phone numbers. When is the last time you filled out an application on the Internet when they didn't ask you for your email address or your phone number? It is routine, and we want to make this routine part of the process for unions and employers to get in contact with employees.

Republicans have called this an ''ambush rule.'' They say it deprives employers of the time they need to explain why the worker should vote against a union. They also claim the rule limits an employer's ability to pursue adequate representation. But that is not a fair claim. Union elections are only triggered when 30 percent of the workers sign a petition favoring an election. Almost one out of three needs to sign it saying: We want an election. Employers talk to their employees all the time when the employees are being asked whether they want to sign up to be part of the 30 percent, so the employers have constant access in the workplace. And employers can still require workers to meet one-on-one with supervisors, and about two-thirds of the employers actually do that. Nine out of 10 employers require workers to watch anti-union videos before an election. The new rule doesn't change that at all.

Under the new rule employers have time to talk to their workers; they just have fewer options to delay the actual election. It looks to me as if it is an advantage to employers going in, and the changes by the NLRB are really not that substantial.

Last year at this time workers at the Rock River Academy and Residential Center in Rockford, IL, wanted to form a union. Rock River provides mental health and educational services for young girls with emotional disabilities. The workers didn't like the working conditions in the workplace, the short staffing and stagnant wages. They wanted to work together to address these problems and to do a better job. They quickly signed up a majority of their coworkers and filed a petition with the NLRB office in Peoria. From the outset, the workers felt the employers at the facility were trying to do everything they could to stop this election. The delay in finalizing a union gave the residential center time to wage an aggressive anti-union campaign.

There was a hearing eventually at the NLRB, but it was nearly 3 weeks after the petition was filed. On the first day the employer's attorneys claimed that all the workers at the residential center were nonprofessional, even though they included registered nurses, licensed special education teachers, and licensed therapists and social workers. The following day they reversed their position and argued that all the employees at the facility should be considered professional—this was the next day—even though many employees lacked a college degree. That stretched the hearing out for 4 days. When it comes to these elections, delay is really the tool that is used to stop a final decision.

The regional director at the NLRB ruled in favor of the union's position and ordered an election held 82 days after the petition was filed in which more than a majority of the workers said they wanted an election. Eighty-two days later they actually got an election. During that time the employer hired two anti-union consultants to wage an anti-union campaign that included threats and interrogation and even the installation of a video surveillance system to monitor employees at all times throughout the workplace. Pro-union workers saw their hours cut, while non-union workers were given all the overtime they wanted. Worst of all, the employer terminated or laid off six employees in what they believe was retaliation.

Despite the delays and discomfort the employers created, a slim majority of employees still voted to form the union. But the employer continues to raise objections and intimidate the workers. Is that really what we want to see—the majority of the workers want the election, it takes 82 days to have the election, and then the recriminations and problems that follow? It doesn't seem as if this is workplace democracy, the way it was designed.

So I support this NLRB rule, and I am going to vote no on the efforts on the other side of the aisle to overturn it. This brings the election process into the 21st century and lets employers and unions communicate with employees. It doesn't encourage or discourage unionization; that is still up to the workers.

Some Republicans take offense to these changes and call it an ambush. Instead of standing up for workers, they have chosen to challenge these commonsense reforms. This rule is about reducing unnecessary delay and litigation and giving the workers the last word. That is what we are supposed to do.

This case in Illinois isn't unique. In some extreme cases, workers have been forced to wait 13 years for the simple right to organize. In many others, the delays have eventually led do a situation in which there was never a vote. Fifty-eight percent of workers want representation in their workplace, but the delays and challenges to the election process through NLRB discourage organizing.

These proposed changes by themselves neither encourage nor discourage unions. The proposed rule will apply the same way to workers attempting to decertify a union as it does to workers trying to form a union. The only real impact of the rule changes is, after 50 years, to recognize the existence of email and telephones, for goodness' sake. That is considered radical business by some on the other side of the aisle, but for most it is just common sense.

So oppose this effort to overturn this NLRB rule. Give the workers a chance to vote one way or the other on whether they want a union.

Madam President, I yield the floor.

The PRESIDING OFFICER. The Senator from South Carolina.

Mr. SCOTT. Madam President, we are here today because the NLRB has once

again overstepped the line. I am not sure it is a red line, but I do know this—that the Board has become a hyperpartisan, pro-union entity, and that does not benefit the American people.

We saw it in my home State of South Carolina, in my hometown of North Charleston, when the NLRB and the IAM attempted to destroy what was at the time 1,100 jobs at Boeing. Boeing represents more than 8,000 jobs in North Charleston because of the success of South Carolina's pro-business, pro-employee—I want to emphasize ''pro-employee''—environment. But the NLRB and the President simply decided that didn't fit their tastes. So after more than a year, when we saw the NLRB's general counsel joke about destroying the American economy and call Members of Congress names, they finally relented when they realized South Carolina and the American people would not stand for it.

But since then, the NLRB has continued to push policies loved by union bosses, even though it was created to be an unbiased arbiter. So today we are taking a very rare step—invoking the Congressional Review Act—because the NLRB decided to do union bosses one more favor.

The ambush elections rule, which the Board has now finalized, will allow as few as 10 days to pass between employees filing a petition to unionize and a vote occurring. This rule is perhaps the most pro-Big Labor action taken by the current administration, which is quite a fete for this administration. Ambush elections hurt the ability of employees to make a well-informed choice on joining a union as it gives limited time to hear both sides of the debate. The rule also requires unprecedented amounts of employees' personal information to be given to union representatives, such as personal cell phone numbers and email addresses. The NLRB is also now placing burdensome requirements on employers that unions do not have to follow themselves, providing an unfair advantage to union organizers.

In South Carolina we have seen the potential ramifications that come as a result of a widely partisan NLRB, and this rule simply reinforces the fact that the Board must return to acting as the neutral arbiter it was intended to be. But since that does not seem likely anytime soon, as my friends on the left resist efforts that Senator ALEXANDER and I and others have introduced to reform the Board, we find ourselves here today.

I will leave you with just a few quotes. One is from Brian Hayes:

> The principal purpose for this radical manipulation of our election process is to minimize, or rather, to effectively eviscerate an employer's legitimate opportunity to express its views about collective bargaining.

I urge my colleagues to vote to disapprove of the ambush elections rule and return workplace decisions to employees—not to Big Labor and a partisan administration.

Just a few weeks ago we had a hearing in the HELP Committee. Sometimes when we have this conversation about what is good for employees versus what is good for employers, we find a way of taking these two groups of folks and trying to put them in competing categories. I asked a very simple question at one of the hearings, and I wish to take a few minutes to walk through what we are expecting of employers as we engage in this new process of ambush elections. I think we will see very clearly why we call them ambush elections.

For the last 13 or 14 years, before entering Congress, I was a small business owner, an entrepreneur. I thought I had found the American dream. We were making a profit. We were moving forward. We were hiring people. And now, as I think it through, if I were still in business today, what are we asking employers to do in as short a window as 10 days?

With less than two dozen employees and no in-house legal counsel, I am expected in as few as 10 days to understand what an election position is; to find a labor attorney in Charleston with NLRB experience, and hopefully, NLRB expertise; to learn what can and cannot be said to employees; to figure out which employees are eligible to vote; to submit to the union names of eligible employees, their addresses, personal emails, their cell phone numbers, their work location, shift information, employee classifications; and to ensure all legal arguments are raised at this point in time so that I do not waive my right to use those arguments in the future. All of this must be done with amazing haste and great precision.

Meanwhile, the clock is ticking. The clock is ticking on my right to talk with my employees before an election. My business is being neglected. Bear in mind that employers and entrepreneurs start businesses so that we can actually accomplish a task, not necessarily to defend ourselves in this process. So while we are neglecting our business and incurring substantial legal costs, I have to ask myself one very simple question—and I think many people are going to ask themselves the same exact question—and it is simply this: How does this lead to a fair election for any employee or any employer? It seems to me that it simply cannot and it will not.

I thank the Presiding Officer.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. THUNE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. GARDNER). Without objection, it is so ordered.

THE ISRAELI PRIME MINISTER'S ADDRESS TO CONGRESS

Mr. THUNE. Mr. President, this morning we were fortunate enough to hear Israeli Prime Minister Benjamin Netanyahu address a joint meeting of Congress. I was disappointed the Vice President and a number of Democratic Members of Congress chose not to attend this event. They missed a powerful speech, and they missed an opportunity to demonstrate America's commitment to our strongest ally, Israel.

In his speech before the American-Israeli Public Affairs Committee yesterday, Prime Minister Netanyahu spoke about Israel's alliance with the United States to, as he put it, ''defend our common civilization against common threats.'' He spoke of ''values that unite us . . . values like liberty, equality, justice, tolerance, and compassion.'' These are the values that unite us. They are the values both our Nations are committed to defend. It is an area of the world where respect for liberty and equality is often nonexistent. Israel stands up for these most essential principles. America is proud to be her ally.

The Prime Minister spoke this morning about the dangers of a nuclear-armed Iran. I scarcely need to enumerate the reasons why Iran possessing a nuclear weapon is such a dangerous prospect.

First and foremost, Iran is a state sponsor of terrorism. That rather bureaucratic phrase obscures the full horror of what it signifies—that Iran's Government helps advance the activities of those who have made violence their mission and have kept millions of ordinary men, women, and children in the Middle East from living in stability and peace.

Iran has fomented hostility toward the State of Israel, and its leaders have publicly stated the desire to wipe the entire Nation of Israel off the map. As Iran spreads violence and oppression abroad, it also uses the same tactics against its people at home. Iran's Government is hostile to freedom of any kind, whether it be freedom of speech or freedom of religion, and thousands of its own citizens have been tortured and imprisoned and executed for daring to stand up for their human rights. Keeping such a regime from developing a nuclear weapon must be a priority.

Unfortunately, since November of 2013, when the Obama administration first reached an interim nuclear agreement with Iran, all we have seen from these negotiations are delays and extensions while Iran has received an easing of sanctions. We hear it repeated that ''no deal is better than a bad deal.'' Yet while Israel has made it clear that an agreement which recognizes Iran's right to enrich uranium is unacceptable, our own administration has yet to clearly state what a good deal would look like.

When the Senate made efforts to set out the parameters for an acceptable final agreement by introducing the bipartisan Nuclear Weapon Free Iran Act of 2015, which I cosponsored, the President announced that he would veto such a bill without even waiting to see

what it would look like after being fully debated and amended.

Last week two of my colleagues introduced the Iran Nuclear Agreement Review Act of 2015, which would give Congress 60 days to approve or disapprove any final agreement. It will be telling if the President threatens to veto this bill as well. It is essential that any final agreement on Iran's nuclear capability be acceptable to the American people, and congressional review is therefore indispensable.

I am eager to work with the White House and my colleagues across the aisle to provide the American people and our allies abroad with the assurance that Iran will not be allowed to arm itself with a nuclear weapon. However, I am concerned that if the President continues his go-it-alone approach, Americans may not like the deal that emerges.

KING V. BURWELL

Mr. President, I wish to pivot to an issue that is being considered over in the Supreme Court this week. Tomorrow the Supreme Court is going to hear oral arguments in the case of King v. Burwell, which challenges the extension of ObamaCare subsidies to States with Federal exchanges.

The President's health care law states that individuals who enroll through ''an exchange established by the State'' are entitled to receive subsidies to help with their premium payments.

ObamaCare architect Jonathan Gruber made it clear this was intended to give States an incentive to create their own exchanges. At an event in 2012, he told the audience:

> [W]hat's important to remember politically about this is if you're a state and you don't set up an exchange, that means your citizens don't get their tax credits—but your citizens still pay the taxes that support this bill.

That is from ObamaCare architect Jonathan Gruber back in 2012.

In the wake of the health care law's passage, however, States made it clear they were reluctant to take on the costs and burdens associated with ObamaCare. More than two-thirds of the States declined to set up their own exchanges, and the Obama administration provided the subsidies to those enrolled on Federal exchanges despite there being no authority in the law for it to do so, and despite the concerns expressed by members of the President's own administration who were doubtful about the legality of such a move.

The administration's decision to push forward with the subsidies despite the lack of legal authority could have serious consequences for millions of Americans. If the Supreme Court finds the Obama administration overstepped its authority, 5 million Americans could lose their ObamaCare subsidies.

I recently joined several of my colleagues in sending a letter to the head of the Department of Health and Human Services and the Treasury Secretary to ask what the administration's plan is for dealing with the aftermath of an unfavorable Supreme Court ruling. The administration's answer: Nothing. That is right. Health and Human Services Secretary Sylvia Mathews Burwell told us the administration has no administrative plans for what it would do in the event of an unfavorable decision by the Supreme Court.

In fact, the administration declined to even warn Americans enrolling this year of what could happen if the Supreme Court found the administration was illegally providing subsidies.

Clearly the millions of Americans who could lose their health care premium subsidy, thanks to the administration's abuse of its authority, need a solution, and Republicans have been working on solutions. The junior Senator from Nebraska has put forward a plan to use the 1985 COBRA law to extend temporary health care assistance to these Americans for 18 months.

Other Republicans—Senator HATCH from Utah, Senator ALEXANDER from Tennessee, Senator BARRASSO from Wyoming—have offered their own plan which would also provide temporary financial assistance to affected Americans while they recover from the loss of the subsidies.

The chairmen of the House Ways and Means, Energy and Commerce, and Education and the Workforce Committees have released a roadmap for replacing ObamaCare with market-based solutions. Their plan allows States to opt out of many ObamaCare mandates while maintaining protections for Americans. It would also make refundable tax credits available to Americans who lost their subsidies.

All of these plans seek to replace the broken ObamaCare system with real health care reform that would lower costs, expand access to care, and to put patients, not the government, in charge of their health care decisions.

We don't need this court case to demonstrate that ObamaCare has been a massive failure. We already had the unexpected tax bills, the higher premiums, the loss of doctors and hospitals, the health care plans Americans were not allowed to keep, the law's negative effect on employment, and I could go on and on.

This court case underscores what all the other law's problems have demonstrated: ObamaCare is not fixing the health care challenges facing our country. If anything, it is making them worse. ObamaCare has been tried, and it has been found wanting. It is time to repeal this law and to replace it with health care reforms that will actually fix the problems in our health care system and improve affordability and access for all Americans. Five years of ObamaCare is long enough.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. HATCH. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. HATCH. Mr. President, I rise today to discuss the National Labor Relations Board representation case procedures rule, which is set to go into effect April 14.

This rule unfairly expedites union elections and squelches individual self-determination, democratic decision-making, and freedom of expression. It is also a blatant attempt to circumvent Congress's legitimate constitutional role in how—if at all—to reform the National Labor Relations Act. It is a clear case of regulatory overreach, and it is an abuse of power.

The National Labor Relations Act seeks to create equity—or a ''level playing field,'' so to speak—in labor relations. Now, I believe the NLRA is far from perfect. In fact, I have introduced multiple pieces of legislation over the years to amend the NLRA. Nevertheless, any reform must be openly debated and enacted by Congress, not decided unilaterally by an unaccountable bureaucracy.

I am concerned because this National Labor Relations Board case representation rule clearly favors the unions. I am not anti-union. I oppose this rule because I am a champion for both workers and businesses, for employee groups and the employer community. This rule hurts both. I oppose this rule not because I am against a worker's right to join a union but because this rule is detrimental to both employers and employees.

The NLRA guarantees the right to engage in union activities. It also ensures the right to refrain from such activities. This rule dramatically shortens the period of time that exists between a union filing an election petition and the actual election. Shortening this time period undermines an employer's ability to hold a lawful exchange with its employees on whether to select union representation. It also deprives workers of their right to receive key information from all sides, as the NLRB currently provides—a system that allows for a full and robust debate between unions, employees, and employers.

Moreover, there is simply no need for the rule.

Both businesses and workers deserve a process that is free of unnecessary delays. Nearly 95 percent of all elections take place within 2 months after a petition has been filed, and the unions have won more than two-thirds of these elections during that time. No one can claim that this process is fraught with unnecessary delays.

Unions favor this rule because it rigs the system by allowing them to campaign without the employer's knowledge. While some argue that employers are free to talk to their employees about unionization at any time, employers are unable to rebut a union's

argument if they are unaware the arguments are even being made. This rule leaves employers with insufficient time to respond to a union's arguments—and they know that. That is what is wrong with this legislation. Once again, this hurts both the worker and the employer.

While my main objection to this rule is that it precludes workers and employers from necessary and protected information sharing, I also oppose the rule because it is likely to throw many elections into chaos and confusion.

Under this rule, voter eligibility would be deferred to postelection procedures. Employees would be asked to vote on joining a union without knowing which employees will ultimately make up the bargaining unit. Simply put, unions are trying to win representation elections without defining whom they are representing.

Furthermore, there are serious due process concerns surrounding the initial hearing and Statement of Position requirements. It is particularly burdensome to small employers to collect the required information following the filing of the petition in this drastically shortened timeframe.

Lastly, we cannot ignore that with this rule the NLRB is invading employees' privacy and exposing them to potential identity theft by mandating that employers turn over employees' personal telephone numbers and email addresses to the unions. That is outrageous. The rule tramples on workers' individual liberties by allowing unions to unfairly obtain an employee's private information.

The NLRB should be a neutral arbiter—an impartial overseer of the process—working to enforce the law, and to stop violations, and to intervene in attempts to sway benefit from one side or the other. It should not be an advocate for organized labor. Rather than approaching the situation from the neutral perspective, this rule makes a value judgment that favors unions based on false assumptions.

The NLRB should properly be safeguarding labor relations processes. I urge us all to support workers' personal liberties by providing them ample opportunity to make up their own minds. I urge all of my colleagues to support employers in preserving due process while cultivating constructive dialogue between businesses and workers.

I thank Senators ALEXANDER and ENZI for leading this action under the Congressional Review Act. I am proud to stand with the majority of my Senate colleagues today in preventing the NLRB's abuse of regulatory power by supporting this resolution of disapproval.

I am well aware of these types of tactics by the union movement. I am one of the few people in this body who was really raised in the union movement, who actually learned a skilled trade, who actually worked as a union member for 10 years in the building and construction trade unions as a metal lather.

I have to tell my colleagues that some of these people in the NLRB and others have been trying to get quickie elections through for a long time, and of course, the purpose of it is to slant everything in their favor, when they win a majority of the NLRB votes anyway. No, they just want to win all of them without giving the employees the necessary information to be able to make wise decisions as to whether to join a union, and then they cloud it up by making it almost impossible to know which part of the union or which methodology they are going to go into.

We have stopped quickie elections for years. We have had good Democrats and good Republicans vote against quickie elections. It is not fair to slant the system totally against employers, which is what this bill will do.

Frankly, it is time we quit pulling these dirty tricks. It really never ceases to amaze me. When Republicans appoint—and they are in the majority—people to the NLRB, as a general rule, they try to make things more fair. They try to look at both sides and be fair. When Democrats do it—when Democratic Presidents do it—they try to pull tricks such as this that really are unworthy of the type of considerations that really are involved in these union elections. I don't mind unions winning, but they ought to win fair and square. They shouldn't win because they stacked the deck against the businesses. There are enough rules to give unions advantages in union elections as it is. But to have quickie elections so that the owner of the business or the owners of the business don't have a chance to answer the questions that come up or even speak to their employees is just wrong. I am opposed to it, and I hope everybody in this Senate is opposed to it as well.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Montana.

Mr. DAINES. I ask unanimous consent to speak for 10 minutes as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

KEYSTONE XL PIPELINE

Mr. DAINES. Mr. President, the Keystone XL Pipeline means opportunity for the American people. The President is standing in the way of jobs. He is standing in the way of affordable energy. He is standing in the way of our Nation's energy security. His recent veto threat and now carrying through with the veto sent a clear message that he is more concerned with political games than increasing opportunity for the American people.

We are here today to send a strong message that this fight is far from over.

The Keystone XL Pipeline is a lifeline for many Montana communities. In fact, the Keystone Pipeline enters the United States through Montana, and that is why I will keep fighting to get this project moving forward.

In fact, in our State of Montana alone, the Keystone Pipeline means $80 million to Montana counties and schools per year. Now, $16 million per year of that goes directly to our Montana university systems. This is how we continue to fund our infrastructure, our schools, and our teachers.

A couple of weeks ago I got a call from Rion Miles. He is the business manager for the Operating Engineers Local 400 in Montana. He told me the Keystone XL Pipeline will create 300 good-paying jobs for his union members in Montana alone. Like most Montanans, Ryan is scratching his head. He doesn't understand why the President is standing in the way of these good-paying union jobs.

A while back, I was in my pickup traveling in eastern Montana in the town of Glasgow. I stopped by the NorVal Co-Op. This co-op supplies electricity to a few thousand Montana families in northeast Montana. They told me over a cup of coffee that morning that they will keep electric rates flat for the next 10 years if the Keystone Pipeline is approved. Why is that? That is because the NorVal Co-Op is supplying the electricity to a couple of the pump stations on the Keystone Pipeline. That extra volume of electricity will help keep costs down for everybody.

I asked: What happens if the Keystone Pipeline is not approved? They said electric rates would go up about 40 percent over the next 10 years. That is nearly $500 a year of increase per family. These are hardworking Montana families living month to month. These are senior citizens living on fixed incomes, where we can hold their utility rates, electric rates flat for the next 10 years by passing the Keystone Pipeline bill.

What about North American energy independence? Up to 830,000 barrels a day of oil will be transported through this pipeline. Contrary to what the President has said, 100,000 barrels a day from the Bakken, which is shared between North Dakota and Montana, will be put into that pipeline close to Baker, Montana.

The President was just given four Pinocchios by the Washington Post yesterday for claiming that the Keystone Pipeline bypassed the United States.

I would like to have the President come to Montana. I will pick him up in Billings, and we will drive in my pickup. I will show him where the proposed siting is for the Baker onramp where 100,000 barrels a day of made-in-Montana and made-in-North Dakota oil will enter the Keystone Pipeline. The people of Montana and the people in the Bakken region know the President's claim is absolutely false.

With gas dropping under two bucks a gallon where I am from, that has been a welcomed change for many, many hard-working Montana families. Why are gas prices dropping? It is because we are seeing more made-in-America

energy. Again, this lowering in gas prices will result in approximately $750 a year of savings for the average American household. That is a good thing. But rather than hitting pause on our energy production, it is time to encourage it.

Just this morning we were reminded by Israeli Prime Minister Netanyahu that we are living in an increasingly dangerous world. Our energy security isn't just about jobs and low energy prices. It is directly tied to our national security. Whether it is ISIS, whether it is Boko Haram in Nigeria and Chad, whether it is the Russian aggression in Eastern Europe or the growing threat of a nuclear Iran, it is vitally important we move forward with more made-in-America energy because many of these regions that are filled with turmoil supply much of the world's oil and natural gas.

I remember just a year ago when we were having some challenges and we looked at the numbers of what is going on in Ukraine. Nearly 40 percent of the natural gas that is supplied in Europe comes through pipelines going through Ukraine. Thankfully, as the United States becomes the world's largest oil producer this year, surpassing both Russia and Saudi Arabia, these are positive steps forward towards a more secure future for our children and grandchildren. We need more made-in-America energy, not more made-in-the-Middle East oil. The Keystone Pipeline will help us do just that.

Looking forward, the President's veto isn't the end. This week we will vote to override the President's veto. I hope we can get three or four more Senators onboard for this veto vote, and we can do it in the Senate. I call on my colleagues on both sides of the aisle. It was encouraging to see a good bipartisan vote in the Senate and in the House in support of the Keystone Pipeline. Let's stand together, and let's stand with the American people and override the President's shortsighted veto. Regardless of the vote, the fight is not over.

This week the President himself said he would make a final decision on this pipeline. I hope he does. You realize it took the Canadians just 7 months to approve the Keystone Pipeline—7 months. It has now taken our President over 6 years without approving the pipeline. We must keep the pressure on this administration. We must continue to fight for American jobs, American opportunity, American energy independence, and low energy prices.

I yield back my time.

The PRESIDING OFFICER. The majority leader.

MORNING BUSINESS

REMEMBERING MINNIE MINOSO

Mr. DURBIN. Mr. President, on Sunday, America lost a baseball legend when Saturino Orestes Armas Minoso Arrieta passed away. We knew him as the Cuban Comet, as Mr. White Sox, as the heart and soul of Chicago baseball on the South Side, and a beacon of hope for Cuban athletes everywhere. It is with great sorrow that Chicago loses its South Side White Sox champion only days after the North Side Cubs lost their champion, Ernie Banks.

Before Minnie was Major League Baseball's first black Latino star, he was the son of a sugarcane plantation worker in Perico, Cuba. He started his professional baseball career in Cuba, playing for $2 a game with the Ambrosia Candy team in Havana for the 1943 season. He also worked in the company garage for $8 a week. But within a couple of years, he made it to Havana's Marianao team, making $150 a month, which soon became $200 a month to keep him from moving even more quickly in his career.

By 1946, Minnie's talent couldn't be kept away from bigger leagues. He signed a $300 deal to play for the New York Cubans of the Negro National League. Minnie played third base for the Cubans, batted .294, played in the All-Star Game, and helped them win the pennant. They would beat the Cleveland Buckeyes in the World Series.

The Cleveland Indians hired Minoso in 1949, but the Indians barely used him. He spent the next 2 years in the minor leagues. In 1951, the Indians made a three-team trade with the White Sox and Philadelphia Phillies, and Minnie arrived in Chicago.

Minnie Minoso was the first Black player to wear a Chicago White Sox uniform. His first at-bat was a home run. That first year, the fans gave him his own day, and he was selected for the All-Star Game. He drove opponents mad with his ability to get on base and steal bases. He unabashedly crowded the plate and was hit by a pitch 192 times—just so he could steal second.

Minnie Minoso played 12 seasons with the White Sox over five decades. The seven-time All-Star was The Sporting News Rookie of the Year in 1951, he won three Gold Gloves in left field, and finished in the top four in American League MVP four times. His number was retired in 1983. Minnie had a wonderful career. He is one of two players ever to appear in a major league game in five decades. During the 1950's, two players had 100 homeruns, 100 stolen bases, and batted .300. Those two were the legendary Willie Mays and Minnie Minoso.

But his life was bigger than numbers. He brought optimism to all those around him. Nothing made him happier than when the White Sox won the World Series in 2005 with fellow Cubans Jose Conteras and Orlando Hernandez playing pivotal roles.

Minnie Minoso was a great treasure to Chicago. He used to cruise the Chicago streets in his big car with a White Sox flag flying and his dog Jewel on the front seat. Through all the decades he spent in Chicago, he helped make the town, the White Sox, and the sport of baseball a joy for thousands of fans. He will be missed.

DEPARTMENT OF HOMELAND SECURITY FUNDING

Ms. MIKULSKI. Mr. President, today the House adopted the Department of Homeland Security funding bill without poison pill riders. The bill passed the Senate on Friday, and will fund the Department of Homeland Security through September 30, 2015—the end of fiscal year 2015.

I am glad Congress finally put partisanship aside and funded the security of the American people. And, I want to thank all those who protect our country, from the Coast Guard to the Secret Service, to cyber security professionals and intelligence analysts. Your funds are secure.

The mission of the Department of Homeland Security is to protect America from terrorism and help communities respond to all threats, including those from terrorists and natural disasters. This is a good bill and there was no disagreement on the funding. In December, working with Senator COATS and Senator Landrieu, and our House colleagues, we agreed that vital funding for the Department of Homeland Security would total $46 billion—over $1 billion more than a continuing funding resolution.

I am glad this responsible bill to fund the mission of the Department of Homeland Security and its employees is heading to the President's desk. DHS employees are on the job every day. The Coast Guard is literally breaking ice to keep the economy flowing. The Secret Service is protecting the President and fighting credit card fraud. Border Patrol and Immigration and Customs Enforcement agents are securing our borders and enforcing our immigration laws. The Federal Emergency Management Agency is preparing for and responding to disasters, including hurricanes and blizzards. There are cyber warriors securing our networks. And through grant programs the funding supports State and local law enforcement, fire fighters, and EMS. Now, after 5 months, we have done our job to put the resources into the hands of the workers who defend America.

It is my hope that with passage of the homeland security funding bill, Congress can end the era of divisive shutdown politics. The millions of men and women serving in our military and the civil service, who work every day to make this a better Nation, deserve respect and the resources to do their jobs.

Looking ahead, I look forward to working across the aisle and across the dome to debate and complete all 12 fiscal year 2016 appropriations bills in an orderly way, without poison pill riders.

VOTE EXPLANATION

Mr. NELSON. Mr. President, I was necessarily absent for yesterday's vote on the motion to invoke cloture on the motion to go to conference on the House message to accompany H.R. 240, the Department of Homeland Security Appropriations Act. I would have voted nay.

As well, I was necessarily absent for yesterday's vote on the motion to table the request to go to conference on H.R. 240, the Department of Homeland Security Appropriations Act. I would have voted aye.

TRIBUTE TO DAN HAMMER

Mrs. BOXER. Mr. President, I would like to take this opportunity to recognize a great friend and gifted wordsmith, Dan Hammer, who is retiring after a long and distinguished career in public service.

Born and raised in San Jose, Dan attended UC Santa Cruz before moving to Boston to manage an antiwar printing press. He returned to the San Francisco Bay area soon afterwards, where he cut his editing teeth as a typesetter for Rolling Stone magazine.

I first crossed paths with Dan during my 1992 Senate campaign. Dan stopped by my San Diego campaign office after work one day, and his immense talents immediately caught the attention of my local campaign manager. Dan quickly became one of my hardest working volunteers, doing everything from writing memos and news advisories to helping manage my public events. After I won the election, I knew I had to have Dan on my team. Although it took some convincing, he joined my San Diego district office in 1994.

Dan has held many positions in my offices over the years. As a San Diego-based field representative, he served as my eyes and ears on the ground, keeping me apprised of critical issues in southern California. As my deputy press secretary based out of my Washington, DC office, Dan worked many late nights writing press releases and staffing me at events. As my constituent communications director, Dan moved my entire legislative correspondence operation from DC to southern California, managing the full operation with discipline and precision. Under his leadership, my legislative correspondence team answers 200,000 letters and emails every month, and he uses his exceptional communications skills every day to share my work with the constituents I serve. Through it all, he has helped teach a generation of young staffers how to effectively communicate about the most important issues and ideas of our time.

Outside of work, Dan selflessly gives his time to the causes he believes in. Whether volunteering with environmental organizations like the Planning and Conservation League, working for other elected officials including Congresswoman SUSAN DAVIS, or joining the U.S. Coast Guard Auxiliary, Dan has always been dedicated to making his community a better place to live.

For more than 20 years, Dan has been a trusted ally, advisor, and friend. As he begins his retirement and embarks on the next exciting chapter of his life, I send him, his wife Shelley, and their entire family my best wishes, deep affection, and abiding gratitude.

MESSAGES FROM THE PRESIDENT

CONTINUATION OF THE NATIONAL EMERGENCY ORIGINALLY DECLARED IN EXECUTIVE ORDER 13660 ON MARCH 6, 2014, AS MODIFIED BY THE ORDER OF DECEMBER 19, 2014, WITH RESPECT TO UKRAINE—PM 8

The PRESIDING OFFICER laid before the Senate the following message from the President of the United States, together with an accompanying report; which was referred to the Committee on Banking, Housing, and Urban Affairs:

To the Congress of the United States:

Section 202(d) of the National Emergencies Act (50 U.S.C. 1622(d)) provides for the automatic termination of a national emergency unless, within 90 days prior to the anniversary date of its declaration, the President publishes in the *Federal Register* and transmits to the Congress a notice stating that the emergency is to continue in effect beyond the anniversary date. In accordance with this provision, I have sent to the *Federal Register* for publication the enclosed notice stating that the national emergency declared in Executive Order 13660 of March 6, 2014, is to continue in effect beyond March 6, 2015.

The actions and policies of persons that undermine democratic processes and institutions in Ukraine; threaten its peace, security, stability, sovereignty, and territorial integrity; and contribute to the misappropriation of its assets, as well as the actions and policies of the Government of the Russian Federation, including its purported annexation of Crimea and its use of force in Ukraine, continue to pose an unusual and extraordinary threat to the national security and foreign policy of the United States. Therefore, I have determined that it is necessary to continue the national emergency declared in Executive Order 13660 with respect to Ukraine.

BARACK OBAMA.
THE WHITE HOUSE, *March 3, 2015.*

CONTINUATION OF THE NATIONAL EMERGENCY ORIGINALLY DECLARED IN EXECUTIVE ORDER 13288 ON MARCH 6, 2003, WITH RESPECT TO THE ACTIONS AND POLICIES OF CERTAIN MEMBERS OF THE GOVERNMENT OF ZIMBABWE AND OTHER PERSONS TO UNDERMINE ZIMBABWE'S DEMOCRATIC PROCESSES OR INSTITUTIONS—PM 9

The PRESIDING OFFICER laid before the Senate the following message from the President of the United States, together with an accompanying report; which was referred to the Committee on Banking, Housing, and Urban Affairs:

To the Congress of the United States:

Section 202(d) of the National Emergencies Act (50 U.S.C. 1622(d)) provides for the automatic termination of a national emergency unless, within 90 days prior to the anniversary date of its declaration, the President publishes in the *Federal Register* and transmits to the Congress a notice stating that the emergency is to continue in effect beyond the anniversary date. In accordance with this provision, I have sent to the *Federal Register* for publication the enclosed notice stating that the national emergency declared in Executive Order 13288 of March 6, 2003, with respect to the actions and policies of certain members of the Government of Zimbabwe and other persons to undermine Zimbabwe's democratic processes or institutions is to continue in effect beyond March 6, 2015.

The threat constituted by the actions and policies of certain members of the Government of Zimbabwe and other persons to undermine Zimbabwe's democratic processes or institutions has not been resolved. These actions and policies continue to pose an unusual and extraordinary threat to the foreign policy of the United States. For these reasons, I have determined that it is necessary to continue this national emergency and to maintain in force the sanctions to respond to this threat.

BARACK OBAMA.
THE WHITE HOUSE, *March 3, 2015.*

MESSAGE FROM THE HOUSE

At 2:17 p.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 280. An act to authorize the Secretary of Veterans Affairs to recoup bonuses and awards paid to employees of the Department of Veterans Affairs.

H.R. 294. An act to amend title 38, United States Code, to authorize the Secretary of Veterans Affairs to enter into contracts and agreements for the placement of veterans in non-Department medical foster homes for certain veterans who are unable to live independently.

The message also announced that pursuant to section 2 of the Migratory

Bird Conservation Act (16 U.S.C. 715a), and the order of the House of January 6, 2015, the Speaker appoints the following Member on the part of the House of Representatives to the Migratory Bird Conservation Commission: Mr. THOMPSON of California.

The message further announced that pursuant to Executive Order No. 12131, and the order of the House of January 6, 2015, the Speaker appoints the following Members on the part of the House of Representatives to the President's Export Council: Mr. KILDEE of Michigan and Ms. DELBENE of Washington.

MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 280. An act to authorize the Secretary of Veterans Affairs to recoup bonuses and awards paid to employees of the Department of Veterans Affairs; to the Committee on Veterans' Affairs.

H.R. 294. An act to amend title 38, United States Code, to authorize the Secretary of Veterans Affairs to enter into contracts and agreements for the placement of veterans in non-Department medical foster homes for certain veterans who are unable to live independently; to the Committee on Veterans' Affairs.

MEASURES READ THE FIRST TIME

The following bill was read the first time:

S. 625. A bill to provide for congressional review and oversight of agreements relating to Iran's nuclear program, and for other purposes.

EXECUTIVE REPORTS OF COMMITTEE

The following executive reports of nominations were submitted:

By Mr. ROBERTS for the Committee on Agriculture, Nutrition, and Forestry.

*Jeffery S. Hall, of Kentucky, to be a Member of the Farm Credit Administration Board, Farm Credit Administration, for a term expiring October 13, 2018.

*Dallas P. Tonsager, of South Dakota, to be a Member of the Farm Credit Administration Board, Farm Credit Administration, for a term expiring May 21, 2020.

*Nomination was reported with recommendation that it be confirmed subject to the nominee's commitment to respond to requests to appear and testify before any duly constituted committee of the Senate.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. JOHNSON:

S. 623. A bill to direct the Secretary of Homeland Security to train Department of Homeland Security personnel how to effectively deter, detect , disrupt, and prevent human trafficking during the course of their primary roles and responsibilities, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Mr. BROWN (for himself, Mr. WICKER, Mr. CARDIN, and Ms. COLLINS):

S. 624. A bill to amend title XVIII of the Social Security Act to waive coinsurance under Medicare for colorectal cancer screening tests, regardless of whether therapeutic intervention is required during the screening; to the Committee on Finance.

By Mr. MCCONNELL:

S. 625. A bill to provide for congressional review and oversight of agreements relating to Iran's nuclear program, and for other purposes; read the first time.

By Mr. GRASSLEY (for himself and Mr. SCHUMER):

S. 626. A bill to amend title XIX of the Social Security Act to cover physician services delivered by podiatric physicians to ensure access by Medicaid beneficiaries to appropriate quality foot and ankle care, to amend title XVIII of such Act to modify the requirements for diabetic shoes to be included under Medicare, and for other purposes; to the Committee on Finance.

By Ms. AYOTTE (for herself, Mrs. MCCASKILL, Mr. MORAN, Mr. FLAKE, Ms. KLOBUCHAR, Mrs. SHAHEEN, Mr. THUNE, and Mr. CRAPO):

S. 627. A bill to require the Secretary of Veterans Affairs to revoke bonuses paid to employees involved in electronic wait list manipulations, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. KIRK (for himself and Ms. BALDWIN):

S. 628. A bill to amend the Public Health Service Act to provide for the designation of maternity care health professional shortage areas; to the Committee on Health, Education, Labor, and Pensions.

By Mr. PORTMAN (for himself, Mr. BROWN, Mrs. FISCHER, Mrs. MCCASKILL, Ms. BALDWIN, Mr. KIRK, and Mr. BLUNT):

S. 629. A bill to enable hospital-based nursing programs that are affiliated with a hospital to maintain payments under the Medicare program to hospitals for the costs of such programs; to the Committee on Finance.

By Mrs. FEINSTEIN (for herself and Mrs. BOXER):

S. 630. A bill to establish the Sacramento-San Joaquin Delta National Heritage Area; to the Committee on Energy and Natural Resources.

By Ms. MURKOWSKI (for herself and Mr. SULLIVAN):

S. 631. A bill to exempt National Forest System land in the State of Alaska from the Roadless Area Conservation Rule; to the Committee on Energy and Natural Resources.

By Mr. COONS (for himself, Mr. DURBIN, and Ms. HIRONO):

S. 632. A bill to strengthen the position of the United States as the world's leading innovator by amending title 35, United States Code, to protect the property rights of the inventors that grow the country's economy; to the Committee on the Judiciary.

By Mr. PAUL:

S. 633. A bill to prohibit certain assistance to the Palestinian Authority; to the Committee on Foreign Relations.

By Mr. GARDNER:

S. 634. A bill to prohibit the Federal Emergency Management Agency from recouping certain assistance, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Mr. MARKEY:

S. 635. A bill to amend the FAA Modernization and Reform Act of 2012 to provide guidance and limitations regarding the integration of unmanned aircraft systems into United States airspace, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. UDALL:

S. 636. A bill to reduce prescription drug misuse and abuse; to the Committee on Health, Education, Labor, and Pensions.

By Mr. CRAPO (for himself, Mr. WYDEN, Mr. MORAN, Mr. SCHUMER, Mr. ISAKSON, Mr. CASEY, Mr. BOOZMAN, and Mr. BLUMENTHAL):

S. 637. A bill to amend the Internal Revenue Code of 1986 to extend and modify the railroad track maintenance credit; to the Committee on Finance.

By Mr. FLAKE (for himself, Mr. MCCAIN, Mr. LEE, Mr. CRAPO, Mr. CORNYN, Mr. INHOFE, and Mr. VITTER):

S. 638. A bill to amend the Clean Air Act with respect to exceptional event demonstrations, and for other purposes; to the Committee on Environment and Public Works.

By Mr. FLAKE (for himself, Mr. MCCAIN, Mr. INHOFE, Mr. CRAPO, Mr. LEE, Mr. COATS, and Mr. CORNYN):

S. 639. A bill to require the Administrator of the Environmental Protection Agency to include in any proposed rule that limits greenhouse gas emissions and imposes increased costs on other Federal agencies an offset from funds available to the Administrator for all projected increased costs that the proposed rule would impose on other Federal agencies; to the Committee on Environment and Public Works.

By Mr. FLAKE (for himself, Mr. MCCAIN, Mr. INHOFE, Mr. WICKER, Mr. CRAPO, Mr. ENZI, Mr. COATS, Mr. LEE, Mr. CORNYN, and Mr. VITTER):

S. 640. A bill to amend the Clean Air Act to delay the review and revision of the national ambient air quality standards for ozone; to the Committee on Environment and Public Works.

By Mr. PETERS (for himself and Mrs. ERNST):

S. 641. A bill to amend the Internal Revenue Code of 1986 to extend the employer wage credit for activated military reservists; to the Committee on Finance.

By Mrs. SHAHEEN:

S. 642. A bill to aid human trafficking victims' recovery and rehabilitation; to the Committee on the Judiciary.

By Mr. CASEY (for himself and Ms. HIRONO):

S. 643. A bill to amend titles I and II of the Elementary and Secondary Education Act of 1965 to strengthen connections to early childhood education programs, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Ms. MURKOWSKI (for herself and Mr. SULLIVAN):

S. 644. A bill to resolve title issues involving real property and equipment acquired using funds provided under the Alaska Kiln Drying Grant Program; to the Committee on Agriculture, Nutrition, and Forestry.

By Mr. CASEY:

S. 645. A bill to assist States in providing voluntary high-quality universal prekindergarten programs and programs to support infants and toddlers; to the Committee on Health, Education, Labor, and Pensions.

By Mr. PORTMAN (for himself and Mr. HEINRICH):

S. 646. A bill to amend title 10, United States Code, to provide an individual with a mental health screening before the individual enlists in the Armed Forces or is commissioned as an officer in the Armed Forces, and for other purposes; to the Committee on Armed Services.

By Mr. CRUZ (for himself, Mr. VITTER, Mr. CRAPO, Mr. RUBIO, Mr. BARRASSO, and Mr. ENZI):

S. 647. A bill to repeal title I of the Patient Protection and Affordable Care Act and to amend the Public Health Service Act to provide for cooperative governing of individual health insurance coverage offered in interstate commerce; to the Committee on Finance.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. KAINE (for himself, Mr. PORTMAN, Ms. BALDWIN, Mr. ISAKSON, Mrs. MURRAY, Mr. COONS, Mr. WYDEN, Mr. BROWN, Mr. DURBIN, Mr. BLUMENTHAL, Mr. BOOZMAN, and Mr. SCHUMER):

S. Res. 94. A resolution supporting the goals and ideals of Career and Technical Education Month; considered and agreed to.

By Mr. COONS (for himself and Mr. INHOFE):

S. Res. 95. A resolution designating March 3, 2015, as ''World Wildlife Day''; considered and agreed to.

By Mr. BROWN (for himself, Mrs. MURRAY, Mr. BOOZMAN, Mr. TESTER, Mr. NELSON, Ms. CANTWELL, and Mr. SCHATZ):

S. Con. Res. 7. A concurrent resolution authorizing the use of Emancipation Hall in the Capitol Visitor Center for a ceremony to award the Congressional Gold Medal to the World War II members of the Doolittle Tokyo Raiders; to the Committee on Rules and Administration.

ADDITIONAL COSPONSORS

S. 51

At the request of Mr. VITTER, the name of the Senator from Arkansas (Mr. COTTON) was added as a cosponsor of S. 51, a bill to amend title X of the Public Health Service Act to prohibit family planning grants from being awarded to any entity that performs abortions, and for other purposes.

S. 178

At the request of Mr. CORNYN, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 178, a bill to provide justice for the victims of trafficking.

S. 228

At the request of Mr. CRAPO, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 228, a bill to amend title 54, United States Code, to provide for congressional and State approval of national monuments and restrictions on the use of national monuments.

S. 259

At the request of Mr. HOEVEN, the name of the Senator from Indiana (Mr. DONNELLY) was added as a cosponsor of S. 259, a bill to modify the efficiency standards for grid-enabled water heaters.

S. 262

At the request of Mr. LEAHY, the names of the Senator from Maine (Mr. KING), the Senator from Washington (Ms. CANTWELL) and the Senator from California (Mrs. FEINSTEIN) were added as cosponsors of S. 262, a bill to reauthorize the Runaway and Homeless Youth Act, and for other purposes.

S. 275

At the request of Mr. ISAKSON, the names of the Senator from Colorado (Mr. BENNET) and the Senator from Iowa (Mr. GRASSLEY) were added as cosponsors of S. 275, a bill to amend title XVIII of the Social Security Act to provide for the coverage of home as a site of care for infusion therapy under the Medicare program.

S. 280

At the request of Mr. PORTMAN, the name of the Senator from Indiana (Mr. DONNELLY) was added as a cosponsor of S. 280, a bill to improve the efficiency, management, and interagency coordination of the Federal permitting process through reforms overseen by the Director of the Office of Management and Budget, and for other purposes.

S. 301

At the request of Mrs. FISCHER, the names of the Senator from South Dakota (Mr. THUNE), the Senator from Montana (Mr. DAINES) and the Senator from West Virginia (Mr. MANCHIN) were added as cosponsors of S. 301, a bill to require the Secretary of the Treasury to mint coins in commemoration of the centennial of Boys Town, and for other purposes.

S. 317

At the request of Ms. HIRONO, the name of the Senator from Pennsylvania (Mr. CASEY) was added as a cosponsor of S. 317, a bill to improve early education.

S. 332

At the request of Mr. GRASSLEY, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 332, a bill to amend title XVIII of the Social Security Act to make permanent the extension of the Medicare-dependent hospital (MDH) program and the increased payments under the Medicare low-volume hospital program.

S. 356

At the request of Mr. LEE, the name of the Senator from Illinois (Mr. DURBIN) was added as a cosponsor of S. 356, a bill to improve the provisions relating to the privacy of electronic communications.

S. 373

At the request of Mr. THUNE, the names of the Senator from Maine (Ms. COLLINS) and the Senator from Texas (Mr. CORNYN) were added as cosponsors of S. 373, a bill to provide for the establishment of nationally uniform and environmentally sound standards governing discharges incidental to the normal operation of a vessel.

S. 375

At the request of Mr. CARDIN, the names of the Senator from Michigan (Ms. STABENOW) and the Senator from Colorado (Mr. BENNET) were added as cosponsors of S. 375, a bill to amend the Internal Revenue Code of 1986 to provide a reduced rate of excise tax on beer produced domestically by certain qualifying producers.

S. 388

At the request of Mr. BOOKER, the name of the Senator from Nevada (Mr. REID) was added as a cosponsor of S. 388, a bill to amend the Animal Welfare Act to require humane treatment of animals by Federal Government facilities.

S. 439

At the request of Mr. FRANKEN, the name of the Senator from Delaware (Mr. CARPER) was added as a cosponsor of S. 439, a bill to end discrimination based on actual or perceived sexual orientation or gender identity in public schools, and for other purposes.

S. 440

At the request of Mr. CRAPO, the names of the Senator from Illinois (Mr. KIRK), the Senator from South Dakota (Mr. THUNE) and the Senator from Arkansas (Mr. BOOZMAN) were added as cosponsors of S. 440, a bill to amend the Internal Revenue Code of 1986 to provide for an exclusion for assistance provided to participants in certain veterinary student loan repayment or forgiveness.

S. 489

At the request of Mr. THUNE, the name of the Senator from Hawaii (Mr. SCHATZ) was added as a cosponsor of S. 489, a bill to amend the Tariff Act of 1930 to increase the maximum value of articles that may be imported duty-free by one person on one day.

S. 499

At the request of Mr. HATCH, the name of the Senator from Georgia (Mr. PERDUE) was added as a cosponsor of S. 499, a bill to amend title II of the Social Security Act to prevent concurrent receipt of unemployment benefits and Social Security disability insurance, and for other purposes.

S. 578

At the request of Ms. COLLINS, the name of the Senator from Illinois (Mr. DURBIN) was added as a cosponsor of S. 578, a bill to amend title XVIII of the Social Security Act to ensure more timely access to home health services for Medicare beneficiaries under the Medicare program.

S. 588

At the request of Mr. DURBIN, the name of the Senator from New York (Mr. SCHUMER) was added as a cosponsor of S. 588, a bill to require the Consumer Product Safety Commission to establish a consumer product safety standard for liquid detergent packets to protect children under the age of five from injury or illness, and for other purposes.

S. 599

At the request of Mr. CARDIN, the name of the Senator from Missouri (Mrs. MCCASKILL) was added as a cosponsor of S. 599, a bill to extend and expand the Medicaid emergency psychiatric demonstration project.

S. 607

At the request of Mr. GRASSLEY, the names of the Senator from New Mexico (Mr. UDALL) and the Senator from Alaska (Mr. SULLIVAN) were added as cosponsors of S. 607, a bill to amend title XVIII of the Social Security Act to provide for a five-year extension of the rural community hospital demonstration program, and for other purposes.

S. 615

At the request of Mr. PAUL, his name was added as a cosponsor of S. 615, a bill to provide for congressional review and oversight of agreements relating to Iran's nuclear program, and for other purposes.

S. RES. 87

At the request of Mr. MENENDEZ, the name of the Senator from Oklahoma (Mr. LANKFORD) was added as a cosponsor of S. Res. 87, a resolution to express the sense of the Senate regarding the rise of anti-Semitism in Europe and to encourage greater cooperation with the European governments, the European Union, and the Organization for Security and Co-operation in Europe in preventing and responding to anti-Semitism.

S. RES. 88

At the request of Mr. COCHRAN, the name of the Senator from Alabama (Mr. SESSIONS) was added as a cosponsor of S. Res. 88, a resolution celebrating Black History Month.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. MCCONNELL:

S. 625. A bill to provide for congressional review and oversight of agreements relating to Iran's nuclear program, and for other purposes; read the first time.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 625

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Iran Nuclear Agreement Review Act of 2015''.

SEC. 2. CONGRESSIONAL REVIEW AND OVERSIGHT OF AGREEMENTS WITH IRAN RELATING TO THE NUCLEAR PROGRAM OF IRAN.

The Atomic Energy Act of 1954 (42 U.S.C. 2011 et seq.) is amended by inserting after section 134 the following new section:

''SEC. 135. CONGRESSIONAL REVIEW AND OVERSIGHT OF AGREEMENTS WITH IRAN.

''(a) TRANSMISSION TO CONGRESS OF NUCLEAR AGREEMENTS WITH IRAN AND VERIFICATION ASSESSMENT WITH RESPECT TO SUCH AGREEMENTS.—

''(1) TRANSMISSION OF AGREEMENTS.—Not later than 5 calendar days after reaching an agreement with Iran relating to the nuclear program of Iran, the President shall transmit to the appropriate congressional committees—

''(A) the text of the agreement and all related materials and annexes;

''(B) a verification assessment report of the Secretary of State prepared under paragraph (2) with respect to the agreement; and

''(C) a certification that—

''(i) the agreement includes the appropriate terms, conditions, and duration of the agreement's requirements with respect to Iran's nuclear activities and provisions describing any sanctions to be waived, suspended, or otherwise reduced by the United States, and any other nation or entity, including the United Nations; and

''(ii) the President determines the agreement meets United States non-proliferation objectives, does not jeopardize the common defense and security, provides an adequate framework to ensure that Iran's nuclear activities permitted thereunder will not be inimical to or constitute an unreasonable risk to the common defense and security, and ensures that Iran's nuclear activities permitted thereunder will not be used to further any nuclear-related military or nuclear explosive purpose, including for any research on or development of any nuclear explosive device or any other nuclear-related military purpose.

''(2) VERIFICATION ASSESSMENT REPORT.—

''(A) IN GENERAL.—The Secretary of State shall prepare, with respect to an agreement described in paragraph (1), a report assessing—

''(i) the extent to which the Secretary will be able to verify that Iran is complying with its obligations under the agreement;

''(ii) the adequacy of the safeguards and other control mechanisms and other assurances contained in the agreement with respect to Iran's nuclear program to ensure Iran's activities permitted thereunder will not be used to further any nuclear-related military or nuclear explosive purpose, including for any research on or development of any nuclear explosive device or any other nuclear-related military purpose; and

''(iii) the capacity and capability of the International Atomic Energy Agency to effectively implement the verification regime required by the agreement, including whether the International Atomic Energy Agency has the required funding, manpower, and authority to do so.

''(B) ASSUMPTIONS.—In preparing a report under subparagraph (A) with respect to an agreement described in paragraph (1), the Secretary shall assume that Iran could—

''(i) use all measures not expressly prohibited by the agreement to conceal activities that violate its obligations under the agreement; and

''(ii) alter or deviate from standard practices in order to impede efforts to verify that Iran is complying with those obligations.

''(C) CLASSIFIED ANNEX.—A report under subparagraph (A) shall be transmitted in unclassified form, but shall include a classified annex prepared in consultation with the Director of National Intelligence, summarizing relevant classified information.

''(3) EXCEPTION.—The requirements of subparagraphs (B) and (C) of paragraph (1) shall not apply to an agreement defined in subsection (i)(4).

''(b) PERIOD FOR REVIEW BY CONGRESS OF NUCLEAR AGREEMENTS WITH IRAN.—

''(1) IN GENERAL.—During the 60-day period following transmittal by the President of an agreement pursuant to subsection (a), the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives shall, as appropriate, hold hearings and briefings and otherwise obtain information in order to fully review such agreement.

''(2) LIMITATION ON ACTIONS DURING PERIOD OF REVIEW.—Notwithstanding any other provision of law, except as provided in paragraph (3), during the period for review provided in paragraph (1), the President may not waive, suspend, reduce, provide relief from, or otherwise limit the application of statutory sanctions with respect to Iran under any provision of law or refrain from applying any such sanctions pursuant to an agreement described in subsection (a).

''(3) EXCEPTION.—The prohibition under paragraph (2) does not apply to any deferral, waiver, or other suspension of statutory sanctions pursuant to the Joint Plan of Action if that deferral, waiver, or other suspension is made—

''(A) consistent with the law in effect on the date of the enactment of the Iran Nuclear Agreement Review Act of 2015; and

''(B) not later than 45 days before the transmission by the President of an agreement, assessment report, and certification under subsection (a).

''(c) EFFECT OF CONGRESSIONAL ACTION WITH RESPECT TO NUCLEAR AGREEMENTS WITH IRAN.—

''(1) IN GENERAL.—Notwithstanding any other provision of law, action involving any measure of statutory sanctions relief by the United States pursuant to an agreement subject to subsection (a) or the Joint Plan of Action—

''(A) may be taken, consistent with existing statutory requirements for such action, if, during the period for review provided in subsection (b)(1), the Congress adopts, and there is enacted, a joint resolution stating in substance that the Congress does favor the agreement;

''(B) may not be taken if, during the period for review provided in subsection (b)(1), the Congress adopts, and there is enacted, a joint resolution stating in substance that the Congress does not favor the agreement; or

''(C) may be taken, consistent with existing statutory requirements for such action, if, following the period for review provided in subsection (b)(1), there is not enacted any such joint resolution.

''(2) DEFINITION.—For the purposes of this subsection, the phrase 'action involving any measure of statutory sanctions relief by the United States' shall include waiver, suspension, reduction, or other effort to provide relief from, or otherwise limit the application of statutory sanctions with respect to, Iran under any provision of law or any other effort to refrain from applying any such sanctions.

''(d) CONGRESSIONAL OVERSIGHT OF IRANIAN COMPLIANCE WITH NUCLEAR AGREEMENTS.—

''(1) IN GENERAL.—The President shall, within 10 days of receiving credible and accurate information relating to a potentially significant breach or compliance incident by Iran with respect to an agreement subject to subsection (a), submit such information to the appropriate congressional committees.

''(2) MATERIAL BREACH REPORT.—Not later than 10 days after submitting information about a potentially significant breach or compliance incident pursuant to paragraph (1), the President shall make a determination whether such potentially significant breach or compliance issue constitutes a material breach and shall submit to the appropriate congressional committees such determination, accompanied by, as appropriate, a report on the action or failure to act by Iran that led to the material breach, actions necessary for Iran to cure the breach, and the status of Iran's efforts to cure the breach.

''(3) SEMI-ANNUAL REPORT.—Not later than 180 days after entering into an agreement described in subsection (a), and not less frequently than once every 180 days thereafter, the President shall submit to the appropriate congressional committees a report on Iran's nuclear program and the compliance of Iran with the agreement during the period

covered by the report, including the following elements:

''(A) Any action or failure to act by Iran that breached the agreement or is in noncompliance with the terms of the agreement.

''(B) Any delay by Iran of more than one week in providing inspectors access to facilities, people, and documents in Iran as required by the agreement.

''(C) Any progress made by Iran to resolve concerns by the International Atomic Energy Agency about possible military dimensions of Iran's nuclear program.

''(D) Any procurement by Iran of materials in violation of the agreement.

''(E) Any centrifuge research and development conducted by Iran that—

''(i) is not in compliance with the agreement; or

''(ii) may substantially enhance the enrichment capacity of Iran if deployed.

''(F) Any diversion by Iran of uranium, carbon-fiber, or other materials for use in Iran's nuclear program in violation of the agreement.

''(G) Any covert nuclear activities undertaken by Iran.

''(H) An assessment of whether any Iranian financial institutions are engaged in money laundering or terrorist finance activities, including names of specific financial institutions if applicable.

''(I) An assessment of—

''(i) whether, and the extent to which, Iran supported acts of terrorism; and

''(ii) whether Iran directly supported, financed, planned, or carried out an act of terrorism against the United States or a United States person anywhere in the world.

''(4) ADDITIONAL REPORTS AND INFORMATION.—

''(A) AGENCY REPORTS.—Following submission of an agreement pursuant to subsection (a) to the appropriate congressional committees, the Department of State, the Department of Energy, and the Department of Defense shall, upon the request of either of those committees, promptly furnish to those committees their views as to whether the safeguards and other controls contained in the agreement with respect to Iran's nuclear program provide an adequate framework to ensure that Iran's activities permitted thereunder will not be inimical to or constitute an unreasonable risk to the common defense and security.

''(B) PROVISION OF INFORMATION ON NUCLEAR INITIATIVES WITH IRAN.—The President shall keep the appropriate congressional committees fully and currently informed of any initiative or negotiations with Iran relating Iran's nuclear program, including any new or amended agreement.

''(5) CERTIFICATION.—After the review period provided in subsection (b)(1), the President shall, not less than every 90 days—

''(A) determine whether the President is able to certify that—

''(i) Iran is transparently, verifiably, and fully implementing the agreement, including all related technical or additional agreements;

''(ii) Iran has not committed a material breach with respect to the agreement or, if Iran has committed a material breach, Iran has cured the material breach;

''(iii) Iran has not taken any action, including covert action, that could significantly advance its nuclear weapons program;

''(iv) Iran has not directly supported or carried out an act of terrorism against the United States or a United States person anywhere in the world; and

''(v) suspension of sanctions related to Iran pursuant to the agreement is—

''(I) appropriate and proportionate to the specific and verifiable measures taken by Iran with respect to terminating its illicit nuclear program; and

''(II) vital to the national security interests of the United States; and

''(B) if the President determines he is able to make the certification described in subparagraph (A), make such certification to the appropriate congressional committees.

''(e) EXPEDITED CONSIDERATION OF LEGISLATION.—

''(1) IN GENERAL.—In the event the President does not submit a certification pursuant to subsection (d)(5) or has determined pursuant to subsection (d)(2) that Iran has materially breached an agreement subject to subsection (a), Congress may initiate within 60 days expedited consideration of qualifying legislation pursuant to this subsection.

''(2) QUALIFYING LEGISLATION DEFINED.—For purposes of this subsection, the term 'qualifying legislation' means only a bill of either House of Congress—

''(A) the title of which is as follows: 'A bill reinstating statutory sanctions imposed with respect to Iran.'; and

''(B) the matter after the enacting clause of which is: 'Any statutory sanctions imposed with respect to Iran pursuant to _____ that were waived, suspended, reduced, or otherwise relieved pursuant to an agreement submitted pursuant to section 135(a) of the Atomic Energy Act of 1954 are hereby reinstated and any action by the United States Government to facilitate the release of funds or assets to Iran pursuant to such agreement, or provide any further waiver, suspension, reduction, or other relief is hereby prohibited.', with the blank space being filled in with the law or laws under which sanctions are to be reinstated.

''(3) INTRODUCTION.—During the 60-day period provided for in paragraph (1), qualifying legislation may be introduced—

''(A) in the House of Representatives, by the Speaker (or the Speaker's designee) or the minority leader (or the minority leader's designee); and

''(B) in the Senate, by the majority leader (or the majority leader's designee) or the minority leader (or the minority leader's designee).

''(4) COMMITTEE REFERRAL.—Qualifying legislation introduced in the Senate shall be referred to the Committee on Foreign Relations and in the House of Representatives to the Committee on Foreign Affairs.

''(5) DISCHARGE.—If the committee of either House to which qualifying legislation has been referred has not reported such qualifying legislation within 10 session days after the date of referral of such legislation, that committee shall be discharged from further consideration of such legislation and the qualifying legislation shall be placed on the appropriate calendar.

''(6) FLOOR CONSIDERATION IN HOUSE OF REPRESENTATIVES.—

''(A) PROCEEDING TO CONSIDERATION.—After each committee authorized to consider qualifying legislation reports it to the House of Representatives or has been discharged from its consideration, it shall be in order to move to proceed to consider the qualifying legislation in the House. All points of order against the motion are waived. Such a motion shall not be in order after the House has disposed of a motion to proceed on the qualifying legislation. The previous question shall be considered as ordered on the motion to its adoption without intervening motion. The motion shall not be debatable. A motion to reconsider the vote by which the motion is disposed of shall not be in order.

''(B) CONSIDERATION.—The qualifying legislation shall be considered as read. All points of order against the qualifying legislation and against its consideration are waived. The previous question shall be considered as ordered on the qualifying legislation to its passage without intervening motion except 2 hours of debate equally divided and controlled by the proponent and an opponent. A motion to reconsider the vote on passage of the qualifying legislation shall not be in order. No amendment to, or motion to recommit, qualifying legislation shall be in order.

''(C) APPEALS.—All appeals from the Chair relating to the application of the Rules of the House of Representatives to the procedure relating to the qualifying legislation shall be decided without debate.

''(7) FLOOR CONSIDERATION IN THE SENATE.—

''(A) IN GENERAL.—Notwithstanding Rule XXII of the Standing Rules of the Senate, it is in order at any time after the committee authorized to consider qualifying legislation reports it to the Senate or has been discharged from its consideration (even though a previous motion to the same effect has been disagreed to) to move to proceed to the consideration of qualifying legislation, and all points of order against qualifying legislation (and against consideration of the qualifying legislation) are waived. The motion to proceed is not debatable. The motion is not subject to a motion to postpone. A motion to reconsider the vote by which the motion is agreed to or disagreed to shall not be in order. If a motion to proceed to the consideration of the qualifying legislation is agreed to, the qualifying legislation shall remain the unfinished business until disposed of.

''(B) DEBATE.—Debate on qualifying legislation, and on all debatable motions and appeals in connection therewith, shall be limited to not more than 10 hours, which shall be divided equally between the majority and minority leaders or their designees. A motion to further limit debate is in order and not debatable. An amendment to, or a motion to postpone, or a motion to proceed to the consideration of other business, or a motion to recommit the qualifying legislation is not in order.

''(C) VOTE ON PASSAGE.—The vote on passage shall occur immediately following the conclusion of the debate on the qualifying legislation and a single quorum call at the conclusion of the debate, if requested in accordance with the rules of the Senate.

''(D) RULINGS OF THE CHAIR ON PROCEDURE.—Appeals from the decisions of the Chair relating to the application of the rules of the Senate, as the case may be, to the procedure relating to qualifying legislation shall be decided without debate.

''(E) CONSIDERATION OF VETO MESSAGES.—Debate in the Senate of any veto message with respect to qualifying legislation, including all debatable motions and appeals in connection with such qualifying legislation, shall be limited to 10 hours, to be equally divided between, and controlled by, the majority leader and the minority leader or their designees.

''(8) RULES RELATING TO SENATE AND HOUSE OF REPRESENTATIVES.—

''(A) COORDINATION WITH ACTION BY OTHER HOUSE.—If, before the passage by one House of qualifying legislation of that House, that House receives qualifying legislation from the other House, then the following procedures shall apply:

''(i) The qualifying legislation of the other House shall not be referred to a committee.

''(ii) With respect to qualifying legislation of the House receiving the legislation—

''(I) the procedure in that House shall be the same as if no qualifying legislation had been received from the other House; but

''(II) the vote on passage shall be on the qualifying legislation of the other House.

''(B) TREATMENT OF JOINT RESOLUTION OF OTHER HOUSE.—If one House fails to introduce or consider qualifying legislation under

this section, the qualifying legislation of the other House shall be entitled to expedited floor procedures under this section.

''(C) TREATMENT OF COMPANION MEASURES.—If, following passage of the qualifying legislation in the Senate, the Senate then receives a companion measure from the House of Representatives, the companion measure shall not be debatable.

''(f) RULES OF HOUSE OF REPRESENTATIVES AND SENATE.—Subsection (e) is enacted by Congress—

''(1) as an exercise of the rulemaking power of the Senate and the House of Representatives, respectively, and as such are deemed a part of the rules of each House, respectively, but applicable only with respect to the procedure to be followed in that House in the case of legislation described in those sections, and supersede other rules only to the extent that they are inconsistent with such rules; and

''(2) with full recognition of the constitutional right of either House to change the rules (so far as relating to the procedure of that House) at any time, in the same manner, and to the same extent as in the case of any other rule of that House.

''(g) RULES OF CONSTRUCTION.—Nothing in the section shall be construed as—

''(1) modifying, or having any other impact on, the President's authority to negotiate, enter into, or implement appropriate executive agreements, other than the restrictions on implementation of the agreements specifically covered by this Act;

''(2) allowing any new waiver, suspension, reduction, or other relief from statutory sanctions with respect to Iran under any provision of law, or allowing the President to refrain from applying any such sanctions pursuant to an agreement described in subsection (a) during the period for review provided in subsection (b)(1);

''(3) revoking or terminating any statutory sanctions imposed on Iran; or

''(4) authorizing the use of military force against Iran.

''(h) SENSE OF CONGRESS.—It is the sense of Congress that—

''(1) the sanctions regime imposed on Iran by Congress is primarily responsible for bringing Iran to the table to negotiate on its nuclear program;

''(2) these negotiations are a critically important matter of national security and foreign policy for the United States and its closest allies; and

''(3) it is critically important that Congress have the opportunity to consider and, as appropriate, take action on any agreement affecting the statutory sanctions regime imposed by Congress.

''(i) DEFINITIONS.—In this section:

''(1) AGREEMENT AND ALL RELATED MATERIALS AND ANNEXES.—The term 'agreement and all related materials and annexes' means the agreement itself and any additional materials related thereto, including annexes, appendices, codicils, side agreements, implementing materials, documents, and guidance, technical or other understandings, and any related agreements, whether entered into or implemented prior to the agreement or to be entered into or implemented in the future.

''(2) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term 'appropriate congressional committees' has the meaning given that term in section 14 of the Iran Sanctions Act of 1996 (Public Law 104–172; 50 U.S.C. 1701 note).

''(3) IRANIAN FINANCIAL INSTITUTION.—The term 'Iranian financial institution' has the meaning given the term in section 104A(d) of the Comprehensive Iran Sanctions, Accountability, and Divestment Act of 2010 (22 U.S.C. 8513b(d)).

''(4) JOINT PLAN OF ACTION.—The term 'Joint Plan of Action' means the Joint Plan of Action, signed at Geneva November 24, 2013, by Iran and by France, Germany, the Russian Federation, the People's Republic of China, the United Kingdom, and the United States, and all implementing materials and agreements related to the Joint Plan of Action, including the technical understandings reached on January 12, 2014, the extension thereto agreed to on July 18, 2014, the extension agreed to on November 24, 2014, and any extension that is agreed to on or after the date of the enactment of the Iran Nuclear Agreement Review Act of 2015.

''(5) MATERIAL BREACH.—The term 'material breach' means, with respect to an agreement described in subsection (a), any breach of the agreement that substantially—

''(A) benefits Iran's nuclear program;

''(B) decreases the amount of time required by Iran to achieve a nuclear weapon; or

''(C) deviates from or undermines the purposes of such agreement.

''(6) NONCOMPLIANCE DEFINED.—The term 'noncompliance' means any departure from the terms of an agreement described in subsection (a) that is not a material breach.

''(7) P5+1 COUNTRIES.—The term 'P5+1 countries' means the United States, France, the Russian Federation, the People's Republic of China, the United Kingdom, and Germany.

''(8) UNITED STATES PERSON.—The term 'United States person' has the meaning given that term in section 101 of the Comprehensive Iran Sanctions, Accountability, and Divestment Act of 2010 (22 U.S.C. 8511).''.

This act shall become effective 1 day after enactment.

By Mrs. FEINSTEIN (for herself and Mrs. BOXER):

S. 630. A bill to establish the Sacramento-San Joaquin Delta National Heritage Area; to the Committee on Energy and Natural Resources.

Mrs. FEINSTEIN. Mr. President, I rise on behalf of myself and Senator BOXER to introduce legislation to establish a National Heritage Area in the California Sacramento-San Joaquin Delta. This legislation will create the first Heritage Area in California.

This bill was first introduced in 2011 and has been the subject of Energy and Natural Resources Committee hearings in both the 112th and 113th Congresses. Since then, the Delta Protection Commission has completed a feasibility study, as required, and endorsed the legislation. Additionally, the National Park Service has confirmed that the study is consistent with the agency's interim National Heritage Area Feasibility Study Guidelines.

I was pleased to have had the opportunity to work with Senator BOXER, Representative JOHN GARAMENDI, and the County Supervisors from the five Delta Counties to develop this legislation and look forward to continuing to partner with them as well as local, State and Federal agencies to care for and improve the Delta.

This bill will establish the Sacramento-San Joaquin Delta as a National Heritage Area. The purpose of the heritage area is to conserve and protect the Delta, its communities, its resources, and its history.

The Delta Protection Commission, created by California law and responsible to the citizens of the Delta and California, will manage the Heritage Area. It will ensure an open and public process, working with all levels of Federal, State, and local government, tribes, local stakeholders, and private property owners as it develops and implements the management plan for the Heritage Area. The bill authorizes $10 million in Federal assistance over the next 15 years to provide technical assistance and matching grants to local governments and nonprofit organizations to implement the management plan to conserve and protect the delta's natural, historical and cultural resources.

It is also important to understand what this legislation will not do. It will not affect water rights. It will not affect water contracts. It will not affect private property. It will not affect fishing or hunting.

Nothing in this bill gives any governmental agency any more regulatory power than it already has, nor does it take away regulatory from agencies that have it.

In short, this bill does not affect water rights or water contracts, nor does it impose any additional responsibilities on local government or residents. Instead, it authorizes Federal assistance to a local process already required by State law that will elevate the Delta, providing a means to conserve and protect its valued communities, resources, and history.

The Sacramento-San Joaquin Delta is the largest estuary on the West Coast. It is the most extensive inland delta in the world, and a unique national treasure.

Today, it is a labyrinth of sloughs, wetlands, and deepwater channels that connect the waters of the high Sierra mountain streams to the Pacific Ocean through the San Francisco Bay. Its approximately 60 islands are protected by 1,100 miles of levees, and are home to 3,500,000 residents, including 2,500 family farmers. The Delta and its farmers produce some of the highest quality specialty crops in the United States.

The Delta offers recreational opportunities to the two million Californians who visit the area each year for boating, fishing, hunting, visiting historic sites, and viewing wildlife. It provides habitat for more than 750 species of plants and wildlife. These include sand hill cranes that migrate to the Delta wetland from places as far away as Siberia. The Delta also provides habitat for 55 species of fish, including Chinook salmon, some as large as 60 pounds, that return each year to travel through the Delta to spawn in the tributaries.

These same waterways also channel fresh water to the Federal and State-owned pumps in the South Delta that provide water to 23 million Californians and three million acres of irrigated agricultural land elsewhere in the State.

Before the Delta was reclaimed for farmland in the 19th Century, the Delta flooded regularly with snow melt each spring, and provided the rich environment that, by 1492, supported the

largest settlement of Native Americans in North America.

The Delta was the gateway to the gold fields in 1849, after which Chinese workers built hundreds of miles of levees throughout the waterways of the Delta to make its rich peat soils available for farming and to control flooding.

Japanese, Italians, German, Portuguese, Dutch, Greeks, South Asians and other immigrants began the farming legacy, and developed technologies specifically adapted to the unique environment, including the Caterpillar Tractor, which later contributed to agriculture and transportation internationally.

Delta communities created a river culture befitting their dependence on water transport, a culture which has attracted the attention of authors from Mark Twain and Jack London to Joan Didion.

The National Heritage Area designation for the Sacramento-San Joaquin Delta will help local governments develop and implement a plan for a sustainable future by providing federal recognition, technical assistance and small amounts of funding to a community-based process already underway.

Through the Delta Heritage Area, local communities and citizens will partner with Federal, State and local governments to collaboratively work to promote conservation, community revitalization, and economic development projects.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection the text of the bill was ordered to be printed in the RECORD, as follows:

S. 630

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Sacramento-San Joaquin Delta National Heritage Area Establishment Act''.

SEC. 2. DEFINITIONS.

In this Act:

(1) HERITAGE AREA.—The term ''Heritage Area'' means the Sacramento-San Joaquin Delta Heritage Area established by section 3(a).

(2) HERITAGE AREA MANAGEMENT PLAN.—The term ''Heritage Area management plan'' means the plan developed and adopted by the local coordinating entity under this Act.

(3) LOCAL COORDINATING ENTITY.—The term ''local coordinating entity'' means the local coordinating entity for the Heritage Area designated by section 3(d).

(4) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(5) STATE.—The term ''State'' means the State of California.

SEC. 3. SACRAMENTO-SAN JOAQUIN DELTA HERITAGE AREA.

(a) ESTABLISHMENT.—There is established the ''Sacramento-San Joaquin Delta Heritage Area'' in the State.

(b) BOUNDARIES.—The boundaries of the Heritage Area shall be in the counties of Contra Costa, Sacramento, San Joaquin, Solano, and Yolo in the State of California, as generally depicted on the map entitled ''Sacramento-San Joaquin Delta National Heritage Area Proposed Boundary'', numbered T27/105,030, and dated October 2012.

(c) AVAILABILITY OF MAP.—The map described in subsection (b) shall be on file and available for public inspection in the appropriate offices of the National Park Service and the Delta Protection Commission.

(d) LOCAL COORDINATING ENTITY.—The local coordinating entity for the Heritage Area shall be the Delta Protection Commission established by section 29735 of the California Public Resources Code.

(e) ADMINISTRATION.—

(1) AUTHORITIES.—For purposes of carrying out the Heritage Area management plan, the Secretary, acting through the local coordinating entity, may use amounts made available under this Act to—

(A) make grants to the State or a political subdivision of the State, nonprofit organizations, and other persons;

(B) enter into cooperative agreements with, or provide technical assistance to, the State or a political subdivision of the State, nonprofit organizations, and other interested parties;

(C) hire and compensate staff, which shall include individuals with expertise in natural, cultural, and historical resources protection, and heritage programming;

(D) obtain money or services from any source including any that are provided under any other Federal law or program;

(E) contract for goods or services; and

(F) undertake to be a catalyst for any other activity that furthers the Heritage Area and is consistent with the approved Heritage Area management plan.

(2) DUTIES.—The local coordinating entity shall—

(A) in accordance with subsection (f), prepare and submit a Heritage Area management plan to the Secretary;

(B) assist units of local government, regional planning organizations, and nonprofit organizations in carrying out the approved Heritage Area management plan by—

(i) carrying out programs and projects that recognize, protect, and enhance important resource values in the Heritage Area;

(ii) establishing and maintaining interpretive exhibits and programs in the Heritage Area;

(iii) developing recreational and educational opportunities in the Heritage Area;

(iv) increasing public awareness of, and appreciation for, natural, historical, scenic, and cultural resources of the Heritage Area;

(v) protecting and restoring historic sites and buildings in the Heritage Area that are consistent with Heritage Area themes;

(vi) ensuring that clear, consistent, and appropriate signs identifying points of public access, and sites of interest are posted throughout the Heritage Area; and

(vii) promoting a wide range of partnerships among governments, organizations, and individuals to further the Heritage Area;

(C) consider the interests of diverse units of government, businesses, organizations, and individuals in the Heritage Area in the preparation and implementation of the Heritage Area management plan;

(D) conduct meetings open to the public at least semiannually regarding the development and implementation of the Heritage Area management plan;

(E) for any year that Federal funds have been received under this Act—

(i) submit an annual report to the Secretary that describes the activities, expenses, and income of the local coordinating entity (including grants to any other entities during the year that the report is made);

(ii) make available to the Secretary for audit all records relating to the expenditure of the funds and any matching funds; and

(iii) require, with respect to all agreements authorizing expenditure of Federal funds by other organizations, that the organizations receiving the funds make available to the Secretary for audit all records concerning the expenditure of the funds; and

(F) encourage by appropriate means economic viability that is consistent with the Heritage Area.

(3) PROHIBITION ON THE ACQUISITION OF REAL PROPERTY.—The local coordinating entity shall not use Federal funds made available under this Act to acquire real property or any interest in real property.

(4) COST-SHARING REQUIREMENT.—The Federal share of the cost of any activity carried out using any assistance made available under this Act shall be 50 percent.

(f) HERITAGE AREA MANAGEMENT PLAN.—

(1) IN GENERAL.—Not later than 3 years after the date of enactment of this Act, the local coordinating entity shall submit to the Secretary for approval a proposed Heritage Area management plan.

(2) REQUIREMENTS.—The Heritage Area management plan shall—

(A) incorporate an integrated and cooperative approach to agricultural resources and activities, flood protection facilities, and other public infrastructure;

(B) emphasizes the importance of the resources described in subparagraph (A);

(C) take into consideration State and local plans;

(D) include—

(i) an inventory of—

(I) the resources located in the core area described in subsection (b); and

(II) any other property in the core area that—

(aa) is related to the themes of the Heritage Area; and

(bb) should be preserved, restored, managed, or maintained because of the significance of the property;

(ii) comprehensive policies, strategies and recommendations for conservation, funding, management, and development of the Heritage Area;

(iii) a description of actions that governments, private organizations, and individuals have agreed to take to protect the natural, historical and cultural resources of the Heritage Area;

(iv) a program of implementation for the Heritage Area management plan by the local coordinating entity that includes a description of—

(I) actions to facilitate ongoing collaboration among partners to promote plans for resource protection, restoration, and construction; and

(II) specific commitments for implementation that have been made by the local coordinating entity or any government, organization, or individual for the first 5 years of operation;

(v) the identification of sources of funding for carrying out the Heritage Area management plan;

(vi) analysis and recommendations for means by which local, State, and Federal programs, including the role of the National Park Service in the Heritage Area, may best be coordinated to carry out this Act; and

(vii) an interpretive plan for the Heritage Area; and

(E) recommend policies and strategies for resource management that consider and detail the application of appropriate land and water management techniques, including the development of intergovernmental and interagency cooperative agreements to protect the natural, historical, cultural, educational, scenic, and recreational resources of the Heritage Area.

(3) RESTRICTIONS.—The Heritage Area management plan submitted under this subsection shall—

(A) ensure participation by appropriate Federal, State, tribal, and local agencies, including the Delta Stewardship Council, special districts, natural and historical resource protection and agricultural organizations, educational institutions, businesses, recreational organizations, community residents, and private property owners; and

(B) not be approved until the Secretary has received certification from the Delta Protection Commission that the Delta Stewardship Council has reviewed the Heritage Area management plan for consistency with the plan adopted by the Delta Stewardship Council pursuant to State law.

(4) DEADLINE.—If a proposed Heritage Area management plan is not submitted to the Secretary by the date that is 3 years after the date of enactment of this Act, the local coordinating entity shall be ineligible to receive additional funding under this Act until the date that the Secretary receives and approves the Heritage Area management plan.

(5) APPROVAL OR DISAPPROVAL OF HERITAGE AREA MANAGEMENT PLAN.—

(A) IN GENERAL.—Not later than 180 days after the date of receipt of the Heritage Area management plan under paragraph (1), the Secretary, in consultation with the State, shall approve or disapprove the Heritage Area management plan.

(B) CRITERIA FOR APPROVAL.—In determining whether to approve the Heritage Area management plan, the Secretary shall consider whether—

(i) the local coordinating entity is representative of the diverse interests of the Heritage Area, including governments, natural and historic resource protection organizations, educational institutions, businesses, and recreational organizations;

(ii) the local coordinating entity has afforded adequate opportunity, including public hearings, for public and governmental involvement in the preparation of the Heritage Area management plan; and

(iii) the resource protection and interpretation strategies contained in the Heritage Area management plan, if implemented, would adequately protect the natural, historical, and cultural resources of the Heritage Area.

(C) ACTION FOLLOWING DISAPPROVAL.—If the Secretary disapproves the Heritage Area management plan under subparagraph (A), the Secretary shall—

(i) advise the local coordinating entity in writing of the reasons for the disapproval;

(ii) make recommendations for revisions to the Heritage Area management plan; and

(iii) not later than 180 days after the receipt of any proposed revision of the Heritage Area management plan from the local coordinating entity, approve or disapprove the proposed revision.

(D) AMENDMENTS.—

(i) IN GENERAL.—The Secretary shall approve or disapprove each amendment to the Heritage Area management plan that the Secretary determines make a substantial change to the Heritage Area management plan.

(ii) USE OF FUNDS.—The local coordinating entity shall not use Federal funds authorized by this Act to carry out any amendments to the Heritage Area management plan until the Secretary has approved the amendments.

(g) RELATIONSHIP TO OTHER FEDERAL AGENCIES.—

(1) IN GENERAL.—Nothing in this Act affects the authority of a Federal agency to provide technical or financial assistance under any other law.

(2) CONSULTATION AND COORDINATION.—The head of any Federal agency planning to conduct activities that may have an impact on the Heritage Area is encouraged to consult and coordinate the activities with the Secretary and the local coordinating entity to the maximum extent practicable.

(3) OTHER FEDERAL AGENCIES.—Nothing in this Act—

(A) modifies, alters, or amends any law or regulation authorizing a Federal agency to manage Federal land under the jurisdiction of the Federal agency;

(B) limits the discretion of a Federal land manager to implement an approved land use plan within the boundaries of the Heritage Area; or

(C) modifies, alters, or amends any authorized use of Federal land under the jurisdiction of a Federal agency.

(h) PRIVATE PROPERTY AND REGULATORY PROTECTIONS.—

(1) IN GENERAL.—Subject to paragraph (2), nothing in this Act—

(A) abridges the rights of any property owner (whether public or private), including the right to refrain from participating in any plan, project, program, or activity conducted within the Heritage Area;

(B) requires any property owner to permit public access (including access by Federal, State, or local agencies) to the property of the property owner, or to modify public access or use of property of the property owner under any other Federal, State, or local law;

(C) alters any duly adopted land use regulation, approved land use plan, or other regulatory authority of any Federal, State or local agency, or conveys any land use or other regulatory authority to the local coordinating entity;

(D) authorizes or implies the reservation or appropriation of water or water rights;

(E) diminishes the authority of the State to manage fish and wildlife, including the regulation of fishing and hunting within the Heritage Area; or

(F) creates any liability, or affects any liability under any other law, of any private property owner with respect to any person injured on the private property.

(2) OPT OUT.—An owner of private property within the Heritage Area may opt out of participating in any plan, project, program, or activity carried out within the Heritage Area under this Act, if the property owner provides written notice to the local coordinating entity.

(i) EVALUATION; REPORT.—

(1) IN GENERAL.—Not later than 3 years before the date on which authority for Federal funding terminates for the Heritage Area, the Secretary shall—

(A) conduct an evaluation of the accomplishments of the Heritage Area; and

(B) prepare a report in accordance with paragraph (3).

(2) EVALUATION.—An evaluation conducted under paragraph (1)(A) shall—

(A) assess the progress of the local coordinating entity with respect to—

(i) accomplishing the purposes of this Act for the Heritage Area; and

(ii) achieving the goals and objectives of the approved Heritage Area management plan;

(B) analyze the Federal, State, local, and private investments in the Heritage Area to determine the leverage and impact of the investments; and

(C) review the management structure, partnership relationships, and funding of the Heritage Area for purposes of identifying the critical components for sustainability of the Heritage Area.

(3) REPORT.—

(A) IN GENERAL.—Based on the evaluation conducted under paragraph (1)(A), the Secretary shall prepare a report that includes recommendations for the future role of the National Park Service, if any, with respect to the Heritage Area.

(B) REQUIRED ANALYSIS.—If the report prepared under subparagraph (A) recommends that Federal funding for the Heritage Area be reauthorized, the report shall include an analysis of—

(i) ways in which Federal funding for the Heritage Area may be reduced or eliminated; and

(ii) the appropriate time period necessary to achieve the recommended reduction or elimination.

(C) SUBMISSION TO CONGRESS.—On completion of the report, the Secretary shall submit the report to—

(i) the Committee on Energy and Natural Resources of the Senate; and

(ii) the Committee on Natural Resources of the House of Representatives.

(j) EFFECT OF DESIGNATION.—Nothing in this Act—

(1) precludes the local coordinating entity from using Federal funds made available under other laws for the purposes for which those funds were authorized; or

(2) affects any water rights or contracts.

SEC. 4. AUTHORIZATION OF APPROPRIATIONS.

(a) IN GENERAL.—There is authorized to be appropriated to carry out this Act $10,000,000, of which not more than $1,000,000 may be made available for any fiscal year.

(b) COST-SHARING REQUIREMENT.—The Federal share of the total cost of any activity under this Act shall be determined by the Secretary, but shall be not more than 50 percent.

(c) NON-FEDERAL SHARE.—The non-Federal share of the total cost of any activity under this Act may be in the form of in-kind contributions of goods or services.

SEC. 5. TERMINATION OF AUTHORITY.

(a) IN GENERAL.—If a proposed Heritage Area management plan has not been submitted to the Secretary by the date that is 5 years after the date of enactment of this Act, the Heritage Area designation shall be rescinded.

(b) FUNDING AUTHORITY.—The authority of the Secretary to provide assistance under this Act terminates on the date that is 15 years after the date of enactment of this Act.

By Ms. MURKOWSKI (for herself and Mr. SULLIVAN):

S. 631. A bill to exempt National Forest System land in the State of Alaska from the Roadless Area Conservation Rule; to the Committee on Energy and Natural Resources.

Ms. MURKOWSKI. Mr. President, rise today to introduce legislation that I have cosponsored for a number of years, that will remedy the problems that have been created by this administration's decision to apply the, Inventoried, Roadless Area Conservation Rule to Alaska, especially in Southeast Alaska's Tongass National Forest, and also in the Chugach National Forest of Southcentral Alaska. I am joined today in introducing that bill by my Alaska colleague Senator DAN SULLIVAN.

Back in 2001 the Clinton administration promulgated the Nationwide Inventoried Area Roadless Conservation Rule. Initially the rule did not cover the Tongass National Forest in Alaska, which has been the subject of congressional review and special legislation twice in the past 35 years, first in the Alaska National Interest Lands Conservation Act in 1980, which reduced the allowable timber harvest in

the 16.9-million acre forest from nearly 1 billion board feet a year to a 450 million board foot harvest level, and later by the Tongass Timber Reform Act of 1990, which further reduced the allowable harvest level to 267 million board feet annually. Congress in 1980 created 5.75 million acres of wilderness by creating 14 wilderness areas in the forest, and in 1990 further reduced the lands available for timber harvesting by creating five additional wilderness areas totaling 296,000 acres and 12 Land Unit Designation 11 areas of 727,700 acres that increased the protected acreages in the Tongass to more than 6.4 million. With the passage of the Sealaska lands bill in 2014, total protected acreage in the Tongass has risen to 6.55 million acres.

Lands classified for potential timber production have been drastically reduced since the 1980 Act's passage. In the Tongass Land Management Plans, TLPM, crafted after ANILCA's passage, 13.3 million acres of the forest, nearly 80 percent, have been restricted from resource development. Of the 9.5 million acres of commercial timber lands in the Tongass only 3.4 million were open for development after 1980 and only 800,000, including previously logged areas, were permitted/planned for harvest over a prospective 100-year timber rotation, harvesting limited to about 8,250 acres a year—4 percent of the total land area. That included about 400,000 ''new'' acres of new timber lands over a century on top of the roughly 425,000 acres harvested since modern timber activities in Southeast Alaska began in the 1950's and allowed in part for reentry in the future. Since passage of the Tongass Timber Reform Act, and since imposition of the Inventoried Roadless Rule, potential harvesting has dropped even further.

The 2001 Inventoried Roadless Areas in the Tongass include 9.5 million acres, 57 percent of the entire forest, while 5.4 million acres, 99 percent, of the Chugach National Forest in Southcentral Alaska were placed in protected status. In the Tongass 7.4 million acres are in the highest protected status of inventoried roadless meaning that not only can't roads be built for forestry, but that access is not allowed for other uses such as renewable energy development. Overall, between the Inventoried Roadless Rule and other land protections, fewer than 176,000 acres of ''new'' timber lands are planned for harvest over the next 100 years, cutting the allowable sale quantity below 267 mmbf. The drop in employment in the region has been chilling. According to the Forest Service, total direct timber sector employment fell from a high of 3,543 average annual employees in 1990 to 402 in 2007, Tongass employment in logging and sawmilling has declined from 409 in 2001, the first year of the roadless rule, to 114 by 2007. The drop off in timber activity would actually be higher except the State of Alaska, to the degree that it could, increased State timber sales. In 2002, for example, 73 percent of all timber cut in Southeast came from Federal forest lands, while by 2007 the percentage stood at barely half coming from Federal lands.

Without changes in the roadless rule to allow some additional timber harvest areas and other energy and mineral development, no more than about 3 percent of the Nation's largest forest will ever be developed and Southeast Alaska will be forced to depend solely on fisheries and tourism as economic engines, potentially returning the region to its impoverished economy of the 1940s.

Today I am introducing legislation to simply exempt Alaska from the Inventoried Roadless Rule. That will not permit economic development on all 9.5 million acres of IRA lands in the Tongass or many of the lands in the Chugach. They will continue to be protected by the terms of the national forest plans for both forests. What it will do is permit land planners the flexibility to propose more rational land planning decisions in the future. It would allow the Forest Service the ability to permit road and electric transmission lines to be placed to tap the region's huge hydroelectric potential—there being 300 megawatts of hydropower available from known sites, if distribution lines can be built at reasonable cost to get the power to markets.

Adding some timber back to the timber base would allow a timber industry to again help the region's economy. But that would not harm the environment and wildlife. Already of the 537,451 acres of productive old-growth, POG, trees left in the Tongass, 437,000 are in permanent conservation areas—81 percent.

The roadless rule may make sense in the contiguous states since there are at least some roads and utility lines that cross those States' national forests. In Southeast Alaska, however, there is no transportation network except a marine ferry system, and no permitted electrical transmission system. It simply made no sense in 2001 for the Inventoried Roadless Rules to apply to Alaska. The rule is not needed since by existing plans and regulations, even without IRA's, 96 percent of the Tongass will remain protected. An exemption from the rule will simply allow Alaskans an opportunity to make thoughtful decisions on development in a region 18 times larger than the state of Delaware, but with 1,300 miles of road in the entire region, 1/10 of the road miles of tiny Delaware.

By Mr. FLAKE (for himself, Mr. MCCAIN, Mr. LEE, Mr. CRAPO, Mr. CORNYN, Mr. INHOFE, and Mr. VITTER):

S. 638. A bill to amend the Clean Air Act with respect to exceptional event demonstrations, and for other purposes; to the Committee on Environment and Public Works.

Mr. FLAKE. Mr. President, I thought I would rise to discuss legislation designed to address the bureaucratic overreach in the Environmental Protection Agency's air regulations.

Since I last introduced these bills in June of 2014, EPA's failures in this area have become even more glaring. At present, air regulations are stifling to both businesses and private citizens, and they are negatively impacting our economy.

Let me say from the outset, we all want clean air. We are always in favor of protecting the environment and the air we breathe. I think we are not in favor of an EPA that places real regulations over common sense.

Today I am introducing S. 638, S. 639, and S. 640, the CLEER Act, the ORDEAL Act, and the Agency PAYGO for greenhouse gases.

The CLEER Act eases the regulatory burden on States, including desert States such as Arizona that are home to so-called exceptional events such as dust storms.

Dust storms in Arizona are not caused by man. They are naturally occurring events, just like tornadoes or blizzards in other parts of the country. When these dust storms occur in Arizona, they can cause a spike in the dust, or the PM–10 level. This is nothing the State can control. Yet this blip can cause Arizona and other affected States to fall out of compliance with Federal air quality standards. Again, this is through no fault of their own. It can lead to a loss of transportation dollars, even from the Federal Government.

Thanks to EPA rules, States end up wasting vast amounts of manpower, countless work hours, and lots of taxpayer dollars on reviews and appeals for events they cannot control or avoid.

For example, the Arizona Department of Environmental Quality, the Maricopa Air Quality Department, and the Maricopa Association of Governments in 2011 and 2012 spent $675,000 and 790 staff hours just to prove a spike in PM–10 levels was caused by a dust storm, not pollution.

These EPA reviews are arbitrary, cumbersome, and costly. They lack an appeals process that further defies common sense. The EPA has continually assured me it would issue a rule to help ease the burdens on States, all the States that have to weather forces of nature such as this. Yet despite these promises, the EPA has continued to backtrack and shift deadlines, and to date has not issued a workable proposed rule.

My legislation on the CLEER Act would require the EPA to move forward with a rulemaking, and it would require decisions on such events be based on a preponderance of evidence, and will accord deference to States' own findings of when such events happen.

It would also require the EPA to review the States' exceptional-event documentation within a reasonable time period of 90 days instead of dragging

out the process. Part of the cost is due to the fact that the EPA drags out the process. These practical fixes will alleviate the undue hardship States are having to deal with and when we have to deal with the effects of these natural events.

Secondly, the ORDEAL Act is an attempt to overhaul the EPA's unnecessary ozone standard reduction until 2018. When the EPA reduced permitted ozone standards in 2008, counties across the country that were in nonattainment were forced to enact expensive and complicated compliance plans.

Relying on a dubious scientific basis, the EPA has proposed lowering the ozone emissions standards even further to 65 parts per billion, while accepting comments on lowering it to 60 parts per billion. By some estimates, this proposal to lower the ozone level may be the most expensive regulation in EPA history—and that is saying something—costing as much as $1.7 trillion. Lowering ozone standards from 75 parts per billion to 65 parts per billion will cost a whopping $140 billion annually. Yet EPA's own science advisers disagree on the very basis upon which this regulation is built.

The ORDEAL Act will stop shaky facts and assumptions from being used as a basis for long-term public policy, and will give States the flexibility and the time to implement their own innovative and proactive measures.

The bill would also extend air quality standards reviews, including ozone, to a 10-year timeline instead of the current 5 years.

Third, Agency PAYGO. This administration has set its sights on reducing carbon emissions, most recently putting draconian regulations on existing powerplants, despite the inevitable job losses and spikes in energy costs. It has placed a mandate on Arizona to reduce 52 percent of its carbon emissions by 2030. This is unattainable, unless Arizonans are forced to greatly reduce their standard of living.

The Agency PAYGO Act I am introducing would simply give the EPA a taste of its own medicine by requiring the Agency to offset the Federal cost of any greenhouse gas rules to an equivalent reduction in Agency spending. If the EPA proceeds without offsetting these costs from its own budget, the final greenhouse gas rule must be approved by Congress, simply saying if you cannot do this as an offset within your own budget, bring it to Congress and let's approve it. This bill specifically forbids the EPA from denying costs to Federal agencies by passing on costs to the Federal agency's ratepayers. If capital costs are imposed by a greenhouse gas rule, the EPA must offset those costs or get Congress's approval.

The EPA has a history of implementing costly and stringent standards for negligible and even questionable benefit. All three of these bills—the CLEER Act, ORDEAL Act, and Agency PAYGO Act—provide more certainty than presently exists to States and counties and businesses that have to deal with the EPA and will hold the Agency accountable for its decision-making process.

I hope my colleagues will join me in supporting these measures.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 94—SUPPORTING THE GOALS AND IDEALS OF CAREER AND TECHNICAL EDUCATION MONTH

Mr. KAINE (for himself, Mr. PORTMAN, Ms. BALDWIN, Mr. ISAKSON, Mrs. MURRAY, Mr. COONS, Mr. WYDEN, Mr. BROWN, Mr. DURBIN, Mr. BLUMENTHAL, Mr. BOOZMAN, and Mr. SCHUMER) submitted the following resolution; which was considered and agreed to:

S. RES. 94

Whereas a competitive global economy requires workers trained in skilled professions;

Whereas according to a report by the National Association of Manufacturers, 80 percent of respondents indicated a moderate to severe shortage of qualified skilled production employees, including front-line workers, such as machinists, operators, craft workers, distributors, and technicians;

Whereas career and technical education is a tried and true solution to ensure that competitive skilled workers are ready, willing, and capable of holding jobs in high-wage, high-skill, and in-demand career fields, such as science, technology, engineering, and mathematics (commonly known as ''STEM'') disciplines, nursing, allied health, construction, information technology, energy sustainability, and many other fields that are vital to keeping the United States competitive in the global economy;

Whereas career and technical education helps the United States meet the very real and immediate challenges of economic development, student achievement, and global competitiveness;

Whereas 14,000,000 students are enrolled in career and technical education, which exists in every State and includes programs in nearly 1,300 public high schools and 1,700 2-year colleges;

Whereas 10 of the 20 fastest growing occupations in the United States require an associate's degree or a lesser credential, 13 of the 20 occupations in the United States with the greatest number of projected new jobs require on-the-job training and an associate's degree or certificate, and nearly all occupations in the United States require real-world skills that can be mastered through career and technical education;

Whereas career and technical education matches employability skills with workforce demand and provides relevant academic and technical coursework leading to industry-recognized credentials for secondary, postsecondary, and adult learners;

Whereas career and technical education affords students the opportunity to gain the knowledge, skills, and credentials needed to secure careers in growing, high-demand fields;

Whereas secondary school students participating in career and technical education are significantly more likely than students not participating in career and technical education to report that they had developed skills during high school in problem solving, project completion, research, mathematics, applying to colleges, work-related contexts, communication, time management, and critical thinking;

Whereas students at schools with highly integrated rigorous academic and career and technical education programs have significantly higher achievement in reading, mathematics, and science than students at schools with less integrated programs; and

Whereas the Association for Career and Technical Education has designated February as ''Career and Technical Education Month'' to celebrate career and technical education across the United States: Now, therefore, be it

Resolved, That the Senate—

(1) supports the goals and ideals of Career and Technical Education Month;

(2) recognizes the importance of career and technical education in preparing a well-educated and skilled workforce in the United States; and

(3) encourages educators, counselors, and administrators to promote career and technical education as an option for students.

SENATE RESOLUTION 95—DESIGNATING MARCH 3, 2015, AS ''WORLD WILDLIFE DAY''

Mr. COONS (for himself and Mr. INHOFE) submitted the following resolution; which was considered and agreed to:

S. RES. 95

Whereas wildlife has provided numerous economic, environmental, social, and cultural benefits during the course of human history, and wildlife preservation will secure these gifts for future generations;

Whereas each plant and animal species plays an important role in the stability of diverse ecosystems around the world, and the conservation of this biodiversity is critical to maintain the delicate balance of nature and keep complex ecosystems thriving;

Whereas observation of wild plants and animals in their natural habitat provides individuals with a more enriching world view and a greater appreciation of the wonders of the natural environment;

Whereas tens of millions of individuals in the United States strongly support the conservation of wildlife, both domestically and abroad, and wish to ensure the survival of species in the wild, such as rhinoceroses, tigers, elephants, pangolins, turtles, seahorses, sharks, ginseng, mahogany, and cacti;

Whereas the trafficking of wildlife, including timber and fish, comprises the fourth largest global illegal trade, after narcotics, counterfeiting of products and currency, and human trafficking, and has become a major transnational organized crime with an estimated worth of approximately $19,000,000,000 annually;

Whereas increased demand in Asia for high-value illegal wildlife products, particularly elephant ivory and rhinoceros horns, has recently triggered substantial and rapid increases in poaching of these species, particularly in Africa;

Whereas trafficking of wildlife is the primary threat to many wildlife species, including elephants, rhinoceroses, and tigers;

Whereas many different kinds of criminals, including some terrorist entities and rogue security personnel, often in collusion with corrupt government officials, are involved in wildlife poaching and the movement of ivory and rhinoceros horns across Africa;

Whereas wildlife poaching presents significant security and stability challenges for military and police forces in African nations that are often threatened by heavily armed poachers and the criminal and extremist allies of such poachers;

Whereas wildlife poaching negatively impacts local communities that rely on natural resources for economic development, including tourism;

Whereas penal and financial deterrents can improve the ability of African governments to reduce poaching and trafficking and enhance their capabilities of managing their resources;

Whereas assisting institutions in developing nations, including material, training, legal, and diplomatic support, can reduce illegal wildlife trade;

Whereas wildlife provides a multitude of benefits to all nations, and wildlife crime has wide-ranging economic, environmental, and social impacts;

Whereas the number of elephants killed by poachers in Kenya increased by more than 800 percent from 2007 to 2012, from 47 to 387 elephants killed;

Whereas the number of rhinoceroses killed by poachers in South Africa increased by more than 7000 percent between 2007 and 2013, from 13 to 1004 rhinoceroses killed;

Whereas the number of forest elephants in the Congo Basin in central Africa declined by approximately two-thirds between 2002 and 2012, placing forest elephants on track for extinction within the next decade;

Whereas as few as 3200 tigers remain in the wild throughout all of Asia;

Whereas approximately 100,000,000 sharks are killed annually, often targeted solely for their fins, and unsustainable trade is the primary cause of serious population decline in several shark species, including scalloped hammerhead sharks, great hammerhead sharks, and oceanic whitetip sharks;

Whereas the United States is developing measures to address the criminal, financial, security, and environmental aspects of wildlife trafficking;

Whereas Congress has allocated specific resources to combat wildlife trafficking and address the threats posed by poaching and the illegal wildlife trade;

Whereas in December 2013, the United Nations General Assembly proclaimed March 3 as World Wildlife Day to celebrate and raise awareness of the wild fauna and flora around the world;

Whereas March 3, 2015, represents the second annual celebration of World Wildlife Day; and

Whereas in 2015, World Wildlife Day commemorations will ''celebrate the many beautiful and varied forms of wild fauna and flora, raise awareness of the multitude of benefits that wildlife provides to people, and raise awareness of the urgent need to step up the fight against wildlife crime, which has wide-ranging economic, environmental, and social impacts'': Now, therefore, be it

Resolved, That the Senate—

(1) designates March 3, 2015, as ''World Wildlife Day'';

(2) supports raising awareness of the benefits that wildlife provides to people and the threats facing wildlife around the world;

(3) supports escalating the fight against wildlife crime, including wildlife trafficking;

(4) applauds the domestic and international efforts to escalate the fight against wildlife crime;

(5) commends the efforts of the United States to mobilize the entire Government in a coordinated, efficient, and effective manner for dramatic progress in the fight against wildlife crime; and

(6) encourages continued cooperation between the United States, international partners, local communities, nonprofit organizations, private industry, and other partner organizations in an effort to conserve and celebrate wildlife, preserving this precious resource for future generations.

SENATE CONCURRENT RESOLUTION 7—AUTHORIZING THE USE OF EMANCIPATION HALL IN THE CAPITOL VISITOR CENTER FOR A CEREMONY TO AWARD THE CONGRESSIONAL GOLD MEDAL TO THE WORLD WAR II MEMBERS OF THE DOOLITTLE TOKYO RAIDERS

Mr. BROWN (for himself, Mrs. MURRAY, Mr. BOOZMAN, Mr. TESTER, Mr. NELSON, Ms. CANTWELL, and Mr. SCHATZ) submitted the following concurrent resolution; which was referred to the Committee on Rules and Administration:

S. CON. RES. 7

Resolved by the Senate (the House of Representatives concurring),

SECTION 1. USE OF EMANCIPATION HALL FOR CEREMONY TO PRESENT CONGRESSIONAL GOLD MEDAL TO WORLD WAR II MEMBERS OF DOOLITTLE TOKYO RAIDERS.

(a) AUTHORIZATION.—Emancipation Hall in the Capitol Visitor Center is authorized to be used on April 15, 2015, for a ceremony to present the Congressional Gold Medal to the World War II members of the Doolittle Tokyo Raiders, collectively, in recognition of the military service and exemplary record of the Doolittle Tokyo Raiders during World War II.

(b) PREPARATIONS.—Physical preparations for the conduct of the ceremony described in subsection (a) shall be carried out in accordance with such conditions as may be prescribed by the Architect of the Capitol.

NOTICES OF HEARINGS

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. ALEXANDER. Mr. President, the Committee on Health, Education, Labor, and Pensions will meet during the session of the Senate on March 5, 2015, at 10 a.m., in room SD–430 of the Dirksen Senate Office Building, to conduct a hearing entitled. ''America's Health IT Transformation: Translating the Promise of Electronic Health Records Into Better Care.''

For further information regarding this meeting, please contact Jamie Garden of the committee staff on (202) 224–1409.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. ALEXANDER. Mr. President, the Committee on Health, Education, Labor, and Pensions will meet during the session of the Senate on March 10, 2015, at 10 a.m., in room SD–430 of the Dirksen Senate Office Building, to conduct a hearing entitled. ''Continuing America's Leadership in Medical Innovation for Patients.''

For further information regarding this meeting, please contact Jamie Garden of the committee staff on (202) 224–1409.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON AGRICULTURE, NUTRITION, AND FORESTRY

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Agriculture, Nutrition, and Forestry be authorized to meet during the session of the Senate on March 3, 2015, at 2:15 p.m., in the President's Room of the Capitol.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON ARMED SERVICES

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Armed Services be authorized to meet during the session of the Senate on March 3, 2015, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON BANKING, HOUSING, AND URBAN AFFAIRS

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Banking, Housing, and Urban Affairs be authorized to meet during the session of the Senate on March 3, 2015, at 2:30 p.m., to conduct a hearing entitled ''Federal Reserve Accountability and Reform.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Commerce, Science, and Transportation be authorized to meet during the session of the Senate on March 3, 2015, at 9 a.m., in room SR–253 of the Russell Senate Office Building, to conduct a hearing entitled ''Examining the FY 2016 Budget Requests for the U.S. Department of Commerce and the U.S. Department of Transportation.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FINANCE

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Finance be authorized to meet during the session of the Senate on March 3, 2015, at 9 a.m., in room SD–215 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Fairness in Taxation.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on March 3, 2015, at 4 p.m., to conduct a classified brief entitled ''Update on the Campaign against ISIS.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON IMMIGRATION AND NATIONAL INTEREST

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on the Judiciary, Subcommittee on Immigration and the National Interest be authorized to meet during the session of the Senate, on March 3, 2015, at 2:30 p.m., in room SD–226 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Oversight of U.S. Citizenship and Immigration Services: Ensuring Agency Priorities Comply with the Law.''

The PRESIDING OFFICER. Without objection, it is so ordered.

PRIVILEGES OF THE FLOOR

Mrs. MURRAY. Mr. President, I ask unanimous consent that Emily O'Neill, a detailee with the Health, Education, Labor, and Pensions Committee, be granted floor privileges for the duration of the consideration of S.J. Res. 8.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUPPORTING THE GOALS AND IDEALS OF CAREER AND TECHNICAL EDUCATION MONTH

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 94, introduced earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The bill clerk read as follows:

A resolution (S. Res. 94) supporting the goals and ideals of Career and Technical Education Month.

There being no objection, the Senate proceeded to consider the resolution.

Mr. KAINE. Mr. President, the key to America's continued success lies in improving our Nation's educational system. Career and technical education, CTE, programs are a critical component to every student's education, creating diverse pathways into further education and careers. Today, these programs serve 94 percent of all high school students and 12 million postsecondary students. In both rural and urban communities, CTE plays a vital role in building student engagement, continuing our Nation's economic competitiveness, and building the skills of our workforce to meet and adapt to the needs of the 21st century.

Further, approximately 30 percent of jobs by 2018 will require some college or a 2-year associates degree, a need that can be met by improved access to CTE programs. By increasing these opportunities to obtain postsecondary skills training and meaningful credentials, CTE equitably distributes economic opportunity to all students who are willing to work for it. According to the U.S. Department of Education's Office for Career, Technical and Adult Education, the average high school graduation rate for students concentrating in CTE programs is 93 percent, compared with the national average of 80 percent.

This is why today, with my Senate CTE Caucus cochairs Senator PORTMAN, Senator BALDWIN, and Senator ISAKSON and other colleagues in the Senate, I am submitting a bipartisan resolution to designate February as Career and Technical Education, CTE, Month. CTE Month provides a chance for students and educators alike to learn more about the educational opportunities available in their communities, and to become more engaged in their studies today so they can plan for their future.

Our Nation's economic competitiveness relies on the skill of the American workforce and its ability to meet and adapt to the 21st century economy. By formally recognizing CTE Month through this resolution, it is our hope that we can build support in Washington and across the country for strengthening access to and expanding CTE programs.

Mr. MCCONNELL. I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 94) was agreed to. The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

EXECUTIVE SESSION

EXECUTIVE CALENDAR

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate immediately proceed to executive session to consider the following nomination on today's Executive Calendar: Calendar No. 48, and all nominations on the Secretary's desk in the Air Force, Army, Coast Guard, Marine Corps, and Navy. I further ask unanimous consent that the nominations be confirmed en bloc, the motions to reconsider be laid upon the table, the President be immediately notified of the Senate's action, and the Senate then return to legislative session.

The PRESIDING OFFICER. Without objection, it is so ordered.

The nominations considered and confirmed en bloc are as follows:

IN THE ARMY

The following named officer for appointment in the United States Army to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be lieutenant general

Lt. Gen. Kenneth E. Tovo

NOMINATIONS PLACED ON THE SECRETARY'S DESK

IN THE AIR FORCE

PN96 AIR FORCE nomination of Mark E. Heatherly, which was received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN97 AIR FORCE nominations (3) beginning KARIS K. GRAHAM, and ending MARVIN WILLIAMS, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN98 AIR FORCE nominations (2) beginning JESUS A. FLORES, and ending ROBERT C. GOLDTRAP, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN99 AIR FORCE nominations (17) beginning ERICA R. AUSTIN, and ending RICHARD G. STEPHENSON, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN100 AIR FORCE nominations (16) beginning GERARD IRVELT BAZILE, and ending FREDERICK L. YOST, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN101 AIR FORCE nomination of Stephen L. Nelson, Jr., which was received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN102 AIR FORCE nominations (8) beginning MARY J. ABERNETHY, and ending KAREN B. STEINER, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN103 AIR FORCE nominations (6) beginning MICHAEL D. AYRES, and ending MICHELLE L. WAGNER, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN104 AIR FORCE nominations (3) beginning LAURA J. MCWHIRTER, and ending GREGG E. WENTWORTH, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN105 AIR FORCE nomination of Nicholas J. Zimmerman, which was received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN106 AIR FORCE nomination of Eric M. Chumbley, which was received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN107 AIR FORCE nomination of Scott L. Wilson, which was received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN133 AIR FORCE nomination of Kirsten E. Delambo, which was received by the Senate and appeared in the Congressional Record of January 29, 2015.

PN134 AIR FORCE nominations (2) beginning Salvatore Pelligra, and ending Rebecca A. Bird, which nominations were received by the Senate and appeared in the Congressional Record of January 29, 2015.

PN135 AIR FORCE nomination of Dell P. Dunn, which was received by the Senate and appeared in the Congressional Record of January 29, 2015.

PN136 AIR FORCE nomination of Latrise P. Searson-Norris, which was received by the Senate and appeared in the Congressional Record of January 29, 2015.

PN171 AIR FORCE nomination of Jeffrey B. Krutoy, which was received by the Senate and appeared in the Congressional Record of February 4, 2015.

IN THE ARMY

PN108 ARMY nomination of John P. Hartke, which was received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN137 ARMY nomination of Fred J. Burpo, which was received by the Senate and appeared in the Congressional Record of January 29, 2015.

PN138 ARMY nomination of Paul A. Brisson, which was received by the Senate and appeared in the Congressional Record of January 29, 2015.

PN139 ARMY nomination of Mikelle J. Adamczyk, which was received by the Senate and appeared in the Congressional Record of January 29, 2015.

PN140 ARMY nomination of Robert G. Hale, which was received by the Senate and appeared in the Congressional Record of January 29, 2015.

PN141 ARMY nomination of John M. Gillis, which was received by the Senate and appeared in the Congressional Record of January 29, 2015.

PN142 ARMY nomination of Andre M. Takacs, which was received by the Senate and appeared in the Congressional Record of January 29, 2015.

PN143 ARMY nomination of Ines H. Berger, which was received by the Senate and appeared in the Congressional Record of January 29, 2015.

IN THE COAST GUARD

PN94 COAST GUARD nominations (260) beginning GEORGE F. ADAMS, and ending ANDREW H. ZUCKERMAN, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

IN THE MARINE CORPS

PN112 MARINE CORPS nominations (3) beginning JERMAINE M. CADOGAN, and ending AUSTIN E. WREN, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN113 MARINE CORPS nominations (7) beginning ANTHONY K. ALEJANDRE, and ending JONATHAN R. RISSER, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN114 MARINE CORPS nominations (4) beginning PAUL M. HERRLE, and ending ROBERT W. PUCKETT, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN116 MARINE CORPS nominations (2) beginning JAY B. DURHAM, and ending ANDREW K. LAW, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN117 MARINE CORPS nominations (6) beginning DANIEL H. CUSINATO, and ending WILLIAM C. VOLZ, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN118 MARINE CORPS nomination of Ryan M. Cleveland, which was received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN119 MARINE CORPS nominations (5) beginning NICHOLAS K. ELLIS, and ending KOLLEEN L. YOUNG, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN120 MARINE CORPS nomination of Jonathan L. Riggs, which was received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN121 MARINE CORPS nominations (657) beginning BRETT D. ABBAMONTE, and ending JASON E. ZELLEY, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN123 MARINE CORPS nomination of David C. Walsh, which was received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN124 MARINE CORPS nomination of Scott W. Zimmerman, which was received by the Senate and appeared in the Congressional Record of January 26, 2015.

IN THE NAVY

PN109 NAVY nominations (37) beginning ALYSSA B. Y. ARMSTRONG, and ending KARI E. YAKUBISIN, which nominations were received by the Senate and appeared in the Congressional Record of January 26, 2015.

PN144 NAVY nomination of Rachel A. Passmore, which was received by the Senate and appeared in the Congressional Record of January 29, 2015.

PN145 NAVY nominations (2) beginning JUSTIN R. MILLER, and ending JAMES R. SAULLO, which nominations were received by the Senate and appeared in the Congressional Record of January 29, 2015.

PN146 NAVY nomination of Candida A. Ferguson, which was received by the Senate and appeared in the Congressional Record of January 29, 2015.

PN149 NAVY nomination of Richard R. Barber, which was received by the Senate and appeared in the Congressional Record of January 29, 2015.

PN178 NAVY nomination of Benigno T. Razon, Jr., which was received by the Senate and appeared in the Congressional Record of February 5, 2015.

PN179 NAVY nomination of Donna L. Smoak, which was received by the Senate and appeared in the Congressional Record of February 5, 2015.

PN180 NAVY nomination of Fabio O. Austria, which was received by the Senate and appeared in the Congressional Record of February 5, 2015.

PN182 NAVY nomination of Shawn D. Wilkerson, Jr., which was received by the Senate and appeared in the Congressional Record of February 5, 2015.

PN183 NAVY nomination of Budd E. Bergloff, which was received by the Senate and appeared in the Congressional Record of February 5, 2015.

LEGISLATIVE SESSION

The PRESIDING OFFICER. The Senate will now resume legislative session.

ORDERS FOR WEDNESDAY, MARCH 4, 2015

Mr. MCCONNELL. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 9:30 a.m., Wednesday, March 4; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following leader remarks, the Senate resume consideration of S.J. Res. 8, with 2 hours of debate remaining, equally divided in the usual form.

The PRESIDING OFFICER. Without objection, it is so ordered.

PROGRAM

Mr. MCCONNELL. Tomorrow Senators should expect two rollcall votes at approximately 11:30 a.m. on passage of the resolution of disapproval on ambush elections, followed by cloture on the Keystone veto message.

ORDER FOR ADJOURNMENT

Mr. MCCONNELL. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order, following up to an hour of debate controlled by Senator MURRAY or her designee.

The PRESIDING OFFICER. Without objection, it is so ordered.

PROVIDING FOR CONGRESSIONAL DISAPPROVAL OF A RULE SUBMITTED BY THE NATIONAL LABOR RELATIONS BOARD—Continued

The PRESIDING OFFICER. The Senator from Pennsylvania.

Mr. CASEY. Mr. President, I rise to speak about the National Labor Relations Board and the reforms that have been proposed in the new rule. I rise first of all to provide by way of a predicate or background what happened in 1935 when the National Labor Relations Act was passed. There is a lot to talk about in that act, but just like when a major piece of legislation passes, we have findings that undergird the statute itself.

I will not go through all of those today, but I think some of the language in there is especially appropriate for what we are talking about. The findings and summary spoke to the benefits of collective bargaining—the benefits of organizing and collectively bargaining, and asserted at one point very early in the statute, in the findings, the first couple of paragraphs of the findings that experience—I am paraphrasing this but I will get to specific words in a moment.

But experience has shown that collective bargaining and organizing—and these are the exact words—''safeguards commerce from injury, impairment or interruption.'' It goes on to talk about why it was better—why they believed it was better to pass a statute to resolve labor-management disputes instead of the old way, which was constant conflict, conflict fighting, in some cases even violence.

So we did the right thing in 1935 as a country. We have had some history since then to draw from. The National Labor Relations Board, of course, is the entity that gives meaning to what we intend when we pass laws such as the National Labor Relations Act.

Now we are having a dispute here in this body and in the other body as well about what these rules ought to be. What are the rules that govern the National Labor Relations Board, but in particular, what are the rules that govern elections?

With all of the challenges we are facing in the country right now—the middle class has nowhere near recovered from the last—the great recession. Wages have been declining over a generation, or at least not increasing at the level that costs have been increasing.

So with all of that pressure on families, you could think this could be an area of common ground, but it is not. With all of those challenges facing middle-class families, it is disappointing that Republicans in the Senate have chosen to focus on rolling back the National Labor Relation's Board modest and commonsense reforms, to help workers get a seat at the table, so they can increase their wages and their economic security.

Democrats are fighting to increase wages and we are also fighting for economic security, at the same time Republicans seem to be constantly fighting to increase corporate profits while making workers pay the price. All of us, whether we are Democrats or Republicans, should be coming together to expand workers' voices at the table and not attacking workers' right to collectively bargain.

We are talking about something fundamental here, the opportunity to have

an election in a workplace, and the benefits that flow from that. That is really about empowering workers. I believe that is one of the reasons why we passed the National Labor Relations Act, not just to have a board that can settle disputes, but to actually empower workers in ways they have not been empowered up to that point in our history.

Empowering workers is an important part of building a stronger economy that works not just for those individual workers in that worksite, but in an economy that works for all families, not just the wealthiest few. When the workers have a seat at the bargaining table, our economy prospers and the middle class thrives. I have always believed that if we did not have unions and collective bargaining and organizing since World War II and even since the 1930s, we would have a much less robust middle class. Some people believe there would not be a middle case. But I am at least willing to assert that the right to organize and collectively bargain is not just good for that worker and his or her family, but it is also good for the economy as well.

Those workers are the ones who drive the economy, not just the work they do, but the expenditures they make on behalf of their family. So even though workers are more productive in the United States than ever before, workers are still struggling with those stagnant wages. Today the middle class accounts for the smallest share of the Nation's income since World War II. Hard to believe that the middle class has been so devastated.

We know from our history that when workers have a voice in the workplace through collective bargaining, wages increase, workplace safety improves, and workers have increased retirement and health security. All of those benefits have helped grow America's middle class. Labor unions helped workers share in that economic prosperity that they have helped to create through their own hard work.

One of the great moments I have had as a Senator from Pennsylvania is when you go to a manufacturing plant and they take you on a tour. I am sure the Presiding Officer has done this a number of times. They take you on the tour not just to show how they are producing something, how they manufacture something, they are making something, but they are also very proud of the way they interact with and relate to and work with their employees. They go out of their way to point to a bulletin board or point to a data point in their record to say we have very few injuries, or zero injuries in a certain point of time. They take great pride in that because they know that if they have fewer injuries, they are going to be more productive. If they have fewer injuries, they are going to have employees who can produce on their behalf.

One of the reasons they have fewer injuries over time in our economy and in those businesses is because workers have rights. Workers have rights they did not have in the early part of the 1900s. So we know from our history that this works, this process of making sure workers have a seat at the table.

Now let's go to the National Labor Relations Board, their election reforms. These particular reforms make modest but, I would argue, very important updates to both modernize and streamline the election process, to prevent delays and reduce litigation. The current system is vulnerable to litigation that will drag out for a long period of time, drag out the election process and put workers' rights on hold.

Those reforms will reduce unnecessary litigation that is not relevant to the outcome of the election. In the past, employers and unions had to send information about the election process to the Post Office, which would cost time and money. The new rule brings this election process into the 21st century—which is 15 years old now—by letting employers and unions file forms electronically.

I think that is the least that can happen. You would think in this era we are living in, when everything that is done—most everything is done electronically, in banking and in other industries, that at a minimum we should have information transmitted about an election—something valuable in a workplace. We hold elections with great regard and we believe in the sanctity of elections. So the least we could do is make sure those workers have the benefits of something that would transmit the information electronically. Sending that information in that fashion makes all of the sense in the world.

The rule also allows the use of modern forms of communications through cell phones and emails. That is not asking too much, to be able to transmit information to prepare workers for an election by the use of email or cell phones.

The reforms are commonsense steps to make sure the NLRB, the Board, is using its taxpayer dollars efficiently and effectively.

These changes, as I referred to earlier, are not just good for workers, they also help businesses by streamlining the whole process, the elections process in this case. Right now the election process varies from region to region. Streamlining the process will provide certainty for both employers and workers themselves. The new rule allows businesses and unions to file forms electronically, as I mentioned, instead of using postage. This will save everyone time and money. So modernizing—this is what we are talking about here—modernizing election rules allows businesses and unions to use these basic forms of communications in a way that promotes common sense.

The rule will at long last level the playing field for small businesses. Right now the biggest corporations can exploit the system with long and costly litigation to deny workers, if they choose to do that, a fair up-or-down vote on joining a union. By making the election process more consistent and transparent, the Board's reforms level the playing field for the smaller businesses that already play fair.

The NLRB, the Board itself, the representation rule, are in need of kind of basic updates. There have not been substantial updates to this NLRB election process since the 1970s. Today that leads to inefficiencies and delays. Right now big corporations take advantage of those inefficiencies to postpone and even deny workers the right to vote on union representation.

Often, in the face of employer tactics, workers give up hope. In fact, one in three will never even get to have an election. That is not something the National Labor Relations Act intended. I do not think that is what anyone intended when it comes to these elections or the possibility of an election. So these amendments, these updates, these modernization reforms help restore balance and fairness to the election process. I am perplexed why this is the subject of so much controversy, because these are basic reforms to help people exercise their right to vote in the workplace, which is consistent with our values, consistent with our history, and also consistent with our efforts not just to move that worker and his or her family forward, and their business forward, but also to move the American economy and the middle class forward.

I yield the floor.

The PRESIDING OFFICER. The Senator from Massachusetts.

Ms. WARREN. Mr. President, I come to the floor today with strong support of the National Labor Relations Board's new effort to make workplace union elections more efficient and more effective. I come to the floor today in opposition to Republican efforts to preserve a broken system. Today, instead of raising minimum wages for millions of struggling families, or letting people refinance their student loans, or making sure women get equal pay for equal work, instead of implementing policies that strengthen the middle class, Republicans are pressing a bill to stop a government agency from modernizing its procedures because it might help—yes, help—American workers.

Coming out of the Great Depression, America's labor unions helped build America's strong middle class. For half a century, as union membership went up, America's median family income went up. You know, that was true for families whether they were part of a union or not. As our country got richer, our families got richer. As our families got richer, our country got richer.

Since 1935, Congress has required the National Labor Relations Board to oversee the workplace elections in which workers decide whether to be represented by a union. According to NLRB data, more than 90 percent of

time this works out just fine. For most of the cases that make it to an election, employees and employers agree about the process and an election is held without a dispute. Done.

But in the remaining handful of cases, the rules on how to resolve these concerns have turned into a mess. Over time, a hodgepodge of different rules for resolving these dispute has emerged in each of the country's 26 NLRB regions. To fix this, the NLRB recently finalized one national set of rules that sets out clear procedures for resolving these issues. In other words, the NLRB is trying to make dispute resolution clearer, more efficient, and more consistent from region to region.

Trying to make government work better should not be controversial. But it is controversial. Why? Because some employers simply oppose union votes altogether. They do not want the NLRB to work. They do not want union elections to happen at all. So they are lobbying against those new rules, and congressional Republicans are standing up for them, advancing a proposal to stop the NLRB from implementing its final rules and doing the job Congress gave it 80 years ago.

Republicans claim they were concerned about workers being able to ambush their employers with workplace elections. That is just plain nonsense. Employers are always notified at the beginning of the election process, and according to Caren Sencer, a top labor attorney who testified a few weeks ago in the HELP Committee hearing, there is nothing—nothing—in the new rule that would stop an employer from having its relevant concerns heard and addressed prior to an election.

Let's be honest. The only ambush here is the Republican ambush on workers' basic rights. According to a 2001 study from the Berkeley Center for Labor Research and Education, long election delays correspond with higher rates of labor law violations. A delay gives any union employer more time to retaliate against a union organizer, and to intimidate workers and delay work.

According to NLRB data, nearly one-third of the time when employees file a petition to request an election, they never actually get one. Employers who want to keep their workers out of a union prefer a broken, inefficient system that gives them room to manipulate the process and to block workers from organizing. But that is not the law. The NLRB doesn't answer to them. Federal law directs the NLRB to make sure election disputes can be resolved fairly between employers and employees, and that is exactly what the NLRB is doing.

Throughout our history, powerful interests have tried to capture Washington and rig the system in their favor, but we didn't roll over. At every turn, in every time of challenge, organized labor has been there fighting on behalf of the American people. Labor was on the frontlines to take children out of factories and to put them in schools. Labor was there to give meaning to the words ''consumer protection'' by making our food and our medicine safe. Labor was there to fight for minimum wages in States across this country. In every fight to build opportunity in this country, in every fight to level the playing field, in every fight for working families, labor has been on the frontlines.

Powerful interests have attacked many of the basic foundations of this country—the foundations that once built a strong middle class—and too many times those powerful interests have prevailed. So it comes down to a question I have asked before: Whom does this Congress work for? Republicans say government should keep on working for powerful CEOs who don't like unions and who have figured out how to exploit a tangled system. Republicans complain about government inefficiencies, but then they introduce a bill that is specifically designed so a broken, inefficient system will stay broken and inefficient, even when we know how to fix it.

Well, we weren't sent here just to represent CEOs who don't like unions. We were sent here to support working people who just want a fighting chance to level the playing field. I urge my colleagues to vote against this Republican resolution and let the NLRB do its job.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. DAINES). The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MENENDEZ. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

IRAN NUCLEAR AGREEMENT REVIEW ACT

Mr. MENENDEZ. Mr. President, I come to the floor to express my disappointment that the majority leader is asking to rule XIV the bipartisan Iran Nuclear Agreement Review Act.

I must ask the majority leader, what happened? Where is the bipartisanship part? Where is the bipartisanship that we have expressed and that I expressed this morning on the floor and last night at AIPAC? I ask again, what happened to putting aside political posturing and partisanship? What happened to the majority leader's pledge in January to ''decentralize power in the Senate'' and ''open up the legislative process''?

''We need to return to regular order,'' he said. I agree with him. Let's do it. Let's return to regular order.

Frankly, this is not what was intended, and it is certainly against my better judgment, against procedure, against any understanding we might have had to take the politics out of our effort to establish congressional oversight of any nuclear agreement with Iran. I am more than disappointed; I am pretty outraged.

I said last night and again this morning that I join Chairman CORKER and Senators GRAHAM, KAINE, DONNELLY, HEITKAMP, KING, NELSON, AYOTTE, RUBIO, MCCAIN, and RISCH in introducing bipartisan oversight legislation to ensure that Congress has a chance to review the deal before it goes into effect and to oversee its compliance after it goes into effect. And now, putting any bipartisanship aside, we are back to politics as usual. The only way to make this work is to work together.

The provisions of the bill itself are good ones. It would require the President to submit an agreement to Congress within 5 days of reaching it. It would give Congress 60 days to consider the agreement before sanctions relief could be provided. It would outline consequences should Congress decide to disapprove the agreement. And in terms of oversight, it would require information on potential breaches to be promptly reported to Congress, along with a comprehensive report every 180 days of any Iranian action inconsistent with the agreement. It would require a report every 90 days from the President on Iran's compliance, informing us of any actions that might advance Iran's nuclear weapons program, that it has not supported or financed or carried out any acts of terrorism, and that any sanctions relief is both appropriate and proportionate to Iran's efforts under the agreement. Of course, it would have here in the Senate a 60-vote threshold, so that means it would have to be a bipartisan determination.

We in good faith agreed to introduce this legislation and take it through the committee process and to the floor so that Congress—which was responsible for bringing Iran to the table in the first place to negotiate—would have a role in reviewing the agreement before it goes into effect, whether to provide sanctions relief, and overseeing implementation and Iranian compliance after it goes into effect because, as I said last night, a deal cannot be built on trust alone. Now, I was talking about Iran; I did not know that I was talking about our deal to pass a bipartisan review act.

So let me conclude. I can't imagine why the majority leader would seek to short-circuit the process, unless the goals are political rather than substantive. And I regret to say these actions make clear an intention that isn't substantive, that it is political. On a day that has been defined by serious discourse about Iran's illicit nuclear weapons program, at a moment when legislators contemplate the most serious national security issue of our time, I am disappointed that the leader has chosen to proceed outside of regular order. By bringing the Corker-Menendez legislation directly to the floor for debate, the majority leader is singlehandedly undermining our bipartisan efforts.

Nobody in Congress has worked harder on this issue, and I certainly don't take a backseat to anyone in pursuing

Iran's nuclear weapons program and standing up for Israel, but I sincerely hope that we can restore regular order and that this bill can be fully considered by all the members of the Senate Foreign Relations Committee in due time.

Finally, there is no emergency. This deal—if there is one—won't be concluded until the summer, so there is plenty of time to wait until March 24, find out whether we have a deal, and then act to be able to be in a posture to opine on that deal and to deal with it accordingly. There is no reason to accelerate this process in this way, to go outside of regular order, bypass the Senate Foreign Relations Committee, and come directly to the floor.

I know I cannot object to the rule XIV process under the rules, but I say to my colleagues, if this is the process, then I will have no choice but to use my voice and my vote against any motion to proceed. I hope that is not the case. I have worked too hard to get to this moment. But if that is the way we are going to proceed, then I will certainly have to vote against proceeding at that time.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Hawaii.

Ms. HIRONO. Mr. President, I rise to oppose S.J. Res. 8, a misguided resolution that targets workers' right to organize and hurts working families in Hawaii and around the country.

Union election rules haven't been updated since the 1970s. The National Labor Relations Board—or NLRB—is trying to bring union election rules into the 21st century, but today's Senate resolution will block the NLRB's commonsense updates.

The right to organize is a crucial part of our democracy. Unions have helped build the middle class in Hawaii and nationwide. It is disappointing that instead of working to create jobs or help the middle class get ahead, today we are debating whether to make it harder to join a union.

Workers wishing to join a union already face many barriers. For example, companies have significant opportunities to make their case to employees about why they should oppose a union. Meanwhile, unions are not allowed to visit the worksite to make their case for joining a union, and they do not have access to modern contact information such as emails and cell phone numbers—unbelievable as that may sound—to contact workers.

In addition, companies can delay union elections with what amounts to frivolous litigation and appeal after appeal. Nationwide, in contested cases workers already have to wait an average of 4 months to vote whether to join a union.

While most employers in Hawaii want to support their workers, there have been those rare cases of companies exploiting the current system to prevent workers from having a voice in the workplace.

Let me share a situation that happened in Hawaii where workers had not been given a raise in 6 years. They asked a local union for help in organizing their union. In the runup to the union elections, the workers were forced to attend one-on-one or group meetings on work time where their management could convince workers to vote against the union. This company hired a private security firm and posted security guards outside the voting area during the vote. Workers felt intimidated.

The company appealed election results and NLRB rulings over and over again, adding delay after delay and revote after revote. In July 2005, 40 months after a petition was first filed to hold an election, the NLRB finally certified a union for the workers. Still, the company continued to offer appeal after appeal of the election results and even fired 31 union supporters in 2007. Finally, at the end of 2012, 10 years later, the certified union reached its first union contract.

Remember, I noted that where most workplaces are organized, things are done in 4 months. That is not always the case. The NLRB's updated union election rules would help reduce this kind of intimidation and delay, which happens all too often, and would allow organizers to contact workers by email and cell phone. It is pretty astounding that we had to have a rule change in order to make this kind of commonsense change available to organizers—which, by the way, this resolution which I ask my colleagues to vote against disallows.

The rule will make it easier for small businesses to follow labor election laws. Currently, big corporations can use expensive lawyers to litigate and prevent union elections, while small businesses don't have those kinds of resources.

I urge my colleagues to join me in supporting these modest, commonsense updates to NLRB rules and voting no on the resolution. Let's stand with working men and women in this country and support the middle class.

I want to end with a quote from one of our labor organizers and leaders in Hawaii, Hawaii Laborers' business manager Peter Ganaban. In a recent piece in Pacific Business News, Mr. Ganaban explained that ''Hawaii's union climate is an extension of our local culture of helping each other and caring for our communities.''

Allowing workers a fair choice and a fair chance to join a union is the least we can do for our workers in the middle class.

I yield my time.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. BLUMENTHAL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

WORLD WILDLIFE DAY

Mr. BLUMENTHAL. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of S. Res. 95, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The senior assistant legislative clerk read as follows:

A resolution (S. Res. 95) designating March 3, 2015, as ''World Wildlife Day.''

There being no objection, the Senate proceeded to consider the resolution.

Mr. BLUMENTHAL. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 95) was agreed to. The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

PROVIDING FOR CONGRESSIONAL DISAPPROVAL OF A RULE SUBMITTED BY THE NATIONAL LABOR RELATIONS BOARD—Continued

Mr. BLUMENTHAL. Mr. President, I am here for the main purpose of vigorously opposing S.J. Res. 8, and to support the National Labor Relations Board's recent rule to modernize the process that workers use if they decide they want to form a union and bargain collectively.

The new NLRB rule makes modest but highly important changes to improve the overall consistency and efficiency of the election process, allowing workers to vote for or against the creation of a union in a fair and timely way. This rule is long overdue, and in Connecticut I have seen—and in my personal experience with the NLRB—how important it is.

As I go around Connecticut, I consistently hear of problems when workers seek to gain representation to form a union. It is cumbersome, costly, time consuming, and is prone to needless delays. It involves needless litigation, and it creates uncertainty for all involved. This rule change—this new rule—is not only good for working men and women, it is also good for businesses by reducing—and in some cases eliminating—the cost, time, and uncertainty that are aggravating and expensive. It is a small step toward a level playing field and a guarantee that companies respect workers' rights to organize and gain the benefits of union membership.

Very simply, here is what the rule does: It removes obstacles to forming unions and requires businesses to postpone litigation over member eligibility issues until after workers join a union.

It cuts down on lengthy litigation that could cause union formation to drag on for a year or more. It modernizes the election process. And, very importantly, it allows for the electronic filing and transmission of petitions for union elections. Believe it or not, previously all of it had been done by fax or mail—not exactly the latest or least expensive technology—and it ensures that unions and employees have enough information about each other so they can communicate in advance of the election.

It streamlines the NLRB's procedures, and with all due respect to the NLRB, what is needed there is practices that are uniform throughout the regional offices so that organizers can better interact with the agency. Its effect is not only on unions and businesses but also on the NLRB in speeding and streamlining and improving the way it works.

Its effects are seen in other areas too. The opponents of this measure forget to mention that these new rules apply equally to both elections seeking to certify a union and elections to decertify a union. These more efficient procedures will help not only workers who want to choose a union, it will help workers who want to get rid of an existing union. It is a level playing field, fairness, efficiency, less cost, and less time.

The rule still gives employers the opportunity to inform workers about the drawbacks of having a union so that workers have a fair opportunity to decide if they want union representation. This is the epitome of fair and balanced and more efficient kinds of rules.

The people in this body know that the simple fact is—and folks across America know it—the majority of American workers want representation. Fifty-three percent of workers want a union in their workplace, but because of the broken election process, fewer than 7 percent of workers are represented. That is a stark fact. As Ronald Reagan said, ''Facts are stubborn things.'' Thirty-five percent of the time that workers file a petition for a union election, they never even get to an election.

The current election process is full of delays and costs, and unfortunately in many cases litigation gives way to outright discrimination.

According to a 2011 University of California-Berkeley study, the longer the delay between the filing of a petition and the election date, the more likely it is that the NLRB will issue complaints charging employers with illegal activity. In other words, basically the election process is drawn out and leads to growing dissatisfaction and contempt and thereby damages everyone.

This rule is a necessity and will have a real impact on real people. In Connecticut, I have spoken to people and heard the stories of individuals who have been deprived or inhibited in exercising their right to vote in the election process. This process is broken.

The new NLRB will prevent frivolous litigation from delaying an election. I have spoken to workers who wanted the election to be held on a date that was beyond the allowed waiting period. They told me that they were told if they didn't back down, the employer would ''make sure the process would be lengthy and difficult.''

The new rule will itself push back on intimidation. In the face of these kinds of tactics, some have persevered, but only through tremendous resolve. They triumphed in a seriously flawed and failed NLRB election process.

In short, these rules are an important step in the right direction. They provide for free choice that is fair and will protect both sides. They will reduce costs and time and litigation.

I urge my colleagues to oppose this measure as ill-conceived and ill-considered, and I hope we will preserve the NLRB's new rule.

I thank the Presiding Officer, and I yield the floor.

ADJOURNMENT UNTIL 9:30 A.M. TOMORROW

The PRESIDING OFFICER. Under the previous order, the Senate stands adjourned until 9:30 a.m. tomorrow.

Thereupon, the Senate, at 7:25 p.m., adjourned until Wednesday, March 4, 2015, at 9:30 a.m.

CONFIRMATIONS

Executive nominations confirmed by the Senate March 3, 2015:

IN THE ARMY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES ARMY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

LT. GEN. KENNETH E. TOVO

IN THE AIR FORCE

AIR FORCE NOMINATION OF MARK E. HEATHERLY, TO BE COLONEL.

AIR FORCE NOMINATIONS BEGINNING WITH KARIS K. GRAHAM AND ENDING WITH MARVIN WILLIAMS, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

AIR FORCE NOMINATIONS BEGINNING WITH JESUS A. FLORES AND ENDING WITH ROBERT C. GOLDTRAP, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

AIR FORCE NOMINATIONS BEGINNING WITH ERICA R. AUSTIN AND ENDING WITH RICHARD G. STEPHENSON, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

AIR FORCE NOMINATIONS BEGINNING WITH GERARD IRVELT BAZILE AND ENDING WITH FREDERICK L. YOST, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

AIR FORCE NOMINATION OF STEPHEN L. NELSON, JR., TO BE COLONEL.

AIR FORCE NOMINATIONS BEGINNING WITH MARY J. ABERNETHY AND ENDING WITH KAREN B. STEINER, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

AIR FORCE NOMINATIONS BEGINNING WITH MICHAEL D. AYRES AND ENDING WITH MICHELLE L. WAGNER, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

AIR FORCE NOMINATIONS BEGINNING WITH LAURA J. MCWHIRTER AND ENDING WITH GREGG E. WENTWORTH, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

AIR FORCE NOMINATION OF NICHOLAS J. ZIMMERMAN, TO BE MAJOR.

AIR FORCE NOMINATION OF ERIC M. CHUMBLEY, TO BE LIEUTENANT COLONEL.

AIR FORCE NOMINATION OF SCOTT L. WILSON, TO BE MAJOR.

AIR FORCE NOMINATION OF KIRSTEN E. DELAMBO, TO BE MAJOR.

AIR FORCE NOMINATIONS BEGINNING WITH SALVATORE PELLIGRA AND ENDING WITH REBECCA A. BIRD, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 29, 2015.

AIR FORCE NOMINATION OF DELL P. DUNN, TO BE MAJOR.

AIR FORCE NOMINATION OF LATRISE P. SEARSON–NORRIS, TO BE MAJOR.

AIR FORCE NOMINATION OF JEFFREY B. KRUTOY, TO BE MAJOR.

IN THE ARMY

ARMY NOMINATION OF JOHN P. HARTKE, TO BE COLONEL.

ARMY NOMINATION OF FRED J. BURPO, TO BE COLONEL.

ARMY NOMINATION OF PAUL A. BRISSON, TO BE COLONEL.

ARMY NOMINATION OF MIKELLE J. ADAMCZYK, TO BE MAJOR.

ARMY NOMINATION OF ROBERT G. HALE, TO BE COLONEL.

ARMY NOMINATION OF JOHN M. GILLIS, TO BE MAJOR.

ARMY NOMINATION OF ANDRE M. TAKACS, TO BE MAJOR.

ARMY NOMINATION OF INES H. BERGER, TO BE LIEUTENANT COLONEL.

IN THE MARINE CORPS

MARINE CORPS NOMINATIONS BEGINNING WITH JERMAINE M. CADOGAN AND ENDING WITH AUSTIN E. WREN, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

MARINE CORPS NOMINATIONS BEGINNING WITH ANTHONY K. ALEJANDRE AND ENDING WITH JONATHAN R. RISSER, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

MARINE CORPS NOMINATIONS BEGINNING WITH PAUL M. HERRLE AND ENDING WITH ROBERT W. PUCKETT, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

MARINE CORPS NOMINATIONS BEGINNING WITH JAY B. DURHAM AND ENDING WITH ANDREW K. LAW, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

MARINE CORPS NOMINATIONS BEGINNING WITH DANIEL H. CUSINATO AND ENDING WITH WILLIAM C. VOLZ, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

MARINE CORPS NOMINATION OF RYAN M. CLEVELAND, TO BE MAJOR.

MARINE CORPS NOMINATIONS BEGINNING WITH NICHOLAS K. ELLIS AND ENDING WITH KOLLEEN L. YOUNG, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

MARINE CORPS NOMINATION OF JONATHAN L. RIGGS, TO BE LIEUTENANT COLONEL.

MARINE CORPS NOMINATIONS BEGINNING WITH BRETT D. ABBAMONTE AND ENDING WITH JASON E. ZELLEY, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

MARINE CORPS NOMINATION OF DAVID C. WALSH, TO BE COLONEL.

MARINE CORPS NOMINATION OF SCOTT W. ZIMMERMAN, TO BE LIEUTENANT COLONEL.

IN THE NAVY

NAVY NOMINATIONS BEGINNING WITH ALYSSA B. Y. ARMSTRONG AND ENDING WITH KARI E. YAKUBISIN, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

NAVY NOMINATION OF RACHEL A. PASSMORE, TO BE LIEUTENANT COMMANDER.

NAVY NOMINATIONS BEGINNING WITH JUSTIN R. MILLER AND ENDING WITH JAMES R. SAULLO, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 29, 2015.

NAVY NOMINATION OF CANDIDA A. FERGUSON, TO BE LIEUTENANT COMMANDER.

NAVY NOMINATION OF RICHARD R. BARBER, TO BE COMMANDER.

NAVY NOMINATION OF BENIGNO T. RAZON, JR., TO BE LIEUTENANT COMMANDER.

NAVY NOMINATION OF DONNA L. SMOAK, TO BE LIEUTENANT COMMANDER.

NAVY NOMINATION OF FABIO O. AUSTRIA, TO BE LIEUTENANT COMMANDER.

NAVY NOMINATION OF SHAWN D. WILKERSON, JR., TO BE LIEUTENANT COMMANDER.

NAVY NOMINATION OF BUDD E. BERGLOFF, TO BE CAPTAIN.

IN THE COAST GUARD

COAST GUARD NOMINATIONS BEGINNING WITH GEORGE F. ADAMS AND ENDING WITH ANDREW H. ZUCKERMAN, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JANUARY 26, 2015.

EXTENSIONS OF REMARKS

AN ATTRIBUTE TO INTERNATIONAL INTERN EXCHANGE PROGRAMS

HON. JOHN SHIMKUS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. SHIMKUS. Mr. Speaker, I rise today to praise the different international internship programs that I have had the pleasure of experiencing this year. These programs represent a brilliant method of cultural and educational exchange not only for the bright young leaders of some of our closest partners but also for myself and many of my colleagues.

Thus far, I have had the pleasure of having two Australian interns and one German intern within my office. They are the beneficiaries of different programs and have each had an unique and rewarding time here.

Mr. Joshua Sprake is an Australian student studying a combined Bachelor of Commerce and Arts at the University of Sydney Business School. He is participating in an exchange program called the International Placement Program between his university and the University of California, District of Columbia. This allows him to study in the evenings and work during the day in our office. He has excelled in managing his different commitments and has been able to apply his skills to look outside of the box in many of the tasks that have been assigned to him. As a political science major he has also been able to provide useful and different perspectives to many different discussions within the office.

Mr. Mathias Weber is a German intern who has come to us through the Congress-Bundestag Youth Exchange for Young Professionals program. During this time Mathias has applied himself with German efficiency becoming well known for his diligence and precision. Mathias has shown why the German economy prides itself on its efficiency as our office could not have asked for more dedication in whatever task he was assigned.

Mr. Samuel Edwards is our final Australian intern and has participated in the Uni-Capitol Washington Internship Program. Samuel is a student of the University of Canberra. Samuel has also shown himself to also be very intelligent and hard working. He easily slid into life at the office and was always available to help in any way he could whether that was answering phone calls from constituents or drafting office correspondence.

Finally Mr. Speaker, I want to reflect upon how these programs will only strengthen and preserve the relationships our countries enjoy. As these future leaders grow and move on through their lives, I hope they look fondly back upon their time here and are able to take back some knowledge and American values with them, throughout their life.

HONORING THE HON. PAUL VOLCY

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. HIGGINS. Mr. Speaker, I rise today to honor the late Paul Volcy, a former Buffalo City Court Judge and decorated Vietnam veteran. Throughout his lifetime, Mr. Volcy sought out adventure and faced the challenges soon wrought by life's thrills with an enterprising spirit and ''can-do'' attitude.

Mr. Volcy was born and raised in the South Bronx, before moving back to his mother's homeland of Puerto Rico. After completing a semester at the University of Puerto Rico, Mr. Volcy soon realized his current pursuits were boring and unfulfilling. This realization led him to join the U.S. Army in 1966. He began his tour in Vietnam as a first lieutenant, but was soon promoted to captain. His bilingual ability and training in the Vietnamese language helped him function as a troubleshooter for his colonel in Saigon, and when supplies diminished, he had a unique ability to fill up shortages. At the end of his tour, which also included field duty, he was awarded a Bronze Star.

After his military discharge, Mr. Volcy completed his Bachelor's Degree at the University of Puerto Rico and then returned to the United States to earn his law degree from the University at Buffalo. Post-graduation, he briefly worked in private practice before recognizing his call to public service.

Mr. Volcy became an attorney in the office of Buffalo's corporation counsel, working there for five years on civil rights cases, and then an additional two years in the New York State Attorney General's Office. In 2001, then-Mayor Anthony Masiello appointed Mr. Volcy as a City Court judge. After completing his term, Mr. Volcy returned to the Attorney General's Office in Buffalo, where he spent 10 years in the Court of Claims, specializing in defending against medical malpractice and in personal injury cases. He retired as an Assistant Attorney General in 2011.

Complementing his passion for service was his knack for organizing and community activism. Mr. Volcy was a leader in the Buffalo Hispanic community and helped to found the Western New York Hispanic and Friend's Civic Association, an organization committed to social justice and empowerment of Buffalo's growing Hispanic community. Mr. Volcy was admired for his dedication to and tireless efforts toward empowering the Hispanic community.

He enjoyed a wonderful life with his wife Susan and his daughter Suzanne.

Mr. Speaker, it is with great pride that I rise today to celebrate the life of Mr. Paul Volcy. I ask my colleagues to join me in honoring Mr. Volcy and his contributions to the Buffalo community.

HONORING THE LIFE OF MRS. MILDRED PARISH MASSEY

HON. ZOE LOFGREN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Ms. LOFGREN. Mr. Speaker, I rise with my Colleagues, Congressman PETE AGUILAR, Congresswoman KAREN BASS, Congressman XAVIER BECERRA, Congressman AMI BERA, Congresswoman JULIA BROWNLEY, Congresswoman LOIS CAPPS, Congressman TONY CÁRDENAS, Congresswoman JUDY CHU, Congressman JIM COSTA, Congresswoman SUSAN DAVIS, Congressman MARK DESAULNIER, Congresswoman ANNA ESHOO, Congressman SAM FARR, Congressman JOHN GARAMENDI, Congresswoman JANICE HAHN, Congressman MIKE HONDA, Congressman JARED HUFFMAN, Congresswoman BARBARA LEE, Congressman TED LIEU, Congressman ALAN LOWENTHAL, Congresswoman DORIS MATSUI, Congressman JERRY MCNERNEY, Congresswoman GRACE NAPOLITANO, Congresswoman NANCY PELOSI, Congressman SCOTT PETERS, Congresswoman LUCILLE ROYBAL-ALLARD, Congressman RAUL RUIZ, Congresswoman LINDA SÁNCHEZ, Congresswoman LORETTA SANCHEZ, Congressman ADAM SCHIFF, Congressman BRAD SHERMAN, Congresswoman JACKIE SPEIER, Congressman ERIC SWALWELL, Congressman MARK TAKANO, Congressman MIKE THOMPSON, Congresswoman NORMA TORRES, Congressman JUAN VARGAS, and Congresswoman MAXINE WATERS, to honor the extraordinary life of Mrs. Mildred Parish Massey. Mrs. Massey was a beloved mother, grandmother, great-grandmother, sister, and friend. With her passing on February 16, we look to Mrs. Massey's personal legacy of leadership, service, and the outstanding quality of her life's work.

Born on June 6, 1924 in El Paso, Texas, Mrs. Massey attended Douglass Elementary and High School in El Paso. She won a scholarship to Tillotson College in Austin, Texas and transferred to Southern University in Baton Rouge, Louisiana to study Business Administration. Mrs. Massey continued her education at Texas Western College (now the University of Texas at El Paso) and was one of seven students to integrate the University.

Throughout her life, Mrs. Mildred Massey broke many racial barriers in the workplace. She began her career in the United Services Organization and was the first African-American clerical worker at Ft. Bliss in Texas. In 1960, she moved to San Fernando and served as the first African-American to work at the Raymond Lamp Company, Assistant Manager of Lerner Dress store in Panorama City, California, Manager of the Rembrandt Sign Co. in San Fernando, California and as Administrative Assistant at the Veterans Administration Hospital in Sylmar, California.

In 1975, Mrs. Mildred Massey moved to Oakland, California and worked for the Social Security Administration until her retirement in 1986. Upon her retirement, she helped found

● This ''bullet'' symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

and manage the WC Parish Co., DBA Lee Associates until her second retirement in 1998 when she moved to Sun City, Arizona until 2010.

In addition to her prolific career, Mrs. Mildred Massey broke barriers and was a dedicated civil rights advocate. Among her efforts, she worked with Mary McLeod Bethune to come to Southern University in Baton Rouge to change her University's discriminatory policy surrounding sorority pledging. Mrs. Massey was also an active member of the Easter Star Lodge, Phyllis Wheatley Club, the NAACP, and Myrtle Avenue Methodist Church.

Mrs. Massey enjoyed traveling and visited Greece, Italy, Spain, Hawaii, the Bahamas, Mexico, Grenada, St. Maarten, the Virgin Islands, Cuba and Martha's Vineyard, among her many trips. She was intrigued with the beauty of butterflies and had a wonderful collection of butterfly ornaments and personal items, which brought her a lot of joy.

As Mildred's daughters Barbara Lee, Mildred Whitfield, and Beverly Hardy mourn her death, they celebrate her life well-lived. They remember their mother as a kind and gentle soul, yet a strong woman who taught them to be confident, to be kind and to live life to its fullest.

At 90 years of age, Mildred stayed connected with her family and friends through texting and the use of technology. She played bridge, was very independent, and determined to "do it her way" even while struggling with Chronic Obstructive Pulmonary Disease (COPD).

Today, The California Democratic Congressional Delegation salutes and honors an outstanding civil servant and individual, Mrs. Mildred Parish Massey. Her dedication and efforts have impacted so many lives. We join all of Mrs. Massey's loved ones in celebrating her incredible life. She will be deeply missed.

HONORING THE BOROUGH OF KUTZTOWN'S BICENTENNIAL

HON. CHARLES W. DENT

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. DENT. Mr. Speaker, it is my honor to rise today and congratulate my constituents residing in the Borough of Kutztown on the occasion of their Bicentennial.

Kutztown, located in Berks County, Pennsylvania, was incorporated as a borough on April 7, 1815. Kutztown is the second oldest municipality in Berks County, after only the City of Reading.

Kutztown's roots can be traced to the purchase of 130 acres of land made by Mr. George Kutz on June 16, 1755. In 1779 Mr. Kutz laid out plans to turn his acreage into a town and began selling lots.

Like many communities founded during the 18th and 19th centuries, Kutztown was ideally situated along a key road, in this case, the Easton Road. The area served as a convenient lodging place for those making the then two-day trip between Allentown and Reading.

Settled largely by people from the Palatinate region of Germany, an area bordering the Rhine River, Kutztown enjoyed growth and prosperity. The Borough's vibrant Germanic heritage remains an important part of the community and is on full display during the Kutztown Folk Festival.

Over the years the Borough fostered numerous industries. The Borough gave rise to the Kutztown Iron Company, a brickyard, bottling companies, and even competing cigar companies.

In 1866 the Borough saw the founding of the Keystone Normal School, the forerunner of Kutztown University. Today the University has an enrollment of nearly 9,500 students.

Situated in the East Penn Valley, nestled between the Blue and South Mountains, the Borough of Kutztown and its people continue to thrive. Kutztown is an outstanding American town. Kutztown remains a great place to work, raise a family, to earn an education and to enjoy the beauty of the surrounding countryside.

Mr. Speaker, on behalf of the House and my colleagues, I congratulate the people of Kutztown on the occasion of the Borough's Bicentennial. God bless them and may they know continued prosperity.

CONGRATULATING ZACH BENNER

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Zach Benner, of the Fulton High School Hornets Wrestling team, on his win in the 195 Class 2 2015 State Wrestling Championship match.

This student and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to their school and community.

I ask you in joining me in recognizing Zach Benner for a job well done.

HONORING THE LIFE OF MR. THOMAS A. MASSARONE

HON. ANDY BARR

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. BARR. Mr. Speaker, I rise today to celebrate the life, and mark the passing, of an outstanding individual and a decorated World War II veteran, Mr. Thomas A. Massarone of Lexington, Kentucky.

As a young man, Mr. Massarone began his service in the United States Navy and quickly rose to the rank of Petty Officer Third Class. Mr. Massarone entered the war in 1944 by fighting within the U.S. Pacific fleet and did not stop until the Allies achieved victory.

Mr. Massarone participated in combat operations while assigned to the Navy's Southern Attack Force 'ship-to-shore' detail, within the III Amphibious Corps (MA), in order to help liberate Guam. He was assigned a dangerous mission to search for and capture Japanese soldiers still at large on the island and then to guard the captured Japanese prisoners of war.

In addition, Mr. Massarone was assigned the task of securing the Japanese Type C submarines located on the island of Guam.

After helping the Allies achieve victory, he was honorably discharged from military service in 1948 and returned home to begin a successful 40-year career with IBM. Mr. Massarone became one of the original members of IBM's electric typewriter division and was instrumental in creating the "Selectric" typewriter, which helped pave the way for the use of typewriter keyboards as the primary method for people to interact with computers.

Mr. Massarone spent his life giving back to his community. He helped form the first Little League baseball teams to play at the IBM Park in Lexington. He was particularly active with his parish, St. Paul Catholic Church, where he served as council president, chairman of the school board, and later became the oldest serving member of his church.

Rising to the leadership position of Grand Knight within the Knights of Columbus in Lexington, Mr. Massarone devoted much of his time raising money for charities and helping others in need. As a member of the American Legion, Mr. Massarone committed himself to supporting local programs to mentor youth and provide support for service members and fellow veterans.

Mr. Massarone embodied the best of America's ideals, values, and ingenuity. His bravery and that of his fellow men and women in uniform liberated the world from tyranny and secured our American freedoms for future generations. He was truly an outstanding American and an inspiration to us all.

RECOGNIZING NATIONAL DRESS IN BLUE DAY

HON. ALAN GRAYSON

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. GRAYSON. Mr. Speaker, I rise today to recognize March 6, 2015 as National Dress in Blue Day, which was created to bring greater awareness to colon cancer during National Colon Cancer Awareness Month. During Dress in Blue Day and the month of March, patients, survivors, caregivers and advocates unite to spread colon cancer awareness by wearing blue, holding educational events, and spreading the word about screening.

Colon cancer is the second leading cause of cancer death in the United States. Sadly, 1 in 20 people will develop colon cancer and every 10 minutes a life is lost to the disease. This year alone, 137,000 new cases of colon and rectal cancer will be diagnosed in America and over 50,000 deaths are expected to result from the disease.

A simple screening test is recommended to individuals over age 50 and those with a family history to help combat the disease. Education and increased awareness can help inform the public about methods of prevention and the early detection of colon cancer. Through recommended screenings, this cancer can be caught early when treatment is most effective.

National Dress in Blue Day will help bring greater awareness to the disease and the importance of regular screenings. I ask my colleagues to please join me in recognizing March 6, 2015 as National Dress in Blue Day.

CONGRATULATING KYRAN HAGAN

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Kyran Hagan, of the Eureka High School Wildcat Wrestling team, on his win in the 120 Class 4 2015 State Wrestling Championship match.

This student and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to their school and community.

I ask you in joining me in recognizing Kyran Hagan for a job well done.

IN RECOGNITION OF NATIONAL PEACE CORPS WEEK

HON. GWEN MOORE

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Ms. MOORE. Mr. Speaker, I join my colleagues and the over 6,800 Peace Corps volunteers around the globe in commemorating National Peace Corps Week which coincides with the 54th Anniversary of the Peace Corps. Since its beginning in the Kennedy Administration, nearly 220,000 Americans have served in 140 developing nations around the world.

These volunteers serve as teachers, health care service providers and educators helping to bring needed care to communities that lack access. Their vision and commitment to bettering the world around them has helped make enduring contributions in agriculture, education, health and HIV/AIDS, youth, and technology in developing countries. Additionally, returned Peace Corps volunteers are the type of leaders we need in all sectors of our society to help face the many challenges in our own country.

And as a strong reminder that growing numbers of young Americans want to go and make a difference in this world, in 2014, the Peace Corps received a 22-year high of 17,336 applications. But it is not only young Americans making a difference in the Peace Corps. A growing number of volunteers are over age 50.

A total of 5,800 volunteers from my home state of Wisconsin have served in the Peace Corps since its founding, including my distinguished former colleague from Wisconsin, Congressman Tom Petri. On a per capita basis, Wisconsin ranked 9th in the nation in sending Peace Corps Volunteers in 2013 with the University of Wisconsin-Madison among the tops in the nation among large colleges and universities in sending Peace Corps volunteers overseas.

Over 200 Wisconsinites are currently serving. I want to personally thank the seven volunteers from my district who are currently serving in the Peace Corps. Caitlin Connolly, Adam Coonen, Sarmeera Hassan, Casimir Korducki, Jodi Lemmer, Daniel Pologe, and Lindsey Powell. From Belize to Zambia, these young people are representing the best of Milwaukee and of America. I am very proud of them.

As a representative for the great state of Wisconsin, I strongly support the goals of the Peace Corps and the passion and commitment of its volunteers on behalf of the United States. I am pleased that the President's FY2016 request includes $30 million increase in funding to help increase the number of volunteers serving.

As our world continues to struggle with natural disasters, diseases such as Ebola, conflict and instability, fledging transitions to democracy, and poverty and hunger, the Peace Corps will be a vital part of the U.S. diplomatic and development response and a sign of our nation's long term commitment to helping alleviating suffering around the globe.

I congratulate the Peace Corps and their volunteers on this momentous occasion. It is an excellent example of the type of program we need to invest in as part of our efforts to promote development, peace, and stability around the globe.

PERSONAL EXPLANATION

HON. DAVID P. ROE

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. ROE of Tennessee. Mr. Speaker, I was unable to vote yesterday because of a serious illness in my family. Had I been present, I would have voted:

Roll Call #107—YEA.

CELEBRATING THE LIFE OF FATHER THEODORE HESBURGH

HON. NANCY PELOSI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Ms. PELOSI. Mr. Speaker, I rise to praise a great man, Father Theodore Hesburgh, on whom Congress proudly bestowed the Congressional Gold Medal in 2000. On Thursday, February 26, America lost a dedicated member of the clergy, an exceptional educator, a caring humanitarian, a civil rights champion, and one of the most outstanding leaders of our era: Reverend Theodore Martin Hesburgh, former president of the University of Notre Dame, who passed away last week at the age of 97. Father Hesburgh leaves behind a towering legacy that inspires all of us to keep fighting for a world that honors the spark of divinity in each one of us.

Father Hesburgh encouraged those he encountered to ''be the kind of person who not only understands the injustices of this life, but is also willing to do something about them.'' He lived his life by that standard—never failing to answer the call to serve in any capacity.

Throughout his life, Father Hesburgh was called to serve and advance the cause of human dignity and justice in our society. He was named to the U.S. Commission on Civil Rights by President Dwight D. Eisenhower. He marched arm-in-arm with Dr. Martin L. King, Jr. He was an insistent champion for the landmark Civil Rights Act of 1964, and his contributions to that effort earned him the Medal of Freedom from President Lyndon Baines Johnson. Time and again, he stood up and spoke out for peace, justice and equality for all people—and as former U.S. Ambassador to the United Nations Andrew Young once said, ''If Father Hesburgh was for you, you didn't care who was against you.''

Father Hesburgh was first called to serve his faith and his fellow Catholics. After undergraduate school at Notre Dame, Hesburgh traveled to Rome to study at the Gregorian University. When war broke out, he returned home and, in 1943, Father Hesburgh fulfilled his childhood dream when he was ordained at his alma mater as a priest in the Congregation of Holy Cross—a day he described as ''the happiest'' of his life. He would go on to earn a doctorate of theological studies at the Catholic University of America, but he returned to his beloved Notre Dame where he first served as chaplain following World War II and would continue to say Mass throughout his whole life.

Father Hesburgh was called to serve the future of our country as a brilliant educator and administrator. He ministered to the Notre Dame community as a professor, chairman of the Department of Religion, and executive vice president, and in 1952, at the age of 35, Father Hesburgh became the 15th President of the University of Notre Dame. Under his historic 35 years of leadership, Notre Dame opened its doors to women, increased workforce diversity, doubled its enrollment, expanded its endowment, and cemented its place as one of the greatest universities in the world.

Yet President Hesburgh's imprint extended further than a single campus. He demonstrated how to transform Catholic universities into exemplary institutions of higher education in modern times. He championed academic freedom and the pursuit of academic excellence. In recognition of his extraordinary leadership, he was entrusted with 16 presidential appointments, including service on the Presidential Clemency Board, the National Science Board, and as ambassador to the United Nations Conference on Science and Technology for Development. He served as the Holy See's permanent representative to the International Atomic Energy Agency under three popes. In 1999, he received his 150th honorary degree, more than any other person in history.

In every position, after every honor, Father Hesburgh never lost sight of his purpose. As he once told a group of graduates, ''We will not be judged by our degrees, but by our lives.'' By any standard, President Hesburgh was exceptional.

Father Hesburgh's career illustrates the quote attributed to St. Francis of Assisi, ''preach the Gospel and sometimes use words.'' As a patriot of our country, as a leader of his church, as a teacher and mentor, he lived the Gospel each and every day of his storied life.

On the streets, in classrooms, and in boardrooms, Father Ted—as he was known by his friends and his students—was courageous enough to speak out against injustice, compassionate enough to bring healing to the downtrodden, and creative enough to propose ideas that improved the lives of all people. Today and forever more, the legacy of Father Ted will live on in the lives he touched, the institutions he influenced, the Church he loved, and the nation he was proud to call home. We are grateful for his courage, in awe of his

leadership, and humbled by his generosity of spirit. May it be a comfort to all who loved Rev. Hesburgh that so many share in their grief during this sad time.

TRIBUTE TO MRS. SHEILA GREGORY

HON. DAVID W. JOLLY

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. JOLLY. Mr. Speaker, I rise today to inform my colleagues of the passing of a dear friend and a friend of this body, Mrs. Sheila Gregory, a Florida native and former employee of the House of Representatives.

Sheila was a woman of many talents, having worked as a journalist, an educator, a financial planner, and a realtor. It was, however, in her many years of service to several members of Congress that Sheila found her greatest passion. She loved the history of the House, the legislative process, the politics of this great institution and took great pride in her opportunity to humbly serve the public. It was here in the House that she met many members of Congress, a number of whom still serve here today. And it was here that she met her former husband Douglas Gregory.

Sheila leaves behind three adult daughters, Angela Oler, Nancy Gregory, and Jennifer Gregory, all of whom were in her loving company at the time of her passing last Wednesday, February 25, 2015 in Fair Oaks, Virginia. In addition to Doug and her daughters, Sheila leaves behind five grandchildren, Alexis, Jordan Douglas, Sasha, Jack, and Mya, as well as two sisters.

Sheila Isbel was born on May 30, 1947 and raised in Clewiston, Florida. She moved to Northern Virginia in 1979 to begin her Congressional service. She was a devoted mother and grandmother who will be greatly missed by her family and friends.

Mr. Speaker, Sheila Gregory was one of the many people that have come here to serve our colleagues in Congress and in turn help us serve the American people. Even though she left this House to pursue many other varied careers, she never lost her love for Congress and the legislative process. Please join me in sharing our deepest condolences to the Gregory and Isbel families on their tremendous loss.

CONGRATULATING JOSH McCLURE

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Josh McClure, of the Fulton High School Hornets Wrestling team, on his win in the 138 Class 2 2015 State Wrestling Championship match.

This student and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to their school and community.

I ask you in joining me in recognizing Josh McClure for a job well done.

A TRIBUTE TO ALLISON GREGG IN THE FIRST SESSION OF THE 114TH CONGRESS

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise to honor Allison Gregg, a second grade teacher at Sidney Elementary School. Ms. Gregg received the STEM Education Award for Inspired Teaching.

This award, sponsored by Kemin Industries, a Des Moines-based nutritional ingredient manufacturer, celebrates teachers whose leadership and dedication to Iowa's STEM initiative increases student interest in science, technology, engineering and mathematics. Ms. Gregg said she found courses on NASA online where they could hold Iowa Communications Network classes with a NASA educator that opened the children's eyes. She is also always looking for ways to not only incorporate technology into her teaching, but also to make learning fun.

I applaud and congratulate Allison for her award and for providing the youth in Iowa's 3rd district the education that they will need to be successful in the future. I am proud to represent her, her fellow teachers and students in the United States Congress. I know that my colleagues join me in congratulating Allison Gregg and wishing her well and continued success in the future.

PERSONAL EXPLANATION

HON. VICKY HARTZLER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mrs. HARTZLER. Mr. Speaker, on Monday, March 2, 2015, I was unable to vote. Had I been present, I would have voted as follows:

On roll call no. 107, YEA.

CONGRATULATING CALEB GOSSETT

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Caleb Gossett, of the Francis Howell Central High School Spartans Wrestling team, on his win in the 285 Class 4 2015 State Wrestling Championship match.

This student and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to their school and community.

I ask you in joining me in recognizing Caleb Gossett for a job well done.

PERSONAL EXPLANATION

HON. BARBARA LEE

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Ms. LEE. Mr. Speaker, I was not present for roll call votes 100–106 due to a family emergency.

Had I been present, I would have voted no on #100, no on #101, no on #102, no on #103, no on #104, yes on #105, and yes on #106.

CONGRATULATING TRENTON CLINES

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Trenton Clines, of the Fulton High School Hornets Wrestling team, on his win in the 145 Class 2 2015 State Wrestling Championship match.

This student and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to their school and community.

I ask you in joining me in recognizing Trenton Clines for a job well done.

25TH ANNIVERSARY OF THE TEXAS COUNTY FOOD PANTRY

HON. JASON SMITH

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. SMITH of Missouri. Mr. Speaker, I rise today to honor the 25th anniversary of the Texas County Food Pantry in Houston, Missouri. For twenty-five years the wonderful staff of this pantry has embodied the spirit of generosity by providing food, shelter, healthcare, and clothing for our neighbors. The Texas County Food Pantry has partnered with several organizations over the years to establish new connections for programs in nutrition, job research services, medical prescriptions, emergency assistance and homeless prevention.

The Texas County Food Pantry was formed after the Ministerial Alliances of Cabool, Houston, and Licking consolidated their many church pantries in order to help ease poverty in Texas County. In March of 1990, this nonprofit corporation was formed and began its role assisting those suffering in poverty. Texas County Food Pantry staff and volunteers have continuously been committed to providing exceptional care for the people of Texas County.

For the many years of service and commitment to helping others, it is my pleasure to recognize the Texas County Food Pantry before the United States House of Representatives.

RECOGNIZING GENNORO ''HANK'' MASCOLO AND JACK HAMMETT

HON. LORETTA SANCHEZ

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Ms. LORETTA SANCHEZ of California. Mr. Speaker, I would like to recognize the recent passing of two Veterans of the Second World War; one a Pearl Harbor Survivor of the U.S. Navy and the other a Reservist in the Coast Guard, a branch of the service which has just celebrated its 74th Anniversary.

Gennoro ''Hank'' Mascolo passed away at the age of 92 this January, after battling lung cancer for several months. Hank, the youngest of seven children born to Italian immigrants, began serving our country by enlisting in the U.S. Coast Guard in 1942. After his service, he opened his own barbershop in 1955 in the City of Orange, where he remained the Town's barber for 60 years. An active Elk and Vice President of the famous Orange International Street Fair for over 20 years rightly earned him the title, ''Mr. Orange.'' Along with his skill with a pair of shears, Mr. Hank Mascolo will be remembered for the friendship he offered and the good advice he gave. He will be deeply missed by the community of the City of Orange.

Jack Hammett, a Pearl Harbor survivor, passed on in December last year at 94 years-old. After serving in the Navy for 22 years, Jack served decades on the Costa Mesa City Council, The Costa Mesa Chamber of Commerce, the City planning commission, the Costa Mesa Police Reserves, and eventually Mayor of Costa Mesa. Jack lived his whole life in service to his country and community. As a member of the Freedom Committee, Jack was committed to educating youth on the stories of our veterans, giving innumerable presentations on his experiences in the war. His legacy will be felt for many years to come.

Both of these men, Hank Mascolo and Jack Hammett, served as role models to all those around them. They showed steadfast and unwavering commitment to their families and their communities. They don't come better than ''Hank'' Mascolo and Jack Hammett.

CONGRATULATING SIDNEY OLIVER

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Sidney Oliver, of the Holt High School Indians Wrestling team, on his win in the 113 Class 4 2015 State Wrestling Championship match.

This student and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to their school and community.

I ask you in joining me in recognizing Sidney Oliver for a job well done.

SUPPORT H. RES. 56, AFFIRMING THE SUPPORT OF THE UNITED STATES FOR MACEDONIA'S ACCESSION TO NATO

HON. CANDICE S. MILLER

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mrs. MILLER of Michigan. Mr. Speaker, I rise today as the Chair of the Congressional Caucus on Macedonia and Macedonian-Americans, and as someone who represents a district home to the largest community of Macedonian-Americans in our nation, to introduce H. Res. 56, affirming strong U.S. support for Macedonia joining NATO, and recognize the strategic U.S. partnership with our friend and ally Macedonia.

The U.S.-Macedonia relationship is one of critical importance in today's increasingly volatile world. Macedonia is strategically located in Southeast Europe, providing a unique gateway for rapid deployment to the Middle East, North Africa, and Eastern Europe in order to maintain regional stability as various national security challenges arise. Our friendship with Macedonia has never been more critical.

The U.S. has a vested interest in the stability and security of Macedonia and Southeast Europe. In the 1990s, we sent troops to the northern border of Macedonia to ensure stability in the aftermath of the breakup of Yugoslavia. Due in part to this American commitment, Macedonia was the only nation to peacefully declare independence without any bloodshed. Since then, the U.S. has assisted Macedonia on its path to partnership in Europe and across the Atlantic alike, with a track record of military, economic, and political support ever since.

In 1999, Macedonia opened its borders to 400,000 refugees from Kosovo and hosted the NATO Logistical Support Center for Kosovo Forces. In 2001, Macedonia was one of the first countries to offer support to the United States after the horrific attacks of September 11, abiding by the words of the late Macedonian President Boris Trajkovski that ''an attack on the United States is an attack on Macedonia.''

Since 2002, Macedonia has contributed greatly to the U.S. and ISAF mission in Afghanistan. Macedonia has patrolled ISAF headquarters in Kabul, was the fourth and fifth largest ISAF troop contributor per capita, contributed troops to the NATO-led ISAF mission, and engaged in combat operations side-by-side with American troops. Currently, Macedonia has been recognized as an operational partner in the new ''Resolute Support'' Mission in Afghanistan to train, advise, and assist our Afghan partners.

For their participation in U.S. and NATO-led missions, Macedonian soldiers have received 120 medals and military honors from the United States. Furthermore, Macedonia has been an active participant—and the first state partner—with the Vermont National Guard for the past 20 years, and, since 1995, more than 3,000 Macedonians and Vermonters have shared their expertise in more than 800 events as the partnership has developed, including a joint military embedment in Afghanistan in 2011.

I have long noted that Macedonia can protect the tent of NATO in places like Afghanistan, but it cannot sleep in the tent so long as it is not a member of the Treaty Organization. This is not right.

With what is happening in the world today, now is not the time to back down on supporting our allies. H. Res. 56 calls on the Administration, Department of State, and European allies to work with Greece and NATO allies to ensure that bilateral disputes do not impede Macedonia's NATO accession for the sake of regional stability in light of the current situation with Ukraine and elsewhere.

Time and again, Macedonia has shown steadfast support for the efforts of the United States to restore and maintain global stability. Macedonia is one of America's best friends in Southeast Europe.

But, Macedonia needs our support. It is long overdue that we use our diplomatic strength to reinforce our allies, and including Macedonia in the greatest military alliance in history is an important step in securing U.S. interests and maintaining this crucial partnership well into the future.

I encourage my colleagues in this House to support H. Res. 56 and affirm strong U.S. support for Macedonia joining NATO.

HONORING THE CAREER OF MAJOR GENERAL THOMAS R. MOORE

HON. EARL L. "BUDDY" CARTER

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. CARTER of Georgia. Mr. Speaker, I rise today to honor the career and accomplishments of Major General Thomas R. Moore, Assistant Adjutant General of the Georgia Air National Guard. On March 7th, 2015, General Moore will celebrate his retirement after 33 years of distinguished service.

In 1981, General Moore commissioned through the Reserve Officer Training Corps program at the University of South Carolina. Throughout his career, he has commanded at the squadron, group and wing levels. General Moore also served twice as the Commander for the 416th Air Expeditionary Group in Karshi-Khanabad Air Base, Uzbekistan. A master navigator, General Moore has earned more than 3,500 flying hours. In his current role, General Moore serves as the Assistant Adjutant General of the Georgia Air National Guard at Clay National Guard Center where he acts as a direct supervisor over the entire Georgia State Air Guard staff. His duties also include the command of 2,900 Georgia Air Guard members serving in two flying wings, seven geographically separated units and the nation's first Air Dominance Center.

General Moore's dedication and many contributions to our country, have been recognized with the Legion of Merit, the Bronze Star Medal (with 1 Bronze Oak Leaf Cluster), the Meritorious Service Medal (with 2 Bronze Oak Leaf Clusters), the Air Force Commendation Medal (with 1 Bronze Oak Leaf Cluster), and the Air Force Outstanding Unit Award (with ''V'' device, 1 Silver Oak Leaf Cluster and 3 Bronze Oak Leaf Clusters). However, these medals do not stand alone. General Moore is an honored recipient of many awards and decorations. General Moore has earned a great deal of respect from his colleagues, and

will always be noted for his outstanding character, commitment and allegiance.

Mr. Speaker, it is with great pride that I rise today to honor the many accomplishments of Major General Thomas R. Moore during his career and for his service to our country. I am pleased to join his wife, Paula, his two sons, Capt. Tyler Moore and Rhett Moore, family and friends in congratulating him in his retirement. I wish General Moore continued happiness in his future endeavors.

CONGRATULATING CHANCE COOPER

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Chance Cooper, of the Timberland High School Wolves Wrestling team, on his win in the 195 Class 4 2015 State Wrestling Championship match.

This student and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to their school and community.

I ask you in joining me in recognizing Chance Cooper for a job well done.

PERSONAL EXPLANATION

HON. VICKY HARTZLER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mrs. HARTZLER. Mr. Speaker, on Friday, February 27, 2015, I was unable to vote. Had I been present, I would have voted as follows:

On roll call no. 106, YEA.

PERSONAL EXPLANATION

HON. PAUL TONKO

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. TONKO. Mr. Speaker, on roll call no. 107, I was absent while attending a funeral in New York. Had I been present, I would have voted Yea.

CONGRATULATING COLBY SMITH

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Colby Smith, of the Holt High School Indians Wrestling team, on his win in the 126 Class 4 2015 State Wrestling Championship match.

This student and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to their school and community.

I ask you in joining me in recognizing Colby Smith for a job well done.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $18,155,853,840,783.67. We've added $7,528,976,791,870.59 to our debt in 6 years. This is over $7.5 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

A TRIBUTE TO WAYNE AND GEORGIE GOODVIN IN THE FIRST SESSION OF THE 114TH CONGRESS

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and honor Wayne and Georgie Goodvin on the very special occasion of their 75th wedding anniversary. Their milestone took place Saturday, February 28, 2015.

Wayne and Georgie eloped on a rainy day in 1940 and have resided on a farm outside of Carbon since 1951 where they raised their two children, Max and Carolyn. They now have four grandchildren and nine great-grandchildren. And every year on their anniversary, they tell their family about the day they got married. The Goodvin's continue to be a visible and important part of their community, and it is an honor to represent them in the United States Congress.

Georgie and Wayne's lifelong commitment to each other and their family truly embodies Iowa's values. I salute this lovely couple on their 75th year of life together and I wish them many more. I know my colleagues in the United States House of Representatives will join me in congratulating them on this momentous occasion.

CONGRATULATING CONNOR FLYNN

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Connor Flynn, of the Francis Howell High School Vikings Wrestling team, on his win in the 160 Class 4 2015 State Wrestling Championship match.

This student and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to their school and community.

I ask you in joining me in recognizing Connor Flynn for a job well done.

MOTION TO RECEDE AND CONCUR IN SENATE AMENDMENT TO H.R. 240

HON. BRIAN BABIN

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. BABIN. Mr. Speaker, I rise to join my colleagues in urging that we reject this motion to concur in the Senate amendments. The Senate removed the House-passed provisions that would prevent the President from acting unilaterally on immigration.

The President said on twenty-two occasions that he lacked the authority to act unilaterally on amnesty, but that is exactly what he did.

A vote against this motion is a vote for the rule of law. Yes, we are a nation of immigrants but we are also a nation of laws. Any changes to our immigration laws should be done legislatively. They should not be done unilaterally by the Administration, nor should they be changed by the courts.

We have millions of Americans who are still looking for work. We have others on the lower rungs of the economic ladder that want to climb higher, to earn more money, and to support their families with a higher wage.

If the Administration's amnesty plan is allowed to go into effect, the plight of these millions of American workers and the families they support will be harmed.

The House passed a bill to fully fund the Department of Homeland Security and also ensure that this money is not used to implement amnesty. The Administration rejected that, has refused to negotiate and has promised to veto any bill that includes provisions that uphold the rule of law.

I am committed to fighting for the rule of law and restoring the balance of power between the Executive and the Legislative branches of government.

MOTION TO RECEDE AND CONCUR IN THE SENATE AMENDMENT TO H.R. 240

HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Ms. JACKSON LEE. Mr. Speaker, I rise in strong support of H.R. 240, the Clean Department of Homeland Security Appropriations Bill, as it provides full funding of the Department of Homeland Security, including support for important federal cybersecurity initiatives, disaster relief and recovery programs, and essential law enforcement activities that are critical for ensuring the Department can help keep our Nation safe from harm.

I encourage support of this bill as it does not contain any of the ''poison pill'' amendments designed to constrain the President's authority to defer deportation of undocumented immigrants.

Mr. Speaker, I would like to take this time to highlight the pointlessness of the actions of House Republicans to use the funding of the Department of Homeland Security as a bargaining chip to extract concessions from the President.

Threatening to not fund a Department, especially one as crucial to the protection of our

homeland, just to get your way does not belong in American politics.

It is childish, Mr. Speaker, and the time that House Republicans have wasted playing politics with DHS could have been better served passing legislation that actually serves the American people.

The full and unconditional funding of the Department of Homeland Security is essential not only to the 18th district, not only to the state of Texas, it is essential to all Americans.

I want to point out, specifically, what programs were placed in danger by House Republicans had they gotten their way:

1. $39.7 billion in regular discretionary appropriations for Department of Homeland Security (DHS) in fiscal year 2015;

2. $12.6 billion for Customs and Border Protection (CBP); DHS would be required to accelerate the hiring of CBP officers;

3. $5.96 billion for Immigration and Customs Enforcement (ICE) plus an additional $345 million from the agency's fee funded accounts, bringing the total to $6.3 billion;

4. $553.6 million in funding to manage the influx of unaccompanied alien children, or ''UAC,'' entering the U.S.; the funding would be used to interdict migrants, care for and transport approximately 58,000 undocumented children to the custody of Health and Human Services (HHS), and facilitate the movement of undocumented families through removal proceedings after crossing the U.S. border;

5. $1.9 billion for both domestic and international investigations, including increases to combat human trafficking, child exploitation, cyber-crime, and drug smuggling, and to expand visa vetting capabilities;

6. $4.8 billion for the Transportation Security Administration (TSA);

7. $10 billion for the U.S. Coast Guard;

8. $753.2 million for cybersecurity operations in the National Programs and Protection Directorate to fund and sustain improvements to the Federal Network Security and Network Security Deployment programs;

9. $1.7 billion for the U.S. Secret Service—an increase of $80.5 million above the fiscal year 2014 enacted level—to begin preparation and training for candidate protection for the 2016 presidential election and to address critical failures in communications and training at the White House Complex;

10. $7 billion for disaster relief—fully funding FEMA's stated requirement; and

11. $1.1 billion for Science and Technology, $32.1 million above the President's request.

I would hope that House Republicans will have learned from this debacle that this tactic of playing political football with an entire Department will not work to further your own ideological agenda.

I applaud Speaker BOEHNER for finally coming to his senses in allowing a vote on a clean bill, one that the Senate passed two weeks ago and one that could have already been signed into law.

I urge all my colleagues to join me in sending a clean Homeland Security funding bill that will receive the presidential signature needed to become law and provide the resources needed to keep our homeland safe.

CONGRATULATING DALTON VOYLES

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, March 3, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Dalton Voyles, of the Pacific High School Indians Wrestling team, on his win in the 182 Class 3 2015 State Wrestling Championship match.

This student and his coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to their school and community.

I ask you in joining me in recognizing Dalton Voyles for a job well done.

Daily Digest

HIGHLIGHTS

House and Senate met in a Joint Meeting to receive His Excellency Benjamin Netanyahu, Prime Minister of Israel.

Senate

Chamber Action

Routine Proceedings, pages S1223–S1261.

Measures Introduced: Twenty-five bills and three resolutions were introduced, as follows: S. 623–647, S. Res. 94–95, and S. Con. Res. 7. **Pages S1246–47**

Measures Passed:

Career and Technical Education Month: Senate agreed to S. Res. 94, supporting the goals and ideals of Career and Technical Education Month. **Page S1256**

World Wildlife Day: Senate agreed to S. Res. 95, designating March 3, 2015, as "World Wildlife Day". **Page S1260**

Measures Considered:

National Labor Relations Board—Agreement: Senate began consideration of S.J. Res. 8, providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the National Labor Relations Board relating to representation case procedures, after agreeing to the motion to proceed. **Pages S1229–44, S1257–61**

During consideration of this measure today, Senate also took the following action:

By 53 yeas to 45 nays (Vote No. 66), Senate agreed to the motion to proceed to consideration of the joint resolution. **Page S1229**

A unanimous-consent-time agreement was reached providing for further consideration of the joint resolution at approximately 9:30 a.m., on Wednesday, March 4, 2015, with two hours of debate remaining, equally divided in the usual form. **Page S1257**

Appointments:

Congressional Budget Office Director: The Chair made the following announcement: The President Pro Tempore of the Senate and the Speaker of the House of Representatives, pursuant to the provisions of Section 201(a)(2) of the Congressional Budget Act of 1974, have appointed Dr. Homer Keith Hall as Director of the Congressional Budget Office, effective April 1, 2015, for the term expiring January 3, 2019. **Page S1227**

Joint Meeting Escort Committee—Agreement: A unanimous-consent agreement was reached providing that the President of the Senate be authorized to appoint a committee on the part of the Senate to join with a like committee on the part of the House of Representatives to escort His Excellency Binyamin Netanyahu, into the House Chamber for the joint meeting at 11 a.m., on Tuesday, March 3, 2015. **Page S1223**

Messages from the President: Senate received the following messages from the President of the United States:

Transmitting, pursuant to law, the continuation of the national emergency originally declared in Executive Order 13660 on March 6, 2014, as modified by the order of December 19, 2014, with respect to Ukraine; which was referred to the Committee on Banking, Housing, and Urban Affairs. (PM–8) **Page S1245**

Transmitting, pursuant to law, the continuation of the national emergency originally declared in executive order 13288 on March 6, 2003, with respect to the actions and policies of certain members of the Government of Zimbabwe and other persons to undermine Zimbabwe's democratic processes or institutions; which was referred to the Committee on Banking, Housing, and Urban Affairs. (PM–9) **Page S1245**

Nominations Confirmed: Senate confirmed the following nominations:

1 Army nomination in the rank of general.

Routine lists in the Air Force, Army, Coast Guard, Marine Corps, and Navy. **Page S1261**

Messages from the House: **Pages S1245–46**

Measures Referred: **Page S1246**

Measures Read the First Time: Page S1246

Executive Reports of Committees: Page S1246

Additional Cosponsors: Pages S1247–48

Statements on Introduced Bills/Resolutions: Pages S1248–55

Notices of Hearings/Meetings: Page S1255

Authorities for Committees to Meet: Pages S1255–56

Privileges of the Floor: Page S1256

Record Votes: One record vote was taken today. (Total—66) Page S1229

Adjournment: Senate convened at 9:45 a.m. and adjourned at 7:25 p.m., until 9:30 a.m. on Wednesday, March 4, 2015. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S1261.)

Committee Meetings

(Committees not listed did not meet)

BUSINESS MEETING

Committee on Agriculture, Nutrition, and Forestry: Committee ordered favorably reported the nominations of Jeffery S. Hall, of Kentucky, and Dallas P. Tonsager, of South Dakota, both to be a Member of the Farm Credit Administration Board, Farm Credit Administration.

APPROPRIATIONS: DEPARTMENT OF THE TREASURY

Committee on Appropriations: Subcommittee on Financial Services and General Government concluded a hearing to examine proposed budget estimates and justification for fiscal year 2016 for the Department of the Treasury, after receiving testimony from Jacob J. Lew, Secretary, John A. Koskinen, Commissioner, Internal Revenue Service, and J. Russell George, Inspector General for Tax Administration, all of the Department of the Treasury.

DEFENSE AUTHORIZATION REQUEST AND THE FUTURE YEARS DEFENSE PROGRAM

Committee on Armed Services: Committee concluded a hearing to examine a review of the Defense Authorization Request for fiscal year 2016 and the Future Years Defense Program, after receiving testimony from Ashton B. Carter, Secretary, and General Martin E. Dempsey, USA, Chairman, Joint Chiefs of Staff, both of the Department of Defense.

FEDERAL RESERVE ACCOUNTABILITY AND REFORM

Committee on Banking, Housing, and Urban Affairs: Committee concluded a hearing to examine Federal Reserve accountability and reform, including S. 530, to require the president of the Federal Reserve Bank of New York to be appointed by the President, by and with the advice and consent of the Senate, after receiving testimony from John B. Taylor, Hoover Institution, and Peter Conti-Brown, Stanford Law School Rock Center for Corporate Governance, both of Stanford University, Palo Alto, California; Paul H. Kupiec, American Enterprise Institute, Washington, D.C.; and Allan H. Meltzer, Carnegie Mellon University Tepper School of Business, Pittsburgh, Pennsylvania.

DEPARTMENT OF COMMERCE AND THE DEPARTMENT OF TRANSPORTATION BUDGET

Committee on Commerce, Science, and Transportation: Committee concluded a hearing to examine the President's proposed budget request for fiscal year 2016 for the Department of Commerce and the Department of Transportation, after receiving testimony from Anthony R. Foxx, Secretary of Transportation; and Penny Pritzker, Secretary of Commerce.

BUSINESS MEETING

Committee on Commerce, Science, and Transportation: Committee announced the following subcommittee assignments:

Subcommittee on Aviation Operations, Safety, and Security: Senators Ayotte (Chair), Wicker, Blunt, Rubio, Cruz, Fischer, Moran, Sullivan, Johnson, Heller, Gardner, Cantwell, Klobuchar, Blumenthal, Schatz, Markey, Booker, Udall, Manchin, and Peters.

Subcommittee on Communications, Technology, Innovation, and the Internet: Senators Wicker (Chair), Blunt, Rubio, Ayotte, Cruz, Fischer, Moran, Sullivan, Johnson, Heller, Gardner, Daines, Schatz, Cantwell, McCaskill, Klobuchar, Blumenthal, Markey, Booker, Udall, Manchin, and Peters.

Subcommittee on Consumer Protection, Product Safety, Insurance, and Data Security: Senators Moran (Chair), Blunt, Cruz, Fischer, Heller, Gardner, Daines, Blumenthal, McCaskill, Klobuchar, Markey, Booker, and Udall.

Subcommittee on Oceans, Atmosphere, Fisheries, and Coast Guard: Senators Rubio (Chair), Wicker, Ayotte, Cruz, Sullivan, Johnson, Booker, Cantwell, Blumenthal, Markey, Schatz, and Peters.

Subcommittee on Space, Science, and Competitiveness: Senators Cruz (Chair), Rubio, Moran, Sullivan, Gardner, Daines, Peters, Markey, Booker, Schatz, and Udall.

Subcommittee on Surface Transportation and Merchant Marine Infrastructure, Safety and Security: Senators Fischer (Chair), Wicker, Blunt, Ayotte, Moran, Sullivan, Johnson, Heller, Daines, Booker, Cantwell, McCaskill, Klobuchar, Blumenthal, Schatz, Markey, and Udall.

Senators Thune and Nelson are ex officio members of all subcommittees.

FAIRNESS IN TAXATION

Committee on Finance: Committee concluded a hearing to examine fairness in taxation, after receiving testimony from Lawrence Lindsey, The Lindsey Group, Fairfax, Virginia; Deroy Murdock, Atlas Network, and Steven Rattner, Willett Advisors LLC, both of New York, New York; and Heather Boushey, Washington Center for Equitable Growth, Washington, D.C.

CAMPAIGN AGAINST ISIS

Committee on Foreign Relations: Committee received a closed briefing on an update on the campaign against the Islamic State of Iraq and Syria (ISIS) from Michael P. Dempsey, Deputy Director of National Intelligence for Intelligence Integration, Office of the Director of National Intelligence; and Brett McGurk, Deputy Special Presidential Envoy for the Global Coalition to Counter ISIL, Department of State.

U.S. CITIZENSHIP AND IMMIGRATION SERVICES

Committee on the Judiciary: Subcommittee on Immigration and the National Interest concluded an oversight hearing to examine United States Citizenship and Immigration Services, focusing on ensuring agency priorities comply with the law, after receiving testimony from Joseph Moore, Senior Financial Official, Donald Neufeld, Associate Director, Service Center Operations, and Daniel Renaud, Associate Director, Field Operations, all of Citizenship and Immigration Services, Department of Homeland Security.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 23 public bills, H.R. 1208–1230; 1 private bill, H.R. 1231; and 6 resolutions, H. Con. Res. 21–22; and H. Res. 137, 139–41, were introduced. **Pages H1565–66**

Additional Cosponsors: **Pages H1567–68**

Reports Filed: A report was filed today as follows:

H. Res. 138, providing for consideration of the bill (H.R. 1029) to amend the Environmental Research, Development, and Demonstration Authorization Act of 1978 to provide for Scientific Advisory Board member qualifications, public participation, and for other purposes, and providing for consideration of the bill (H.R. 1030) to prohibit the Environmental Protection Agency from proposing, finalizing, or disseminating regulations or assessments based upon science that is not transparent or reproducible (H. Rept. 114–37). **Page H1565**

Speaker: Read a letter from the Speaker wherein he appointed Representative Newhouse to act as Speaker pro tempore for today. **Page H1527**

Journal: The House agreed to the Speaker's approval of the Journal by a voice vote. **Pages H1527, H1552**

Recess: The House recessed at 10:05 a.m. for the purpose of receiving His Excellency Binyamin Netanyahu, Prime Minister of Israel. The House reconvened at 12:32 p.m., and agreed that the proceedings had during the Joint Meeting be printed in the Record. **Pagse H1527, H1531**

Joint Meeting To Receive His Excellency Binyamin Netanyahu, Prime Minister of Israel: The House and Senate met in a joint session to receive His Excellency Binyamin Netanyahu, Prime Minister of Israel. He was escorted into the Chamber by a committee comprised of Representatives McCarthy, Scalise, McMorris Rodgers, Walden, Messer, Jenkins (KS), Foxx, Royce, Ros-Lehtinen, Granger, Zeldin, Dold, Hoyer, Crowley, Israel, Engel, Lowey, Nadler, Hastings (FL), Deutch, Sherman, Hahn, and Polis; and Senators McConnell, Cornyn, Thune, Barrasso, Wicker, Corker, Durbin, Schumer, Menendez, and Cardin. **Pages H1528–31**

Passenger Rail Reform and Investment Act of 2015: The House agreed to H. Res. 134, the rule providing for consideration of H.R. 749, to reauthorize Federal support for passenger rail programs, by a voice vote, after the previous question was ordered. **Pages H1531–35**

Department of Homeland Security Appropriations Act, 2015: House agreed to the Simpson motion to take from the Speaker's table H.R. 240, making appropriations for the Department of Homeland Security for the fiscal year ending September 30, 2015, recede from the disagreement of the Senate amendment and agree to concur therein, by a yea-and-nay vote of 257 yeas to 167 nays, Roll No. 109, after the previous question was ordered.

Pages H1535–52

Rejected the Massie motion to lay the Senate amendment on the table by a recorded vote of 140 ayes to 278 noes, Roll No. 108. **Page H1546**

Joint Economic Committee—Appointment: The Chair announced the Speaker's appointment of the following Members of the House to the Joint Economic Committee: Representatives Delaney, Adams, and Beyer. **Page H1564**

Presidential Messages: Read a message from the President wherein he notified Congress that the national emergency declared with respect to the actions and policies of certain members of the Government of Zimbabwe and other persons to undermine Zimbabwe's democratic processes or institutions is to continue in effect beyond March 6, 2015—referred to the Committee on Foreign Affairs and ordered to be printed (H. Doc. 114–13). **Page H1564**

Read a message from the President wherein he notified Congress that the national emergency declared in Executive Order 13660 with respect to Ukraine is to continue in effect beyond March 6, 2015—referred to the Committee on Foreign Affairs and ordered to be printed (H. Doc. 114–14). **Page H1564**

Senate Messages: Messages received from the Senate by the Clerk and subsequently presented to the House today and messages received from the Senate today appear on pages H1527, H1535.

Quorum Calls—Votes: One yea-and-nay vote and one recorded vote developed during the proceedings of today and appear of pages H1546, H1551. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 5:20 p.m. **Page H1565**

Committee Meetings

APPROPRIATIONS—NATIONAL INSTITUTES OF HEALTH

Committee on Appropriations: Subcommittee on Labor, Health and Human Services, and Education held a hearing on National Institutes of Health budget. Testimony was heard from Francis S. Collins, M.D., Director, National Institute of Health; Thomas R. Insel, M.D., Director, National Institute of Mental Health; Jon R. Lorsch, Director, National Institute of General Medical Sciences; Nora D. Volkow, M.D., Director, National Institute on Drug Abuse; and Gary H. Gibbons, M.D., Director, National Heart, Lung, and Blood Institute.

APPROPRIATIONS—UNITED STATES AFRICA COMMAND

Committee on Appropriations: Subcommittee on Defense held a hearing on United States Africa Command budget. Testimony was heard from General David M. Rodriguez, Commander, United States Africa Command. This hearing was closed.

APPROPRIATIONS—FOREST SERVICE

Committee on Appropriations: Subcommittee on Interior, Environment, and Related Agencies held a hearing on U.S. Forest Service budget. Testimony was heard from Tom Tidwell, Chief, U.S. Forest Service; and Antoine "Tony" Dixon, Director of Strategic Planning, Budget and Accountability, U.S. Forest Service.

APPROPRIATIONS—INSTALLATIONS, ENVIRONMENT, ENERGY AND BRAC

Committee on Appropriations: Subcommittee on Military Construction, Veterans Affairs, and Related Agencies held a hearing on Installations, Environment, Energy and BRAC budget. Testimony was heard from John Conger, performing the duties of Assistant Secretary of Defense, Energy, Installations and Environment; Katherine Hammack, Assistant Secretary of the Army, Installations, Energy and Environment; Dennis V. McGinn, Assistant Secretary of the Navy, Energy, Installations and Environment; and Miranda Ballentine, Assistant Secretary of the Air Force, Installations, Environment and Energy.

APPROPRIATIONS—DEPARTMENT OF AGRICULTURE MARKETING AND REGULATORY PROGRAMS

Committee on Appropriations: Subcommittee on Agriculture, Rural Development, Food and Drug Administration, and Related Agencies held a hearing on Department of Agriculture Marketing and Regulatory Programs budget. Testimony was heard from the following Department of Agriculture officials: Ed Avalos, Under Secretary, Marketing and Regulatory Programs; Kevin Shea, Administrator, Animal and Plant Health Inspection Service; Anne Alonzo, Administrator, Agriculture Marketing Service; Larry Mitchell, Administrator, Grain Inspection, Packers and Stockyards Administration; and Michael Young, Budget Officer.

APPROPRIATIONS—DEPARTMENT OF COMMERCE

Committee on Appropriations: Subcommittee on Commerce, Justice, Science, and Related Agencies held a hearing on Department of Commerce budget. Testimony was heard from Penny Pritzker, Secretary, Department of Commerce.

THE PRESIDENT'S PROPOSED AUTHORIZATION FOR USE OF MILITARY FORCE AGAINST ISIL AND U.S. POLICY, STRATEGY, AND POSTURE IN THE GREATER MIDDLE EAST

Committee on Armed Services: Full Committee held a hearing entitled "The President's Proposed Authorization for Use of Military Force Against ISIL and U.S. Policy, Strategy, and Posture in the Greater Middle East". Testimony was heard from Christine Wormuth, Undersecretary of Defense for Policy; and General Lloyd Austin, USA, Commander of U.S. CENTCOM.

ALIGNMENT OF INFRASTRUCTURE INVESTMENT AND RISK AND DEFENSE STRATEGIC REQUIREMENTS

Committee on Armed Services: Subcommittee on Readiness held a hearing entitled "Alignment of Infrastructure Investment and Risk and Defense Strategic Requirements". Testimony was heard from John Conger, performing the duties of the Assistant Secretary of Defense, Energy, Installations, and Environment; Katherine Hammack, Assistant Secretary of the Army, Installations, Energy, and Environment; Dennis V. McGinn, Assistant Secretary of the Navy, Energy, Installations, and Environment; and Miranda A. A. Ballentine, Assistant Secretary of the Air Force, Installations, Environment, and Energy.

21ST CENTURY ENERGY MARKETS: HOW THE CHANGING DYNAMICS OF WORLD ENERGY MARKETS IMPACT OUR ECONOMY AND ENERGY SECURITY

Committee on Energy and Commerce: Subcommittee on Energy and Power held a hearing entitled "21st Century Energy Markets: How the Changing Dynamics of World Energy Markets Impact our Economy and Energy Security". Testimony was heard from Adam Sieminski, Administrator, U.S. Energy Information Administration; and public witnesses.

UNDERSTANDING THE CYBER THREAT AND IMPLICATIONS FOR THE 21ST CENTURY ECONOMY

Committee on Energy and Commerce: Subcommittee on Oversight and Investigations held a hearing entitled "Understanding the Cyber Threat and Implications for the 21st Century Economy". Testimony was heard from public witnesses.

THE SEMI-ANNUAL REPORT OF THE BUREAU OF CONSUMER FINANCIAL PROTECTION

Committee on Financial Services: Full Committee held a hearing entitled "The Semi-Annual Report of the Bureau of Consumer Financial Protection". Testimony was heard from Richard Cordray, Director, Consumer Financial Protection Bureau.

MISCELLANEOUS MEASURES

Committee on the Judiciary: Full Committee began a markup on H.R. 1147, the "Legal Workforce Act"; H.R. 1149, the "Protection of Children Act of 2015"; H.R. 1153, the "Asylum Reform and Border Protection Act of 2015"; and H.R. 1148, the "Michael Davis, Jr. in Honor of State and Local Law Enforcement Act".

CHALLENGES FACING OIRA IN ENSURING TRANSPARENCY AND EFFECTIVE RULEMAKING

Committee on Oversight and Government Reform: Subcommittee on Health Care, Benefits and Administrative Rules; and Subcommittee on Government Operations, held a joint hearing entitled "Challenges Facing OIRA in Ensuring Transparency and Effective Rulemaking". Testimony was heard from Howard Shelanski, Administrator, Office of Information and Regulatory Affairs.

EPA SCIENCE ADVISORY BOARD REFORM ACT OF 2015; SECRET SCIENCE REFORM ACT OF 2015

Committee on Rules: Full Committee held a hearing on H.R. 1029, the "EPA Science Advisory Board Reform Act of 2015"; and H.R. 1030, the "Secret Science Reform Act of 2015". The committee granted, by record vote of 7–4, a structured rule for H.R 1029. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on Science, Space, and Technology. The rule waives all points of order against consideration of the bill. The rule makes in order as original text for the purpose of amendment an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–10 and provides that it shall be considered as read. The rule waives all points of order against that amendment in the nature of a substitute. The rule makes in order only those further amendments printed in part A of the Rules Committee report. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendments printed in part A of the report. The rule provides one motion to recommit with or without instructions. The rule also grants a structured rule for H.R. 1030. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on Science, Space, and Technology. The rule waives all points of order against consideration of the bill. The rule makes in order as original text for the purpose

of amendment an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–11 and provides that it shall be considered as read. The rule waives all points of order against that amendment in the nature of a substitute. The rule makes in order only those further amendments printed in part B of the Rules Committee report. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendments printed in part B of the report. The rule provides one motion to recommit with or without instructions. Testimony was heard from Representatives Lucas, Clark of Massachusetts, and Polis.

FEDERAL AVIATION ADMINISTRATION REAUTHORIZATION: ENABLING A 21ST CENTURY AVIATION SYSTEM

Committee on Transportation and Infrastructure: Subcommittee on Aviation held a hearing entitled "Federal Aviation Administration Reauthorization: Enabling a 21st Century Aviation System". Testimony was heard from Michael Huerta, Administrator, Federal Aviation Administration.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, MARCH 4, 2015

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Appropriations: Subcommittee on Department of the Interior, Environment, and Related Agencies, to hold hearings to examine proposed budget estimates and justification for fiscal year 2016 for the Department of the Interior, 10 a.m., SD–124.

Subcommittee on Department of Defense, to hold hearings to examine proposed budget estimates and justification for fiscal year 2016 for the Navy and Marine Corps, 10:30 a.m., SD–192.

Subcommittee on Energy and Water Development, to hold hearings to examine proposed budget estimates and justification for fiscal year 2016 for the Nuclear Regulatory Commission, 2:30 p.m., SD–192.

Committee on Armed Services: Subcommittee on Personnel, to hold hearings to examine the Active, Guard, Reserve, and civilian personnel programs in review of the Defense Authorization Request for fiscal year 2016 and the Future Years Defense Program, 2:30 p.m., SR–232A.

Subcommittee on Strategic Forces, to hold hearings to examine United States nuclear weapons policy, programs, and strategy in review of the Defense Authorization Request for fiscal year 2016 and the Future Years Defense Program, 3:30 p.m., SR–222.

Committee on the Budget: to hold hearings to examine wasteful duplication in the Federal government, 10:30 a.m., SD–608.

Committee on Commerce, Science, and Transportation: Subcommittee on Surface Transportation and Merchant Marine Infrastructure, Safety and Security, to hold hearings to examine surface transportation reauthorization, focusing on oversight and reform of the Federal Motor Carrier Safety Administration, 10 a.m., SR–253.

Committee on Environment and Public Works: to hold an oversight hearing to examine the President's proposed budget request for fiscal year 2016 for the Environmental Protection Agency, 9:30 a.m., SD–406.

Committee on Foreign Relations: Subcommittee on Europe and Regional Security Cooperation, to hold hearings to examine Russian aggression in Eastern Europe, 2 p.m., SD–419.

Committee on Homeland Security and Governmental Affairs: business meeting to consider an original bill entitled, "Inspector General Empowerment Act of 2015", S. 280, to improve the efficiency, management, and interagency coordination of the Federal permitting process through reforms overseen by the Director of the Office of Management and Budget, H.R. 460, to direct the Secretary of Homeland Security to train Department of Homeland Security personnel how to effectively deter, detect, disrupt, and prevent human trafficking during the course of their primary roles and responsibilities, H.R. 615, to amend the Homeland Security Act of 2002 to require the Under Secretary for Management of the Department of Homeland Security to take administrative action to achieve and maintain interoperable communications capabilities among the components of the Department of Homeland Security, an original bill entitled, "Federal Improper Payments Coordination Act", an original bill entitled, "Presidential Library Donations Act", an original bill entitled, "Federal Vehicle Repair Costs Savings Act", S. 546, to establish the Railroad Emergency Services Preparedness, Operational Needs, and Safety Evaluation (RESPONSE) Subcommittee under the Federal Emergency Management Agency's National Advisory Council to provide recommendations on emergency responder training and resources relating to hazardous materials incidents involving railroads, S. 242, to amend title 5, United States Code, to provide leave to any new Federal employee who is a veteran with a service-connected disability rated at 30 percent or more for purposes of undergoing medical treatment for such disability, S. 86, to amend title 44 of the United States Code, to provide for the suspension of fines under certain circumstances for first-time paperwork violations by small business concerns, and S. 136, to amend chapter 21 of title 5, United States Code, to provide that fathers of certain permanently disabled or deceased veterans shall be included with mothers of such veterans as preference eligibles for treatment in the civil service, 10 a.m., SD–342.

Committee on Indian Affairs: to hold hearings to examine S. 438, to provide for the repair, replacement, and maintenance of certain Indian irrigation projects, 2:30 p.m., SD–628.

Committee on the Judiciary: to hold hearings to examine whistleblower retaliation at the Federal Bureau of Investigation, focusing on improving protections and oversight, 10 a.m., SD–226.

Committee on Veterans' Affairs: to hold a joint hearing with the House Committee on Veterans' Affairs to examine the legislative presentation of the Veterans of Foreign Wars, 10 a.m., SD–G50.

House

Committee on Appropriations, Subcommittee on Military Construction, Veterans Affairs, and Related Agencies, hearing on Department of Veterans Affairs budget, 9:30 a.m., H–140 Capitol.

Subcommittee on Agriculture, Rural Development, Food and Drug Administration, and Related Agencies, hearing on Food and Drug Administration budget, 10 a.m., 2362–A Rayburn.

Subcommittee on Defense, hearing on Department of Defense budget, 10 a.m., 2359 Rayburn.

Subcommittee on Labor, Health and Human Services, and Education, hearing on Department of Education budget, 10 a.m., 2358–C Rayburn.

Subcommittee on Commerce, Justice, Science, and Related Agencies, hearing on National Aeronautics and Space Administration budget, 10:30 a.m., H–309 Capitol.

Subcommittee on Energy and Water Development, hearing on Department of Energy, National Nuclear Security Administration, Weapons Activities budget, 1 p.m., 2362–B Rayburn.

Subcommittee on Financial Services and General Government, hearing on Department of Treasury budget, 2 p.m., 2359 Rayburn.

Committee on Armed Services, Full Committee, hearing entitled ''U.S. Policy, Strategy, and Posture in Afghanistan: Post-2014 Transition, Risks, and Lessons Learned'', 10 a.m., 2118 Rayburn.

Subcommittee on Seapower and Projection Forces, hearing entitled ''Air Force Projection Forces Aviation Programs and Capabilities for Fiscal Year 2016'', 2 p.m., 2212 Rayburn.

Subcommittee on Emerging Threats and Capabilities, hearing entitled ''Cyber Operations: Improving the Military Cyber Security Posture in an Uncertain Threat Environment'', 3:30 p.m., 2118 Rayburn.

Committee on Education and the Workforce, Subcommittee on Health, Employment, Labor, and Pensions, hearing on H.J. Res. 29, providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the National Labor Relations Board relating to representation case procedures, 10 a.m., 2175 Rayburn.

Committee on Energy and Commerce, Subcommittee on Energy and Power, hearing entitled ''The 21st Century Electricity Challenge: Ensuring a Secure, Reliable, and Modern Electricity System'', 10:15 a.m., 2123 Rayburn.

Subcommittee on Communications and Technology, hearing entitled ''Reauthorization of the Federal Communications Commission: The FCC's FY 2016 Budget Request'', 10:30 a.m., 2322 Rayburn.

Committee on Foreign Affairs, Full Committee, hearing entitled ''Ukraine Under Siege'', 10 a.m., 2172 Rayburn.

Subcommittee on Asia and the Pacific, hearing entitled ''The Trans-Pacific Partnership: Prospects for Greater U.S. Trade'', 2 p.m., 2172 Rayburn.

Committee on Homeland Security, Subcommittee on Cybersecurity, Infrastructure Protection, and Security Technologies, hearing entitled ''Industry Perspectives on the President's Cybersecurity Information Sharing Proposal'', 2 p.m., 311 Cannon.

Committee on House Administration, Full Committee, markup on H. Res. 132, Omnibus Resolution for Committee Funding in the 114th Congress; a committee resolution on Limitation on Allocation of Franked Mail; H.R. 195, the ''Election Assistance Commission Termination Act''; and H.R. 412, to reduce Federal spending and the deficit by terminating taxpayer financing of presidential election campaigns, 10:30 a.m., 1310 Longworth.

Committee on the Judiciary, Full Committee, markup on H.R. 1147, the ''Legal Workforce Act''; H.R. 1149, the ''Protection of Children Act of 2015''; H.R. 1153, the ''Asylum Reform and Border Protection Act of 2015''; and H.R. 1148, the ''Michael Davis, Jr. in Honor of State and Local Law Enforcement Act'', 10 a.m., 2141 Rayburn.

Committee on Oversight and Government Reform, Full Committee, hearing entitled ''Rebuilding the Chemical Safety Board: Finding a Solution to the CSB's Governance and Management Challenges'', 9 a.m., 2154 Rayburn.

Committee on Science, Space, and Technology, Full Committee, markup on H.R. 1119, the ''Research and Development Efficiency Act''; H.R. 1156, the ''International Science and Technology Cooperation Act of 2015''; H.R. 1162, the ''Science Prize Competitions Act''; H.R. 1158, the ''Department of Energy Laboratory Modernization and Technology Transfer Act of 2015''; and H.R. 874, the ''American Super Computing Leadership Act'', 9 a.m., 2318 Rayburn.

Committee on Small Business, Full Committee, hearing entitled ''Building an Opportunity Economy: The State of Small Business and Entrepreneurship'', 11 a.m., 2360 Rayburn.

Joint Meetings

Joint Economic Committee: to hold hearings to examine the Economic Report of the President 2015, 2:30 p.m., SD–106.

Next Meeting of the **SENATE**

9:30 a.m., Wednesday, March 4

Senate Chamber

Program for Wednesday: Senate will continue consideration of S.J. Res. 8, National Labor Relations Board, with a vote on passage of the resolution at approximately 11:30 a.m.

Following disposition of S.J. Res. 8, Senate will vote on the motion to invoke cloture on the veto message to accompany S. 1, Keystone XL Pipeline Approval Act.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, March 4

House Chamber

Program for Wednesday: Consideration of H.R. 749—Passenger Rail Reform and Investment Act of 2015 (Subject to a Rule).

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